

1 [Various Codes - Boards, Commissions, and Advisory Bodies]

2

3 **Ordinance amending the Administrative, Business and Tax Regulations, Campaign and**

4 **Governmental Conduct, Environment, Health, Labor and Employment, Municipal**

5 **Elections, Park, Planning, Police, Public Works, and Transportation Codes to: 1) define**

6 **and distinguish between Commissions and Advisory Bodies (collectively, “bodies”)**

7 **and establish certain standard provisions, some of which generally apply to**

8 **Commissions, some to Advisory Bodies, and some to both; 2) generally establish the**

9 **term and term limits of bodies, with four-year terms and three-term limits for**

10 **Commissions, three-year terms and four-term limits for Advisory Bodies, and generally**

11 **limit holdover service by members of bodies; 3) establish, modify, or clarify the sunset**

12 **dates of certain bodies; 4) abolish certain bodies; 5) retain certain bodies, in some**

13 **cases renaming them, modifying their powers and duties, and/or changing them from**

14 **Commissions to Advisory Bodies; 6) for certain bodies, modify the composition,**

15 **membership, or appointment structure of members, and change qualifications for**

16 **service from required to desired qualifications; 7) transfer to Chapter 5 of the**

17 **Administrative Code provisions for bodies that are currently located elsewhere in the**

18 **Administrative Code or another part of the Municipal Code, so that the large majority of**

19 **Commissions and Advisory Bodies are concentrated in Chapter 5; 8) modify the duties,**

20 **responsibilities, definitions, and membership of the Child Care Planning and Advisory**

21 **Council to conform with applicable state law; 9) add two state-required bodies, the**

22 **Community Corrections Council and the Juvenile Justice Coordinating Council, to the**

23 **Administrative Code; 10) make other minor or clarifying changes regarding**

24 **Commissions and Advisory Bodies; and 11) authorize and direct the City Attorney to**

25 **make clerical, non-substantive changes to update in the Municipal Code cross-**

1 references to renamed bodies and cross-references to section and subsection
2 numbers changed by this Ordinance.

3 NOTE: **Unchanged Code text and uncodified text** are in plain Arial font.
4 **Additions to Codes** are in single-underline italics Times New Roman font.
5 **Deletions to Codes** are in ~~strikethrough italics Times New Roman font~~.
6 **Board amendment additions** are in double-underlined Arial font.
7 **Board amendment deletions** are in ~~strikethrough Arial font~~.
8 **Asterisks (* * * *)** indicate the omission of unchanged Code
9 subsections or parts of tables.

10 Be it ordained by the People of the City and County of San Francisco:

11 Section 1. Legal Effect.

12 This ordinance is enacted solely for the purpose of effectuating the decisions and
13 recommendations of the Commission Streamlining Task Force. In addition, the ordinance
14 incorporates nonsubstantive changes to reorganize the Municipal Code and to modernize,
15 correct, and update the language and format of provisions concerning commissions and
16 advisory bodies. Neither the retention nor relocation of any provision or ordinance is intended
17 to alter its substance or meaning except as specifically revised herein. This ordinance is not
18 to be considered a “reenactment” of any provision of the Municipal Code, and courts should
19 not infer a substantive legislative intent from reenacted provisions, such as inferring legislative
20 approval of past judicial or administrative interpretations of those provisions.

21 Section 2. Organization of the Administrative Code.

22 In general, most commissions and advisory bodies within the Municipal Code not
23 already contained within Chapter 5 of the Administrative Code will be redesignated to Chapter
24 5 of the Administrative Code, as provided below. In addition, Chapter 5 will be renumbered to
25 adopt standard numbering throughout. The Commission Streamlining Task Force’s chart of

1 all redesignated and renumbered sections is on file with the Clerk of the Board of Supervisors
2 in File No. _____.
3

4 Section 3. Consolidation of Commissions and Advisory Bodies in Chapter 5 of the
5 Administrative Code.

6 A core purpose of this ordinance is to gather together in Chapter 5 of the Administrative
7 Code the large majority of Commissions and Advisory Bodies that are in the Municipal Code.
8 This Section 3 of the ordinance serves that purpose.

9 In this Section 3, Chapter 5 is renamed, and an entirely new Article I of Chapter 5,
10 consisting of Sections 5.1-1 through 5.1-10, containing general provisions regarding
11 Commissions and Advisory Bodies, is added.

12 The remainder of Chapter 5 is amended through a series of Articles, each of which
13 covers a particular Commission or Advisory Body, that are presented in numerical sequence.
14 The different Articles include:

15 (1) existing Articles in Chapter 5 that are retained and amended (existing Articles I,
16 renumbered as IV; II, III, V, VI, VIII, XI, XV, XIX, XX, XXI, XXIII, XXVI, XXVII, XXXI, XXXIV,
17 XXXVIII, XLI, XLVIII, and XLIX);

18 (2) existing Articles in Chapter 5 that are deleted, with the result that the Commission
19 or Advisory Body is eliminated (existing Articles VII, IX, X, XIII, XIV, XVIII, XXIV, XXX, XXXVI,
20 XL, and XLV); and

21 (3) new Articles in Chapter 5 that primarily have been moved there from another part
22 of the Municipal Code and amended, including moved both from the Administrative Code and
23 other subparts of the Municipal Code (new Articles VII, IX, X, XII, XIII, XIV, XVI, XVII, XVIII,
24 XXII, XXIV, XXVIII, XXX, XXXII, XXXV, XXXVI, XXXVII, XXXIX, and XL).

25 Chapter 5, consisting of Articles I-XLIX (not including unamended existing Articles and

nonexistent Articles within that numerical sequence), is hereby amended, to read as follows:

CHAPTER 5: ~~COMMITTEES~~ ADVISORY BODIES AND COMMISSIONS

ARTICLE I: GENERAL PROVISIONS

SEC. 5.1-1. DEFINITIONS.

For all purposes in this Chapter 5, the following terms shall have the meanings specified below:

“Advisory Body” shall mean a multimember body, whether permanent or temporary, and regardless of name or composition, established by the Charter, by ordinance or resolution, by state or federal law, or by the initiative of another body so established, that does not have legal authority to exercise the sovereign powers of the City by making binding decisions on behalf of the City.

“Commission” shall mean a multimember body, whether permanent or temporary, and regardless of name or composition, established by the Charter, by ordinance, by resolution adopted by the Municipal Transportation Agency Board of Directors, or by state or federal law, that has authority to exercise the sovereign powers of the City by making binding decisions on behalf of the City.

SEC. 5.1-2. COMMISSIONS – TERMS AND TERM LIMITS.

Unless otherwise provided in the Charter, in this Chapter 5, or in another section of the Municipal Code, the following provisions shall apply to members of any Commission:

(a) Members shall serve four-year terms. No person may serve as an appointed member of the same body for more than three terms.

(b) A part of a term that exceeds two years shall count as a full term; a part of a term that is two years or less shall not. Notwithstanding the preceding sentence, the current term of any person serving on a Commission on January 1, 2027, shall count as a full term if the person serves more than two years of that term.

(c) Terms completed on or before December 31, 2026 shall not count as a term for the purpose

1 of the lifetime term limit in this Section 5.1-2.

2 (d) This Section 5.1-2 shall not apply to a person serving in an ex officio capacity or serving in
3 a seat designated for a City employee or officer.

4 (e) Any person subject to this Section 5.1-2 who is serving a term that is shorter or longer than
5 four years on January 1, 2027 may complete that term, and all subsequent terms for the seat will be
6 four years, as provided in subsection (a).

7 (f) All four-year terms in effect on January 1, 2027 will continue. Commissions that have no
8 established terms on January 1, 2027, and Commissions for which a majority of the seats expire in the
9 same year, shall draw lots by no later than April 1, 2027 to establish staggered terms.

10 (g) Unless otherwise provided in this Chapter or in another section of the Municipal Code,
11 members serve at the pleasure of their appointing authority and may be removed by their appointing
12 authority without cause.

13
14 **SEC. 5.1-3. COMMISSIONS – POWERS AND DUTIES.**

15 Unless otherwise provided in the Charter or in this Chapter 5, each policy body designated as a
16 Commission in this Chapter or in another section of the Municipal Code shall:

17 (a) Formulate, evaluate and approve goals, objectives, plans, and programs and set policies
18 consistent with the overall objectives of the City, as established by the Mayor and the Board of
19 Supervisors;

20 (b) After public hearing, approve applicable departmental budgets or any budget modifications
21 or fund transfers requiring the approval of the Board of Supervisors, subject to the Mayor's final
22 authority to initiate, prepare, and submit the annual proposed budget and the Board of Supervisors'
23 authority under Charter Section 9.103; and

24 (c) Exercise such other powers and duties as shall be prescribed by ordinance.

25 In furtherance of the discharge of its responsibilities, each Commission may:

1 (d) Recommend to the Mayor for submission to the Board of Supervisors rates, fees and similar
2 charges coming within their respective jurisdictions;

3 (e) Conduct investigations into any aspect of governmental operations within its jurisdiction
4 through the power of inquiry, and make recommendations to the Mayor or the Board of Supervisors;
5 and

6 (f) Hold hearings and take testimony.

7
8 **SEC. 5.1-4. ADVISORY BODIES – TERMS AND TERM LIMITS.**

9 Unless otherwise provided in the Charter, in this Chapter 5, or in another section of the
10 Municipal Code, the following provisions shall apply to members of any Advisory Body:

11 (a) Members shall serve three-year terms. No person may serve as an appointed member of the
12 same body for more than four terms.

13 (b) A part of a term that exceeds 18 months shall count as a full term; a part of a term that is
14 18 months or less shall not. Notwithstanding the preceding sentence, the current term of any person
15 serving on an Advisory Body on January 1, 2027, shall count as a full term if the person serves more
16 than 18 months of that term.

17 (c) Terms completed on or before December 31, 2026, shall not count as a term for the purpose
18 of the lifetime term limit in this Section 5.1-4.

19 (d) This Section shall not apply to a person serving in an ex officio capacity or serving in a seat
20 designated for a City employee or officer.

21 (e) Any person subject to this Section 5.1-4 who is serving a term that is shorter or longer than
22 three years on January 1, 2027 may complete that term, and all subsequent terms for the seat will be
23 three years, as provided in subsection (a).

24 (f) All three-year terms in effect on January 1, 2027 will continue. Advisory Bodies that have
25 no established terms on January 1, 2027, and Advisory Bodies for which a majority of the seats expire

1 in the same year, shall draw lots by no later than April 1, 2027 to establish staggered terms.

2 (g) Unless otherwise provided in this Chapter, members serve at the pleasure of their
3 appointing authority and may be removed by their appointing authority without cause.

4
5 **SEC. 5.1-5. HOLD-OVER SERVICE.**

6 Except as otherwise provided in this Chapter 5 or in another section of the Municipal Code, the
7 tenure of a member of any Commission or Advisory Body shall terminate no later than 60 days after the
8 expiration of the member's term, unless the member is reappointed. A member may not serve as a
9 hold-over member of a Commission or Advisory Body for more than 60 days after the expiration of
10 their term.

11
12 **SEC. 5.1-6. COMPENSATION.**

13 Members of Commissions and Advisory Bodies shall receive no compensation from the City
14 unless (1) expressly provided in the Charter or authorized by ordinance, (2) compensation is
15 authorized in an annual or supplemental appropriation ordinance under Article IX of the Charter, (3)
16 compensation is authorized under Section 8A.106 of the Charter, or (4) the member is a City employee
17 acting in the scope of their employment.

18
19 **SEC. 5.1-7. COOPERATION.**

20 All City departments, Commissions, and agencies shall cooperate with any Commission or
21 Advisory Body established in the Charter, in this Chapter 5, or in another section of the Municipal
22 Code in exercising its legal powers and duties.

23
24 **SEC. 5.1-8. REMOVAL FROM ADVISORY BODIES FOR UNEXCUSED ABSENCES.**

25 Any member of an Advisory Body who fails to attend at least three meetings of the Advisory

Body in a 12-month period without the express approval of the Advisory Body at or before each missed meeting shall be deemed to have resigned from the Advisory Body ten days after the third unapproved absence. The Advisory Body shall promptly inform the Clerk of the Board of Supervisors and the member's appointing authority of the resignation. This Section shall not apply to a person serving in an ex officio capacity or serving in a seat designated for a City employee or officer.

SEC. 5.1-9. ADVISORY BODIES AND COMMISSIONS ESTABLISHED IN OTHER PROVISIONS OF THE MUNICIPAL CODE.

This Chapter 5 is intended to be the primary repository for all Advisory Bodies and Commissions except those established in the Charter. Other bodies in the Municipal Code include:

- (a) Assessment Appeals Board;
- (b) Disaster Council;
- (c) Film Commission;
- (d) Human Rights Commission;
- (e) In-Home Supportive Services Public Authority Governing Body;
- (f) Interdepartmental Staff Council on Traffic and Transportation;
- (g) Permit Prioritization Task Force;
- (h) Refuse Rate Board;
- (i) Residential Rent Stabilization and Arbitration Board; and
- (j) Sunshine Ordinance Task Force.

SEC. 5.1-10. RECORD OF TERMS AND TERM LIMITS.

The Clerk of the Board of Supervisors shall maintain a public record of all Commissions and Advisory Bodies and their seat terms, term limits, and seat qualifications of all members. The Clerk of the Board shall prepare and update this record based on information provided to the Clerk of the

Board by the appointing authorities for those members and the department responsible for providing administrative support for the Commission or Advisory Body. Any entity creating a new Commission or Advisory Body shall notify the Clerk of the Board in writing within five business days of the body's creation. All appointing authorities and departments responsible for providing administrative support shall notify the Clerk of the Board in writing of the appointment, resignation, or removal of a member of a Commission or Advisory Board within five business days of each such appointment, resignation, or removal. If the Clerk of the Board establishes an electronic format to track the information described in this Section 5.1-10, all entities creating a new body, appointing authorities, and departments responsible for providing administrative support shall provide information through that electronic format to the extent required by the Clerk of Board within a timeframe prescribed by the Clerk of the Board. The Clerk of the Board shall establish an oversight process under which a committee of the Board of Supervisors shall ensure the requirements of this Section 5.1-10 are met on a continual basis.

ARTICLE ~~I~~IV: REENTRY COUNCIL

[This bracketed note is uncodified. This newly renumbered Article IV shall be placed between Articles III and V.]

SEC. ~~5.1-1~~5.4-1. REENTRY COUNCIL.

The City hereby establishes a Reentry Council ("Council") as an Advisory Body as defined in Section 5.1-1. Subject to the fiscal and budgetary provisions of the Charter, the Public Defender's Office, the District Attorney's Office, the Adult Probation Department, and the Mayor's Office shall each designate staff to provide administrative support to the Council.

SEC. ~~5.1-2~~5.4-2. PURPOSE.

The purpose of the Council is to coordinate local efforts to support adults exiting San Francisco County Jail, San Francisco juvenile justice system out-of-home placements, the

1 California Department of Corrections and Rehabilitation facilities, and the United States
2 Federal Bureau of Prison facilities. The Council shall provide the Mayor, the Board of
3 Supervisors, the public, and any other appropriate agency with accurate and comprehensive
4 information about programs that serve this population, barriers faced by this population, best
5 practices to meet the needs of this population, and funding sources for programs and
6 practices that address the needs of this population. The Council shall coordinate information
7 sharing, planning, and engagement among all interested private and public stakeholders to
8 the extent permissible under Federal and State law.

9
10 **SEC. ~~5.1-3~~ 5.4-3. MEMBERSHIP AND ORGANIZATION.**

11 (a) **Members.** The Council shall consist of 25 members, as further described below.

12 (1) Seven of the members shall be persons formerly incarcerated in the San
13 Francisco County Jail, a California Department of Corrections and Rehabilitation adult facility,
14 and/or a United States Bureau of Prisons facility.

15 (2) The Mayor, or the Mayor's designee, shall serve as a member of the Council,
16 and the Mayor shall also appoint three of the seven members who are formerly incarcerated
17 persons referenced in subsection (a)(1). Of these three members, at least one must be
18 between the ages of 18 to 35, inclusive, at the time of appointment and have been a person
19 incarcerated before the age of 24, and at least one shall have expertise in providing services
20 to individuals exiting the criminal justice system.

21 (3) The Board of Supervisors, or on the Board's motion its designee referenced in
22 subsection (a)(4), shall appoint as a member of the Council a representative of the entity or
23 agency primarily responsible for administering pretrial services involving alternatives to
24 incarceration in San Francisco.

25 (4) The Board of Supervisors shall designate one of its members to serve as a

1 member of the Council, and shall appoint the other four of the seven members who are
2 formerly incarcerated persons referenced in subsection (a)(1). Of these four members, at
3 least one shall have expertise in providing services to individuals exiting the criminal justice
4 system, at least one must have been released from custody within three years of that
5 member's appointment, at least one must have served multiple terms of incarceration, and at
6 least one must self-identify as a survivor of violence or crime.

7 (5) All members of the Council shall be exempt from the Charter requirement that
8 they be residents of the City ~~and County of San Francisco~~.

9 (6) Mayoral and Board of Supervisors appointments to the Council shall expire 90
10 days following an appointee's date of hire in any of the following City departments or
11 agencies: the Public Defender's Office, the District Attorney's Office, the Sheriff's
12 Department, the Police Department, the Adult Probation Department, the Juvenile Probation
13 Department, the Office of Economic and Workforce Development, the Human Services
14 Agency, the Department of Children, Youth, and Their Families, the Department of Public
15 Health, and the Department of Homelessness and Supportive Housing.

16 (7) The following City departments or agencies shall appoint one member each to
17 the Council: the Public Defender's Office, the District Attorney's Office, the Sheriff's
18 Department, the Police Department, the Adult Probation Department, the Juvenile Probation
19 Department, the Office of Economic and Workforce Development, the Human Services
20 Agency, the Department of Children, Youth, and Their Families, the Department of Public
21 Health, and the Department of Homelessness and Supportive Housing. In addition, Council
22 co-chairs shall invite the San Francisco Superior Court, the Department of Child Support
23 Services, the California Department of Corrections and Rehabilitation Division of Adult Parole
24 Operations, and the United States Probation and Pretrial Services System to appoint one
25 member each to the Council.

1 (8) Notwithstanding Section 5.1-4, mMembers of the Council shall serve two-year
2 terms and shall serve at the pleasure of the appointing authority. ~~Members may serve multiple~~
3 ~~terms.~~No individual shall serve more than six terms as a member of the Council. A part of a term that
4 exceeds one year shall count as a full term; a part of a term that is one year or less shall not.
5 Notwithstanding the preceding sentence, the current term of any person serving on the Council on
6 January 1, 2027 shall count as a full term if the person serves more than one year of that term. Terms
7 completed on or before December 31, 2026 shall not count as a term for the purpose of the lifetime
8 term limit.

9 (b) **Quorum.** Thirteen members of the Council shall constitute a quorum, and the
10 Council shall have the authority to act on the vote of the majority of the quorum.

11 (c) **Officers.** The four members appointed by the Adult Probation Department, the
12 District Attorney's Office, the Public Defender's Office, and the Sheriff's Department,
13 respectively, as well as the Mayor or the Mayor's designee, shall co-chair the Council. In
14 addition, the seven members who are formerly incarcerated persons referenced in subsection
15 (a)(1) shall select by majority vote one of the seven to serve as an additional co-chair of the
16 Council.

17 ~~(d) **Subcommittees.** The Council may establish subcommittees to be convened as directed by~~
18 ~~the Council. The Council's co-chairs shall appoint members to the subcommittees. Subcommittees~~
19 ~~shall report findings and make recommendations to the full Council for its consideration. The~~
20 ~~membership of these subcommittees shall be open to non-members of the Council who shall be drawn~~
21 ~~from a range of diverse experiences, identities, and interests related to the issue of reentry.~~

22 (ed) **Meeting Frequency.** The Council shall meet in full at least three times per year.

23 ~~(f) **Roles of Council Members.** Each member of the Council shall retain his or her official~~
24 ~~authority and duties granted under State law. In adopting this legislation, the Board of Supervisors~~
25 ~~recognizes that each member of the Council retains his or her authority and duties under State law and~~

1 ~~that where conflicts may arise out of members' dual roles, State powers and duties shall supersede the~~
2 ~~duties that the ordinance creating the Council imposes on Council members.~~

3
4 **SEC. ~~5.1-4~~ 5.4-4. POWERS AND DUTIES.**

5 The Council shall have the following powers and duties:

6 (a) **Identifying Funding Streams.** The Council shall identify funding at the local,
7 State, and Federal level that is earmarked or available for services or programs designed to
8 serve individuals exiting the criminal justice system. In addition, the Council shall identify
9 conditions, restrictions, or limitations on each funding stream, and shall document these
10 findings in its reports to the Mayor, the Board of Supervisors, and other appropriate entities
11 consistent with subsection (e) below.

12 (b) **Identifying Programs Serving Individuals Exiting the Criminal Justice**
13 **System.** The Council shall identify programs serving individuals exiting the criminal justice
14 system who reside in San Francisco or who will be released to San Francisco, including
15 program capacity.

16 (c) **Identifying Needs of Reentry Population.** The Council shall identify any unmet
17 needs of this population, and propose ways to meet those needs based on existing research
18 and best practices.

19 (d) **Identifying Barriers.** The Council shall also identify barriers to safe and
20 successful reentry presented by local, State, and Federal law, and propose ways to reduce
21 the impact of these barriers.

22 ~~(e) **Reports.** Biennially the Council shall prepare and submit a report that shall include but not~~
23 ~~be limited to information required under subsections (a), (b), (c), and (d) above. Following enactment~~
24 ~~of the ordinance in Board File No. 231081, the next biennial report shall be due December 31, 2024.~~
25 ~~City departments shall respond within 30 days to reasonable requests for information submitted by the~~

~~Council relevant to its ability to discharge its powers and duties under this Article IV, provided that the disclosure of such information shall not be required where it would violate Federal or State law. At least 30 days prior to the due date for the report, the Council shall provide City Departments identified in the report an opportunity to provide a response. The Council shall include any response from a City Department received at least 10 days prior to the due date for the report as an addendum to the final report. The Council shall provide the final reports, including any addenda, to: 1) the Mayor, 2) the Board of Supervisors, 3) any City department or program identified by the Council in a report, and 4) the public. These reports shall be public documents.~~

(ef) The Council shall share information and work in collaboration with the San Francisco Community Corrections Council Partnership, as established by the California Community Corrections Performance Incentives Act of 2009 (California Penal Code Sections 1228-1233.8).

(fg) **Retaliation Prohibited.** No City officer or employee may retaliate against other City staff or the staff of programs identified by the Council for cooperating with the Council or for participating in any activity involving the Council. This section is not intended to create a private right of action against the City and County of San Francisco.

(gh) The Council shall share information and work in collaboration with the San Francisco Juvenile Justice Coordinating Council, as required by the Juvenile Crime Enforcement and Accountability Challenge Grant Program (California Welfare and Institutions Code Sections 749.2-749.27).

(hi) The Council shall share information and work in collaboration with the San Francisco Sentencing Commission.

~~SEC. 5.1-5. ATTENDANCE REQUIREMENT.~~

~~The Council shall monitor the attendance of Council members. In the event that any Council~~

1 ~~member misses two regularly scheduled Council meetings in a twelve-month period without prior~~
2 ~~notice to the Council, the Council shall certify that fact in writing to the appointing authority, and the~~
3 ~~member shall be deemed to have resigned from the Council on the date of such certification. The~~
4 ~~Council shall request the appointing authority to appoint a new member. The appointing authority~~
5 ~~shall appoint a successor to the resigned member not later than 60 days after the date of the~~
6 ~~certification of resignation.~~

8 **SEC. ~~5.1-6~~ 5.4-5. SUNSET CLAUSE.**

9 ~~Notwithstanding Rule 2.21 of the Board of Supervisors Rules of Order, which provides that~~
10 ~~advisory bodies created by the Board should sunset within three years, this Article I shall expire June~~
11 ~~1, 2029, unless the Board of Supervisors adopts an ordinance continuing its existence. In the event of~~
12 ~~its expiration, the City Attorney is authorized to take steps to remove this Article I from the~~
13 ~~Administrative Code. Unless the Board of Supervisors by ordinance extends the term of the Council,~~
14 ~~Sections 5.4-1 through this Section 5.4-5 will expire by operation of law, and the Council shall sunset,~~
15 ~~on June 1, 2029. In that event and after that date, the City Attorney shall cause these sections to be~~
16 ~~removed from the Administrative Code.~~ The Council shall submit a report to the Board of
17 Supervisors by August 15, 2028 recommending whether the Council should continue to
18 operate, and if so, whether the Board of Supervisors should consider legislative changes that
19 would enhance the capacity of the Council to achieve its goals. ~~The Council's recommendations~~
20 ~~shall include drafts of ordinances that would implement its recommendations.~~

22 **ARTICLE II: FREE CITY COLLEGE ~~OVERSIGHT COMMITTEE~~ ADVISORY COUNCIL**

23 **SEC. 5.2-1. CREATION OF FREE CITY COLLEGE ~~OVERSIGHT COMMITTEE~~** 24 **ADVISORY COUNCIL.**

25 The Board of Supervisors hereby establishes the Free City College ~~Oversight Committee~~

1 Advisory Council-(“~~Oversight Committee~~ Council”) as an Advisory Body as defined in Section 5.1-1.

2
3 **SEC. 5.2-2. MEMBERSHIP.**

4 The ~~Oversight Committee~~ Council shall consist of 15 voting members.

5 (a) Seat 1 shall be held by the Mayor or the Mayor’s designee.

6 (b) Seat 2 shall be held by the president of the City College Board of Trustees or the
7 president’s designee.

8 (c) Seat 3 shall be held by a student at City College, appointed by the Mayor.

9 (d) Seat 4 shall be held by a student at City College, appointed by the Board of
10 Supervisors.

11 (e) Seat 5 shall be held by a student at City College, appointed by the City College
12 Associated Students.

13 (f) Seat 6 shall be held by a member of the Board of Supervisors, appointed by the
14 Board of Supervisors or that member’s designee.

15 (g) Seat 7 shall be held by an employee or officer of the San Francisco Unified School
16 District, appointed by the Board of Education of the San Francisco Unified School District.

17 (h) Seat 8 shall be held by the Controller or the Controller’s designee.

18 (i) Seat 9 shall be held by an employee of the Department of Children, Youth and Their
19 Families, appointed by the director of the Department.

20 (j) Seat 10 shall be held by a City College employee who is involved in the
21 administration of the Free City College program, appointed by the City College Board of
22 Trustees.

23 (k) Seat 11 shall be held by a City College faculty member, appointed by the City
24 College Academic Senate.

25 (l) Seat 12 shall be held by a classified staff member of City College, appointed by the

labor organization that represents the largest number of classified City College employees.

(m) Seat 13 shall be held by a member of the public, appointed by the Mayor.

(n) Seat 14 shall be held by a member of the public, appointed by the Board of Supervisors.

(o) Seat 15 shall be held by the student trustee member of the City College Board of Trustees.

If, at any point, the City College Board of Trustees, City College Associated Students, City College Academic Senate, the labor organization that represents the largest number of classified City College employees, or the Board of Education of the San Francisco Unified School District declines to appoint a member to a seat for which it has appointing authority and leaves that seat vacant for more than 90 days, the Board of Supervisors may appoint a member of the public to fill the seat until the appointing authority appoints a person to the seat.

SEC. 5.2-3. ~~ORGANIZATION AND TERMS OF OFFICE.~~ ADMINISTRATIVE SUPPORT.

~~(a) Each member of the Oversight Committee shall serve at the pleasure of the member's appointing authority, and shall serve for the life of the Oversight Committee unless removed by the appointing authority. Public members shall serve three-year terms, and no person shall serve as an public member of the Committee for more than four terms. A part of a term that exceeds two years shall count as a full term.~~

~~(b) Members of the Oversight Committee Council shall receive no compensation from the City, except that City employees serving in seats 1, 6, 8, and 9 may receive their regular salaries for time spent on the Oversight Committee because they are serving in an official capacity.~~

~~(c) Any member who misses three regular meetings of the Oversight Committee Council in a~~

1 ~~nine-month period without the express approval of the Oversight Committee Council at or before each~~
2 ~~missed meeting shall be deemed by operation of law to have resigned from the Oversight Committee ten~~
3 ~~days after the third unapproved absence. The Oversight Committee shall inform the Clerk of the Board~~
4 ~~of Supervisors, the Clerk of the Board of Trustees, and the member's appointing authority of the~~
5 ~~resignation. This subsection (c) shall not apply to Seats 1, 2, 6, 8, and 15.~~

6 (d) The Department of Children, Youth and Their Families shall provide clerical and
7 administrative support and staffing for the Oversight Committee Council.

8 9 **SEC. 5.2-4. DUTIES AND RESPONSIBILITIES.**

10 (a) ~~The Oversight Committee Council~~ shall provide advice to the Board of Supervisors,
11 the Mayor, the Department of Children, Youth and Their Families, all other relevant City
12 departments, and City College regarding implementation of the Memorandum of
13 Understanding between the City and City College authorized by resolution in Board File No.
14 190735, as it may be amended by the City and City College from time to time (the "Free City
15 College MOU"). The ~~Oversight Committee's Council's~~ advice may include recommendations
16 regarding the uses of funds disbursed under the Free City College MOU, proposed changes
17 in uses of the funds, and potential expansions of the Free City College program. In providing
18 its advice and recommendations, the Oversight Committee Council shall consider the audit
19 reports provided by the Controller under Section 10.100-288 of this Code, as well as reports
20 that the Chancellor of City College or the Chancellor's designee has provided to the ~~Oversight~~
21 Committee Council under the Free City College MOU.

22 (b) ~~All City departments, commissions, boards, and agencies shall cooperate with the~~
23 ~~Oversight Committee in conducting its business.~~

24 25 **SEC. 5.2-5. MEETINGS AND PROCEDURES.**

1 (a) The ~~Oversight Committee~~ Council shall hold a regular meeting not less than once
2 every three months.

3 (b) Seven voting members of the ~~Oversight Committee~~ Council shall constitute a quorum
4 for the purpose of meeting, and the affirmative votes of at least seven members of the
5 ~~Oversight Committee~~ Council are necessary to constitute approval of any non-parliamentary
6 matter by the ~~Oversight Committee~~ Council.

7 (c) The members in seats 1 and 2 shall be the co-chairs of the ~~Oversight Committee~~
8 Council. ~~The Oversight Committee may establish rules for its own organization and procedures.~~
9

10 **SEC. 5.2-6. SUNSET.**

11 ~~Notwithstanding Rule 2.21 of the Board of Supervisors Rules of Order, which provides that~~
12 ~~advisory bodies created by the Board should sunset within three years, this Article II shall expire by~~
13 ~~operation of law, and the Oversight Committee shall terminate, on June 30, 2029. After the expiration~~
14 ~~of the Oversight Committee, the City Attorney shall cause this Article to be removed from the~~
15 ~~Administrative Code. Unless the Board of Supervisors by ordinance extends the term of the Council,~~
16 ~~Sections 5.2-1 through this Section 5.2-6 will expire by operation of law, and the Council shall sunset,~~
17 ~~on June 30, 2029. In that event and after that date, the City Attorney shall cause these sections to be~~
18 ~~removed from the Administrative Code.~~
19

20 **ARTICLE III: STATE LEGISLATION ~~COMMITTEE~~ COUNCIL**

21 **SEC. ~~5.5~~ 5.3-1. CREATED; ~~CONSIDERATION OF PENDING STATE LEGISLATION.~~**

22 ~~The City hereby establishes the State Legislation Council ("State Legislation Council") as an~~
23 ~~Advisory Body as defined in Section 5.1-1. Any proposal for the enactment of legislation affecting in~~
24 ~~any way the interests or welfare of the City and County, which is pending before the State Legislature~~
25 ~~or which may be considered for presentation to the Legislature, shall be initiated by or referred to a~~

1 ~~committee, hereby created, which shall be designated as the State Legislation Committee of the City~~
2 ~~and County.~~

3
4 **SEC. ~~5.6~~ 5.3-2. DUTY TO STUDY PROPOSALS AND MAKE RECOMMENDATIONS.**

5 Any proposal for the enactment of legislation affecting the interests or welfare of the City,
6 which is pending before the State Legislature or which may be considered for presentation to the
7 Legislature, shall be initiated by or referred to the State Legislation Council for study and
8 recommendation. ~~It shall be the duty of the State Legislation Committee to study all such proposals~~
9 ~~enumerated in the preceding section and to formulate recommendations for that the City endorsement,~~
10 ~~opposition or remain neutrality with respect to such proposals thereto, as matters of policy of the~~
11 ~~City and County.~~

12
13 **SEC. ~~5.7~~ 5.3-3. COMPOSITION; ~~CHAIRMAN~~.**

14 The members of the State Legislation ~~Committee~~ Council shall be the Mayor, who shall
15 act as chair, the City Attorney, two members of the Board of Supervisors to be designated by
16 the President of the Board of Supervisors, the Controller, the Assessor and the Treasurer.

17 Each of the above-named members may designate a duly authorized representative to
18 attend the meetings in ~~his or her~~ their absence.

19
20 **SEC. ~~5.8~~. MEETINGS.**

21 ~~Places, dates and times of meetings of the State Legislation Committee shall be prescribed by~~
22 ~~the chair.~~

23
24 **SEC. ~~5.9~~ 5.3-4. REPORT OF PROCEEDINGS.**

25 A report of the proceedings of each ~~regular or special~~ meeting of the State Legislation

1 ~~Committee-Council~~ and the recommendations made ~~thereat~~ by the State Legislation Council shall
2 be submitted to the Board of Supervisors not later than the next regular business day
3 following such meeting.
4

5 **SEC. ~~5.10-5.3-5~~. ACTION BY COMMITTEE IN ABSENCE OF ACTION BY BOARD**
6 **OF SUPERVISORS.**

7 The Board of Supervisors, by resolution, may take such action upon any
8 recommendation of the State Legislation ~~Committee-Council~~ as it deems necessary or
9 desirable, but in the absence of any such action by the Board of Supervisors, the State
10 Legislative Representative ~~is hereby authorized to~~ may take suitable action ~~consonant~~ consistent
11 with any such recommendation of the State Legislation ~~Committee-Council~~ as the policy of the
12 City ~~and County~~.
13

14 **SEC. ~~5.11-5.3-6~~. ESTABLISHMENT OF POLICY WITHOUT REFERENCE TO**
15 **~~COMMITTEE-COUNCIL~~.**

16 Nothing contained in this Article shall preclude the Board of Supervisors from
17 establishing policy with respect to any matter of proposed state legislation, without reference
18 to or report from the State Legislation ~~Committee-Council~~, if in the Board's discretion such
19 reference or report is inadvisable or inexpedient.
20

21 **ARTICLE V: ~~BOND OVERSIGHT COMMITTEES~~ CITIZENS' GENERAL OBLIGATION**
22 **BOND OVERSIGHT COMMITTEE**
23

24 **SEC. ~~5.5-305-1~~. - ESTABLISHMENT.**

25 The Board of Supervisors of the City ~~and County of San Francisco~~ (the "Board") shall

1 establish and appoint members to an independent citizens’ general obligation bond oversight
2 committee (the “committee”), pursuant to Section 5.5-432 hereof, prior to issuing any general
3 obligation bonds (the “bonds”) subsequent to the effective date of this measure.

4
5 **SEC. 5.31-5-2. PURPOSE.**

6 * * * *

7
8 **SEC. 5.32-5-3. PUBLIC MEETINGS.**

9 * * * *

10
11 **SEC. 5.33-5-4. MEMBERSHIP.**

12 * * * *

13
14 **SEC. 5.34-5-5. WASTE.**

15 * * * *

16
17 **SEC. 5.35-5-6. GENERAL OBLIGATION BOND ORDINANCES.**

18 * * * *

19
20 **SEC. 5.36-5-7. APPLICATION.**

21 This Article V shall apply to all general obligation bonds with unexpended proceeds,
22 except for Section 5.5-231(c) which shall apply only to bond authorizations approved by voters
23 subsequent to the effective date of this Ordinance.

24
25 **ARTICLE VI: ~~COMMISSION ON~~ DISABILITY AND AGING SERVICES COMMISSION AND**

1 **ADVISORY COUNCIL.**

2 **SEC. 5.6-1. DEFINITIONS.**

3 **Commission.** The ~~Commission on~~ Disability and Aging Services Commission.

4 **Council.** The Advisory Council.

5 **Department.** Department of Disability and Aging Services.

6 **Member.** A member of the ~~Commission on~~ Disability and Aging Services Commission.

7
8 **SEC. 5.6-2. ~~COMMISSION~~ DEPARTMENT DESIGNATED AREA AGENCY ON**
9 **AGING.**

10 Pursuant to federal law, the ~~Commission~~ Department is hereby designated the Area
11 Agency on Aging for the City and County of San Francisco.

12
13 **SEC. 5.6-3. POWERS AND DUTIES OF THE ~~COMMISSION~~ DEPARTMENT.**

14 In addition to powers under the Charter, the ~~Commission~~ Department shall have the
15 following powers and duties:

16 (a) To develop, as the Area Agency on Aging, policy goals for the City ~~and County of~~
17 ~~San Francisco~~ in the form of an Area Plan as specified by federal regulations. Such plan is to
18 be subject to the review and approval of the Mayor and the Board of Supervisors;

19 (b) To provide a comprehensive and coordinated service delivery system for senior
20 citizens through the implementation and monitoring of the Area Plan pursuant to federal
21 regulations set forth above by: (1) establishing standards, and (2) assessing services
22 needed, (3) awarding subgrants (4) and providing technical assistance and monitoring of
23 service providers under the plan;

24 (c) To establish an Advisory Council to advise the Department and Commission in
25 accordance with federal law and regulations;

1 (d) To serve as advocate and focal point for Senior Citizens' Programs; and
2 (e) To make an annual report to the Board of Supervisors regarding the
3 accomplishments of the Department, the Commission, and the Council in terms of service,
4 delivery and coordination and development of senior resources in the City ~~and County of San~~
5 ~~Francisco~~.

6
7 **SEC. 5.6-4. ADVISORY COUNCIL.**

8 (a) The Commission shall establish an Advisory Council ("Council"), not to exceed 22
9 members, 11 of whom shall be appointed by the Commission and 11 appointed by the Board
10 of Supervisors. The Council is an Advisory Body as defined in Section 5.1-1. The Council shall be
11 representative of the geographic and ethnic populations of the City and County of San
12 Francisco by districts, which districts shall be determined by the Commission. More than 50%
13 ~~percent~~ of the members of each such group of 11 members shall be persons who are 60
14 years of age or older. The Council shall include service providers, older persons with the
15 greatest socio and economic need, people with disabilities, consumers, and others specified by
16 federal regulation. Appointing authorities shall identify appointees by consulting with or soliciting
17 input from organizations that represent the disability community, older adults, and service providers.
18 Council members shall collect all appropriate information in order to provide the Commission
19 with advice in the Commission's decision-making on the needs, assessments, priorities,
20 programs and budgets concerning older San Franciscans.

21 (b) Notwithstanding that the Council is an Advisory Body, members of the Council shall be
22 subject to the provisions of Section 5.1-2 regarding terms and term limits.

23 (c) Pursuant to federal regulations, the Commission shall develop and adopt bylaws for
24 the Council. Such bylaws shall specify the role and functions of the Council, number of
25 members, procedures for selecting members, term of membership, and the frequency of

1 meetings. The Advisory Council shall meet at least 10 times per year. The Council shall be
2 compensated in the same manner as the Commission for the Advisory Council meetings and
3 Commission committee meetings at which they serve.

4
5 **~~ARTICLE VII: STREET UTILITIES COORDINATING COMMITTEE AND CITIZENS~~**

6 **~~ADVISORY COMMITTEE FOR STREET UTILITY CONSTRUCTION~~**

7 **~~SEC. 5.60. STREET UTILITIES COORDINATING COMMITTEE.~~**

8 ~~There is hereby established a committee to be known as the Street Utilities Coordinating~~
9 ~~Committee consisting of the Director of Public Works, who is to act as chair; a representative from the~~
10 ~~Department of City Planning; a representative from the Citizens Advisory Committee to the Street~~
11 ~~Utilities Coordinating Committee who shall be selected by the Advisory Committee from those members~~
12 ~~of the above committee representing citizen input only and not from any utility or City department; and~~
13 ~~one senior management representative from each of the following: San Francisco Department of~~
14 ~~Telecommunications and Information Services; San Francisco Water Department; Hetch Hetchy Water~~
15 ~~and Power System; San Francisco Police Department; Pacific Gas and Electric Company, Gas~~
16 ~~Division; Pacific Gas and Electric Company, Electric Division; Pacific Telephone Co.; Western~~
17 ~~Union; and Television Signal Corporation.~~

18
19 **~~SEC. 5.61. STREET UTILITIES COORDINATING COMMITTEE — MEETINGS.~~**

20 ~~Places, dates and times of meetings shall be as prescribed by the chair.~~

21
22 **~~SEC. 5.62. STREET UTILITIES COORDINATING COMMITTEE — DUTIES.~~**

23 ~~This committee shall be charged with the responsibility of formulating policy as it affects the~~
24 ~~use of public streets by public and private utilities, such as overall traffic regulations during utility~~
25 ~~construction or maintenance; utility advance planning, and other means to insure minimum disruption~~

1 ~~and inconvenience to the general public using the surface of the streets; utility joint trenches; utility~~
2 ~~tunnels; and condition of trench repairs.~~

3
4 **~~SEC. 5.63. STREET UTILITIES COORDINATING COMMITTEE—SUBCOMMITTEES.~~**

5 ~~There are hereby established two subcommittees to the Street Utility Coordinating Committee~~
6 ~~as follows:~~

7 ~~(a) Committee for Utility Liaison on Construction and Other Projects (CULCOP). This~~
8 ~~subcommittee shall consist of staff level personnel from the Bureau of Engineering of the Department of~~
9 ~~Public Works; San Francisco Department of Telecommunications and Information Services; San~~
10 ~~Francisco Water Department; Hetch Hetchy Water and Power System; Municipal Railway; San~~
11 ~~Francisco Fire Department; San Francisco Department of Electricity; San Francisco Redevelopment~~
12 ~~Agency; Pacific Gas and Electric Company, Gas Division; Pacific Gas and Electric Company, Electric~~
13 ~~Division; Pacific Telephone Company; Western Union and the Television Signal Corporation. The~~
14 ~~chair shall be a representative of the Bureau of Engineering as designated by the City Engineer.~~
15 ~~Meetings shall be monthly at a time and place designated by the chair. The duties of this subcommittee~~
16 ~~will be to work out scheduling of utility work that is connected with Department of Public Works~~
17 ~~projects and to plan the utilities undergrounding construction program.~~

18 ~~(b) Committee for Planning Utility Construction Program. This subcommittee shall consist of~~
19 ~~representatives of the Department of Public Works; San Francisco Department of Telecommunications~~
20 ~~and Information Services; San Francisco Water Department; Hetch Hetchy Water and Power System;~~
21 ~~San Francisco Police Department; Pacific Gas and Electric Company, Gas Division; Pacific Gas and~~
22 ~~Electric Company, Electric Division; Pacific Telephone Company; Western Union; and Television~~
23 ~~Signal Corporation. The chair shall be a representative of the Department of Public Works as~~
24 ~~designated by the Director of Public Works. Meetings shall be at the call of the chair. This~~
25 ~~subcommittee shall be responsible for detailed planning of a 12 months construction program of all~~

1 ~~street utilities, exclusive of Public Works Department projects which are financed wholly or in part by~~
2 ~~gas tax or ad valorem funds and utilities undergrounding program, including traffic regulations during~~
3 ~~utility construction or maintenance, and other duties as assigned by the Street Utilities Coordinating~~
4 ~~Committee. The Director of Public Works shall transmit to private utility companies and to said~~
5 ~~subcommittee a list of approved gas tax and ad valorem projects, as soon as such projects are~~
6 ~~approved by the Board of Supervisors.~~

7
8 **~~SEC. 5.64. CITIZENS ADVISORY COMMITTEE FOR STREET UTILITY~~**
9 **~~CONSTRUCTION.~~**

10 ~~There is hereby established a committee to be known as the Citizens Advisory Committee for~~
11 ~~Street Utility Construction consisting of 21 members to be appointed by the Mayor as follows: one~~
12 ~~representative from each of the following: Department of Public Works; San Francisco Department of~~
13 ~~Telecommunications and Information Services; Police Department; Water Department; Municipal~~
14 ~~Railway; Pacific Gas and Electric Company, Gas Division; Pacific Gas and Electric Company,~~
15 ~~Electric Division; Pacific Telephone Company; Western Union; Television Signal Corporation; San~~
16 ~~Francisco Planning and Urban Renewal Association; Greater San Francisco Chamber of Commerce;~~
17 ~~San Francisco Council of District Merchants Association; Associated General Contractors of~~
18 ~~California; organized labor; Downtown Association; and six members selected from neighborhood~~
19 ~~organizations representing the various neighborhoods within the City. The committee shall elect a~~
20 ~~chair from the membership thereof. Any member may delegate an alternate within his or her respective~~
21 ~~organization to represent him or her at any meeting of the committee in the member's absence.~~
22 ~~Vacancies on the committee shall be filled by the Mayor in the manner herein provided for the~~
23 ~~appointment of the original members.~~

24
25 **~~SEC. 5.65. CITIZENS ADVISORY COMMITTEE FOR STREET UTILITY~~**

1 **~~CONSTRUCTION—MEETINGS.~~**

2 ~~Places, dates and times of meetings shall be as prescribed by the chair.~~

3
4 **~~SEC. 5.66. CITIZENS ADVISORY COMMITTEE FOR STREET UTILITY~~**

5 **~~CONSTRUCTION—DUTIES.~~**

6 ~~The duties of the committee shall be to secure citizens' input concerning general problems~~
7 ~~relating to the use of any digging-up of streets and sidewalks by utility companies or city departments,~~
8 ~~and to recommend to the Street Utilities Coordinating Committee ways and means to alleviate these~~
9 ~~problems.~~

10 **ARTICLE VII: COMMUNITY CORRECTIONS COUNCIL**

11 **SEC. 5.7-1. CREATION OF COMMUNITY CORRECTIONS COUNCIL.**

12 Pursuant to the Community Corrections Performance Incentives Act of 2009 (California Penal
13 Code Sections 1228-1233.8), there is hereby established the Community Corrections Council
14 (hereinafter "Council") as an Advisory Body as defined in Section 5.1-1.

15
16 **SEC. 5.7-2. PURPOSE.**

17 The purpose of the Council is to advise the City on the use of evidence-based practices in
18 sentencing and probation for justice involved adults using funds received from the State Community
19 Corrections Performance Incentives Fund.

20
21 **SEC. 5.7-3. POWERS AND DUTIES.**

22 The Council shall carry out all powers and duties required or authorized by California Penal
23 Code Section 1230, as amended from time to time, including advising the Adult Probation Department
24 on the use and expenditure of funds received from the State Community Corrections Performance
25 Incentives Fund.

1
2 **SEC. 5.7-4. MEMBERSHIP.**

3 *The Council shall be chaired by the Chief Probation Officer and shall be comprised of members*
4 *as specified in California Penal Code section 1230, including:*

5 *(a) The presiding judge of the Superior Court, or their designee;*

6 *(b) The City Administrator;*

7 *(c) The District Attorney;*

8 *(d) The Public Defender;*

9 *(e) The Sheriff;*

10 *(f) The Chief of Police;*

11 *(g) The Director of Human Services Agency;*

12 *(h) The Director of the Department of Public Health;*

13 *(i) The Director of the Office of Economic and Workforce Development;*

14 *(j) The head of the county alcohol and substance abuse programs;*

15 *(k) The head of the county office of education;*

16 *(l) A representative from a community-based organization with experience in successfully*
17 *providing rehabilitative services to persons who have been convicted of a criminal offense, appointed*
18 *by the Chief Probation Officer; and*

19 *(m) An individual who represents the interests of victims, appointed by the Chief Probation*
20 *Officer.*

21 *Notwithstanding that the Council is an Advisory Body, public members of the Council shall be*
22 *subject to the provisions of Section 5.1-2 regarding terms and term limits.*

23
24 **ARTICLE VIII: BAYVIEW HUNTERS POINT CITIZENS ADVISORY ~~COMMITTEE~~ COUNCIL**

25 **SEC. 5.8-15.70. GENERAL FINDINGS.**

1 * * * *

2

3 **SEC. 5.8-25.74. THE BAYVIEW HUNTERS POINT CITIZENS ADVISORY**
4 **COMMITTEE COUNCIL.**

5 (a) **Establishment and Purpose.** A Bayview Hunters Point Citizens Advisory
6 ~~Committee Council~~ (the "CAC") is hereby established Advisory Body as defined in Section 5.1-1.
7 The purpose of the CAC shall be to provide policy advice to the Board of Supervisors, City
8 ~~boards~~, commissions and departments, including the Planning Commission and Planning
9 Department, on planning and land use matters in Zone 2. The CAC shall provide advice on
10 the appropriateness of projects, and land use and zoning designations for projects in Zone 2
11 or Survey Area C, and provide community guidance on the extent to which a development
12 project furthers General Plan policies in Zone 2.

13 The CAC shall serve for the duration of the Amended Redevelopment Plan,
14 including any extensions of the plan that the Board of Supervisors approves. To perform its
15 duties, the CAC may do the following:

16 (1) review proposed development projects, amendments to a redevelopment plan
17 requiring approval of the Board of Supervisors and zoning changes, and advise the Planning
18 Commission and Department and the Board of Supervisors on those matters;

19 (2) collaborate with the Planning Department on planning efforts; and

20 (3) collaborate with City boards, commissions and departments to (A) provide
21 information to the community on planning efforts, development projects, amendments to a
22 redevelopment plan requiring approval of the Board of Supervisors, and zoning changes, and
23 (B) seek input from the community.

24 (b) **Members of the Bayview Hunters Point Citizens Advisory ~~Committee~~ Council.**

25 (1) **Appointments.**

1 (A) **Appointing Authorities.** The CAC shall consist of 12 members. The
2 Supervisor of District 10, and the Mayor, ~~and the City Administrator~~ (the “appointing authorities”)
3 shall each appoint 4six members. Of the 4six members appointed by ~~each of the appointing~~
4 ~~authorities~~ the Supervisor of District 10, 3five shall have the power to vote on committee actions
5 (voting members), and one shall not have the power to vote on committee actions (a non-
6 voting member). Of the six members appointed by the Mayor, four shall be voting members, and two
7 shall be non-voting members. An employee of the City may not be appointed as a voting
8 member of the CAC but may be appointed as a non-voting member. Each appointing
9 authority shall notify the Clerk of the Board of Supervisors in writing of each of its
10 appointments to the committee, including which appointees shall be voting members.

11 (B) **Quorum.** Five voting members shall constitute a quorum. The CAC shall
12 approve matters by an affirmative vote of at least 5 five voting-members.

13 (C) **Compensation.** ~~Members of the CAC shall serve at the pleasure of their appointing~~
14 ~~authority without compensation or benefits.~~

15 ~~—(D) Terms.~~ Notwithstanding Section 5.1-4, eEach member shall serve a term of two
16 years with no term limits. The term of the 12 members first appointed to fill the seats on the committee
17 shall commence on the effective date of Ordinance No. _____.

18 (2) **Qualifications of Members.** Each member shall have a capacity for
19 volunteerism, and the ability to commit a minimum of 10 hours per week to the review of
20 documents, meetings and planning sessions, and coordination with community members or
21 City representatives. In addition, each member shall have one or more of the following
22 qualifications:

23 (A) Experience working with multiple City boards, commissions, or department,
24 or their representatives;

25 (B) A workman-like understanding of, or high level of interest in the land use

1 policies and requirements, zoning issues for Zone 2, and a high level of interest in the review
2 of projects in that area; or

3 (C) Familiarity with architecture, engineering, construction, historic preservation,
4 public art, transportation and city planning, community benefits, low-income housing
5 development or land use in San Francisco or other urban areas.

6 (3) **Additional Qualifications of Non-voting Members.** In addition to the
7 qualifications stated in subparagraph (b)(2) ~~(Qualifications of Members) above~~, non-voting
8 members must have professional expertise or training in disciplines such as architecture, land
9 use, or urban planning, that would be helpful to the CAC in the performance of its duties.

10 (4) **Residency.** A member must be at least one of the following: (A) a resident of
11 the Project Area; (B) a person who owns a business with a fixed office in the City or real
12 property in the City; (C) a representative of a neighborhood group in the Project Area; or (D) a
13 resident of San Francisco who has experience working on architecture, planning, or land use
14 issues in San Francisco.

15 (5) **Conflicts.**

16 (A) During ~~his or her~~ their tenure, a member of the CAC may not receive income
17 from, have any financial investments in, or be a party to any contracts with any person or
18 entity who is seeking project approvals, or who receives a project approval from the City
19 during the member's tenure regarding a property within Zone 2 or Survey Area C. For the
20 purpose of this subsection, "project approvals" shall include conditional use authorizations,
21 variances, certificates of appropriateness, and building permits.

22 (B) During ~~his or her~~ their tenure, a member of the CAC may not enter into,
23 submit a bid for, negotiate for, or otherwise attempt to enter into, any contract with the City, or
24 obtain a subcontract of any tier to a contract with the City for services, a real estate interest, or
25 other benefits in Zone 2 or Survey Area C.

1 (C) Any member of the CAC who violates this §subsection§ shall be deemed to
2 have thereby resigned ~~his or her~~ their position on the CAC.

3 (6) **Support.** Subject to the budgetary and fiscal provisions of the Charter, the City
4 Administrator's Office shall provide staff to assist the CAC to organize and conduct its public
5 meetings and perform related responsibilities.

6 ~~—(7) Absences. If a member is absent from more than 3 scheduled meetings of the CAC in a~~
7 ~~twelve-month period, the chairperson shall notify the member's appointing authority of the absences.~~
8 ~~The appointing authority may exercise its authority over the member, including, without limitation,~~
9 ~~removing the member from the committee and appointing a new member to serve out the term of the~~
10 ~~member that is removed.~~

11 (87) **Bylaws.** The CAC shall adopt bylaws, subject to the approval of the City
12 Administrator, to ensure the orderly conduct of its meetings.

13 ~~(c) Cooperation with the CAC. At the request of the CAC, City boards, commissions and~~
14 ~~departments shall cooperate with the CAC in the performance of its duties by providing information~~
15 ~~within the scope of the body's jurisdiction, assisting in answering questions pertinent to the CAC's~~
16 ~~duties, referring matters under its jurisdiction to the CAC that are pertinent to the CAC's duties, and~~
17 ~~considering recommendations of the CAC.~~

18 (dc) **Interaction of Planning Department with the CAC.** ~~In addition to its duty to~~
19 ~~cooperate with the CAC under subsection (c) above, t~~The Planning Department shall notify the
20 CAC, in accordance with subsection (ed) below, of, and work with the CAC to consider
21 community input and guidance for the following projects in Zone 2:

22 (1) Residential projects that create 6 or more residential units, and/or projects that
23 include construction of a new building or addition to an existing building of 10,000 square feet
24 or more of non-residential space;

25 (2) Projects that include an alteration or change of use that:

1 (A) is subject to Planning Code Section 311 (Residential Permit Review
2 Procedures for RH, RM, and RTO Districts) and includes vertical additions of 7 feet or more to
3 the existing building height or 10 feet or more to the existing building depth at any level;

4 (B) is in any zoning district and includes a facility or activity identified in Planning
5 Code Section 312(c) (Change of Use);

6 (C) is subject to a conditional use authorization or discretionary review under
7 Section 317 of the Planning Code (Loss of Dwelling Units Through Merger, Conversion or
8 Demolition); or

9 (D) is subject to a pre-application meeting under Section 313 of the Planning
10 Code (PDR-1-B (Light Industrial Buffer));

11 (3) Projects that require a conditional use authorization;

12 (4) Projects that require a zoning map amendment; and

13 (5) Any streetscape improvements or public realm plans led by the Planning
14 Department. For the purpose of this Section, “streetscape improvements” are improvements
15 to the streetscape elements identified in Section 98.1 of the Administrative Code, and a
16 “public realm plan” means a plan to improve public space, including, without limitation, rights
17 of way, sidewalks and public plazas, to enhance the public’s enjoyment of the space.

18 (ed) **Notification to the CAC.** The Director of Planning shall provide the CAC notice
19 of the projects or changes described in subsection (dc) above (the “Project Notice”) as follows:

20 (1) The Director of Planning shall send the CAC a copy of any written preliminary
21 assessment of the approval process that the department prepares and submits to a person or
22 entity seeking approval of a project (the “Project Applicant”) before the Project Applicant has
23 filed an application for environmental review and/or entitlement at the same time that the
24 department sends such written preliminary assessment to the Project Applicant.

25 (2) If the Director of Planning does not provide a written preliminary assessment to

1 the Project Applicant prior to the filing of an application for environmental review and/or
2 entitlement, the Director of Planning shall notify the CAC of the project in writing when the
3 project application is filed with the department.

4 **(f~~e~~) CAC Hearings on Projects.**

5 (1) **Notice to Project Applicant.** The CAC shall notify the Project Applicant in
6 writing within 30 days of its receipt of the Project Notice if it would like the Project Applicant to
7 make a presentation on the project before the CAC (the "Project Applicant's Presentation"). If
8 the CAC does not so notify the Project Applicant, the Planning Commission or Planning
9 Department may consider approval of the Project without a CAC hearing.

10 (2) **Project Applicant's Presentation.** Upon the request of the CAC, the Project
11 Applicant shall request from the CAC a date on which to make the Project Applicant's
12 Presentation. The CAC shall schedule the date for the Project Applicant's Presentation as
13 follows:

14 (A) If a public hearing on the final approval action on the project before the
15 Planning Commission is required, the Project Applicant's Presentation shall be on a date that
16 is at least 60 days prior to the Planning Commission's public hearing.

17 (B) If no public hearing on the final approval action on the project before the
18 Planning Commission is required, the CAC may set a date for the Project Applicant's
19 Presentation that would enable an efficient project review and approval process, but the date
20 for the Project Applicant's Presentation shall occur on a date that is at least 60 days before
21 the Planning Department acts on the permit application. The Planning Department shall
22 timely notify the CAC of the date it intends to act on the permit application to enable the CAC
23 to schedule the Project Applicant's Presentation.

24 (3) **Submittal of Comments.** The CAC shall submit any comments on the project
25 that the CAC wishes the Planning Commission to consider to the Director of Planning within

30 days after the date scheduled for the Project Applicant's Presentation as required by Subsection ~~(fe)~~(2) above.

(4) **Additional Time.** The Director of Planning or the Planning Commission may allow additional time for the CAC hearing and comments if the Director of Planning or the Planning Commission finds that additional time is needed given the complexity of the project and feasible given the timing of required hearings or action on other projects. The Project Applicant shall make a good faith effort to inform the CAC of any changes to the project after the CAC has issued its comments to the Director of Planning.

~~(gf)~~ **Report on CAC Comments.** The Planning Department shall describe the comments and recommendations of the CAC in its report to the Planning Commission prior to the Planning Commission's approval of the project. In addition, the CAC may present its views on the project in a separate report at the Planning Commission's public hearing on approval of the project; and

~~(hg)~~ **Providing Information.** The Planning Department shall provide information about permit applications and other proposed development activity in Zone 2 to the CAC as promptly as is reasonably feasible prior to any CAC meeting.

~~(ih)~~ **Subject to the Charter.** Nothing in this Section is intended to interfere with the authority of the Planning Department or Planning Commission under the Charter.

ARTICLE IX: ~~TREASURY OVERSIGHT COMMITTEE~~ TREASURE ISLAND DEVELOPMENT

AUTHORITY BOARD OF DIRECTORS

SEC. 5.9-1. TREASURE ISLAND DEVELOPMENT AUTHORITY BOARD OF DIRECTORS.

(a) The Treasure Island Development Authority ("TIDA") Board of Directors shall be a Commission as defined in Section 5.1-1, and shall consist of seven members appointed by the Mayor.

1 In making appointments, the Mayor shall consider the following desirable qualifications: expertise in
2 the areas of real estate development, urban planning, environmental protection and resource
3 conservation, homeless assistance, financing and other disciplines relevant to the reuse of the Base.

4 (b) In addition to the appointed Directors, the member of the Board of Supervisors who
5 represents the district that includes Treasure Island and Yerba Buena Island shall serve as a non-
6 voting, Ex-Officio Director. In the event that the Ex Officio Director is unable to attend a meeting of
7 the TIDA Board of Directors, another member of the Board of Supervisors designated by resolution of
8 the Board of Supervisors shall serve as an Alternate Member. The Alternate Member shall also be a
9 non-voting, ex-officio member, and shall serve only when the Ex-Officio Director is unable to attend
10 and only so long as the Board of Supervisors have not replaced such Alternate Member by resolution.

11 (c) The Board of Directors shall exercise the duties and powers of a Commission for the
12 Treasure Island Development Authority established in Sections 2A.450, et seq. of this Code.

13
14 **~~SEC. 5.9-1. ESTABLISHMENT AND PURPOSE—TREASURY OVERSIGHT~~**
15 **~~COMMITTEE.~~**

16 ~~(a) Establishment. A Treasury Oversight Committee (“Committee”) for the City and County of~~
17 ~~San Francisco (“City”) is hereby established as an advisory body to the Treasurer. The Committee~~
18 ~~shall consist of seven members, appointed as provided in Section 5.9-3.~~

19 ~~(b) Purpose. The Committee is established to involve depositors of funds into the City Treasury~~
20 ~~in reviewing the policies for investment of surplus funds that guide the management of their funds and~~
21 ~~to enhance the security and investment return on those funds by providing a more stable and~~
22 ~~predictable balance for investment by establishing criteria for the withdrawal of funds.~~

23 ~~(c) Limitation. Nothing in this Article IX shall be construed to allow the Committee to direct~~
24 ~~individual decisions, select individual investment advisors, brokers, or dealers, or impinge on the day-~~
25 ~~to-day operations of the Treasurer.~~

1
2 **~~SEC. 5.9 2. TREASURY OVERSIGHT COMMITTEE—DUTIES.~~**

3 *The duties of the Committee shall be the following:*

4 *(a) Review and monitor the investment policy described in California Government Code*
5 *Section 27133 and annually prepared by the Treasurer; and*

6 *(b) Cause an annual audit to be conducted to determine the Treasurer's compliance with*
7 *California Government Code Article 6 including Sections 27130 through 27137 and with the provisions*
8 *of Article XIII of Chapter 10 of the Administrative Code. The audit may examine the structure of the*
9 *investment portfolio and risk.*

10 *(c) The Committee shall meet at least once every four months.*

11
12 **~~SEC. 5.9 3. TREASURY OVERSIGHT COMMITTEE—COMPOSITION.~~**

13 *(a) Composition of Committee. Consistent with California Government Code Sections 27130 et*
14 *seq., the Committee shall consist of the following members, each of whom shall be nominated by the*
15 *Treasurer and confirmed by the Board of Supervisors.:1*

16 *—(1) Seat 1 shall be held by the Controller or the controller's designee.*

17 *—(2) Seat 2 shall be held by the County Superintendent of Schools or the Superintendent's*
18 *designee. If at any time the Superintendent declines to serve on the Committee or to designate a person*
19 *to serve, and the seat remains vacant for 60 days or longer, the Treasurer may nominate and the Board*
20 *of Supervisors may appoint a new member to fill the seat.*

21 *—(3) Seat 3 shall be held by the Chancellor of the Community College District or the*
22 *Chancellor's designee. If at any time the Chancellor declines to serve on the Committee or to*
23 *designate a person to serve, and the seat remains vacant for 60 days or longer, the Treasurer may*
24 *nominate and the Board of Supervisors may appoint a new member to fill the seat.*

25 *—(4) Seats 4 and 5 shall be held by employees of City departments or local agencies that*

1 ~~participate in the City's pooled fund under California Government Code Sections 53630 et seq., as~~
2 ~~those sections may be amended in the future.~~

3 ~~—(5) Seats 6 and 7 shall be held by members of the public who have expertise in, or an~~
4 ~~academic background in, public finance, and are economically diverse and bipartisan in political~~
5 ~~registration, nominated by the Treasurer and appointed by the Board of Supervisors.~~

6 ~~(b) Conditions for Membership.~~

7 ~~—(1) A Committee member may not be employed by an entity that had contributed to an~~
8 ~~election campaign of the Treasurer or a member of the Board of Supervisors in the previous three~~
9 ~~years.~~

10 ~~—(2) A Committee member may not directly or indirectly raise money for the Treasurer or a~~
11 ~~member of the Board of Supervisors while a member of the Committee.~~

12 ~~—(3) A Committee member may not secure employment with bond underwriters, bond~~
13 ~~counsel, security brokerages or dealers, or with financial services firms for three years after leaving~~
14 ~~the Committee.~~

15 ~~(c) Meeting Attendance. The Committee shall monitor the attendance of Committee members.~~
16 ~~In the event that any Committee member misses three regularly scheduled Committee meetings in a~~
17 ~~twelve-month period without the express approval of the Committee at or before the missed meetings,~~
18 ~~the member shall be deemed to have resigned from the Committee ten days after the third unapproved~~
19 ~~absence. The Committee shall notify the Treasurer and the Clerk of the Board of Supervisors and any~~
20 ~~nominating authority and request the nomination and appointment of a new member.~~

21
22 **~~SEC. 5.9 4. TREASURY OVERSIGHT COMMITTEE—TERM OF OFFICE.~~**

23 ~~(a) Each member of the Committee shall serve for a term of four years.~~

24 ~~(b) Members nominated by the Treasurer and appointed by the Board of Supervisors may be~~
25 ~~removed by the Board of Supervisors with the written concurrence of the Treasurer at any time.~~

1 ~~(c) The terms of members serving on the Committee on the effective date of the ordinance in~~
2 ~~Board File No. 180171 shall continue until their expiration.~~

3
4 ~~**SEC. 5.9 5. TREASURY OVERSIGHT COMMITTEE—COSTS AND ADMINISTRATIVE**~~
5 ~~**SUPPORT.**~~

6 ~~(a) The cost of complying with the requirements of this Article IX, including the cost of~~
7 ~~establishing and maintaining the Committee and of the audit shall be County charges and may be~~
8 ~~included with those charges enumerated under California Government Code Section 27013.~~

9 ~~(b) The Treasurer Tax Collector and the Controller shall provide administrative support for~~
10 ~~the Committee.~~

11
12 ~~**SEC. 5.9 6. TREASURY OVERSIGHT COMMITTEE—TERM.**~~

13 ~~Notwithstanding Rule 2.21 of the Board of Supervisors Rules of Order, which provides that~~
14 ~~advisory bodies created by the Board should sunset within three years, the Board intends the~~
15 ~~Committee to exist indefinitely unless terminated by ordinance.~~

16
17 ~~**ARTICLE X: FOOD SECURITY TASK FORCE**~~

18 ~~**SEC. 5.10 1. ESTABLISHMENT AND MEMBERSHIP OF FOOD SECURITY TASK**~~
19 ~~**FORCE.**~~

20 ~~(a) Food Security Task Force. There is hereby established a Food Security Task Force of the~~
21 ~~City and County of San Francisco. Food security, for purposes of this Article X, shall mean the state in~~
22 ~~which all persons obtain a nutritionally adequate, culturally acceptable diet at all times through local~~
23 ~~non-emergency sources.~~

24 ~~(b) Membership. The Task Force shall consist of 20 members appointed by the Board of~~
25 ~~Supervisors, City department heads, or the San Francisco Unified School District, as provided below.~~

~~Members shall serve at the pleasure of their respective appointing authorities.~~

~~— (1) Seat 1 shall be an employee of the Department of Benefits and Family Support, appointed by the Executive Director of the Human Services Agency.~~

~~— (2) Seat 2 shall be an employee of the Department of Public Health—Nutrition Services, appointed by the Director of Health.~~

~~— (3) Seat 3 shall be held by an employee of the Department of Disability and Aging Services, appointed by the Executive Director of the Human Services Agency.~~

~~— (4) Seat 4 shall be held by an employee of the Department of Public Health—Food Security, appointed by the Director of Health.~~

~~— (5) Seat 5 shall be held by an employee of the Department of Children, Youth and their Families, appointed by the Director of the Department of Children, Youth and their Families.~~

~~— (6) Seat 6 shall be held by an employee of the Department of Homelessness and Supportive Housing, appointed by the Director of the Department of Homelessness and Supportive Housing.~~

~~— (7) Seat 7 shall be held by an employee of the Recreation and Park Department's Urban Agriculture Program, appointed by the General Manager of the Recreation and Park Department.~~

~~— (8) Seat 8 shall be held by an appointee of the San Francisco Unified School District if the District chooses to appoint a member.~~

~~— (9) Seats 9 through 19 shall be held by representatives of community-based organizations that provide nutritional support and increase the food security of San Francisco residents, nominated by the Task Force and appointed by the Board of Supervisors. These members may include but are not limited to representatives from organizations serving food in the following program types: home-delivered meals; congregate meals for seniors; food bank; free dining room; multi-service agency serving families and youth; shelter meals; faith-based organizations; food retail (farmers markets; grocery stores); and hospital and health clinics. No organization shall have more than one representative on the Task Force.~~

1 ~~—(10) Seat 20 shall be held by a member of the public, nominated by the Task Force and~~
2 ~~appointed by the Board of Supervisors.~~

3 ~~—Any member representing a community-based organization who fails to attend at least three~~
4 ~~meetings in a six-month period without the express approval of the Task Force at or before each missed~~
5 ~~meeting shall be deemed to have resigned from the Task Force ten days after the third unapproved~~
6 ~~absence. The Task Force shall promptly inform the Clerk of the Board of Supervisors of the~~
7 ~~resignation.~~

8 ~~(c) Staffing. The Department of Public Health shall provide clerical assistance and logistical~~
9 ~~support to the Task Force and its committees.~~

10 ~~(d) Meetings. The Task Force shall meet at least once every four months.~~

11 ~~(e) Purposes of Task Force; Strategic Plan. The Food Security Task Force shall recommend to~~
12 ~~the Board of Supervisors legislative action and city-wide strategies that would increase participation in~~
13 ~~federally funded programs such as Cal Fresh known nationally as SNAP and formally as food stamps,~~
14 ~~Summer Food Service, the Child and Adult Care Food Program, the Homeless Children Nutrition~~
15 ~~Program, the Special Supplemental Nutrition Program for Women, Infants and Children (WIC), the~~
16 ~~School Lunch Program, and the National School Breakfast Program. The Task Force shall also~~
17 ~~provide general advice and assistance to the Board of Supervisors with regard to funding priorities,~~
18 ~~legislative action, and City policies on addressing hunger and enhancing the food security of San~~
19 ~~Francisco residents in addition to any other issues within the Task Force's expertise.~~

20 ~~—To accomplish these goals, the Food Security Task Force shall assist the Department of~~
21 ~~Public Health in preparing and presenting the food security and equity report to the Board of~~
22 ~~Supervisors and the Mayor as such report is established by the City pursuant to Administrative Code~~
23 ~~Chapter 59A. The report may include recommendations for funding, programs, and policy. The Board~~
24 ~~of Supervisors may adopt legislation to implement the recommendations.~~

1 **~~SEC. 5.10-2. SUNSET.~~**

2 ~~Notwithstanding Rule 2.21 of the Board of Supervisors Rules of Order, which provides that~~
3 ~~advisory bodies created by the Board should sunset within three years, unless the Board of Supervisors~~
4 ~~by ordinance extends the term of the Task Force, this Article X shall expire by operation of law, and the~~
5 ~~Task Force shall terminate, on July 1, 2026. After that date, the City Attorney shall cause this Article X~~
6 ~~to be removed from the Administrative Code.~~

7
8 **ARTICLE X: SWEATFREE PROCUREMENT ADVISORY COUNCIL**

9
10 [This bracketed note is uncodified. See Section 37 of this ordinance for the source and text of
11 Article X.]

12 **ARTICLE XI: VETERANS' AFFAIRS ~~COMMISSION~~ COUNCIL**

13 **~~SEC. 5.100~~ 5.11-1. CREATION OF COUNCIL.**

14 There is hereby established the Veterans' Affairs ~~Commission~~ Council (hereinafter
15 ~~Commission Council~~) ~~of the City and County of San Francisco~~ as an Advisory Body as defined in
16 Section 5.1-1.

17
18 **~~SEC. 5.101~~ 5.11-2. PURPOSE.**

19 The Veterans' Affairs ~~Commission~~ Council shall advise ~~directly~~ the Mayor and the Board
20 of Supervisors on all matters affecting veterans of the Armed Forces of the United States of
21 America, on the problems, interests and needs of veterans who are residents of the City, ~~and~~
22 ~~County of San Francisco~~ and on the coordination of economic development, health care, and
23 social services programs as they relate to veterans who are residents of the City ~~and County of~~
24 ~~San Francisco.~~

1 **SEC. ~~5.102~~ 5.11-3. MEMBERSHIP.**

2 The ~~Commission~~ Council shall consist of 13 members. Nine of the members shall be
3 appointed by the Board of Supervisors to hold seats 1 through 9 and four of the members
4 shall be appointed by the Mayor to hold seats 10 through 13. Members of the ~~Commission~~
5 Council shall have the following qualifications:

6 (a) Seat 1 shall be held by a spouse, registered/certified domestic partner, or a
7 widow/widower of a veteran who served in the Armed Forces of the United States of America;

8 (b) Seats 2 and 10 shall be held by ~~women~~ veterans;

9 (c) Seats 3 and 11 shall be held by individuals who served in the Armed Forces of the
10 United States of America and who have a physical disability arising from that service, in
11 accordance with the definitions applied in such cases by the Veterans' Administration;

12 (d) Seats 4-9 and 12-13 are not subject to the requirements set forth in subsections (a)
13 through (c) above.

14
15 **~~SEC. 5.103. ORGANIZATION AND TERMS OF OFFICE.~~**

16 ~~—(a) The term of each member of the Commission shall be four years.~~

17 ~~—(b) In the event a vacancy occurs during the term of office of any member, a successor shall~~
18 ~~be appointed for the unexpired term of the office vacated in a manner similar to that described for the~~
19 ~~initial members.~~

20 ~~—(c) The Commission shall elect a chairperson from among its appointed members. The term~~
21 ~~of office as chairperson shall be for the calendar year or for the portion thereof remaining after each~~
22 ~~such chairperson is elected.~~

23 ~~—(d) Services of the members of the Commission shall be voluntary and members will serve~~
24 ~~without compensation.~~

25 ~~—(e) Continuing Membership on the Commission. The clerk of the Commission, in~~

1 ~~consultation with the Clerk of the Board of Supervisors, shall, upon the effective date of the ordinance~~
2 ~~in Board File No. 221269, changing the number of the seats on the Commission, assign existing~~
3 ~~Commission members, including members with expired terms serving as holdover appointees, to Seats~~
4 ~~1-13 in accord with the requirements of Section 5.102. Their terms of office shall be aligned with the~~
5 ~~terms of office extant prior to the effective date of the aforementioned ordinance; with the~~
6 ~~understanding that holdover appointees shall not thereby acquire any permanent or other special~~
7 ~~status. New appointments made to Commission Seats 1 through 13 following the effective date of the~~
8 ~~aforementioned ordinance shall be made in accordance with Section 5.102.~~

9 ~~—(f) Each appointing authority may remove any of its appointees at any time with or without~~
10 ~~cause. Additionally, any member, including the Chairperson, who misses three regular meetings of the~~
11 ~~Commission within a six-month period without the express approval of the Commission at or before~~
12 ~~each missed meeting shall be deemed to have resigned from the Commission 10 days after the third~~
13 ~~unapproved absence. The Commission shall inform the member's appointing authority of any such~~
14 ~~resignation.~~

15
16 **SEC. ~~5.104~~ 5.11-4. POWERS AND DUTIES.**

17 The ~~Commission~~ Council shall have the power and duty to:

18 (a) Hold hearings and submit recommendations to the Board of Supervisors and the
19 Mayor regarding the problems, interests and needs of veterans; and

20 (b) Make recommendations to the Board of Supervisors and the Mayor concerning the
21 coordination of economic development health care and social services programs as they
22 relate to veterans who are residents of the City ~~and County of San Francisco~~.

23
24 **~~SEC. 5.105. REPORT.~~**

25 ~~The Commission shall render annually a written report of its activities to the Board of~~

Supervisors and the Mayor.

~~SEC. 5.106. MEETINGS.~~

~~The place, date and time of meetings of the Commission shall be prescribed by rule of the Commission; provided, however that the Commission shall hold a regular meeting not less than once every two months. All meetings shall, except as provided by general law, be open to the public.~~

~~SEC. 5.107. RULES AND REGULATIONS.~~

~~The Commission shall adopt the necessary rules and regulations for the conduct of its business under this Article.~~

~~SEC. 5.108~~ 5.11-5. ADMINISTRATIVE SUPPORT.

The Human Services Agency shall provide administrative and clerical support to the ~~Commission~~ Council.

SEC. 5.11-6. SUNSET.

Unless the Board of Supervisors by ordinance extends the term of the Council, this Article XI shall expire by operation of law, and the Council shall sunset, on July 1, 2029. After that date, the City Attorney shall cause this Article XI to be removed from the Administrative Code.

ARTICLE XII: CAPITAL PLANNING COUNCIL

[This bracketed note is uncodified. See Section 5 of this ordinance for the source and text of Article XII.]

**ARTICLE XIII: REAL ESTATE FRAUD PROSECUTION TRUST FUND COUNCIL ~~EARLY~~
~~CHILDHOOD COMMUNITY OVERSIGHT AND ADVISORY COMMITTEE~~**

1 **SEC. 5.13-1. REAL ESTATE FRAUD PROSECUTION TRUST FUND COUNCIL.**

2 *There is hereby established a Real Estate Fraud Prosecution Trust Fund Council ("Council")*
3 *consistent with Section 8.24-5 of this Code. The Council shall be an Advisory Body as defined in*
4 *Section 5.1-1, and shall be composed of the District Attorney, City Administrator, and City Attorney,*
5 *each of whom may appoint an appropriate representative to serve on the Council. The Council shall*
6 *review applications and make determinations by majority vote as to the award of funds in the Real*
7 *Estate Fraud Prosecution Trust Fund using the procedures and criteria required by Section 27388 of*
8 *the California Government Code. The Council shall meet only when the District Attorney calls a*
9 *meeting to reevaluate the current funding allocation between the Assessor-Recorder, District Attorney,*
10 *and Police Department.*

11
12 **SEC. 5.13-1. CREATION OF ADVISORY COMMITTEE.**

13 ~~*The Board of Supervisors hereby establishes an Early Childhood Community Oversight and*~~
14 ~~*Advisory Committee ("EC COAC"). The previously established Office of Early Care and Education*~~
15 ~~*Citizens' Advisory Committee is hereby abolished.*~~

16
17 **SEC. 5.13-2. PURPOSE.**

18 ~~*The EC COAC shall make recommendations to the Department of Early Childhood (the*~~
19 ~~*"Department"), established by Chapter 2A, Article XXIII of the Administrative Code, regarding the*~~
20 ~~*Department's mission of providing early care and education for children ages zero to five in San*~~
21 ~~*Francisco and other City departments involved in early care and education initiatives. The EC COAC*~~
22 ~~*shall also advise the Department on developing the Department Strategic Plan for expanding high-*~~
23 ~~*quality early care and education in San Francisco, as described in Section 2A.310 of the Administrative*~~
24 ~~*Code, and offer expertise in the areas of policy, planning, collaboration, and strategic partnerships. In*~~
25 ~~*collaboration with the Children and Families Commission (the "First Five Commission"), the EC*~~

1 ~~COAC shall provide input and recommendations to the Department regarding overall strategies,~~
2 ~~policies, and procedures for the Department. The EC COAC shall provide analysis, guide design~~
3 ~~engagement processes, and make recommendations to the Department, the Mayor, and the Board of~~
4 ~~Supervisors regarding use of funds for the Early Care and Education for All Initiative, described in~~
5 ~~Section 20.17-1 of Article XVII of Chapter 20 of the Administrative Code, and the Babies and Families~~
6 ~~First Fund, described in Section 10.100-36 of Article XIII of Chapter 10 of the Administrative Code.~~

7
8 **~~SEC. 5.13-3. MEMBERSHIP AND ORGANIZATION.~~**

9 ~~(a) The EC COAC shall consist of nine members. The Mayor shall appoint five members to~~
10 ~~hold Seats 1 through 5, and the Board of Supervisors shall appoint four members to hold Seats 6~~
11 ~~through 9. Each appointment by the Mayor shall be effective immediately, but may be rejected by a~~
12 ~~two-thirds vote of the Board of Supervisors within 30 days following transmittal of the Mayor's Notice~~
13 ~~of Appointment to the Clerk of the Board of Supervisors.~~

14 ~~(b) Members of the EC COAC shall have the following qualifications:~~

15 ~~— (1) Seat 1: must be a parent or guardian of a child who is enrolled in a facility that~~
16 ~~provides early care and education services, which includes child care, early care, preschool, infant and~~
17 ~~toddlers care;~~

18 ~~— (2) Seat 2: must be a representative of the San Francisco Unified School District's Early~~
19 ~~Education Division, or any successor to that division, recommended by the Superintendent of Schools~~
20 ~~to the Mayor. If the Superintendent of Schools fails to make a recommendation within 90 days of a~~
21 ~~vacancy, the Mayor may appoint a person to hold this seat;~~

22 ~~— (3) Seat 3: must be an early care and education provider that serves infants and toddlers~~
23 ~~ages zero to three;~~

24 ~~— (4) Seat 4: must be a family support provider, a provider or educator who works with~~
25 ~~children with special needs, a community member with expertise in early education, a member of the~~

~~mental health community specializing in early care, a member of a philanthropic organization, which has an emphasis on early care and education issues, or a member of the business community with an interest in early care and education issues;~~

~~— (5) Seat 5: must be a representative of an institution of higher education that specializes in early care and education;~~

~~— (6) Seat 6: must be a family child care provider;~~

~~— (7) Seat 7: must be a provider of early care and education at a community-based childcare center in San Francisco, but this member cannot be a San Francisco Unified School District provider;~~

~~— (8) Seat 8: must be a family support provider, a provider or educator who works with children with special needs, a community member with expertise in early education, a member of the mental health community specializing in early care, a member of a philanthropic organization, which has an emphasis on early care and education issues, or a member of the business community with an interest in early care and education issues; and~~

~~— (9) Seat 9: must be a representative of the Child Care Planning and Advisory Council (“CCPAC”) established by Article XX of Chapter 5 of the Administrative Code, recommended to the Board of Supervisors by the CCPAC.~~

~~(c) Each appointing authority may remove any of its appointees at any time with or without cause.~~

~~(d) If a vacancy occurs in any seat on the committee, the appointing authority for the vacated seat shall appoint a successor. For Seat 2, the EC COAC shall notify the San Francisco Unified School District of any such vacancies and, if the San Francisco Unified School District has not made a recommendation within 90 days of the notice, the Mayor shall appoint a successor.~~

~~(e) To the extent required by law, members of the EC COAC shall be subject to state and local conflict of interest laws, including the California Political Reform Act (Cal. Gov. Code §§ 87100 et seq.) and California Government Code section 1090.~~

1 ~~(f) Subcommittees. The EC COAC may establish subcommittees to be convened as directed by~~
2 ~~the EC COAC. The EC COAC's Chair or the Chair's designee shall appoint members to the~~
3 ~~subcommittees. Subcommittees shall report findings and make recommendations to the full EC COAC~~
4 ~~for its consideration.~~

5 ~~(g) Advisory bodies. The EC COAC may appoint advisory bodies to advise it in the exercise of~~
6 ~~its duties, including but not limited to advisory bodies to make joint recommendations to the Mayor for~~
7 ~~appointment as Director of the Department and representing the perspectives of parents and~~
8 ~~guardians. Advisory bodies created by the EC COAC may include, in whole or part, individuals who~~
9 ~~are not members of the EC COAC, as well as members of the First Five Commission or CCPAC.~~

10
11 **~~SEC. 5.13 4. TERMS OF OFFICE AND MEETINGS.~~**

12 ~~(a) Terms of Office. Members of the EC COAC shall serve for two years, except that the~~
13 ~~members initially appointed to Seats 1, 3, 5, 7, and 9 shall serve for three years; thereafter, the~~
14 ~~members holding these seats shall serve for two years.~~

15 ~~(b) Term Limits. No member may serve more than two consecutive terms on the EC COAC.~~
16 ~~For the purpose of these term limits, serving more than half of a term shall count as serving a full term~~
17 ~~on the committee.~~

18 ~~(c) Transition from Previous Citizens' Advisory Committee. Members of the previously~~
19 ~~established Office of Early Care and Education Citizens' Advisory Committee seated as of the effective~~
20 ~~date of Ordinance No. 189-22 shall by operation of law become the initial members of the EC COAC.~~
21 ~~Their terms of office and term limits shall incorporate their service on the Office of Early Care and~~
22 ~~Education Citizens' Advisory Committee, with the effect that their terms of office and term limits will be~~
23 ~~identical to what they would have been if the Office of Early Care and Education Citizens' Advisory~~
24 ~~Committee had not been abolished. Similarly, their service on the Office of Early Care and Education~~
25 ~~Citizens' Advisory Committee shall be considered in calculating compliance with the meeting~~

attendance requirement in subsection (d)(1), below. With reference to subsection (d)(2), the bylaws of the Office of Early Care and Education Citizens' Advisory Committee shall apply to the EC COAC until changed by the EC COAC, and the Chair and Vice Chair of the Office of Early Care and Education Citizens' Advisory Committee shall remain in those positions with the EC COAC until changes are made by the EC COAC in accordance with the bylaws adopted by the EC COAC.

~~(d) Meetings.~~

~~—(1) The EC COAC shall meet at least four times each calendar year. Any member of the EC COAC who fails to attend at least half of the meetings held in a calendar year shall be deemed to have resigned from the committee.~~

~~—(2) At its first meeting, the the1 EC COAC shall select a Chair and Vice Chair. The EC CAC1 shall also adopt bylaws governing its meetings. Five members of the EC COAC shall constitute a quorum of the committee, and the affirmative votes of at least five members of the EC COAC are necessary to constitute approval by the committee.~~

~~(e) The Department shall provide administrative and clerical support for the EC COAC.~~

~~SEC. 5.13-5. DUTIES OF THE COMMITTEE.~~

~~(a) The EC COAC shall provide policy recommendations on strategies, processes, and services to meet the Department's goals and priorities consistent with the EC COAC's purpose described in Section 5.13-2. In collaboration with the First Five Commission, the EC COAC shall develop policy recommendations regarding the Department's coordination of services, policies, and planning strategies for early care and education, including:~~

~~—(1) Addressing the continuous quality improvement of programs and capacity building of providers 1~~

~~—(2) Developing recommendations for equitable, inclusive, culturally and linguistically appropriate services and innovations responsive to emerging early childhood needs.~~

1 ~~—(3) Developing recommendations for processes to ensure data and data systems are used~~
2 ~~for greater accountability of program outcomes, enhance learning internally, across investments, and~~
3 ~~across service sectors, and address persistent racial, diversity, equity, and inclusion gaps.~~

4 ~~—(4) Promoting public interest and awareness around issues facing young children and their~~
5 ~~families.~~

6 ~~—(5) Developing processes and structures that support organizations, communities, and~~
7 ~~public agencies to work together to advance the well-being of young children and their families.~~

8 ~~(b) The EC COAC shall work with Department to develop and maintain the Department~~
9 ~~Strategic Plan, as described in Administrative Code Section 2A.310.~~

10 ~~(c) The EC COAC shall advise the Department on the development of funding guidelines.~~

11 ~~(d) The EC COAC shall review and advise the Department regarding its needs assessments,~~
12 ~~plans, funding allocations, evaluation of services, common data systems, processes for making funding~~
13 ~~decisions, program improvement and capacity building of service providers, community engagement in~~
14 ~~planning and evaluating services, and any changes in expenditure plans during the fiscal year, but~~
15 ~~shall not have any approval authority over these matters.~~

16 ~~(e) The EC COAC shall promote transparency for the Department's budget, including, in~~
17 ~~particular, expenditures from the Babies and Families Fund, by holding a joint annual public hearing~~
18 ~~with the First Five Commission regarding the Department's budget no later than February 14 of each~~
19 ~~year. The EC COAC shall review and provide a recommendation report of the Department's overall~~
20 ~~annual budget expenditures. The EC COAC shall provide input to the Department on the evaluation~~
21 ~~plan for tracking the results of the City's investments in early care and education.~~

22 ~~(f) The EC COAC shall coordinate with the CCPAC to receive and incorporate CCPAC's~~
23 ~~feedback and recommendations into EC COAC's recommendations to the Department's annual report~~
24 ~~evaluating the effectiveness of the Early Care and Education for All Initiative, required by Section~~
25 ~~20.17-3 of the Administrative Code.~~

1 ~~(g) The EC COAC may recommend candidates for Director of the Department to the Mayor~~
2 ~~and may hold a joint public meeting with the First Five Commission for the purpose of considering~~
3 ~~candidates.~~

4
5 **~~SEC. 5.13-6. SUNSET.~~**

6 ~~Notwithstanding Rule 2.21 of the Board of Supervisors Rules of Order, which provides that~~
7 ~~advisory bodies created by the Board should sunset within three years, the Board intends the EC COAC~~
8 ~~to exist indefinitely unless terminated by ordinance.~~

9
10 **~~ARTICLE XIV: BICYCLE ADVISORY COMMITTEE~~**

11 ~~* * * *~~

12 **~~SEC. 5.130. BICYCLE ADVISORY COMMITTEE ESTABLISHED.~~**

13 ~~(a) There shall be established a Bicycle Advisory Committee (hereinafter "Advisory~~
14 ~~Committee") of the City and County of San Francisco. This Advisory Committee, composed of~~
15 ~~concerned and informed residents, will provide the best single source of expertise and perspective for~~
16 ~~transportation planners. Effective planning is the key to reducing reliance on automobiles, and, in~~
17 ~~turn, the ultimate solution to the broad environmental crisis we presently face.~~

18 ~~(b) The Advisory Committee shall consist of 11 voting members appointed by the Board of~~
19 ~~Supervisors. Each member of the Board of Supervisors shall nominate one person for appointment to~~
20 ~~the Advisory Committee. The Advisory Committee shall provide information to the Board of~~
21 ~~Supervisors on the diversity of the Advisory Committee with regard to the age, ethnicity, gender,~~
22 ~~disability and sexual orientation of its members.~~

23 ~~(c) In addition to the 11 voting members, the following City departments will each provide a~~
24 ~~non-voting representative to attend Advisory Committee meetings: the Police Department, the~~
25 ~~Department of Public Works, the Municipal Transportation Agency and the Department of City~~

1 *Planning. The Board of Supervisors also requests that the San Francisco Unified School District and*
2 *the Golden Gate National Recreation Area each be asked to send a non-voting representative to the*
3 *Advisory Committee.*

4
5 ***SEC. 5.131. ORGANIZATION AND TERMS OF OFFICE.***

6 *(a) Each member of the Advisory Committee shall serve for a term that ends two years from the*
7 *date of appointment, or the last day of the term of the supervisor who nominated the member,*
8 *whichever is sooner, provided:*

9 *— (1) The Board of Supervisors may remove any member of the Advisory Committee for cause*
10 *at any time; and*

11 *— (2) The Board of Supervisors may remove any member of the Advisory Committee without*
12 *cause at any time upon request of the supervisor who nominated the member whose removal is sought.*

13 *(b) At the initial meeting of the Advisory Committee, and yearly thereafter, the Advisory*
14 *Committee members shall select such officers as deemed necessary by the Advisory Committee.*

15 *(c) The Advisory Committee shall establish rules and regulations for its own organization and*
16 *procedures and shall meet when necessary as determined by the Advisory Committee. All meetings*
17 *shall, except as provided by law, be open to the public.*

18
19 ***SEC. 5.132. POWERS AND DUTIES.***

20 *The Advisory Committee shall have the power and duty to:*

21 *(a) Set up subcommittees as necessary;*

22 *(b) Develop a plan for bicycle-related improvements, including but not limited to bicycle*
23 *routes, secure parking, and transit interface, and make recommendations to the Municipal*
24 *Transportation Agency, the San Francisco County Transportation Authority, and the Board of*
25 *Supervisors on related funding from local, State and Federal agencies, including, but not limited to*

1 ~~Transportation Development Act funds and San Francisco County Transportation Authority funds;~~

2 ~~(c) Review the policies and programs related to bicycling in the Transportation Element of the~~
3 ~~General Plan of the City and County of San Francisco, and make recommendations on the goals and~~
4 ~~their implementation to the Planning Commission of the City and County of San Francisco;~~

5 ~~(d) Develop a plan for outreach to, and education of, the public to promote the safe sharing of~~
6 ~~public roadways, and submit the plan to the Municipal Transportation Agency and the San Francisco~~
7 ~~County Transportation Authority.~~

8
9 **ARTICLE XIV: SOUTHEAST COMMUNITY CENTER COUNCIL**

10 [This bracketed note is uncodified. See Section 27 of this ordinance for the source and text of
11 Article XIV.]

12 **ARTICLE XV: PUBLIC UTILITIES CITIZEN'S ADVISORY ~~COMMITTEE~~ COUNCIL**

13 **~~SEC. 5.140-5.15-1. PUBLIC UTILITIES CITIZEN'S ADVISORY COMMITTEE~~**
14 **ESTABLISHMENT AND PURPOSE.**

15 ~~(a) Pursuant to Charter Section 8B.123(B), t~~ There is hereby established the Public
16 Utilities Citizen's Advisory ~~Committee~~ Council for the purpose of providing recommendations to
17 the General Manager of the Public Utilities Commission, the Public Utilities Commission, and
18 the Board of Supervisors on the success of the Department in achieving the Goals and
19 Objectives set out in Section 8B.122 of the City Charter (with the exception of 8B.122(a)(2)).
20 At a minimum, these functions will include review of and recommendations for the Public
21 Utilities Commission's long term strategic, financial, and capital improvement plans.

22 ~~(b) The Wastewater Citizen's Advisory Committee established by Board of Supervisors~~
23 ~~uncodified Resolution No. 19-73 is hereby abolished.~~

24 ~~(eb)~~ The Public Utilities Citizen's Advisory ~~Committee~~ Council is an Advisory Body as
25 defined in Section 5.1-1. It is not intended to and shall not duplicate the functions of the Public

Utilities Rate Fairness Board ~~or the Public Utilities Revenue Bond Oversight Committee.~~ Where the Charter refers to the Public Utilities Commission Citizens' Advisory Committee, such references shall be understood to refer to the Council.

SEC. ~~5.141~~ 5.15-2. PUBLIC UTILITIES CITIZEN'S ADVISORY COMMITTEE—
MEMBERSHIP AND ORGANIZATION.

(a) **Membership.** There shall be ~~seventeen~~ 17 members of the ~~Public Utilities Citizen's Advisory Committee Council.~~ Each member of the Board of Supervisors shall appoint one member to the ~~Public Utilities Citizen's Advisory Committee Council~~ who shall be a resident of the supervisorial district represented by the appointing Supervisor (and the appointee shall remain a resident of the same district in order to continue serving in that seat) and must demonstrate one or more of the following qualifications: representing a community, business, environmental, or environmental justice organization, or with demonstrated knowledge, skill or experience in a field related to public utilities, environmental justice or environmental science. Four members shall be appointed by the Mayor; one member who represents the PUC's regional water customers; one member who represents a large San Francisco water user; one City resident who has demonstrated knowledge of engineering or financial management; and one member who represents a regional or statewide environmental organization. Two members, who shall be residents of the City ~~and County of San Francisco~~, shall be appointed by the President of the Board of Supervisors; one member who represents a small business in San Francisco and one member who represents an environmental justice organization.

~~(b) **Term.** Each member shall be appointed for a four-year term. A member may be reappointed for additional four-year terms. At any time during the term, a member may be removed from the Public Utilities Citizen's Advisory Committee by the then sitting Supervisor of his or her district (if appointed by a Supervisor), or by his or her appointing official. In the event a vacancy~~

occurs during the term of any member, a successor shall be appointed to complete the unexpired term of the office vacated in a manner similar to that which governed the initial appointment of the member.

~~(c) **Compensation and Contracting.** Members of the Public Utilities Citizen's Advisory Committee shall not be compensated nor shall they be reimbursed for expenses. Members shall have no authority to enter into contracts on behalf of the City or Public Utilities Commission.~~

~~(d) **Officers.** At the first calendared meeting and thereafter at the beginning of each even-numbered calendar year, the members of the Public Utilities Citizen's Advisory Committee shall elect members to serve as chair, vice chair, and secretary of the Committee. The chair, or vice chair, in the absence of the chair, shall be responsible for developing agendas in consultation with the General Manager of the Public Utilities Commission, and conducting meetings. The secretary will be responsible for approving meeting minutes and committee correspondence prior to distribution.~~

~~(e) **Subcommittees.** Subcommittees for each utility operated by the Public Utilities Commission are hereby established to make recommendations to the full Committee on draft plans, policies, programs and other activities related to their respective utilities. The Water Subcommittee shall review water supply system reliability, water conservation, recycling, regional cooperation efforts, and other relevant plans, programs and policies. The Wastewater Subcommittee shall review sewage and stormwater collection, treatment and disposal system replacement, recycling, and other relevant plans, programs, and policies. The Energy Subcommittee shall review power generation and transmission system reliability and improvement programs, including but not limited to facilities siting and alternative energy programs, as well as other relevant plans, programs, and policies. The chair of the Public Utilities Citizen's Advisory Council shall appoint a chair for each subcommittee, and shall assign members to serve on each subcommittee. The chair, with the approval or at the request of a majority of the members to the Public Utilities Citizen's Advisory Committee, may create additional subcommittees necessary to facilitate review of plans, programs, and policies, in order to fulfill their responsibilities, as stated in Section 5.140(a).~~

1 ~~(f) Membership in subcommittees shall be open to interested members of public through a~~
2 ~~process developed by the subcommittee and adopted by the Citizens' Advisory Committee.~~
3 ~~Representation on the subcommittees by residents living near PUC facilities shall be encouraged. The~~
4 ~~subcommittees shall be created and chaired by a member of the Committee as outlined in subsection (e)~~
5 ~~above.~~

6 ~~(g) The Public Utilities Citizen's Advisory Committee may request that the General Manager~~
7 ~~provide independent review of the Public Utilities Commission's proposals.~~

8 ~~(h) Meetings. The chair of the Public Utilities Citizen's Advisory Committee shall arrange for~~
9 ~~meetings at such times and in such places as the chair and the General Manager of the Public Utilities~~
10 ~~Commission, or his or her designee, shall mutually designate and in accordance with all requirements~~
11 ~~of applicable state and local laws, except that the Committee will meet no less than 9 times per 12-~~
12 ~~month period, unless the Committee and the General Manager agree otherwise. The General Manager~~
13 ~~shall set the first meeting of the Committee no later than 30 days after the appointment of a quorum of~~
14 ~~the Committee. The meetings shall be noticed in accordance with the requirements of the Sunshine~~
15 ~~Ordinance and posted on the Public Utilities Commission's web site. Administrative and clerical~~
16 ~~functions in support of the Public Utilities Citizen's Advisory Committee Council shall be provided~~
17 ~~by the General Manager of the Public Utilities Commission, or his or her their designees on~~
18 ~~approval of funding by the Public Utilities Commission. The chair of the ~~committee~~ Council~~
19 ~~shall consult with the General Manager of the Public Utilities Commission, or his or her their~~
20 ~~designee, regarding receipt of reports and data as necessary for the performance of the~~
21 ~~committee's Council's functions. Meetings of the Committee and subcommittees shall be conducted in~~
22 ~~accordance, when not in conflict with state and local open meeting laws, with Robert's Rules of Order.~~

23
24 **SEC. 5.142 . REPORTS.**

25 ~~At least annually, prior to the scheduled adoption or amendment by the Public Utilities~~

~~Commission of its long term strategic plans, the Public Utilities Citizen's Advisory Committee shall prepare a report containing its overview of the status of the long term strategic plans and its recommendations regarding any proposed long term strategic plan adoption or amendment, including the strategic goals and objectives and any performance goals set forth in the plan. The report shall be provided to the Clerk of the Board of Supervisors, the General Manager of the Public Utilities Commission and each member of the Public Utilities Commission at least two weeks prior to the Commission's consideration of a long term strategic plan adoption or amendment. Failure of the Citizen's Advisory Committee to timely submit its report shall not require a continuance of the Commission's consideration or action.~~

~~In addition, the Committee may, at any time, submit information, reports, or recommendations to the Board of Supervisors, General Manager of the Public Utilities Commission, and each member of the Public Utilities Commission.~~

ARTICLE XVI: BEHAVIORAL HEALTH COUNCIL

[This bracketed note is uncodified. See Section 14 of this ordinance for the source and text of Article XVI.]

ARTICLE XVII: COUNCIL ON INFORMATION TECHNOLOGY

[This bracketed note is uncodified. See Section 17 of this ordinance for the source and text of Article XVII.]

ARTICLE XVIII: GRAFFITI ADVISORY BOARD

* * * *

SEC. 5.18-1. CREATION OF ADVISORY BOARD.

~~The Board of Supervisors ("Board") hereby establishes the Graffiti Advisory Board (the "Advisory Board").~~

1 **~~SEC. 5.18 2. PURPOSE.~~**

2 ~~The purpose of the Advisory Board is to advise the Board and the Mayor on issues relating to~~
3 ~~the prevention and abatement of graffiti in San Francisco.~~

4
5 **~~SEC. 5.18 3. MEMBERSHIP.~~**

6 ~~The Advisory Board shall consist of 15 voting members, appointed as follows:~~

7 ~~(a) Seats 1-11 shall be held by persons appointed by individual Members of the Board, with~~
8 ~~each Member of the Board making one appointment. To be eligible for appointment to Seats 1-11, an~~
9 ~~individual must (1) be an officer or employee of an organization that provides services to youth~~
10 ~~involved in graffiti diversion programs; (2) be an officer or employee of an organization with~~
11 ~~experience in City beautification and/or neighborhood cleanup programs; (3) own real property~~
12 ~~located in San Francisco; (4) own a business located in San Francisco; or (5) have previously served~~
13 ~~on the Graffiti Advisory Board. Appointments to Seats 1-11 shall be effective when written notice of the~~
14 ~~appointment is received by the Clerk of the Board of Supervisors.~~

15 ~~(b) Seat 12 shall be held by the Mayor or the Mayor's designee.~~

16 ~~(c) Seat 13 shall be held by the Director of Public Works or the Director's designee.~~

17 ~~(d) Seat 14 shall be held by the Chief of Police or the Chief's designee.~~

18 ~~(e) Seat 15 shall be held by the Director of Cultural Affairs, or the Director's designee.~~

19
20 **~~SEC. 5.18 4. ORGANIZATION AND TERMS OF OFFICE.~~**

21 ~~(a) Members of the Advisory Board shall serve at the pleasure of the member's appointing~~
22 ~~authority and may be removed by the appointing authority at any time.~~

23 ~~(b) Any member in Seats 1-11 who misses three regular meetings of the Advisory Board within~~
24 ~~a six-month period without the express approval of the Advisory Board at or before each missed~~
25 ~~meeting shall be deemed to have resigned from the Advisory Board ten days after the third unapproved~~

1 ~~absence. The Advisory Board shall inform the Board of Supervisors of any such resignation.~~

2 ~~(c) The Department of Public Works shall provide administrative support for the Advisory~~
3 ~~Board.~~

4 ~~(d) As set forth in the Board's Rules of Order, if the Clerk of the Board of Supervisors~~
5 ~~determines that the Advisory Board has not met at least once every four months in the prior year, the~~
6 ~~Clerk may ask the City Attorney to prepare legislation to terminate the Advisory Board.~~

7
8 **~~SEC. 5.18-5. DUTIES.~~**

9 ~~The Graffiti Advisory Board shall have the duty to:~~

10 ~~(a) By October 1, 2024, and every year thereafter, prepare and submit to the Board and the~~
11 ~~Mayor a report addressing the impacts of graffiti on neighborhoods and the downtown area of San~~
12 ~~Francisco, reviewing and evaluating the services and programs in place to prevent graffiti and respond~~
13 ~~to graffiti, and making recommendations for strategies to consolidate public and private anti-graffiti~~
14 ~~efforts;~~

15 ~~(b) Advise the Board and the Mayor about the coordination of information, activities, and goals~~
16 ~~among existing graffiti prevention and graffiti abatement programs; and~~

17 ~~(c) Advise the Board and the Mayor about ways to make the graffiti prevention and abatement~~
18 ~~services more efficient.~~

19
20 **~~SEC. 5.18-6. MEETINGS AND PROCEDURES.~~**

21 ~~(a) The Advisory Board shall hold its inaugural meeting not more than 60 days after the~~
22 ~~effective date of the ordinance in Board File No. 231004 enacting this Article XVIII. There shall be at~~
23 ~~least ten days' public notice of the inaugural meeting. Following the inaugural meeting, the Advisory~~
24 ~~Board shall hold a regular meeting not less than once each month.~~

25 ~~(b) The Advisory Board shall elect a chair and such other officers as it deems appropriate, and~~

1 ~~may establish bylaws and rules for its organization and procedures.~~

2
3 **~~SEC. 5.18-7. SUNSET.~~**

4 ~~Unless the Board of Supervisors by ordinance extends the term of the Advisory Board, this~~
5 ~~Article XVIII shall expire by operation of law, and the Advisory Board shall terminate, three years after~~
6 ~~the effective date of the ordinance in Board File No. 231004 enacting this Article. In that event, after~~
7 ~~the sunset date, the City Attorney is authorized to cause this Article XVIII to be removed from the~~
8 ~~Administrative Code.~~

9
10 **ARTICLE XVIII: RELOCATION APPEALS BOARD**

11 [This bracketed note is uncodified. See Section 18 of this ordinance for the source and text of
12 Article XVIII.]

13 **ARTICLE XIX: FAMILY VIOLENCE COUNCIL**

14 **SEC. 5.19-1. ESTABLISHMENT AND PURPOSE – FAMILY VIOLENCE COUNCIL.**

15 (a) **Establishment.** A Family Violence Council for the City and County of San
16 Francisco (referred to in this Article XIX as “Council”) is hereby established as an ~~advisory~~
17 ~~body to the Board of Supervisors~~ Advisory Body as defined in Section 5.1-1.

18 (b) **Purpose.** The Council is established to advise and submit recommendations to
19 the Board of Supervisors that address the problems of family violence. Family violence
20 includes child abuse, domestic violence, and elder/dependent adult abuse. The Council may
21 also advise the courts of the City and County and the Mayor by submitting recommendations
22 to improve the response by departments to family violence and abuse. The general purposes
23 of the Council shall be the following:

24 (1) Increase the awareness and understanding of family violence, its
25 disproportionate impact on people of color, and its consequences by establishing a series of

1 roundtables, forums, meetings, or summits that identify, highlight, and discuss critical issues
2 pertaining to family violence so as to broaden understanding of family violence and its causes
3 and consequences among the public, governmental agencies, courts, and community
4 organizations.

5 (2) Recommend programs and policies that promote communication and
6 coordination of City and community-based organizations' services relating to child abuse,
7 domestic violence, and elder/dependent adult abuse.

8 (3) Recommend programs, policies, and coordination of City services to the Board
9 of Supervisors and Mayor that may reduce the incidence of family violence in San Francisco,
10 and its disproportionate impact on people of color.

11 * * * *

12
13 **SEC. 5.19-3. STEERING COMMITTEE – COMPOSITION – ~~TERMS OF OFFICE.~~**

14 ~~(a) Composition of Steering Committee.~~ The Council members serving in seats ~~10, 12,~~
15 ~~and 13-6, 7, and 8~~ shall serve as the members of the Steering Committee and co-chairs of the
16 Council.

17 ~~(b) Meetings.~~ ~~The Steering Committee shall meet regularly at such times and places as the~~
18 ~~members of the Committee shall determine.~~

19 ~~(c) Rules and Regulations.~~ ~~The Steering Committee may adopt reasonable rules and~~
20 ~~regulations not inconsistent with the Charter or this Article XIX for the conduct of its affairs and for the~~
21 ~~performance of its business.~~

22
23 **SEC. 5.19-4. STEERING COMMITTEE – DUTIES.**

24 The Steering Committee shall serve as the policy setting body of the Council. Duties of
25 the Steering Committee shall include the establishment of the organization and structure of

1 the Council, creation of working groups when necessary to implement the objectives of the
2 Council, and oversight of the operations of the Council.

3
4 **SEC. 5.19-5. FAMILY VIOLENCE COUNCIL – COMPOSITION—~~TERMS OF~~**
5 **~~OFFICE.~~**

6 ~~(a) Composition.~~ The composition of the Council shall broadly represent the ethnic,
7 racial, sex, gender identity, age, and sexual orientation diversity of the communities most
8 impacted by family violence. The Council shall consist of the following individuals or their
9 respective designees:

10 ~~(1) Presiding Judge of the Superior Court;~~

11 ~~(21)~~ Mayor;

12 ~~(32)~~ President of the Board of Supervisors;

13 ~~(43)~~ District Attorney;

14 ~~(54)~~ Chief of Police;

15 ~~(65)~~ Sheriff;

16 ~~(7) President of the Commission on the Status of Women;~~

17 ~~(8) Chief of Adult Probation;~~

18 ~~(9) Executive Director of Department of Emergency Management;~~

19 ~~(106)~~ Executive Director of the Domestic Violence Consortium;

20 ~~(11) Executive Director of Human Services Agency;~~

21 ~~(127)~~ Executive Director of the Consortium for Elder Abuse Prevention;

22 ~~(138)~~ Executive Director of Safe & Sound, which operates the San Francisco Child
23 Abuse Prevention Council;

24 ~~(149)~~ Director of the Department of Public Health;

25 ~~(1510)~~ Executive Director of the Department of Disability and Aging Services;

1 ~~(16) Executive Director of the Department of Children, Youth & Their Families;~~

2 ~~(1711) Medical Examiner;~~

3 ~~(18) Director of the Department of Child Support Services;~~

4 ~~(19) Chief of Juvenile Probation;~~

5 ~~(2012) Public Defender;~~

6 ~~(21) Director of the Department of Animal Care and Control;~~

7 ~~(22) Superintendent of San Francisco Unified School District;~~

8 ~~(23) Human Resources Director;~~

9 ~~(24) Chief of the Fire Department;~~

10 ~~(25) Director of the Department of Homelessness and Supportive Housing; and~~

11 ~~(2613) Director of the Department of Early Childhood;~~

12 ~~(27) Director of the Department of Police Accountability; and~~

13 ~~(28) Executive Director of the Human Rights Commission.~~

14 (14) Director of the Mayor's Office of Housing and Community Development; and

15 (15) Human Services Agency – Deputy Director, Family and Children's Services.

16 If at any time an agency responsible for designating a member to Seat ~~1, 10, 12, 13,~~
17 ~~or 22-6, 7, or 8~~ declines to designate a member and leaves the seat vacant for 60 days or
18 longer, the Board of Supervisors may appoint a member of the public to fill the seat until such
19 time as the agency designates a member.

20 The Steering Committee shall have the authority to appoint up to six additional
21 members to the Council. Each such member shall have professional and/or lived experience
22 in issues of family violence prevention or intervention, and shall represent the diversity of the
23 communities most impacted by family violence. Each of these members shall serve for a term
24 of one year at the pleasure of the Steering Committee. A quorum of the Council shall consist of a
25 majority of the number of members appointed at the time.

1 **~~(b) Limitations on Service in Community-Based Organization Seats.~~** ~~No individual may serve~~
2 ~~as a Council member in seat 10, 12, or 13 7, 8, or 9, either as a named member or as a designee, for~~
3 ~~more than six years out of any nine-year period. For the purpose of calculating the number of years of~~
4 ~~service, any service prior to May 1, 2015, shall not count.~~

5 **~~(c) Assistance of the City Attorney.~~** ~~The Council may request the City Attorney's Office to~~
6 ~~provide advice and legal counsel to the Council.~~

7 **~~(d) Meetings.~~** ~~The Council shall meet at least once a quarter at such times and places as the~~
8 ~~Council shall designate.~~

9
10 **~~SEC. 5.19-6. FAMILY VIOLENCE COUNCIL—ORGANIZATION.~~**

11 **~~(a) Removal of Council Members.~~** ~~If a member of the Council appointed by the Steering~~
12 ~~Committee misses three regularly scheduled meetings of the Council in any 12-month period without~~
13 ~~the express approval of the Council, the Steering Committee may appoint a new member to fill that seat~~
14 ~~on the Council. If a member in seats 1 through 28 15 on the Council who has been designated by the~~
15 ~~named member to fill the seat misses three regularly scheduled meetings of the Council in any 12-~~
16 ~~month period without the express approval of the Council, the Steering Committee may ask the named~~
17 ~~member to designate another individual to occupy that seat.~~

18 **~~(b) Compensation.~~** ~~Members of the Council shall not be compensated, nor shall they be~~
19 ~~reimbursed for expenses.~~

20 **~~(c) Annual Report.~~** ~~The Council shall submit an annual report of its recommendations to the~~
21 ~~Board of Supervisors, and may present that report at a hearing at the Board's request. The Council~~
22 ~~also may submit recommendations to the courts and the Mayor.~~

23
24 **~~SEC. 5.19-6⁷. FAMILY VIOLENCE COUNCIL AND STEERING COMMITTEE –~~**
25 **~~SUPPORT, STAFFING, AND ASSISTANCE.~~**

1 ~~(a) The Mayor's Office of Victim and Witness Rights shall designate a City department to~~
2 provide support to the Council and the Steering Committee in scheduling meetings,
3 developing meeting agendas, and performing such other functions as are necessary to
4 promote the work of the Council.

5 ~~(b) All City departments, commissions, boards and agencies shall cooperate with the Council~~
6 ~~in conducting its business.~~

7
8 **SEC. 5.19-78. FAMILY VIOLENCE COUNCIL – SUNSET.**

9 Unless the Board of Supervisors by ordinance extends the term of the Family Violence
10 Council, this Article XIX shall expire by operation of law, and the Council shall ~~terminate sunset~~,
11 on ~~May 1, 2027~~ June 1, 2029. After that date, the City Attorney is authorized to cause this Article
12 XIX to be removed from the Administrative Code.

13
14 **ARTICLE XX: CHILD CARE PLANNING AND ADVISORY COUNCIL**

15 **SEC. ~~5.2005.20-1~~. CHILD CARE PLANNING AND ADVISORY COUNCIL.**

16 (a) **Establishment.** Pursuant to California Welfare and Institutions ~~Education~~ Code
17 Sections 10480, 10485–10487 ~~8499–8499.8~~, a local Child Care Planning and Advisory Council for
18 the City and County of San Francisco ("Council") is hereby established as an Advisory Body as
19 defined in Section 5.1-1. The Department of Early Childhood ~~Children, Youth and Their Families~~
20 shall provide administrative support for the Council, ~~as specified in a Memorandum of~~
21 ~~Understanding between the Department and the Council. The Council shall consist of no more than 25~~
22 ~~members. Pursuant to Education Code Section 8499.3, the Board of Supervisors shall appoint 12~~
23 ~~members, the Board of Education, or County Superintendent of Schools, if the Board of Education~~
24 ~~delegates the appointment power to her or him, shall appoint 12 members and the Board of Supervisors~~
25 ~~and the Board of Education, or County Superintendent of Schools, if the Board of Education delegates~~

1 ~~the appointment power to her or him, shall jointly appoint one member. Thirteen (13) members shall~~
2 ~~constitute a quorum of the Council. The affirmative vote of thirteen (13) members shall be required for~~
3 ~~the approval of any matter. The members shall be broadly representative of the ethnic, racial, gender,~~
4 ~~age and sexual orientation diversity of the City and County. All members shall be residents of the City~~
5 ~~and County, in accordance with Section 4.101 of the Charter. The residency requirement may be~~
6 ~~waived upon a finding by the appointing authority that a resident of the City and County with specific~~
7 ~~experience, skills or qualifications willing to serve could not be located within the City and County. In~~
8 ~~making nominations and appointments, the nominating and appointing authorities shall select persons~~
9 ~~from varying backgrounds who have demonstrated abilities, expertise, and experience with child care.~~

10 ~~(b) Executive Committee. Notwithstanding the provisions of subsection (a), the Council may~~
11 ~~establish an Executive Committee of no fewer than 7 of its members to act on urgent matters between~~
12 ~~regularly scheduled meetings of the full Council. The Executive Committee must act by a majority vote~~
13 ~~of its membership at a publicly noticed meeting, and must promptly inform the full Council of any~~
14 ~~action by the Executive Committee. The Executive Committee shall not take any action that conflicts~~
15 ~~with the Council's policy principles or budget.~~

16 ~~(be) Purpose.~~ The Council is established to provide a forum for the identification of local
17 priorities for child care and the development of policies to meet the needs identified within those
18 priorities. The Council shall advise the Board of Supervisors, the Mayor, the San Francisco
19 Children and Families First Commission and, with their consent, the Board of Education and
20 the Superintendent of Schools about child care issues. The Council will serve as a
21 representative advisory and planning body to maintain, expand, and improve local child care
22 services. The Council will provide links between government and the community, and will
23 work to maximize the amount and impact of local, State, federal and private resources and
24 funding for child care in San Francisco.

25 (c) Definitions. For the purposes of this Article XX, the following definitions shall apply:

1 "Child care" means all licensed child care and development services and license-exempt child
2 care, including but not limited to, private for-profit programs, nonprofit programs, and publicly funded
3 programs, for all children up to and including 12 years of age, including children with exceptional
4 needs and children from all linguistic and cultural backgrounds.

5 "Child care provider" means a person who provides child care services or represents persons
6 who provide child care services.

7 "Community representative" means a person who represents an agency or business that
8 provides private funding for child care services, or who advocates for child care services through
9 participation in civic or community-based organizations but is not a child care provider and does not
10 represent an agency that contracts with the State Department of Social Services to provide child care
11 and development services.

12 "Consumer" means a parent or person who receives, or who has received within the past 36
13 months, child care services.

14 "Public agency representative" means a person who represents San Francisco or a local
15 educational agency including the Department of Early Childhood; Department of Children, Youth and
16 their Families; Human Services Agency; San Francisco Children and Families First Commission;
17 Department of Public Health; Recreation and Park Department; Office of Community Investment and
18 Infrastructure; San Francisco Housing Authority; or other entities.

19 (d) **Powers and Duties.** The ~~Child Care Planning and Advisory~~ Council shall have the
20 following powers and duties:

21 (1) By May 30 of each year, and uUpon approval of the Board of Supervisors and the
22 ~~County~~ Superintendent of Schools, the Council shall submit to the State Department of Social
23 Services and the State Department of Education the changes in local priorities it has identified that
24 reflect all child care needs in San Francisco~~for the allocation of state child care funds.~~
25

(2) To conduct an assessment of child care needs in San Francisco no less than once every five years. The needs assessment shall comply with all guidelines issued by the State Department of ~~Social Services~~Education and consider, at minimum, the following:

(A) The needs of families eligible for subsidized child care.

(B) The needs of families not eligible for subsidized child care.

(C) The waiting lists for programs funded by ~~the State Department of Education and~~ the State Department of Social Services.

(D) The need for child care for children who have been determined by the local child protective services agency to be neglected, abused, or exploited, or at risk of being neglected, abused, or exploited~~who have been abused or neglected or are at risk of abuse or neglect.~~

(E) The number of children receiving public assistance.

(F) Family income among families with preschool or school age children.

(G) The number of children in~~of~~ migrant agricultural families who move from place to place for work or who are currently dependent for their income on agricultural employment as defined in Welfare and Institutions Code Section 10236, as that section may be amended from time to time~~workers.~~

(H) The number of children who have been determined by a regional center to require services pursuant to an individualized family service plan, or by a local educational agency to require services pursuant to an individualized education program or an individualized family service plan~~with special needs.~~

(I) The number of children by primary language spoken pursuant to the State Department of Social Services' language survey~~from all identifiable linguistic and cultural backgrounds.~~

(J) Special needs based on geographic considerations.

(K) The age of children needing services.

1 (L) Any other factors deemed appropriate by the Council.

2 (3) To document information gathered during the needs assessment, which shall
3 include, but need not be limited to, data on supply, demand, cost, and market rates for each
4 category of child care in San Francisco.

5 (4) To prepare a comprehensive countywide child care plan designed to mobilize
6 public and private resources to address identified needs and formulate priorities. The Council
7 shall enlist community participation in establishing priorities and shall hold at least one public
8 hearing prior to the development of, or any revisions to, the child care plan, during which
9 members of the public can comment on the proposed priorities and the plan.

10 (5) To conduct a periodic review of child care programs funded by ~~the State~~
11 ~~Department of Education and~~ the State Department of Social Services to determine if identified
12 priorities are being met.

13 (6) To collaborate with subsidized and nonsubsidized child care providers, county
14 welfare departments, ~~and~~ human services agencies, regional centers, job training programs,
15 employers, integrated child and family service councils, local and state children and families
16 commissions, parent organizations, early start family resource centers, family empowerment centers
17 on disability, local child care resource and referral programs, and other interested parties to foster
18 partnerships designed to meet local child care needs.

19 (7) To design a system to consolidate local child care waiting lists if a centralized
20 eligibility list is not already in existence.

21 (8) To coordinate part-day programs, including state preschool and Head Start,
22 with other child care to provide full-day child care.

23 (9) To submit the results of the needs assessment and ~~the changes in~~ local priorities
24 identified by the Council to the Board of Supervisors and the Superintendent of Schools for
25 approval before submitting them to the State Department of Social Services ~~Education~~.

1 (10) To report the result of the child care needs assessment, local priorities, the
2 countywide child care plan, and any revisions thereto, the review of any child care programs,
3 and any other reports or information gathered regarding child care in San Francisco, to the
4 Department of Early Childhood~~Children, Youth and Their Families~~, San Francisco Children and
5 First Families Commission, ~~Human Services Agency~~ and the Board of Education.

6 ~~— (11) To review and comment on proposals submitted to the State Department of Education~~
7 ~~to be provided within San Francisco.~~

8 (~~12~~11) To identify at least one, but no more than two, members of the Council to
9 serve as part of the State Department of Social Services~~Education~~ team that reviews and
10 scores proposals for the provision of services funded through contracts with the State
11 Department of Social Services~~Education~~. The Council representatives may not review and score
12 proposals from San Francisco.

13 (~~12~~13) To develop and implement a training plan to provide increased efficiency,
14 productivity, and facilitation of Council meetings. This may include developing a training manual,
15 hiring facilitators, and identifying strategies to meet the objectives of the Council.

16 ~~— (14) To provide consultation to the State Department of Education and the State~~
17 ~~Department of Social Services regarding the development of a single application and intake form for~~
18 ~~all federal and state subsidized child care and development services.~~

19 ~~— (15) To review and evaluate legislation affecting child care and to suggest or recommend~~
20 ~~local child care legislation;~~

21 ~~— (16) To recommend to the Board of Supervisors, the Mayor, the Board of Education, the~~
22 ~~Superintendent of Schools and State and federal policy makers positions to facilitate the maintenance,~~
23 ~~expansion and improvement of child care services in San Francisco and to help secure public and~~
24 ~~private child care resources for same;~~

1 ~~— (17) To cooperate with, participate in, and make recommendations to other City/County~~
2 ~~planning and advisory bodies that relate directly or indirectly to delivery of child care services.~~

3 ~~— (18) To advise and support all City/County departments involved in child care services,~~
4 ~~including but not limited to the Department of Early Childhood Children, Youth and Their Families,~~
5 ~~San Francisco Children and Families First Commission, Human Services Agency, the Department of~~
6 ~~Public Health, the Recreation and Park Department, the Redevelopment Agency, Offices of the Mayor~~
7 ~~and the Library Department;~~

8 ~~— (19) To provide guidance to all participants in the local child care system, in cooperation~~
9 ~~with existing public agencies, including the school district, and private agencies and institutions~~
10 ~~engaged in child care services.~~

11 **(e) Membership and Organization.**

12 (1) Notwithstanding the term limits that generally apply to Advisory Bodies under Section
13 5.1-4, Council members shall serve a three-year term and may serve up to two consecutive terms,
14 unless the Board of Supervisors and the Board of Education determine otherwise in conformance with
15 State law. A part of a term that exceeds 18 months shall count as a full term; a part of a term that is 18
16 months or less shall not. Notwithstanding the preceding sentence, the current term of any person
17 serving on the Council on January 1, 2027, shall count as a full term if the person serves more than 18
18 months of that term. Terms completed on or before December 31, 2026, shall not count as a term for
19 the purpose of the consecutive term limit. Council members serve at the pleasure of their appointing
20 authority and may be removed by their appointing authority without cause. Before making their
21 selections, the Board of Supervisors and the Board of Education shall publicize their intention to select
22 the members and shall invite local organizations to submit nominations. The Board of Education may
23 delegate its responsibilities under this subsection (e) to the Superintendent of Schools.

1 (2) The Council shall consist of 25 members. The Board of Supervisors and the Board of
2 Education shall each appoint 12 members. The Board of Supervisors and the Board of Education shall
3 jointly appoint one member.

4 (3) The Council shall be comprised as follows:

5 (A) Twenty percent of the membership shall be consumers.

6 (B) Twenty percent of the membership shall be child care providers, reflective of the
7 range of child care providers in San Francisco.

8 (C) Twenty percent of the membership shall be public agency representatives.

9 (D) Twenty percent of the membership shall be community representatives, who shall not
10 be child care providers or agencies that contract with the State Department of Social Services to
11 provide child care and development services.

12 (E) The remaining 20% shall be appointed at the discretion of the appointing agencies.

13 ~~(1) The membership of the Child Care Planning and Advisory Council shall be composed of~~
14 ~~20% consumers, 20% child care providers, 20% public agency representatives; 20% community~~
15 ~~representatives; and 20% discretionary, as required by Education Code Section 8499.3.~~

16 ~~(A) “Child care provider” shall mean a person who provides child care services or~~
17 ~~represents persons who provide child care services.~~

18 ~~(B) “Community representative” shall mean a person who represents an agency or~~
19 ~~business that provides private funding for child care services, or who advocates for child care services~~
20 ~~through participation in civic or community-based organizations but is not a child care provider and~~
21 ~~does not represent an agency that contracts with the State Department of Education to provide child~~
22 ~~care and development services.~~

23 ~~(C) “Consumer” shall mean a parent or person who receives, or has received within the~~
24 ~~past 36 months, child care services.~~

1 ~~(D) “Public agency representative” shall mean a person who represents a city, county,~~
2 ~~city and county, or local education agency.~~

3 ~~(2) Members shall be appointed as follows:—~~

4 ~~(A) The Board of Supervisors shall appoint 12 members representing the following~~
5 ~~categories, one each of whom is nominated by an individual member of the Board of Supervisors, and a~~
6 ~~second being nominated by the President of the Board of Supervisors:~~

7 ~~(i) Consumers: The list of qualified individuals for nomination and appointment may~~
8 ~~include members of the following Parents, guardians or caretakers with varied income levels who use~~
9 ~~child care and/or early education services, including but not limited to clients of publicly subsidized~~
10 ~~programs such as CalWORKS, and other child care programs funded through the San Francisco~~
11 ~~Human Services Agency, the California Department of Education, Head Start or Preschool for All;~~

12 ~~—— (ii) Child Care providers: The list of qualified individuals for nomination and~~
13 ~~appointment must include a representative from Head Start and may include members of the following~~
14 ~~Private and subsidized child care providers including, but not limited to, from a private center, from a~~
15 ~~family day care home, a Title 5 program, a school age program, from a Head Start center and from a~~
16 ~~Preschool for All site;~~

17 ~~—— (iii) Discretionary: The list of qualified individuals for nomination and appointment~~
18 ~~must include a representative from one of the county’s Resource and Referral Agencies and may~~
19 ~~include members of the following Representatives from the public at large and/or representatives from~~
20 ~~any of the other categories, or outside of these categories at the discretion of the appointing agencies;~~

21 ~~—— (iv) Community representatives: The list of qualified individuals for nomination and~~
22 ~~appointment may include members of the following Parent advisory councils of public and private~~
23 ~~child care programs; associations of child care providers, family child care providers and Head Start;~~
24 ~~City College of San Francisco, San Francisco State University, public interest organizations including,~~
25 ~~but not limited to, the Child Care Law Center, Low Income Investment Fund, community organizations,~~

~~members of labor organizations and local businesses that fall within the definition of “community representative” as described in Subsection (d)(1)(B) and other community and public agency representatives that deal with child care.~~

~~——— (v) Public Agency Representatives: The list of qualified individuals for nomination and appointment must include representatives from two of the following agencies—the Department of Early Childhood Children, Youth and their Families, Human Services Agency, San Francisco Children and Families First Commission, Community Care Licensing, Department of Public Health, Recreation and Parks Department, Mayor’s Office of Community Investment and San Francisco Housing Authority, or other entities.~~

~~(B) The Board of Education, or County Superintendent of Schools, if the Board of Education delegates the appointment power to her or him, shall nominate twelve (12) members of the Council representing the following categories:~~

~~(i) Consumers: The list of qualified individuals for nomination and appointment may include members of the following—Parents, guardians or caretakers with varied income levels who use child care and/or early education services, including but not limited to clients of publicly subsidized programs such as CalWORKS, and other child care programs funded through the San Francisco Human Services Agency, the California Department of Education, Head Start or Preschool for All;~~

~~——— (ii) Child Care providers: The list of qualified individuals for nomination and appointment must include a representative from San Francisco Unified School District and may include members of the following—Private and subsidized child care providers including, but not limited to, from a private center, from a family day care home, a Title 5 program, a school age program, San Francisco Unified School District, from a Head Start center and from a Preschool for All site;~~

~~——— (iii) Discretionary: The list of qualified individuals for nomination and appointment must include a representative from one of the county’s Resource and Referral Agencies and may~~

1 include members of the following representatives of the public at large and/or representatives from any
2 of the other categories, or outside of these categories at the discretion of the appointing agencies;

3 ~~—— (iv) Community representatives: The list of qualified individuals for nomination and~~
4 ~~appointment may include members of the following Parent advisory councils of public and private~~
5 ~~child care programs; associations of child care providers, family child care providers and Head Start;~~
6 ~~City College of San Francisco, San Francisco State University, public interest organizations including,~~
7 ~~but not limited to, the Child Care Law Center, Low Income Investment Fund community organizations,~~
8 ~~members of labor organizations and local businesses that fall within the definition of “community~~
9 ~~representative” as described in Subsection (d)(1)(B) and other community and public agency~~
10 ~~representatives that deal with child care.~~

11 ~~—— (v) Public Agency Representatives: The list of qualified individuals for nomination and~~
12 ~~appointment must include representative from two of the following agencies—the Department of Early~~
13 ~~Childhood Children, Youth and their Families, Human Services Agency, San Francisco Children and~~
14 ~~Families First Commission, Community Care Licensing, Department of Public Health, Recreation and~~
15 ~~Parks Department, Mayor’s Office of Community Investment and San Francisco Housing Authority, or~~
16 ~~other entities.~~

17 ~~(C) The Board of Supervisors and the Board of Education or the County Superintendent~~
18 ~~of Schools, if the Board of Education delegates the appointment power to her or him, shall jointly~~
19 ~~appoint one member representing any one of the categories listed above.~~

20 ~~—— (3) The respective terms of office of the members of the Child Care Planning and Advisory~~
21 ~~Council who shall hold office on the eighth day of March, 2010, shall expire at noon on that date and~~
22 ~~the 25 persons appointed as members of the Council pursuant to this ordinance shall succeed to those~~
23 ~~offices on the eighth day of March, 2010. In order to provide for staggered terms, the initial terms of~~
24 ~~those 25 persons shall be designated by lot so that 6 members appointed by the Board of Supervisors~~
25 ~~shall serve a two-year term and 6 members shall serve a three-year term, and 6 members appointed by~~

1 ~~the Board of Education or the Superintendent of Schools shall serve a two-year term and 6 members~~
2 ~~shall serve a three-year term. The one member jointly appointed by the Board of Supervisors and the~~
3 ~~Board of Education or the Superintendent of Schools shall serve a three-year term. Thereafter, all~~
4 ~~terms shall be for three years.~~

5 ~~Members may serve for up to two consecutive terms, and may be re-appointed after one year off~~
6 ~~the Council. No terms served prior to March 8, 2010 shall be counted towards the term limit for~~
7 ~~Council members. A member appointed to serve a term of two years or less, including the initial term~~
8 ~~provided in the preceding paragraph, shall not be deemed to have served a full term for purposes of~~
9 ~~this term limit.~~

10 ~~—(4) Where a member, prior to expiration of his or her term, ceases to retain the status~~
11 ~~which qualified him or her for appointment to the Council, the membership shall be terminated and~~
12 ~~there shall be a vacancy on the Council. In the event a vacancy occurs during the term of office of any~~
13 ~~member, a successor shall be appointed to fill the vacancy for the remainder of the term, consistent~~
14 ~~with the process and requirements of the previous appointee.~~

15 ~~—(54) Any member who misses four meetings within a twelve-month period without the~~
16 ~~express approval of the Council, shall be deemed to have resigned from the Council.~~

17 ~~—(6) The members of the Council shall elect a Chair of the Council and shall promulgate~~
18 ~~such rules or regulations as are necessary for the conduct of its business under this Section.~~

19 ~~(f) Compensation. Upon approval by the Council, each member who is not otherwise~~
20 ~~compensated to attend meetings may receive a stipend of no more than \$50 per meeting, not to exceed~~
21 ~~\$600 annually, exclusively from funds provided to the Council by the State of California.~~

23 **ARTICLE XXI: IMMIGRANT RIGHTS COMMISSION**

24 **SEC. ~~5.201~~ 5.21-1. IMMIGRANT RIGHTS COMMISSION.**

25 **(a) Establishment.** There shall be established an Immigrant Rights Commission

(hereinafter "Commission") as an Advisory Body as defined in Section 5.1-1. The Commission shall advise and make recommendations to the Board of Supervisors and the Mayor about issues affecting immigrants residing in San Francisco.

(b) **Membership.** The Commission shall consist of 15 voting members. ~~Eleven members shall be appointed by the~~ The Board of Supervisors shall appoint 11 members and the Mayor shall appoint four members. At least ~~eight members~~ six members appointed by the Board of Supervisors and two members appointed by the Mayor shall be immigrants to the United States ~~who are appointed in accordance with Section 4.101 of the Charter.~~ Members appointed to the Commission shall have a demonstrated knowledge of and interest in the health, human service, educational, or employment issues that affect immigrants residing in San Francisco and shall reflect the geographic, ethnic, and sexual orientation populations of San Francisco.

~~(c) **Terms of Office.** The term of each member of the Commission shall be two years; provided, however, that the members first appointed shall, by lot, classify their terms so that eight members shall serve a term of three years and seven members shall serve a term of two years. Members shall serve at the pleasure of the appointing authority.~~

~~In the event a vacancy occurs during the term of office of any member, a successor shall be appointed to complete the unexpired term of the office vacated in a manner similar to that for the initial member.~~

~~At the initial meeting of the Commission and yearly thereafter, the Commission members shall select such officer as deemed necessary by the Commission.~~

(d) **Powers and Duties.** The Commission shall have the power and duty to:

(1) Make recommendations to the Board of Supervisors and the Mayor to further involve immigrants in local governmental processes;

(2) Hold at least one public hearing annually to obtain input from the immigrant community about programs, policies, and issues that relate to immigrants who are residents of

1 the City ~~and County, and report recommendations developed from the public hearings to the Board of~~
2 ~~Supervisors and the Mayor;~~

3 (3) Advise the Board of Supervisors and the Mayor on State and federal legislation
4 related to immigrants;

5 (4) ~~Cooperate with and Mmake~~ recommendations to other City ~~and County~~
6 departments, agencies, and commissions that administer and enforce regulations relating to
7 health, human services, law enforcement, and human rights that affect immigrants with the
8 aim of improving the coordination of services within the City ~~and County~~;

9 (5) Prepare and submit to the Board of Supervisors and the Mayor an annual
10 report on the review and evaluation of the services and programs in place for immigrants
11 residing in San Francisco, any outstanding needs, and recommendations and plans as to a
12 program for responding to the health, human service, and employment needs of immigrants in
13 a manner that is not duplicative;

14 (6) Develop a plan for outreach to, and education of, the public to increase public
15 awareness of the contributions made by immigrants to the local economy, educational
16 institutions, and other fields in San Francisco, and submit the plan to the Board of Supervisors
17 and the Mayor;

18 (7) Make recommendations to the Board of Supervisors and the Mayor on the
19 participation of the City ~~and County of San Francisco~~ in publicizing and representing the
20 concerns of immigrants in San Francisco within regional and national efforts to protect the
21 rights of immigrants.

22 ~~(e) Progress Review. The Commission shall submit a progress report on the execution of its~~
23 ~~duties to the Board of Supervisors and the Mayor 18 months after the date of adoption of this~~
24 ~~ordinance. The provisions of this ordinance shall remain in effect unless upon review of the progress~~
25 ~~report the Board of Supervisors modifies or terminates the Commission.~~

1
2 **ARTICLE XXII: ANIMAL ADVISORY COUNCIL**

3 [This bracketed note is uncodified. See Section 36 of this ordinance for the source and text of
4 Article XXII.]

5 **ARTICLE XXIII: MISSION BAY TRANSPORTATION IMPROVEMENT FUND ADVISORY**
6 **COMMITTEE COUNCIL**

7 **SEC. 5.23-1. ESTABLISHMENT OF COMMITTEE COUNCIL.**

8 The Board of Supervisors hereby establishes the Mission Bay Transportation
9 Improvement Fund Advisory ~~Committee~~ Council (the "Advisory ~~Committee~~ Council"), as an
10 Advisory Body as defined in Section 5.1-1.

11
12 **SEC. 5.23-2. MEMBERSHIP OF COMMITTEE COUNCIL.**

13 The Advisory ~~Committee~~ Council shall consist of five members, appointed as follows:

14 (a) Seat 1 shall be held by an employee, officer, or other representative of the Golden
15 State Warriors Event Center and Mixed Use Project (the "Event Center"), appointed by the
16 Event Center's owner.

17 (b) Seat 2 shall be held by an employee, officer, or other representative of the
18 University of California at San Francisco, appointed by the Chancellor of the University of
19 California San Francisco or the Chancellor's designee.

20 (c) Seat 3 shall be held by a person who resides in a neighborhood within a half-mile
21 of the Event Center, appointed by the Mayor.

22 (d) Seat 4 shall be held by a representative of a business that operates within a half-
23 mile of the Event Center, appointed by the Mayor.

24 (e) Seat 5 shall be held by a person who resides in a neighborhood within a half-mile
25 of the Event Center, appointed by the Supervisor representing the district in which the Event

Center is located.

At least one of the appointees to Seats 3 and 4 shall be an individual who has served on the Ballpark/Mission Bay Transportation Coordination Committee, or its successor body as designated by the Mayor, for at least six months before being appointed to the Advisory ~~Committee~~-Council.

In addition, there shall be five alternate members of the Advisory ~~Committee~~-Council, one designated for each of the five seats. Each alternate member shall meet the qualifications set forth above for the seat as to which the person is designated to serve as an alternate, and shall be appointed by the appointing authority for that seat.

SEC. 5.23-3. ORGANIZATION AND TERMS OF OFFICE.

(a) Each member and each alternate member shall serve at the pleasure of the member's appointing authority, and notwithstanding the term limits that generally apply to Advisory Bodies under Section 5.1-4, shall serve for the life of the Advisory ~~Committee~~-Council unless removed by the appointing authority.

(b) If a vacancy occurs in any seat on the Advisory ~~Committee~~-Council, the appointing authority for the vacated seat shall appoint a successor to that seat. During the pendency of a vacancy, the alternate member for that seat shall serve as, and have the full powers of, a member of the Advisory ~~Committee~~-Council. In addition, if a member of the Advisory ~~Committee~~-Council is not in attendance at a meeting, the alternate member designated to serve as an alternate for the absent member's seat shall attend that meeting and for purposes of that meeting have the full powers of the absent member.

~~(c) Members of the Advisory Committee shall receive no compensation.~~

~~(d) Any member who misses three regular meetings of the Advisory Committee within a period of 12 months without the express approval of the Advisory Committee at or before each missed meeting~~

1 ~~shall be deemed by operation of law to have resigned from the Advisory Committee ten days after the~~
2 ~~third unapproved absence. The Advisory Committee shall inform the appointing authority of the~~
3 ~~resignation.~~

4 (ec) As provided in Municipal Transportation Agency (MTA) Board of Directors
5 Resolution No. 15-154, the MTA will provide administrative support for the Advisory ~~Committee~~
6 Council.

7
8 **SEC. 5.23-4. DUTIES OF ~~COMMITTEE~~ COUNCIL.**

9 The Advisory ~~Committee~~ Council shall be the central City-sponsored community
10 advisory body charged with providing input to the MTA, the Department of Public Works, and
11 the Police Department ("Other City Departments") and decision-makers regarding allocation of
12 monies in the Mission Bay Transportation Improvement Fund (the "Fund"), established in
13 Administrative Code Section 10.100-364, for Required Uses, as defined in that section. ~~The~~
14 ~~Advisory Committee shall be advisory, as appropriate, to the MTA and the Board of Supervisors.~~ The
15 Advisory ~~Committee~~ Council shall perform the following functions as needed:

16 (a) Collaborate with the MTA, Other City Departments, and the Ballpark/Mission Bay
17 Transportation Coordinating Committee on prioritizing the community improvement measures
18 for Required Uses and identifying implementation details as part of the annual budget
19 process;

20 (b) Recommend to the MTA uses of the Designated Overlapping Event Reserve, as
21 defined in Administrative Code Section 10.100-364;

22 (c) Collaborate with the MTA and the Other City Departments and decision-makers,
23 including the Ballpark/Mission Bay Transportation Coordinating Committee, in the monitoring
24 of the uses of the Fund for the purpose specified in Administrative Code Section 10.100-364;
25 and,

1 (d) Review travel time data collected by the MTA for routes to the Event Center to
2 determine if traffic conditions associated with the Event Center, especially when there are
3 weekday evening overlapping events with large attendance at the Event Center and AT&T
4 Park, should entail additional City actions and expenditures from the Fund or the Designated
5 Overlapping Event Reserve, and make recommendations to the MTA on additional actions
6 and expenditures.

7
8 **SEC. 5.23-5. MEETINGS AND PROCEDURES.**

9 ~~Not less than six months before the date on which the Event Center is anticipated to open as~~
10 ~~determined by the Controller, the Advisory Committee shall hold its inaugural meeting. There shall be~~
11 ~~at least ten days' notice of the inaugural meeting. Notwithstanding Rule 2.21 of the Board of~~
12 ~~Supervisors Rules of Order, which provides that advisory bodies created by the Board shall meet at~~
13 ~~least once every four months, following its inaugural meeting, t~~The Advisory Committee-Council
14 shall hold a regular meeting not less than once every six months until the sunset date set forth
15 in Section 5.23-6. ~~The Advisory Committee shall elect its own officers and may establish rules for its~~
16 ~~own organization and procedures.~~

17
18 **SEC. 5.23-6. SUNSET DATE.**

19 Unless the Board of Supervisors by ordinance extends the term of the Advisory Council~~by an~~
20 ~~ordinance adopted by the Board of Supervisors~~, this Article XXIII shall expire by operation of law,
21 and the Advisory Council~~Committee~~ shall sunset, on June 1, 2031~~terminate, on the date on which the~~
22 ~~Fund expires. Notwithstanding Rule 2.21 of the Board of Supervisors Rules of Order, which provides~~
23 ~~that advisory bodies created by the Board should sunset within three years, the Board intends the~~
24 ~~Advisory Committee to exist for longer than three years. After the expiration of the Advisory~~
25 ~~Committee~~ In that event and after that date, the City Attorney shall cause this Article XXIII to be

1 removed from the Administrative Code.

2
3 **ARTICLE XXIV: BALLOT SIMPLIFICATION COUNCIL**

4 [This bracketed note is uncodified. See Section 38 of this ordinance for the source and text of
5 Article XXIV.]

6 **ARTICLE XXIV: CITY HALL PRESERVATION ADVISORY COMMISSION**

7 **SEC. 5.240. ESTABLISHMENT AND PURPOSE.**

8 ~~There shall be established a City Hall Preservation Advisory Commission for the purpose of~~
9 ~~ensuring that City Hall is maintained and preserved in a manner befitting its historic and architectural~~
10 ~~significance. San Francisco's City Hall is maintained and preserved in a manner befitting its historic~~
11 ~~and architectural significance. San Francisco's City Hall is a national landmark and a valued legacy~~
12 ~~to the people of this City. After its completion in 1915, it suffered a process of gradual alteration and~~
13 ~~degradation until the Loma Prieta earthquake of 1989 forced its temporary closure. Inadequate repair~~
14 ~~and maintenance contributed to the decline. Between 1989 and 2000, in addition to earthquake~~
15 ~~retrofitting, the City did extensive work to repair and refurbish City Hall and to reverse many~~
16 ~~alterations which had compromised the building's historical integrity. This Commission is intended to~~
17 ~~be an advisory body responsible for ensuring that the building's historical character and beauty are~~
18 ~~preserved henceforth and that the facilities are maintained according to the highest standard and not~~
19 ~~allowed to fall into disrepair.~~

20
21 **SEC. 5.241. MEMBERSHIP AND ORGANIZATION.**

22 ~~(a) The Commission shall consist of five members appointed by the Mayor, and confirmed by a~~
23 ~~majority vote of the Board of Supervisors and serving at his or her pleasure. The Mayor shall~~
24 ~~designate three of his or her initial appointments to serve for two-year terms and two for four-year~~
25 ~~terms. Thereafter, all members shall serve for four-year terms. The terms are to commence on the date~~

1 ~~of the first meeting of the Commission, which may not occur until all five members have been~~
2 ~~appointed.~~

3 ~~(b) At least one member of the Commission shall have documented expertise in the area of~~
4 ~~building maintenance and repair. At least one member shall have documented expertise in the area of~~
5 ~~historic building preservation. At least one member shall have documented expertise in the history of~~
6 ~~City Hall.~~

7 ~~(c) Vacancies shall be filled by the Mayor, and confirmed by the Board, for the remainder of~~
8 ~~the term. The Commission shall, at its initial meeting and annually thereafter, elect one of its members~~
9 ~~to chair the Commission.~~

10 ~~(d) Services of the members of the Commission shall be voluntary and members will serve~~
11 ~~without compensation.~~

12 ~~(e) The Director of Administrative Services, or his/her designee, shall attend meetings of the~~
13 ~~Commission and provide staff support.~~

14
15 **~~SEC. 5.242. DUTIES OF THE COMMISSION.~~**

16 ~~The Commission shall have the following duties.~~

17 ~~(a) Conduct meetings as necessary, but not less than once monthly;~~

18 ~~(b) Conduct public hearings and advise the Mayor, the Board of Supervisors, the Planning~~
19 ~~Commission, the Landmarks Preservation Advisory Board, and the Director of Administrative Services,~~
20 ~~as appropriate, on the following matters:~~

21 ~~— (1) budgetary issues related to the operation, maintenance, repair and preservation of City~~
22 ~~Hall;~~

23 ~~— (2) requests for use, modification, or alteration of City Hall facilities;~~

24 ~~— (3) maintenance and operation of City Hall consistent with its stature and dignity as a~~
25 ~~national landmark and as the seat of City government;~~

1 ~~— (4) displays of historical significance in the South Light Court and in other areas of City~~
2 ~~Hall;~~

3 ~~— (5) improvements and acquisitions which would enhance the historical character of City~~
4 ~~Hall;~~

5 ~~— (6) any other matter affecting the use, operation or maintenance of City Hall.~~

6 ~~(c) Solicit donations to the City for the benefit of City Hall; both of a financial nature as well as~~
7 ~~of artworks and historically significant artifacts which would be appropriate for display. Any such~~
8 ~~gifts shall be subject to the applicable approval and acceptance processes as set forth in the Charter.~~

9 ~~(d) Keep records of acquisitions, donations, modifications, major repairs and Commission~~
10 ~~recommendations and compile an annual report to be submitted to the Mayor and the Board of~~
11 ~~Supervisors.~~

12 **~~SEC. 5.243. REFERRAL TO THE COMMISSION.~~**

13 ~~(a) The Director of Administrative Services shall promptly notify the Commission and provide~~
14 ~~opportunity for comment before he or she adopts policies or procedures affecting the operation or~~
15 ~~maintenance of City Hall, and before he or she makes or approves alterations to City Hall.~~

16 ~~(b) The secretary of the Landmarks Preservation Advisory Board shall notify the Commission~~
17 ~~within ten days of receipt of an application for a Certificate of Appropriateness affecting City Hall.~~
18 ~~The secretary shall provide all relevant information, including the date and time of the hearing. Any~~
19 ~~recommendations which the Commission makes shall be included in the record of the application by the~~
20 ~~Landmarks Preservation Advisory Board.~~

21
22 **~~SEC. 5.244. STANDARDS FOR PRESERVATION AND RESTORATION.~~**

23 ~~In carrying out its duties, the Commission shall be guided by accepted standards for~~
24 ~~restoration, preservation, and maintenance of historic structures, including, where applicable and~~
25 ~~feasible, standards for historic preservation, maintenance, recordation, and documentation of~~

1 ~~landmarks promulgated by the United States Department of the Interior or its successor.~~

2
3 **ARTICLE XXVI: ~~SOUTH OF MARKET~~ SOMA COMMUNITY PLANNING ADVISORY**
4 **COMMITTEE COUNCIL**

5 **SEC. 5.26-1. CREATION OF COMMITTEE COUNCIL.**

6 The Board of Supervisors hereby establishes the ~~South of Market~~ SOMA Community
7 Planning Advisory ~~Committee Council~~ ("~~Committee Council~~") as an Advisory Body as defined in
8 Section 5.1-1.

9
10 **SEC. 5.26-2. MEMBERSHIP AND QUALIFICATIONS.**

11 (a) The ~~Committee Council~~ shall consist of 11 voting members. Together, the members
12 of the ~~Committee Council~~ shall represent the cultural diversity of the East SoMa, Central SoMa,
13 and Western SoMa neighborhoods, and ideally will include renters of residences in the
14 neighborhoods, resident homeowners in the neighborhoods, low-income residents, local
15 merchants, and representatives of established neighborhood groups within the East SoMa,
16 Central SoMa, and Western SoMa Plan Areas. All members shall live, work, or own a
17 business within the boundaries of the East SoMa, Central SoMa, or Western SoMa Area
18 Plans. When fully constituted, at least three members shall live within the boundaries of the
19 East SoMa, Central SoMa, or Western SoMa Area Plans.

20 (b) Seats 1, 2, 3, 4, 5, 6, and 7 shall be held by individuals nominated by the District 6
21 Supervisor and appointed by the Board of Supervisors.

22 (1) Seat 1 shall be held by an individual who has small business expertise.

23 (2) Seat 2 shall be held by an individual with familiarity and experience in
24 infrastructure and/or safety, as relating to pedestrians, bicyclists, or transit.

25 (3) Seat 3 shall be held by an individual who has familiarity and experience in

1 historic preservation and/or cultural preservation.

2 (4) Seat 4 shall be held by an individual who has familiarity and experience in
3 development and/or management of affordable housing.

4 (5) Seat 5 shall be held by an individual who provides direct social services to
5 SoMa residents.

6 (6) Seats 6 and 7 shall have no additional required qualifications.

7 (c) Seats 8, 9, 10, and 11 shall be held by individuals appointed by the Mayor.

8 (1) Seat 8 shall be held by an individual with a record of advocacy for parks,
9 recreation, and open space in San Francisco.

10 (2) Seat 9 shall be held by an individual who has expertise in employment
11 development or represents labor interests.

12 (3) Seats 10 and 11 shall have no additional required qualifications.

13 (d) There shall be 11 alternate members of the ~~Committee~~Council, one designated for
14 each of the 11 seats. Alternate members shall be appointed for their respective seats in the
15 same manner prescribed in subsections (b) and (c). ~~The~~ It is preferable but not required for the
16 ~~alternate members of the Committee-Council ideally will to~~ meet the requirements set forth in
17 subsections (b) and (c) for their respective seats, but in any event must meet the standards
18 set for voting members in subsection (a). An alternate member shall temporarily serve on the
19 ~~Committee-Council~~ as a voting member when there is a vacancy in the seat, or when the seat is
20 filled but the member holding the seat is absent from the meeting; the same is true for an
21 alternate member temporarily serving on a subcommittee or working group.

22 ~~(e) Each member and each alternate member of the Committee shall serve at the pleasure of~~
23 ~~their respective appointing authority and may be removed by their appointing authority at any time.~~

24
25 **SEC. 5.26-3. ORGANIZATION ~~AND TERMS OF OFFICE.~~**

1 ~~(a) Members of the Committee shall serve three-year terms; provided, however, that the term of~~
2 ~~the initial appointees, including alternates, in Seats 1, 2, 7, and 8 shall expire at noon on August 1,~~
3 ~~2021; the term of the initial appointees in Seats 3, 4, 9, and 10, including alternates, shall expire at~~
4 ~~noon on August 1, 2022; and the term of the initial appointees in Seats 5, 6, and 11, including~~
5 ~~alternates, shall expire at noon on August 1, 2023. There shall be no limits on the number of terms a~~
6 ~~member may serve on the Committee, as either a voting member or an alternate.~~

7 ~~(b) Service on the Committee shall be voluntary and members shall receive no compensation~~
8 ~~from the City.~~

9 ~~(ea)~~ Any voting member who misses three regular meetings of the Committee Council
10 within a six-month period without the express approval of the Committee Council by majority
11 vote at or before each missed meeting shall be deemed to have resigned from the Committee
12 Council 10 days after the third unapproved absence. The Committee Council shall inform the
13 Clerk of the Board of Supervisors in the case of a Board appointee, and the Mayor's Office in
14 the case of a mayoral appointee, of any such resignation. Any absence of a voting member of
15 the Committee Council shall be deemed approved by the Committee Council, and shall not count
16 as an unapproved absence, if the alternate member of the Committee Council designated for
17 the seat attends a meeting in place of the absent voting member. Administrative Code Section
18 5.1-8 shall not apply to the Council.

19 ~~(db)~~ The Planning Department, ~~in consultation as appropriate with other members of the~~
20 ~~Interagency Planning and Implementation Committee described in Chapter 36 of the Administrative~~
21 ~~Code,~~ shall provide expertise to the Committee Council as appropriate. The Planning
22 Department shall provide administrative and clerical support for the Committee Council.

23 24 **SEC. 5.26-4. DUTIES.**

25 (a) The general purpose of the Committee Council shall be to provide input to the Board

1 of Supervisors, the Mayor, and City agencies regarding the implementation of the Central
2 SoMa Plan, Western SoMa Area Plan, and East SoMa Area Plan. The City agencies to which
3 the ~~Committee~~Council may provide input include, but are not limited to, the Planning
4 Department, the Mayor's Office of Housing and Community Development, the Office of
5 Economic and Workforce Development, the Municipal Transportation Agency, the Recreation
6 and Park Department, the Department of Public Works, and the Arts Commission, ~~and the~~
7 ~~Interagency Planning and Implementation Committee~~. The ~~Committee's~~Council's prioritization of
8 revenue expenditures described in subsection (b) below that are collected from development
9 projects in the Central SoMa Plan Area shall be consistent with the Central SoMa
10 Implementation Program document.

11 (b) The ~~Committee~~Council may provide advice regarding the following:

12 (1) Prioritization of community improvement projects and other public investments
13 funded by the Central SoMa Infrastructure Impact Fund, established in Planning Code Section
14 433.4, including review of any proposed In-Kind Agreements;

15 (2) Prioritization of community improvement projects and other public investments
16 related to transit, parks and recreation, complete streets, and environmental sustainability that
17 are funded by proceeds of the Central SoMa Community Facilities District special tax, as
18 described in Planning Code Section 434;

19 (3) Prioritization of community improvement projects and other public investments
20 funded with Eastern Neighborhoods Impact Fee revenues collected from development
21 projects within East SoMa, Central SoMa, and Western SoMa pursuant to Planning Code
22 Section 423, including review of any proposed In-Kind Agreements;

23 (4) Proposed revisions or updates to the Central SoMa Implementation Program
24 Document;

25 (5) Proposed revisions to the sections of the Planning Code or other Codes that

1 are related to implementation of the Central SoMa Plan, Western SoMa Area Plan, and East
2 SoMa Area Plan; and

3 (6) Monitoring implementation of the Central SoMa Plan, Western SoMa Area
4 Plan, and East SoMa Area Plan.

5 (c) The ~~Committee~~Council also may provide advice on the following issues regarding
6 development projects and proposals within the boundaries of the East SoMa Area Plan,
7 Central SoMa Plan, or Western SoMa Area Plan, or within 0.25 miles of the boundaries of
8 said area plans but outside the boundaries of the Showplace Square/Potrero Hill, Mission,
9 Central Waterfront, and Market and Octavia Area Plans:

10 (1) Individual development proposals;

11 (2) Compliance by individual development projects with specific conditions of
12 project approvals;

13 (3) Design and programming of open spaces, including Privately-Owned Public
14 Open Spaces (POPOS); and

15 (4) Development proposals for public properties.

16 (d) City agencies may seek input from the ~~Committee~~Council on policy matters
17 regarding land use and zoning changes, capital improvement plans, and other activities that
18 implement the Central SoMa Plan, Western SoMa Area Plan, and East SoMa Area Plan.

19 (e) The ~~Committee~~Council shall collaborate with the Planning Department and relevant
20 city agencies in monitoring implementation of the Central SoMa Plan, Western SoMa Area
21 Plan, and East SoMa Area Plan at approximately every fifth year, in coordination with the
22 duties required by this Section 5.26-4 and Administrative Code Section 10.E.5.1 and provide
23 input to Plan Area monitoring efforts for required time-series reporting.

24 (f) The ~~Committee~~Council shall coordinate with the SoMa Community Stabilization
25 Fund Community Advisory ~~Committee~~Council established in Administrative Code Chapter 5,

Article XXVII, when providing advice on matters within the programmatic jurisdiction of both committees.

~~SEC. 5.26-5. MEETINGS AND PROCEDURES.~~

~~(a) The Board of Supervisors and Mayor shall make initial appointments to the Committee by no later than three months after the effective date of the ordinance in Board File No. 181215 establishing the Committee. The Committee shall hold its inaugural meeting not more than 30 days after voting members have been appointed to six seats. There shall be at least 10 days' notice of the inaugural meeting. Following the inaugural meeting, the Committee shall hold a regular meeting not less than once every three months until the sunset date set forth in Section 5.26-6.~~

~~(b) The Committee shall elect its officers and may establish bylaws and rules for its organization and procedures. The Committee may establish subcommittees or working groups. Each such subcommittee or working group shall include at least two voting Committee members, but may also include other individuals selected by the Committee who are not voting members of the Committee.~~

~~SEC. 5.26-56. SUNSET.~~

Unless the Board of Supervisors by ordinance extends the term of the ~~Committee~~ Council, this Article XXVI, and hence the ~~Committee~~ Council, shall expire by operation of law, and the ~~Committee~~ Council shall ~~terminate sunset~~, on ~~January 1, 2035~~ June 1, 2030. After that date, the City Attorney shall cause this Article XXVI to be removed from the Administrative Code. ~~Notwithstanding Rule 2.21 of the Board of Supervisors Rules of Order, which provides that advisory bodies created by the Board should sunset within three years, the Board intends the Committee to exist for longer than three years.~~

**ARTICLE XXVII: SOMA COMMUNITY STABILIZATION FUND COMMUNITY ADVISORY
COMMITTEE COUNCIL**

1 **SEC. 5.27-1. DUTIES.**

2 (a) The SOMA Community Stabilization Fund Community Advisory ~~Committee~~Council
3 (~~Committee~~Council), *an Advisory Body as defined in Section 5.1-1*, shall advise the Mayor's
4 Office of Housing and Community Development ("MOHCD"), other City agencies, and the
5 Board of Supervisors regarding the following:

6 (1) Administration of the SOMA Community Stabilization Fund described in Section
7 418.7 of the Planning Code;

8 (2) Prioritization of funding for social services related to cultural preservation that
9 are funded by proceeds of the Central SoMa Community Facilities District special tax, as
10 defined in Planning Code Section 434 and the Central SoMa Implementation Program;

11 (3) Prioritization of community improvement projects and other public investments
12 funded by the Central SoMa Community Services Facilities Fund, established in Planning
13 Code Section 432.4;

14 (4) Expenditure of affordable housing fees collected pursuant to Planning Code
15 Section 415, and Jobs-Housing Linkage Fees collected pursuant to Planning Code Section
16 413, generated from development projects within the boundaries of the East SoMa, Central
17 SoMa, or Western SoMa Area Plans, or within 0.25 miles of the boundaries of said area plans
18 but outside the boundaries of the Showplace Square/Potrero Hill, Mission, Central Waterfront,
19 and Market and Octavia Area Plans; and

20 (5) Expenditure of monies in the 706 Mission Community Development Fund
21 pursuant to Administrative Code Section 10.100-7.

22 (b) The ~~Committee~~Council shall collaborate with the Planning Department and relevant
23 city agencies in monitoring implementation of the Central SoMa Plan, Western SoMa Area
24 Plan, and East SoMa Area Plan at approximately every fifth year, in coordination with the
25 duties required by this Section 5.27-1 and Administrative Code Chapter 10E; and provide

1 input to Plan Area monitoring efforts for required time-series reporting.

2 (c) The ~~Committee~~Council shall develop annual recommendations to MOHCD on the
3 Expenditure Plan referenced in Section 418.5(d) of the Planning Code.

4 (d) The ~~Committee~~Council shall provide advice to the Recreation and Park Department,
5 the Recreation and Park Commission, and the Board of Supervisors regarding the
6 expenditure of funds in the 706 Mission Open Space Fund pursuant to Administrative Code
7 Section 10.100-7. In calendar years 2023, 2024, and 2025, the ~~Committee~~Council shall hold
8 hearings at least quarterly to provide recommendations to the Recreation and Park
9 Department regarding expenditures of monies in the 706 Mission Open Space Fund and to
10 monitor the Department's expenditures from that Fund.

11 12 **SEC. 5.27-2. MEMBERSHIP.**

13 (a) The ~~Committee~~Council shall be composed of seven voting members appointed by
14 the Board of Supervisors. The Board of Supervisors shall appoint one alternate member of
15 the ~~Committee~~Council for each of the seats of the seven voting members. An alternate
16 member shall temporarily serve on the ~~Committee~~Council as a voting member when there is a
17 vacancy in the seat or when the seat is filled but the individual holding the seat is absent from
18 the meeting; the same holds true for an alternate member temporarily serving on a
19 subcommittee or working group.

20 (b) No fewer than two voting members and two alternate members shall live within the
21 boundaries of the East SoMa, Central SoMa, or Western SoMa Area Plans. Taken as a
22 whole, the ~~Committee~~Council shall meet the membership requirements set forth below. Taken
23 as a whole, it is preferable but not required for the alternate members of the ~~Committee~~Council
24 ~~would ideally to~~ meet these requirements. A single voting member or, for alternates, a single
25 alternate member, may fulfill more than one of these requirements. Each voting member and

each alternate member shall satisfy at least one of these requirements.

(1) One member representing low-income residents of SOMA.

(2) One member who has expertise in employment development and/or represents labor.

(3) One member who is a senior or disabled resident of SOMA.

(4) One member with affordable housing expertise and familiarity with the SOMA neighborhood.

(5) One member who represents an arts or cultural organization or a cultural district in SOMA.

(6) One member who provides direct services to SOMA residents.

(7) One member who has small business expertise and a familiarity with the SOMA neighborhood.

(8) One member who is a youth or who represents a youth-development organization.

~~(c) Each member and each alternate member of the Committee shall serve at the pleasure of their appointing authority and may be removed by their appointing authority at any time.~~

SEC. 5.27-3. ORGANIZATION AND TERMS OF OFFICE.

(a) Notwithstanding the term limits that generally apply to Advisory Bodies under Section 5.1-4, the voting members of the ~~Committee~~ Council shall be appointed for a term of ~~three~~four years. ~~Voting members and~~ may serve no more than two consecutive terms. ~~Service for two or more years of a term shall be deemed a full four-year term. No member having served two consecutive terms may serve on the Council until at least three years after the expiration of the second successive term. For the purpose of this term limit, a part of a term that exceeds 18 months shall count as a full term; a part of a term that is 18 months or less shall not. Notwithstanding the preceding sentence, the~~

1 current term of any person serving on the Council on January 1, 2027, shall count as a full term if the
2 person serves more than 18 months of that term. Terms completed on or before December 31, 2026,
3 shall not count as a term for the purpose of the consecutive term limit.

4 ~~(b) Annually, the Committee shall select a chair and such other officer or officers as it deems~~
5 ~~appropriate.~~

6 ~~(c) The Committee may promulgate such rules or regulations as are necessary or appropriate~~
7 ~~for the conduct of its business.~~

8 ~~(bd) In the event a vacancy occurs, a successor shall be appointed by the Board of Supervisors~~
9 ~~to fill the vacancy consistent with the requirements of Section 5.27-2. When a vacancy occurs for any~~
10 ~~reason other than the expiration of a term of office, the appointee to fill such vacancy shall hold office~~
11 ~~for the unexpired term of the appointee's predecessor.~~ Any voting member who misses four
12 meetings within a twelve-month period, without the approval of the Committee Council by
13 majority vote, shall be deemed to have resigned from the Committee Council. The Committee
14 Council shall inform the Clerk of the Board of Supervisors of any such resignation. Any
15 absence of a voting member of the Committee Council shall be deemed approved by the
16 Committee Council, and shall not count as an unapproved absence, if the alternate member of
17 the Committee Council designated for the seat attends a meeting in place of the absent voting
18 member. Administrative Code Section 5.1-8 shall not apply to the Council.

20 **SEC. 5.27-4. IMPLEMENTATION AND PROCEDURES.**

21 (a) MOHCD shall provide administrative and clerical support to the Committee Council.

22 (b) The Committee Council shall coordinate with the South of Market Community
23 Planning Advisory Committee Council established in Administrative Code Chapter 5, Article
24 XXVI, when providing advice on matters within the programmatic jurisdiction of both
25 committees.

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ARTICLE XXVIII: CHILDREN AND FAMILIES FIRST COMMISSION

ARTICLE XXIX: INCLUSIONARY HOUSING TECHNICAL ADVISORY ~~COMMITTEE~~

COUNCIL

The Board of Supervisors hereby establishes the Inclusionary Housing Technical Advisory ~~Committee~~ Council (the “Advisory ~~Committee~~ Council”) ~~of the City and County of San Francisco as an Advisory Body as defined in Section 5.1-1.~~

The Board of Supervisors intends that the economic feasibility analysis required by Planning Code Section 415.10 shall be prepared through a transparent and inclusive public process that will include the Advisory ~~Committee~~Council. The feasibility study inputs and assumptions should be based on documented and verifiable costs of housing development

1 over the full course of a business cycle.

2
3 **SEC. 5.29-3. MEMBERSHIP.**

4 The Advisory ~~Committee~~Council shall consist of eight members. All members shall
5 have experience and expertise in development finance. The Board of Supervisors shall
6 appoint members to Seats 1 through 4, and the Mayor shall appoint members to Seats 5
7 through 8.

8
9 **SEC. 5.29-4. ORGANIZATION AND TERMS OF OFFICE.**

10 (a) ~~Each member shall serve at the pleasure of the member's appointing authority, and may be~~
11 ~~removed by their appointing officer at any time for any reason. Each member appointed to the~~
12 ~~Advisory Committee shall serve for an unlimited term. The Controller shall provide notice to the Board~~
13 ~~of Supervisors and the Mayor before preparing the Economic Feasibility Analysis in Planning Code~~
14 ~~Section 415.10, and the appointing authorities shall thereafter make appointments to the Advisory~~
15 ~~Council to provide advice regarding the Analysis. Members' terms begin on the date the Controller~~
16 ~~provides the notice in the preceding sentence and terminate on the date the Controller provides the~~
17 ~~Analysis to the Board of Supervisors.~~

18 (b) ~~If a vacancy occurs in any seat on the Advisory Committee, the appointing authority for the~~
19 ~~vacated seat shall appoint a successor to that seat.~~

20 (c) ~~Members of the Advisory Committee shall receive no compensation from the City for~~
21 ~~serving on the Advisory Committee.~~

22 (db) ~~Any member who misses three regular meetings of the Advisory Committee without the~~
23 ~~express approval of the Advisory Committee at or before each missed meeting shall be deemed by~~
24 ~~operation of law to have resigned from the Advisory Committee ten days after the third unapproved~~
25 ~~absence. The Advisory Committee shall inform the appointing authority of the resignation.~~

1 ~~(e)~~ The Controller's Office shall provide clerical and administrative support and staffing
2 for the Advisory ~~Committee~~ Council.

3
4 **SEC. 5.29-5. DUTIES.**

5 ~~(a)~~ The Advisory ~~Committee~~ Council shall provide input and advice to the Controller, the
6 Mayor, the Planning Department, and the Board of Supervisors regarding the content of the
7 economic feasibility analysis required by Planning Code Section 415.10. The Advisory
8 ~~Committee~~ Council shall hold technical workshops to evaluate the fiscal feasibility of various
9 inclusionary housing fees and on-site and off-site alternatives, including evaluating a range of
10 project types, inclusionary percentages, and resident income levels, and assessing whether
11 fiscal feasibility varies within the City across different neighborhoods. ~~The Advisory Committee~~
12 ~~may, but is not required to, prepare written reports.~~

13 ~~(b) All City departments, commissions, boards, and agencies shall cooperate with the Advisory~~
14 ~~Committee in conducting its business.~~

15
16 **SEC. 5.29-6. MEETINGS AND PROCEDURES.**

17 The Advisory ~~Committee~~ Council shall hold a regular meeting not less than once every
18 four months ~~until the sunset date set forth in Section 5.29-7~~ during the period described in Section
19 5.29-4(a). Notwithstanding any other provision of this Section 5.29 or Planning Code section
20 415.10, the Advisory ~~Committee~~ Council shall convene no later than January 1, 2026.

21
22 **SEC. 5.29-7. SUNSET.**

23 The Board of Supervisors and Mayor intend the Advisory ~~Committee~~ Council to last until
24 the enactment of an ordinance removing this Article XXIX from the Administrative Code.
25 Notwithstanding Rule 2.21 of the Board of Supervisors Rules of Order, which provides that

1 advisory bodies created by the Board should sunset within three years, the Board intends the
2 Advisory ~~Committee~~ Council to exist for longer than three years.

3
4 **ARTICLE XXX: ~~AFRICAN AMERICAN ARTS AND CULTURAL DISTRICT COMMUNITY~~**
5 **ADVISORY COMMITTEE JUVENILE JUSTICE COORDINATING COUNCIL**

6 **SEC. 5.30-1. ~~CREATION OF COMMITTEE.~~**

7 ~~The Board of Supervisors hereby establishes the African American Arts and Cultural District~~
8 ~~Community Advisory Committee (the "Committee").~~

9
10 **SEC. 5.30-2. ~~MEMBERSHIP.~~**

11 ~~The Committee shall consist of seven voting members, nominated by the Supervisor for District~~
12 ~~10 and appointed by the Board of Supervisors. Members of the Committee shall reside within the~~
13 ~~boundaries of the African American Arts and Cultural District (the "District"), as described in Section~~
14 ~~107.3 of this Code, and shall have the following additional qualifications:~~

15 ~~(a) Seat 1 shall be held by an owner of a business located in the District.~~

16 ~~(b) Seat 2 shall be held by an employee of a nonprofit organization located in the District.~~

17 ~~(c) Seat 3 shall be held by a person with knowledge or expertise regarding the history or~~
18 ~~culture of the District.~~

19 ~~(d) Seat 4 shall be held by a youth between ages of 14 to 24, inclusive, at the time of~~
20 ~~appointment.~~

21 ~~(e) No additional qualifications are required of the members holding Seats 5, 6, and 7.~~

22
23 **SEC. 5.30-3. ~~ORGANIZATION AND TERMS OF OFFICE.~~**

24 ~~(a) Members of the Committee shall serve at the pleasure of the Board of Supervisors and may~~
25 ~~be removed by the Board at any time. Each member may remain on the Committee until the~~

1 ~~termination of the Committee under Section 5.30-6, unless removed by the Board. A seat that is vacant~~
2 ~~on the Committee shall be filled by the Board, following nomination of the member to fill the vacancy~~
3 ~~by the Supervisor for District 10.~~

4 ~~(b) Service on the Committee shall be voluntary and members shall receive no compensation~~
5 ~~from the City.~~

6 ~~(c) Any member who misses three regular meetings of the Committee within a six-month period~~
7 ~~without the express approval of the Committee at or before each missed meeting shall be deemed to~~
8 ~~have resigned from the Committee 10 days after the third unapproved absence. The Committee shall~~
9 ~~inform the Clerk of the Board of Supervisors of any such resignation.~~

10 ~~(d) The Mayor's Office of Housing and Community Development shall provide administrative~~
11 ~~support to the Committee. All City officials and agencies shall cooperate with the Committee in the~~
12 ~~performance of its functions.~~

13
14 **~~SEC. 5.30-4. DUTIES.~~**

15 ~~(a) The Committee shall advise the Board of Supervisors, the Mayor, and the Mayor's Office of~~
16 ~~Housing and Community Development regarding strategies to support and preserve the unique culture~~
17 ~~and heritage of the African American Arts and Cultural District, and shall provide input to all City~~
18 ~~agencies in the preparation of reports required under Section 107A.2 of this Code.~~

19 ~~(b) The Committee shall also advise the Board of Supervisors, the Mayor, and the Mayor's~~
20 ~~Office of Housing and Community Development regarding any potential need to re-examine the~~
21 ~~boundaries of the District.~~

22
23 **~~SEC. 5.30-5. MEETINGS AND PROCEDURES.~~**

24 ~~(a) The Committee shall hold its inaugural meeting not more than 60 days after the Board has~~
25 ~~appointed at least four members to the Committee. There shall be at least 10 days' public notice of the~~

1 ~~inaugural meeting. Following the inaugural meeting, the Committee shall hold a regular meeting not~~
2 ~~less than four times a year until the sunset date set forth in Section 5.30-6.~~

3 ~~(b) The Committee shall elect its officers and may establish bylaws and rules for its~~
4 ~~organization and procedures.~~

5
6 **SEC. 5.30-6. SUNSET.**

7 ~~Unless the Board of Supervisors by ordinance extends the term of the Committee, and~~
8 ~~notwithstanding Board of Supervisors Rule 2.21, this Article XXX shall expire by operation of law and~~
9 ~~the Committee shall terminate on June 30, 2028. After that date, the City Attorney is authorized to~~
10 ~~cause this Article XXX to be removed from the Administrative Code.~~

11
12 **SEC. 5.30-1. CREATION OF JUVENILE JUSTICE COORDINATING COUNCIL.**

13 Pursuant to Welfare and Institutions Code Section 749.22, there is hereby established the
14 Juvenile Justice Coordinating Council ("Council") as an Advisory Body as defined in Section 5.1-1.

15
16 **SEC. 5.30-2. PURPOSE.**

17 The purpose of the Council is to develop and implement a continuum of county-based responses
18 to juvenile crime and develop a comprehensive, multiagency juvenile justice plan identifying resources
19 and strategies for the prevention, intervention, supervision, treatment, and incarceration of juvenile
20 offenders, including strategies for locally or regionally based out-of-home placement options.

21
22 **SEC. 5.30-3. POWERS AND DUTIES.**

23 The Council shall carry out all powers and duties required or authorized by Welfare and
24 Institutions Code Sections 749.2 through 749.27, as amended from time to time, including developing a
25 comprehensive multi-agency juvenile justice plan. The plan shall include all of the following, as

1 required by Welfare and Institutions Code Section 749.22:

2 (a) An assessment of existing law enforcement, probation, education, mental health, health,
3 social services, drug and alcohol, and youth services resources that serve at-risk juveniles, juvenile
4 offenders, and their families;

5 (b) Identification and prioritization of neighborhoods, schools, and other areas of the City that
6 face a significant public safety risk from juvenile crime, such as gang activity, daylight burglary, late-
7 night robbery, vandalism, truancy, controlled substance sales, firearm-related violence, and juvenile
8 alcohol use within the City;

9 (c) A local action plan to marshal, coordinate, and improve resources for the purpose of
10 reducing juvenile crime and delinquency;

11 (d) Development of information and intelligence-sharing systems to ensure coordination among
12 City agencies and to measure program success; and

13 (e) Identification of outcome measures, including but not limited to: rates of juvenile arrests;
14 successful completion of probation; and compliance with restitution orders and community service
15 requirements.

16
17 **SEC. 5.30-4. MEMBERSHIP.**

18 The Council shall consist of up to 20 members, and shall include the following members
19 required by Welfare and Institutions Code Section 749.22:

20 (a) Chief Juvenile Probation Officer, who shall serve as Chair of the Council;

21 (b) One representative from each of the following:

22 (1) District Attorney's Office;

23 (2) Public Defender's Office;

24 (3) Sheriff's Office;

25 (4) Board of Supervisors;

1 (5) Human Services Agency;

2 (6) Department of Public Health;

3 (7) Police Department; and

4 (8) San Francisco Unified School District;

5 (c) The Chief Juvenile Probation Officer shall also appoint each of the following:

6 (1) A community-based drug and alcohol program;

7 (2) A community representative; and

8 (3) Up to nine representatives from other City departments, Commissions, Advisory
9 Bodies, and nonprofit community-based organizations that provide services to minors.

10 A quorum of the Council shall consist of a majority of the number of members in office at the
11 time.

12 Notwithstanding that the Council is an Advisory Body, public members of the Council shall be
13 subject to the provisions of Section 5.1-2 regarding terms and term limits.

14 The Chief Juvenile Probation Officer or designee shall inform the Board of Supervisors of the
15 community-based organizations that participate on the Council.

16
17 **ARTICLE XXXI: LOCAL HOMELESS COORDINATING BOARD**

18 **SEC. 5.31-1. CREATION OF LOCAL HOMELESS COORDINATING BOARD.**

19 The Board of Supervisors hereby establishes the Local Homeless Coordinating Board
20 (the "Coordinating Board") of the City and County of San Francisco as an Advisory Body as
21 defined in Section 5.1-1.

22
23 **SEC. 5.31-2. MEMBERSHIP.**

24 The Coordinating Board shall be comprised of 11 members, appointed by the
25 Homelessness Oversight Commission ("Commission") as follows:

1 (a) Seat 1 shall be held by a homeless or formerly homeless person.

2 (b) Seats 2 through 11 shall be held by people who represent relevant organizations or
3 projects serving one or more homeless subpopulations in San Francisco, as the terms
4 “relevant organizations” and “homeless subpopulations” are used in 42 C.F.R. Section
5 578.5(b), as it may be amended from time to time. For purposes of this subsection (b)
6 regarding Seats 2 through 11, any Board member may represent the interests of more than
7 one relevant organization or homeless subpopulation.

8 (c) When appointing members to the Coordinating Board, the Commission shall strive
9 to ensure that the Coordinating Board represents a broad diversity of the relevant
10 organizations and homeless subpopulations defined in subsection (b). The Department of
11 Homelessness and Supportive Housing shall maintain on its website a list of all of the
12 categories of relevant organizations and homeless subpopulations defined by federal law and
13 regulations or used by the U.S. Department of Housing and Urban Development (“HUD”) in
14 its Continuum of Care Application, and shall provide such list to the Commission before
15 appointment of a new member to a vacant seat. At the time of appointment, the Commission
16 shall identify the relevant organization or homeless subpopulation(s) represented by the
17 appointee.

18 (d) Members of the Coordinating Board may not serve on any other City body that
19 advises on issues relating to homelessness, including but not limited to the Commission;
20 ~~Shelter Monitoring Committee, and Shelter Grievance Advisory Committee~~, during their term(s) on
21 the Coordinating Board.

22
23 **~~SEC. 5.31-3. ORGANIZATION AND TERMS OF OFFICE.~~**

24 ~~(a) Each member of the Coordinating Board shall serve at the pleasure of the Commission for~~
25 ~~a term of four years, except as qualified in subsections (a)(2) and (a)(4).~~

1 ~~— (1) The term of office for each of the seats on the Coordinating Board appointed by the~~
2 ~~Commission shall commence on July 1, 2023, at noon.~~

3 ~~— (2) To provide for staggered terms, the members appointed to Seats 2, 4, 6, and 8 shall~~
4 ~~serve for an initial term of two years starting at noon on July 1, 2023 and ending at noon on July 1,~~
5 ~~2025; thereafter the term for Seats 2, 4, 6, and 8 shall be a four-year term, with the first such term~~
6 ~~starting on July 1, 2025 at noon. The members appointed to Seats 1, 3, 5, 7, and 9 shall serve for an~~
7 ~~initial term of four years starting at noon on July 1, 2023 and ending at noon on July 1, 2027, with the~~
8 ~~next four-year term starting at that time.~~

9 ~~— (3) If the Commission does not appoint a member to a seat prior to the commencement of~~
10 ~~the term on July 1, 2023, the member of the Coordinating Board in that respective seat shall remain as~~
11 ~~a holdover in the seat until the Commission appoints a member to the seat; provided, however, that the~~
12 ~~holdover member serves at the pleasure of the Commission.~~

13 ~~— (4) Notwithstanding subsection (a)(1), the Commission has discretion to appoint members~~
14 ~~to seats on the Coordinating Board prior to July 1, 2023, to serve on the Coordinating Board for~~
15 ~~whatever time remains between such appointment and July 1, 2023, at noon.~~

16 ~~— (5) Members of the Coordinating Board who are seated as of July 1, 2023 prior to the~~
17 ~~commencement of the term at noon, may be appointed by the Commission for that term provided they~~
18 ~~meet the qualifications for the seat to which the Commission appoints them.~~

19 ~~(b) If a vacancy occurs in any seat on the Coordinating Board, the Commission shall appoint a~~
20 ~~successor to that seat, to complete the remainder of the term of the vacated seat.~~

21 ~~(c) Members of the Coordinating Board shall receive no compensation.~~

22 ~~(d) Any member who misses three regular meetings of the Coordinating Board without the~~
23 ~~express approval of the Coordinating Board at or before each missed meeting shall be deemed to have~~
24 ~~resigned from the Coordinating Board 10 days after the third unapproved absence. The Coordinating~~
25 ~~Board shall inform the Commission of the resignation.~~

1
2 **SEC. 5.31-34. DUTIES.**

3 The Coordinating Board shall perform the following functions:

4 (a) Serve as the Continuum of Care governing body in accordance with applicable
5 HUD rules and regulations, including but not limited to 24 CFR Part 578 et seq., as amended.

6 The Coordinating Board shall adopt, and all members shall abide by, a written conflict of
7 interest policy that complies with 24 CFR Section 578.95(b), as amended.

8 (b) Advise the Commission on issues relating to the City's participation in the
9 Continuum of Care program.

10
11 **SEC. 5.31-45. MEETINGS AND PROCEDURES.**

12 ~~(a)~~ The Coordinating Board shall hold a meeting not less than once every four months.

13 ~~(b) The Coordinating Board shall elect officers and shall establish rules or bylaws for its~~
14 ~~organization and procedures.~~

15 ~~(c) The Coordinating Board may establish subcommittees to work on issues relating to the~~
16 ~~City's participation in the Continuum of Care program.~~

17
18 **SEC. 5.31-56. CONTINUED EXISTENCE.**

19 The Board of Supervisors intends the Coordinating Board to last until the enactment of
20 an ordinance removing this Article XXXI from the Administrative Code. Notwithstanding Rule
21 2.21 of the Board of Supervisors Rules of Order, which provides that advisory bodies created
22 by the Board should sunset within three years, the Board of Supervisors intends the
23 Coordinating Board to exist for longer than three years.

24
25 **ARTICLE XXXII: PARK, RECREATION AND OPEN SPACE ADVISORY COUNCIL**

[This bracketed note is uncodified. See Section 39 of this ordinance for the source and text of Article XXXII.]

ARTICLE XXXIV: DIGNITY FUND OVERSIGHT AND ADVISORY ~~COMMITTEE~~ COUNCIL

SEC. 5.34-1. ESTABLISHMENT OF OVERSIGHT AND ADVISORY BODY.

Charter Section 16.128-11 establishes the Dignity Fund Oversight and Advisory ~~Committee~~ Council (the "~~Committee-Council~~") to monitor and participate in the administration of the Dignity Fund (the "Fund") as provided in Charter Section 16.128-1 et seq., and to take steps to ensure that the Fund is administered in a manner accountable to the community. *Where the Charter refers to the Dignity Fund Oversight and Advisory Committee, such references shall be understood to refer to the Council.* Section 16.128-11 provides, among other things, for the ~~Committee's~~ Council's composition, ~~Committee~~ Council members' respective appointing authorities, timing of initial appointments, the minimum number of meetings the ~~Committee~~ Council must hold each year, and the ~~Committee's~~ Council's creation of a Service Provider Working Group. Sections 16.128-6, 16.128-7, 16.128-8, and 16.128-11 establish the ~~Committee's~~ Council's duties and responsibilities. Section 16.128-11 also authorizes the Board of Supervisors to provide by ordinance further details regarding the membership, structure, functions, appointment criteria, terms, and administrative and clerical support of the ~~Committee~~ Council. This Article XXXIV is established under the authority of Section 16.128-11(d).

SEC. 5.34-2. MEMBERSHIP.

(a) Membership of the ~~Committee~~ Council is set forth in Charter Section 16.128-11(c). In making appointments to the ~~Committee~~ Council, the appointing authorities shall endeavor to ensure that the ~~Committee~~ Council is broadly representative of communities of interest, neighborhoods, and the demographic diversity of the City in terms of ethnicity, race, age, gender, sexual orientation, types of disabilities, and languages spoken. The appointing

1 authorities shall also endeavor to ensure that the ~~Committee~~ Council includes members who
2 are seniors, adults with disabilities, people with HIV/AIDS, and veterans.

3 (b) ~~Notwithstanding Administrative Code Section 5.1-4, Initial terms of Committee members,~~
4 ~~which shall commence on the date of the first meeting of the Committee, shall terminate on January 31,~~
5 ~~2019. Thereafter,~~ terms of ~~Committee~~ Council members shall be two years, commencing on
6 February 1 of odd-numbered years.

7 (c) ~~Committee members shall serve at the pleasure of their respective appointing authorities~~
8 ~~and may be removed by their appointing authority at any time.~~ Whenever a member appointed by
9 the Disability and Aging Services Commission; or the Advisory Council to the Department of
10 Disability and Aging Services; ~~or the Long Term Care Coordinating Council~~ vacates the
11 member's seat on the member's appointing body, the member shall automatically vacate the
12 member's seat on the ~~Committee~~ Council as well.

13 (d) ~~Service on the Committee shall be voluntary and members shall receive no compensation~~
14 ~~from the City, except that the members who are City employees may receive their regular salaries for~~
15 ~~time spent on the Committee if they are serving in an official capacity as a City employee.~~

16 (e) ~~Any Committee member who misses three regular meetings of the Committee within a six-~~
17 ~~month period without the express approval of the Committee at or before each missed meeting shall be~~
18 ~~deemed to have resigned from the Committee 10 days after the third unapproved absence. The~~
19 ~~Committee shall inform the member's appointing authority of each such resignation, and the~~
20 ~~appointing authority shall appoint a successor to that seat.~~

22 **SEC. 5.34-3. ADMINISTRATIVE AND TECHNICAL SUPPORT.**

23 Consistent with Charter Section 16.128-4(h), the Department of Disability and Aging
24 Services shall provide administrative and technical support to the ~~Committee~~ Council. The
25 Department shall also provide administrative and technical support to the Service Provider

Working Group required by Charter Section 16.128-11.

~~SEC. 5.34 4. MEETINGS AND PROCEDURES.~~

~~(a) There shall be at least 10 days' notice prior to the Committee's inaugural meeting.~~

~~(b) The Committee shall elect its officers and may establish bylaws and rules for its organization and procedures.~~

ARTICLE XXXV: LGBTQI+ ADVISORY COUNCIL

[This bracketed note is uncodified. See Section 11 of this ordinance for the source and text of Article XXXV.]

~~ARTICLE XXXVI: SHELTER GRIEVANCE ADVISORY COMMITTEE~~

~~SEC. 5.36 1. CREATION OF SHELTER GRIEVANCE ADVISORY COMMITTEE.~~

~~The Board of Supervisors hereby establishes the Shelter Grievance Advisory Committee (the "Grievance Committee") of the City and County of San Francisco.~~

~~SEC. 5.36 2. MEMBERSHIP.~~

~~The Grievance Committee shall be comprised of 13 members. Seats 1 through 12 shall be appointed by the Homelessness Oversight Commission ("Commission"), established under Charter Section 4.133, and Seat 13 shall be appointed by the Director of Health, as follows:~~

~~(a) Seats 1 through 4 shall each be held by a current or previous consumer of City temporary shelter services in one or more of the following temporary shelter service categories: family shelters, youth shelters, single adult shelters, navigation centers, transitional housing, or alternative shelter services (including, by way of example but not limitation, safe sleeping sites or recreational vehicle (RV) sites).~~

~~(b) Seats 5 through 8 shall each be held by persons who represent organizations or projects~~

1 ~~providing one or more of the following shelter services in the City: family shelters, youth shelters,~~
2 ~~single adult shelters, navigation centers, transitional housing, or alternative shelter services (including,~~
3 ~~by way of example but not limitation, safe sleeping sites, or recreational vehicle (RV) sites).~~

4 ~~(c) Seat 9 shall be held by 1 person who represents an organization or project providing shelter~~
5 ~~client advocate services in the City.~~

6 ~~(d) Seat 10 shall be held by a person serving as arbitrator of shelter grievances under the~~
7 ~~Shelter Grievance Policy, as described in Article XVIII of Chapter 20 of the Administrative Code.~~

8 ~~(e) Seats 11 and 12 shall be held by any City resident with a demonstrated commitment to~~
9 ~~temporary shelter services.~~

10 ~~(f) Seat 13 shall be held by an employee of the Department of Public Health.~~

11 ~~(g) Members of the Grievance Committee may not serve on any other City body that advises on~~
12 ~~issues relating to homelessness, including but not limited to the Commission, Shelter Monitoring~~
13 ~~Committee, and Local Homeless Coordinating Board, during their term(s) on the Grievance~~
14 ~~Committee.~~

15 ~~(h) Continuing Membership on the Grievance Committee.~~

16 ~~—(1) Members of the Grievance Committee seated as of the effective date of the ordinance in~~
17 ~~Board File No. 230125 shall by operation of law remain members of the Grievance Committee for one~~
18 ~~year from the effective date of said ordinance. New terms for members of the Grievance Committee~~
19 ~~shall commence on that date, and the Commission shall make appointments to the Grievance~~
20 ~~Committee for those terms in accordance with subsection (h)(2). Members of the Grievance Committee~~
21 ~~seated as of that date shall be eligible for reappointment to the Grievance Committee by the~~
22 ~~Commission, in accordance with this Section 5.36-2.~~

23 ~~—(2) To provide for staggered terms, the members appointed by the Commission to Seats 2,~~
24 ~~4, 6, 8, 10, and 12 shall serve for an initial term of two years; thereafter the term for Seats 2, 4, 6, 8,~~
25 ~~10, and 12 shall be a four-year term. The members appointed by the Commission to Seats 1, 3, 5, 7, 9,~~

11, and 13 shall serve for an initial term of four years.

~~SEC. 5.36-3. ORGANIZATION AND TERMS OF OFFICE.~~

~~(a) Each member in Seats 1 through 12 shall serve at the pleasure of the member's appointing authority for a term of four years, except as qualified in subsection (h)(2) of Section 5.36-2.~~

~~(b) If a vacancy occurs in Seats 1 through 12 on the Grievance Committee, the appointing authority for the vacated seat shall appoint a successor to that seat, to complete the remainder of the term of the vacated seat.~~

~~(c) Any member in Seats 1 through 12 who misses three regular meetings of the Grievance Committee without the express approval of the Grievance Committee at or before each missed meeting shall be deemed to have resigned from the Grievance Committee 10 days after the third unapproved absence. The Grievance Committee shall inform the appointing authority of the resignation.~~

~~(d) Members of the Grievance Committee shall receive no compensation from the City, except that a City employee appointed to Seat 13 shall receive compensation from the City as an employee, because work on the Grievance Committee shall be considered part of the employee's work for the City.~~

~~(e) The Department of Homelessness and Supportive Housing (the "Department") shall provide administrative support for the Grievance Committee.~~

~~SEC. 5.36-4. DUTIES.~~

~~The Grievance Committee shall perform the following functions:~~

~~(a) Advise the Department on the Shelter Grievance Policy, as described in Article XVIII of Chapter 20 of the Administrative Code, including the Department's administration of the policy and its regulations promulgated under the policy, and recommend any appropriate changes to the Department.~~

~~(b) Receive and review reports relating to the Shelter Grievance Policy, including but not~~

1 ~~limited to, reports sent to the Department under Administrative Code Section 20.18-8.~~

2 ~~(c) Receive complaints regarding arbitrators as provided in Section 20.18-9 of the~~
3 ~~Administrative Code and recommend to the Department any appropriate action in response to such~~
4 ~~complaints.~~

5 ~~(d) Provide an annual written report to the Commission by March 1 of each year regarding the~~
6 ~~activities of the Grievance Committee during the previous calendar year, and, upon the Commission's~~
7 ~~request, provide more frequent report(s).~~

8
9 **~~SEC. 5.36-5. MEETINGS AND PROCEDURES.~~**

10 ~~(a) The Grievance Committee shall meet at least once each quarter.~~

11 ~~(b) The Grievance Committee shall elect a Chair, and may elect other officers, and shall~~
12 ~~establish rules or bylaws for its organization and procedures.~~

13
14 **~~SEC. 5.36-6. SUNSET.~~**

15 ~~Notwithstanding Rule 2.21 of the Board of Supervisors Rules of Order, which provides that~~
16 ~~advisory bodies created by the Board should sunset within three years, unless the Board of Supervisors~~
17 ~~by ordinance extends the term of the Grievance Committee, this Article XXXVI shall expire by~~
18 ~~operation of law, and the Grievance Committee shall terminate, on April 30, 2032. After that date, the~~
19 ~~City Attorney shall cause this Article XXXVI to be removed from the Administrative Code.~~

20
21 **ARTICLE XXXVI: WORKFORCE INVESTMENT SAN FRANCISCO**

22 [This bracketed note is uncodified. See Section 19 of this ordinance for the source and text of
23 Article XXXVI.]

24 **ARTICLE XXXVII: COUNCIL ON CITY WORKFORCE ALIGNMENT**

25 [This bracketed note is uncodified. See Section 19 of this ordinance for the source and text of

Article XXXVII.]

ARTICLE XXXVIII: CANNABIS ~~OVERSIGHT COMMITTEE~~ ADVISORY COUNCIL

SEC. 5.38-1. CREATION OF ~~COMMITTEE~~ ADVISORY COUNCIL.

The Board of Supervisors ("Board") hereby establishes the Cannabis ~~Oversight~~
~~Committee Advisory Council, as an Advisory Body as defined in Section 5.1-1~~ ("~~Committee Council~~").

SEC. 5.38-2. DEFINITIONS.

Terms not defined in this Article XXXVIII shall have the meaning attributed to them in
Police Code Section 1602.

SEC. 5.38-3. PURPOSE.

In 2018, the City enacted Police Code Article 16 to comprehensively regulate
Commercial Cannabis activities, including the implementation of an Equity Program to
promote equitable ownership and employment opportunities in the Cannabis industry by
lowering barriers for those hit hardest by the War on Drugs. The purpose of the ~~Committee~~
~~Council~~ is to 1) convene representatives of Cannabis Business operators, workers, patients,
and other key stakeholders in the Cannabis industry to oversee the Office of Cannabis'
implementation of Police Code Article 16 by evaluating data on the industry's growth; and 2)
provide guidance and recommendations to the Board on amendments to local laws and
regulations, including those governing the Equity Program, to facilitate socially responsible
growth of this new industry by creating living wage jobs and economic opportunities consistent
with the Board's intent in adopting Police Code Article 16.

SEC. 5.38-4. MEMBERSHIP.

The ~~Committee Council~~ shall consist of nine voting members and ~~seven~~ six non-voting

members, as follows (seats 1 through ~~7~~ 6 being non-voting members):

(a) Seat 1 shall be held by the Director of the Department of Public Health or the Director's designee.

(b) Seat 2 shall be held by the Chief of the Police Department or the Chief's designee.

(c) Seat 3 shall be held by the Director of the Department of Building Inspection or the Director's designee.

(d) Seat 4 shall be held by the Director of the Planning Department or the Director's designee.

~~(e) Seat 5 shall be held by the Superintendent of the San Francisco Unified School District or the Superintendent's designee, which may include a Member of the Board of Education. The Superintendent is not required to hold this seat or appoint a designee, but shall be invited to do so.~~

(~~f~~) Seat ~~6~~ 5 shall be held by the Executive Director of the Entertainment Commission or the Executive Director's designee.

(~~g~~) Seat ~~7~~ 6 shall be held by the Chief of the Fire Department or the Chief's designee.

(~~h~~) Seat ~~8~~ 7 shall be held by an Owner of a Cannabis Business permitted through the Equity Program, appointed by the Board. If there are no Equity Applicant permit-holders who apply for the seat, then the Board may appoint a person who, at the time of the appointment, is an Equity Applicant, as that term is defined in Police Code Subsection 1604(b).

(~~i~~) Seat ~~9~~ 8 shall be held by the operator of a Cannabis Cultivation, Manufacturing, or distribution business with fewer than 20 employees at the time of appointment, appointed by the Board.

(~~j~~) Seat ~~10~~ 9 shall be held by a representative of organized labor who works with the Cannabis business labor force, appointed by the Board.

(~~k~~) Seat ~~11~~ 10 shall be held by a representative of organized labor who works with the Cannabis delivery service labor force, appointed by the Board.

(~~tk~~) Seat ~~12~~11 shall be held by an Owner of a Storefront Cannabis Retailer, appointed by the Board.

(~~ml~~) Seat ~~13~~12 shall be held by a person who, at the time of the appointment, is an Equity Applicant, as that term is defined in Police Code Subsection 1604(b), appointed by the Board.

(~~nm~~) Seat ~~14~~13 shall be held by a person with demonstrated subject matter expertise on the State of California's Cannabis laws and regulations, appointed by the Board.

(~~om~~) Seat ~~15~~14 shall be held by a person with significant experience in workforce and economic development, appointed by the Board.

(~~po~~) Seat ~~16~~15 shall be held by a person who has been a Medicinal Cannabis patient or Medicinal Cannabis consumer for at least five years, with an extensive history advocating for Medicinal Cannabis patients or involvement in implementing and running a Cannabis compassionate use program in compliance with the Compassionate Use Act of 1996, appointed by the Board.

SEC. 5.38-5. ORGANIZATION AND TERMS OF OFFICE.

(a) Notwithstanding the term limits that generally apply to Advisory Bodies under Section 5.1-4, Voting members shall serve two-year terms and shall serve at the pleasure of the Board. Any vacancy in Seats 8 through 16 on the Committee Council shall be filled by the Board. Voting members may serve multiple terms. No individual shall serve more than six terms as a member of the Council. A part of a term that exceeds one year shall count as a full term; a part of a term that is one year or less shall not. Notwithstanding the preceding sentence, the current term of any person serving on the Council on January 1, 2027 shall count as a full term if the person serves more than one year of that term. Terms completed on or before December 31, 2026 shall not count as a term for the purpose of the lifetime term limit.

1 ~~(b) Service on the Committee is voluntary and members shall receive no compensation from the~~
2 ~~City, except that the members in Seats 1 through 4, 6, and 7 may, if City employees, receive their~~
3 ~~regular City salaries for time spent on the Committee.~~

4 ~~(c) Any member in Seats 8 through 16 who misses three regular meetings of the Committee~~
5 ~~within a six-month period without the express approval of the Committee at or before each missed~~
6 ~~meeting shall be deemed to have resigned from the Committee 10 days after the third unapproved~~
7 ~~absence. The Committee Council shall inform the Clerk of the Board of any such resignation.~~

8 ~~(db) All City departments, commissions, boards, and agencies shall cooperate with the~~
9 ~~Committee in the performance of its functions.~~ City departments shall respond within 30 days to
10 requests for information submitted by the Committee Council set forth in Administrative Code
11 Subsections 2A.420(b)(7)(A)-(J), if available, and any other reasonable requests for
12 information submitted by the Committee Council relevant to its ability to discharge its powers
13 and duties, provided that the disclosure of such information shall not be required where it
14 would violate Federal or State law.

15 ~~(ec)~~ The Office of Cannabis shall prepare and submit to the Committee Council a report
16 as set forth in Administrative Code Section 2A.420.

17 ~~(fd)~~ The City Administrator shall provide administrative and policy support for the
18 Committee Council.

20 **SEC. 5.38-6. POWERS AND DUTIES.**

21 ~~(a)~~ The Committee Council shall have the power and duty to:

22 (1) ~~Oversee~~ Advise on the Office of Cannabis' implementation and enforcement of
23 City laws and regulations relating to Cannabis, by convening stakeholders, gathering data,
24 and advising the Board and the Mayor.

25 (2) Gather and evaluate data, and report to the Board and Mayor, regarding the

effectiveness of City laws and regulations relating to the Police Code Section 1604 Equity Program in fostering equitable access to participation in the Cannabis industry and providing assistance to communities unfairly burdened by the War on Drugs.

(3) Gather and evaluate data, and report to the Board and Mayor, on the overall health and stability of the Cannabis industry in San Francisco and make recommendations on possible ways the City can help the industry grow and prosper.

(4) Recommend to the Board modifications to City laws and regulations relating to Cannabis, including recommendations to maximize the creation of living wage jobs and economic opportunities for communities hit hardest by the War on Drugs. Where appropriate, the ~~Committee's~~ Council's recommendations shall include draft legislation or regulations.

~~(b) As an advisory committee, the Committee shall not have authority to hire, fire, or evaluate personnel in the Office of Cannabis, and shall not have authority over decisions by the Office of Cannabis to issue, deny or modify permits.~~

~~SEC. 5.38-7. MEETINGS AND PROCEDURES.~~

~~(a) The Committee shall hold its inaugural meeting not more than 30 days after the Board has appointed at least eight members to the Committee. There shall be at least ten days' notice of the inaugural meeting. Following the inaugural meeting, the Committee shall hold a regular meeting not less than five times per year until the sunset date set forth in Section 5.38-8.~~

~~(b) The Committee shall elect a Chair and officers for such other positions, if any, it chooses to create. The Committee may establish bylaws and rules for its organization and procedures.~~

~~SEC. 5.38-78. SUNSET DATE.~~

Unless the Board by ordinance extends the term of the ~~Committee~~ Council, this Article XXXVIII shall expire by operation of law, and the ~~Committee~~ Council shall terminate, on

1 January 1, 2027. In that event, after the sunset date, the City Attorney is authorized to cause
2 this Article XXXVIII to be removed from the Administrative Code.

3
4 **ARTICLE XXXIX: CHILDREN, YOUTH AND THEIR FAMILIES OVERSIGHT AND**
5 **ADVISORY COMMITTEE**

6 [This bracketed note is uncodified. See Section 4 of this ordinance for the source and text of
7 this Article XXXIX.]

8 **~~ARTICLE XL: CLOSE JUVENILE HALL WORKING GROUP~~**

9 **~~SEC. 5.40-1. CLOSE JUVENILE HALL WORKING GROUP.~~**

10 ~~The City hereby establishes the Close Juvenile Hall Working Group.~~

11
12 **~~SEC. 5.40-2. DEFINITIONS.~~**

13 ~~“CARC” means the Huckleberry Community Assessment and Resource Center.~~

14 ~~“City” means the City and County of San Francisco.~~

15 ~~“Court” means the San Francisco Superior Court Juvenile Division.~~

16 ~~“Director” means the Director of the Human Rights Commission.~~

17 ~~“DCYF” means the Department of Children Youth and Families.~~

18 ~~“Juvenile Hall” means the locked detention facility at 375 Woodside Avenue in the City.~~

19 ~~“Working Group” means the Close Juvenile Hall Working Group.~~

20
21 **~~SEC. 5.40-3. PURPOSE AND PRINCIPLES.~~**

22 ~~(a) The purpose of the Working Group is to create a plan to:~~

23 ~~— (1) close Juvenile Hall by no later than December 31, 2021;~~

24 ~~— (2) strengthen and expand community-based alternatives to detention;~~

25 ~~— (3) provide a rehabilitative, non-institutional place or places of detention, in a location~~

1 ~~approved by the Court, which is available for all wards of the Court and persons alleged to come~~
2 ~~within the jurisdiction of the Court;~~

3 ~~— (4) reinvest any monies saved by the closure of Juvenile Hall in high-quality, effective,~~
4 ~~community-based alternatives to detention; an alternative, rehabilitative, non-institutional center for~~
5 ~~youth who are detained; and mental health and educational support for detained youth; and~~

6 ~~— (5) preserve, protect and aim to expand the role of the public sector in the direct provision~~
7 ~~of juvenile rehabilitation services, both in community-based alternatives to detention and in any~~
8 ~~rehabilitative, non-institutional place or places of detention.~~

9 ~~(b) In carrying out this purpose, the Working Group shall be guided by the following~~
10 ~~principles:~~

11 ~~— (1) A juvenile justice system should balance public safety, positive youth development,~~
12 ~~family and community health, and victim restoration.~~

13 ~~— (2) Detention has a devastating impact on youth, their families, and their neighborhoods,~~
14 ~~and undermines the safety and health of both detained youth and their communities.~~

15 ~~— (3) The rehabilitative goals of the juvenile justice system can best be accomplished in~~
16 ~~family-based settings in the communities where youth live.~~

17 ~~— (4) The vast majority of young people in detention should be diverted from that system and~~
18 ~~given access to developmentally appropriate, trauma-informed programs and services that address~~
19 ~~racial and ethnic disparities.~~

20 ~~— (5) Youth in the juvenile justice system and their families should have a role in identifying~~
21 ~~what kind of support would be most helpful to them.~~

22 ~~— (6) Resources invested in Juvenile Hall should instead be invested in youth, their families,~~
23 ~~and community-based programs, including mental health and educational support.~~

24 ~~— (7) Community-based programs that serve juvenile justice-involved young people should be~~
25 ~~supported, strengthened, and where appropriate, expanded.~~

1 ~~— (8) Youth in the juvenile justice system should be referred to programs and court-ordered~~
2 ~~placements in the City whenever possible.~~

3 ~~— (9) Juvenile Hall staff should be given the opportunity, consistent with civil service rules, to~~
4 ~~transfer to other jobs with the City or the San Francisco Unified School District once Juvenile Hall is~~
5 ~~closed.~~

6
7 **~~SEC. 5.40 4. MEMBERSHIP.~~**

8 ~~(a) Members. The Working Group shall consist of 15 members as set forth below.~~

9 ~~— (1) Seats 1 and 2 shall be held by representatives of community-based non-profits that serve~~
10 ~~juvenile justice-involved youth and are members of the Juvenile Justice Providers Association.~~

11 ~~— (2) Seats 3 and 4 shall be held by persons under the age of 29 who were previously~~
12 ~~detained or incarcerated.~~

13 ~~— (3) Seat 5 shall be held by a parent or guardian of a person who is or was detained as a~~
14 ~~youth in the juvenile justice system.~~

15 ~~— (4) Seat 6 shall be held by an expert in the design of small, rehabilitative, and education-~~
16 ~~focused centers that meet the needs of young people who, following their arrest or detention, cannot~~
17 ~~return to their home or community.~~

18 ~~— (5) Seat 7 shall be held by an expert in youth mental illness, with experience serving the~~
19 ~~juvenile justice population, and expertise in best practices for serving youth with mental illness.~~

20 ~~— (6) Seat 8 shall be held by an expert in juvenile justice reform with experience in data~~
21 ~~analysis and the development of alternatives to detention.~~

22 ~~— (7) Seat 9 shall be held by a member of the labor community.~~

23 ~~— (8) Seats 10 and 11 shall be held by non-management employees working in Juvenile Hall.~~

24 ~~— (9) Seat 12 shall be held by the Chief Juvenile Probation Officer or the Chief Juvenile~~
25 ~~Probation Officer's designee.~~

1 ~~—(10) Seat 13 shall be held by the Public Defender or the Public Defender's designee.~~

2 ~~—(11) Seat 14 shall be held by the District Attorney or the District Attorney's designee.~~

3 ~~—(12) Seat 15 shall be held by a representative of the Court if the Court so chooses. While~~
4 ~~the Court is not required to provide a representative to hold this seat, it shall be invited to do so.~~

5 ~~(b) Seats 1-11 shall be appointed by the Board of Supervisors. The Board shall strive to~~
6 ~~appoint members to the Working Group from communities disproportionately represented in the~~
7 ~~juvenile justice system and from the City's most marginalized communities.~~

8
9 **~~SEC. 5.40-5. ORGANIZATION AND TERMS OF OFFICE.~~**

10 ~~(a) Members of the Working Group in Seats 1-11 shall serve at the pleasure of the Board of~~
11 ~~Supervisors and may be removed by the Board at any time. Each member in Seats 1-11 may remain in~~
12 ~~the Working Group until the termination of the Working Group under Section 5.40-7, unless removed~~
13 ~~by the Board. Any vacancy in Seats 1-11 shall be filled by the Board.~~

14 ~~(b) Service in the Working Group shall be voluntary. Members appointed to Seats 1 through 9~~
15 ~~may receive a stipend in an amount determined by the Board. Members appointed to seats 10 and 11~~
16 ~~may receive their regular salaries for time spent on the Working Group because they are serving in an~~
17 ~~official capacity as representatives of their departments.~~

18 ~~(c) The Working Group shall strive to schedule meetings to accommodate the Working Group~~
19 ~~members so that all members may attend regularly. Any member in Seats 1-11 who, within a six-month~~
20 ~~period, misses three regular meetings of the Working Group without the express approval of the~~
21 ~~Working Group at or before the missed meeting shall be deemed to have resigned from the Working~~
22 ~~Group ten days after the third unapproved absence. The Working Group shall inform the Clerk of the~~
23 ~~Board of Supervisors of any such resignation.~~

24 ~~(d) Subject to the fiscal and budgetary provisions of the Charter, the Director shall designate~~
25 ~~staff to provide administrative support to the Working Group.~~

1 ~~(e) Subject to the fiscal, budgetary, and civil service provisions of the Charter, the Director~~
2 ~~shall hire and make available to the Working Group an outside consultant with expertise in juvenile~~
3 ~~justice reform, program evaluation, data analysis, youth development, development of alternatives to~~
4 ~~detention, and juvenile justice systemic change. The outside consultant shall advise the Working~~
5 ~~Group, and, to the extent desired by the Working Group, may facilitate its meetings and compile~~
6 ~~required reports on behalf of the Working Group.~~

7 ~~(f) Quorum. Eight members of the Working Group shall constitute a quorum.~~

8 ~~(g) Officers. The Working Group shall elect a Chairperson from its members. The~~
9 ~~Chairperson shall designate a member to serve in the Chairperson's absence.~~

10 ~~(h) Subcommittees. The Working Group may establish subcommittees to be convened as~~
11 ~~directed by the Working Group. The Working Group shall establish a Needs Assessment subcommittee.~~
12 ~~The Working Group's Chairperson or the Chairperson's designee shall appoint members to the~~
13 ~~subcommittees, and shall appoint members to the Needs Assessment subcommittee consistent with~~
14 ~~subsection 5.40-6(a) of this Article. Subcommittees shall report findings and make recommendations to~~
15 ~~the full Working Group for its consideration.~~

16 ~~(i) Meeting Frequency. The Working Group shall meet at least every two months until Juvenile~~
17 ~~Hall is closed and a substitute place or places of detention are available for youth placement.~~

18 ~~(j) Roles of Members. In adopting this ordinance, the Board of Supervisors recognizes that~~
19 ~~each member in Seats 12-15 retains their authority and duties under State law and that where conflicts~~
20 ~~may arise out of members' dual roles, State powers and duties shall supersede the duties that this~~
21 ~~Article XL imposes on members.~~

22
23 **~~SEC. 5.40-6. POWERS AND DUTIES.~~**

24 ~~(a) The Working Group shall have the following powers and duties in the work focus areas~~
25 ~~described below:~~

1 ~~—WORK FOCUS AREA # 1: Based on data review, conduct a needs assessment for youth~~
2 ~~detained in Juvenile Hall. To conduct this assessment, the Working Group shall:~~

3 ~~—(1) Establish a “Needs Assessment subcommittee” to conduct a confidential review of~~
4 ~~juvenile delinquency case files to the extent that review is authorized by the Court. The Needs~~
5 ~~Assessment subcommittee shall consist of the following four Working Group members: the Public~~
6 ~~Defender or the Public Defender’s designee (Working Group Seat 13); a representative of a~~
7 ~~community-based non-profit that serves juvenile justice-involved youth and that is a member of the~~
8 ~~Juvenile Justice Providers Association (Working Group Seat 1 or 2); an expert in youth mental illness~~
9 ~~(Working Group Seat 7); and an expert in juvenile justice reform (Working Group Seat 8): 1~~

10 ~~—(2) Request that the City Attorney petition the Court and request that the Court authorize~~
11 ~~the Juvenile Probation Department to allow Needs Assessment subcommittee members to access to~~
12 ~~data contained in juvenile delinquency files and related juvenile records in the possession of the~~
13 ~~Juvenile Probation Department for the purpose of conducting the needs assessment.~~

14 ~~—(3) Submit formal requests for aggregate, de-identified statistical data regarding the~~
15 ~~children detained in Juvenile Hall from the following departments and agencies: the Juvenile~~
16 ~~Probation Department, the Department of Public Health, the San Francisco Unified School District,~~
17 ~~and the Human Services Agency. The data requested shall include, but not be limited to: race, gender,~~
18 ~~age, charged offense and level, sustained offenses and level, disposition, length of stay in custody,~~
19 ~~number of prior delinquency contacts, number of probation violations or bench warrants, child welfare~~
20 ~~system involvement, disability status, prior school records that identify educational disabilities, mental~~
21 ~~health status, and prior referrals to community-based programs and services. The Juvenile Probation~~
22 ~~Department, Department of Public Health, and the Human Services Agency shall respond to data~~
23 ~~requests within two weeks of receiving the request.~~

24 ~~—(4) Identify gaps in existing community-based programs and services.~~

25 ~~—(5) Evaluate the use of risk assessment tools, both quantitatively and qualitatively, to~~

1 ~~ensure that all young people who are eligible and safe to be released are in fact being released.~~

2 ~~—(6) Create plans to transition youth leaving Juvenile Hall to appropriate, local non-~~
3 ~~institutional settings.~~

4 ~~—WORK FOCUS AREA # 2: Plan and design a small, rehabilitative and education focused~~
5 ~~center for the placement of detained youth (“Center”). In developing the plan and design, the Working~~
6 ~~Group shall:~~

7 ~~—(1) Analyze best practices for the administration and management of small rehabilitative~~
8 ~~non-institutional settings for youth, which may include consultation with designers, architects, experts~~
9 ~~in alternative models, and mental health and youth development experts. The analysis also may include~~
10 ~~examination of existing programs in other counties, states, or countries that have demonstrated~~
11 ~~rehabilitative success.~~

12 ~~—(2) Collaborate with the Real Estate Division, the Capital Planning Committee, and local~~
13 ~~community-based organizations to identify local land or existing buildings that may be used for this~~
14 ~~Center.~~

15 ~~—(3) Create an implementation plan for this Center.~~

16 ~~WORK FOCUS AREA # 3: Determine the community-based residential or day programs that~~
17 ~~need to be created, expanded, or reinstated to effectively serve wards of the Court and persons alleged~~
18 ~~to come within the jurisdiction of the Court who are not ordered detained by the Court. To make this~~
19 ~~determination, the Working Group shall:~~

20 ~~—(1) Promptly identify a housing option in the City for youth who, following arrest or release~~
21 ~~from detention, cannot return to their homes, to replace the Catholic Charities San Francisco Girls~~
22 ~~Home Shelter closed in 2018 and the Boys Home Shelter closed in 2019.~~

23 ~~—(2) Identify existing community-based day programs and housing options that may be~~
24 ~~expanded.~~

25 ~~—(3) Identify new services or programs, including day services and housing options, which~~

1 are needed to serve vulnerable youth populations.

2 ~~— (4) In consultation with DCYF, the Department of Public Health, the Juvenile Probation~~
3 ~~Department, and the Human Rights Commission, create funding plans to ensure both the expansion of~~
4 ~~existing programs with a demonstrated record of success and the creation of new programs. The~~
5 ~~programs should include mental health services, educational services, employment opportunities, and~~
6 ~~mentoring opportunities, which are culturally relevant, trauma-informed, strengths-based, and rooted~~
7 ~~in the local community. Where possible, these services should be available to youths' family members.~~

8 ~~WORK FOCUS AREA # 4: The Working Group shall develop a plan to transition Juvenile Hall~~
9 ~~staff to jobs in other City departments or jobs with the San Francisco Unified School District or the~~
10 ~~alternative Center.~~

11 ~~WORK FOCUS AREA # 5: Develop trauma-informed, culturally relevant transition plans,~~
12 ~~specialized services, and housing options for vulnerable youth exiting detention, including young~~
13 ~~women, gender non-conforming and LGBT youth, African American youth, immigrant youth,1 foster~~
14 ~~youth, homeless youth, and mentally ill youth.~~

15 ~~WORK FOCUS AREA # 6: Develop a reinvestment plan that redirects funds historically~~
16 ~~allocated for Juvenile Hall to community-based alternatives to detention, the Center, and additional~~
17 ~~mental health and academic support programs for juvenile justice-involved youth.~~

18 ~~WORK FOCUS AREA # 7: Develop policy recommendations for the Police Department, the~~
19 ~~Juvenile Probation Department, and CARG, which divert youth who have been arrested from the~~
20 ~~juvenile justice system to alternative, community-based programs and support systems.~~

21 ~~WORK FOCUS AREA # 8: Develop policy recommendations for the Juvenile Probation~~
22 ~~Department that transform the department supervision model into a strengths-based framework so that~~
23 ~~young people are not sent to detention for probation violations, including technical violations or~~
24 ~~violations for low-level offenses.~~

25 ~~(b) In carrying out its duties, the Working Group shall: 1) collaborate with the Mayor's~~

1 ~~Juvenile Justice Reform Blue Ribbon Panel; and 2) consult with the Capital Planning Committee, Real~~
2 ~~Estate Division, Child Welfare Division of the Human Services Agency, Child Crisis Division of the~~
3 ~~Department of Public Health, the Department of Children, Youth and Their Families, Youth~~
4 ~~Commission, the Police Department, and the San Francisco Unified School District. The Working~~
5 ~~Group shall invite a representative of each entity identified in this subsection (b) to all Working Group~~
6 ~~meetings.~~

7 ~~(c) Subject to the fiscal, budgetary, and civil service provisions of the Charter, and to the extent~~
8 ~~consistent with open government laws, the Working Group shall investigate juvenile justice best~~
9 ~~practices by visiting other jurisdictions and request that the Director retain subject matter experts, as~~
10 ~~needed.~~

11 ~~(d) Reports. The Working Group shall prepare and submit a report every six months that~~
12 ~~describes the Working Group's progress in fulfilling the duties set forth in this Section 5.40-6. The first~~
13 ~~report shall be due six months after the effective date of the ordinance in Board File No. 190392,~~
14 ~~creating this Article XL. The Working Group shall submit each report to the Board of Supervisors,~~
15 ~~along with a proposed resolution to accept the report. The Working Group shall also submit each~~
16 ~~report to the Mayor, any City department or office responsible for a program identified in the report,~~
17 ~~and the Director. The Working Group shall submit the final plan to the Board no later than June 1,~~
18 ~~2021, detailing the final steps needed to close Juvenile Hall by December 31, 2021. The plan shall be~~
19 ~~accompanied by a proposed resolution accepting the plan, and the Board may act by resolution to~~
20 ~~accept, reject, or modify the plan. Each report shall be available to the public, and the Director.1~~
21 ~~shall post each report on the Human Rights Commission's website.~~

22 ~~(e) In carrying out its duties, the Working Group shall receive prompt and full cooperation and~~
23 ~~assistance from all City departments, offices, officers, and employees. All components of City~~
24 ~~government shall promptly produce all records and information requested by the Working Group,~~
25 ~~unless prohibited from doing so by state or federal law.~~

1
2 **~~SEC. 5.40-7. SUNSET DATE.~~**

3 ~~This Article XL shall expire by operation of law, and the Working Group shall terminate, when~~
4 ~~the Chief Juvenile Probation Officer certifies in writing that Juvenile Hall is closed and there is a~~
5 ~~substitute place or places of detention, approved by the Court, that is available for wards of the Court~~
6 ~~and persons alleged to come within the jurisdiction of the Court. In that event, after the sunset date,~~
7 ~~the City Attorney shall cause this Article XL to be removed from the Administrative Code.~~
8

9 **ARTICLE XL: CHILDREN, YOUTH, AND THEIR FAMILIES SERVICE PROVIDER**

10 **ADVISORY COUNCIL**

11 [This bracketed note is uncodified. See Section 4 of this ordinance for the source and text of
12 this Article XL, which consists of Section 5.40-1.]

13 **ARTICLE XLI: OUR CITY, OUR HOME OVERSIGHT COMMITTEE**

14 **SEC. 5.41-1. ESTABLISHMENT OF OUR CITY, OUR HOME OVERSIGHT**
15 **COMMITTEE.**

16 (a) In approving Proposition C in the November 6, 2018 general municipal election, the
17 voters of the City and County of San Francisco adopted the Homelessness Gross Receipts
18 Tax Ordinance, codified in Business and Tax Regulations Code Article 28. One section of
19 that measure, Business and Tax Regulations Code Section 2810, sets forth the required and
20 permissible expenditures of monies collected under the Homelessness Gross Receipts Tax
21 Ordinance and deposited to the credit of the Our City, Our Home Fund (the "Fund")
22 established in Administrative Code Section 10.100-164. Section 2810 envisions the
23 establishment of the Our City, Our Home Oversight Committee to monitor and provide advice
24 regarding the administration of the Fund.

25 (b) Consistent with the intent of the voters in adopting Proposition C, the Board of

Supervisors hereby establishes the Our City, Our Home Oversight Committee (the “Committee”) as an Advisory Body as defined in Section 5.1-1.

SEC. 5.41-2. PURPOSES AND DUTIES.

The Committee shall have the following purposes and duties:

(a) All the purposes and duties as set forth in Business and Tax Regulations Code Section 2810(e)(1) and (2).

(b) Identify barriers to safe and successful exits out of homelessness, and propose to the Board of Supervisors, the Mayor, the Health Commission, and the Homelessness Oversight Commission ways to reduce those barriers or the impact of those barriers.

(c) Solicit substantive input from people who are Homeless regarding spending priorities. The Committee may seek this input through all appropriate means, including but not limited to conducting surveys and focus groups, and coordinating with community organizations that conduct outreach and/or provide services to Homeless people.

(d) Each needs assessment conducted in accordance with Business and Tax Regulations Code Section 2810(e)(2)(B) shall be provided in the form of a written report within the time frames there specified. The needs assessment specified in Section 2810(e)(2)(B) shall include an assessment of the needs of Homeless people with disabilities, and the report shall include an assessment of available data regarding the disability status of Homeless people served by the programs and expenditures described in Business and Tax Regulations Code Section 2810(b)(3). Each needs assessment shall be transmitted to the Department of Homelessness and Supportive Housing to inform the Department’s strategic planning process.

(e) In conjunction with each needs assessment report, at least 60 days before issuing the report, the Committee shall provide a draft of the report to each City department discussed

1 in the report, and allow the department 30 days to provide a written response to the
2 Committee. The Committee shall include any such responses that it timely receives from
3 departments in the report.

4 (f) For purposes of this Section 5.41-2, the term "Homeless" has the same meaning as
5 in Business and Tax Regulations Code Section 2810(h)(1).
6

7 **SEC. 5.41-3. MEMBERSHIP ~~AND TERMS OF OFFICE.~~**

8 (a) The Committee shall have nine voting members, with qualifications and appointing
9 authorities as set forth in Business and Tax Regulations Code Section 2810(e)(3)(A) and (B).
10 ~~An appointment to a seat on the Committee may not become effective before the effective date of this~~
11 ~~Article XLI.~~

12 ~~(b) The terms of each seat on the Committee shall commence on the effective date of this Article~~
13 ~~XLI. Terms of seats shall be for two years, except that the initial terms for odd-numbered seats shall be~~
14 ~~for three years.~~

15 ~~(c) Service on the Committee shall be voluntary and members shall receive no compensation~~
16 ~~from the City.~~

17 ~~(d) Members may be removed by their appointing authorities at any time. Additionally, any~~
18 ~~Any member who misses three regular meetings of the Committee within a six-month period without the~~
19 ~~express approval of the Committee at or before each missed meeting shall be deemed to have resigned~~
20 ~~from the Committee ten days after the third unapproved absence. The Committee shall inform the~~
21 ~~member's appointing authority of any such resignation.~~
22

23 **SEC. 5.41-4. ORGANIZATION AND SUPPORT.**

24 (a) The Committee ~~shall hold its inaugural meeting not more than 30 days after at least six~~
25 ~~members have been appointed to the Committee. There shall be at least ten days' notice of the~~

1 ~~inaugural meeting. Following the inaugural meeting, the Committee shall hold at least one additional~~
2 ~~meeting before June 30, 2019. Thereafter, the Committee~~ shall hold a regular meeting not less
3 than six times per fiscal year.

4 ~~(b) The Committee shall elect a Chair, Vice Chair, and officers for such other positions, if any,~~
5 ~~it chooses to create. The Chair, or the Vice Chair if the Chair is unavailable, shall be responsible for~~
6 ~~developing the Committee's agendas and conducting meetings. The Committee may establish bylaws~~
7 ~~and rules for its organization and procedures.~~

8 ~~(eb) All City departments, commissions, boards, and agencies shall cooperate with the~~
9 ~~Committee in the performance of its functions.~~ At least one representative from each of the
10 Department of Homelessness and Supportive Housing, the Mayor's Office of Housing and
11 Community Development, the Office of the Controller, and the Department of Public Health
12 shall attend all regular meetings of the Committee to be available to provide policy support to
13 the Committee.

14 ~~(ec)~~ The Controller shall provide administrative and clerical support for the Committee.

15 ~~(ed)~~ Notwithstanding Rule 2.21 of the Board of Supervisors Rules of Order, which
16 provides that advisory bodies created by the Board of Supervisors should sunset within three
17 years, the Committee shall not expire unless the Board enacts an ordinance terminating the
18 Committee.

20 ~~ARTICLE XLV: HOUSING STABILITY FUND OVERSIGHT BOARD~~

21 ~~SEC. 5.45-1. ESTABLISHMENT OF HOUSING STABILITY FUND OVERSIGHT~~ 22 ~~BOARD.~~

23 ~~The Board of Supervisors hereby establishes the Housing Stability Fund Oversight Board (the~~
24 ~~"Oversight Board").~~

1 **~~SEC. 5.45-2. MEMBERSHIP.~~**

2 ~~The Oversight Board shall consist of the following 11 voting members.~~

3 ~~(a) Seats 1 and 2 shall be held by persons who are residents of Social Housing Developments,~~
4 ~~as defined in Section 10.100-78 of the Administrative Code, as amended from time to time to be~~
5 ~~appointed by the Board of Supervisors.~~

6 ~~(b) Seats 3 and 4 shall be held by persons with experience owning, operating, or developing~~
7 ~~Social Housing Developments, as defined in Section 10.100-78 of the Administrative Code, to be~~
8 ~~appointed by the Board of Supervisors.~~

9 ~~(c) Seats 5 and 6 shall be held by persons with legal, academic, or financing expertise~~
10 ~~regarding affordable housing creation and policy, to be appointed by the Board of Supervisors.~~

11 ~~(d) Seat 7 shall be held by a person with experience or expertise in advocacy on behalf of~~
12 ~~tenants or residents of affordable housing, to be appointed by the Board of Supervisors.~~

13 ~~(e) Seat 8 shall be held by a person with experience or expertise in the organized labor~~
14 ~~community, to be appointed by the Board of Supervisors.~~

15 ~~(f) Seat 9 shall be held by an employee of the Mayor's Office of Housing and Community~~
16 ~~Development (MOHCD), to be appointed by the Director of MOHCD.~~

17 ~~(g) Seats 10 and 11 shall be held by any resident of San Francisco with a demonstrated~~
18 ~~commitment to affordable housing and to racial and economic equity, to be appointed by the Board of~~
19 ~~Supervisors.~~

20
21 **~~SEC. 5.45-3. ORGANIZATION AND TERMS OF OFFICE.~~**

22 ~~(a) Members of the Oversight Board shall serve at the pleasure of their respective appointing~~
23 ~~authorities and may be removed by the member's appointing authority at any time. Each member may~~
24 ~~remain on the Oversight Board for a maximum of two full terms unless removed prior to the expiration~~
25 ~~of the term by the member's appointing authority, provided that such limitations to terms do not apply~~

1 ~~to Seat 9 (with such terms staggered so as to minimize the number of terms expiring simultaneously).~~
2 ~~The staggered terms will be applied as follows: the initial appointment for seats, 2, 4, 6, and 11 is two~~
3 ~~years, with the remaining seats being appointed to initial four-year terms. Thereafter, all terms shall~~
4 ~~be for four years. For purposes of the term limit, serving an initial term of two years, or serving more~~
5 ~~than half of a four-year term, shall count as serving a full term. A seat that is vacant on the Oversight~~
6 ~~Board shall be filled by the appointing authority for that seat.~~

7 ~~(b) Members of the Oversight Board shall receive no compensation from the City, except that~~
8 ~~the member in Seat 9 may receive their regular City salary for time spent on the Oversight Board.~~

9 ~~(c) Any member who misses three regular meetings of the Oversight Board within a twelve-~~
10 ~~month period without the express approval of the Oversight Board at or before each missed meeting~~
11 ~~shall be deemed to have resigned from the Oversight Board 10 days after the third unapproved~~
12 ~~absence. The Oversight Board shall inform the appointing authority and the Clerk of the Board of~~
13 ~~Supervisors of any such resignation.~~

14 ~~(d) The Mayor's Office of Housing and Community Development shall provide administrative~~
15 ~~and clerical support for the Oversight Board. All City officials and agencies shall cooperate with the~~
16 ~~Oversight Board in the performance of its functions.~~

17
18 **~~SEC. 5.45 4. POWERS AND DUTIES.~~**

19 ~~(a) The Oversight Board shall provide oversight for the Housing Stability Program Fund~~
20 ~~established under Section 10.100-78 of Article XIII of Chapter 10 of the Administrative Code by~~
21 ~~making recommendations and providing guidance for the use of the Housing Stability Program Fund~~
22 ~~for Social Housing Developments, including, but not limited to, the acquisition of land and/or~~
23 ~~improvements, preservation, development, rehabilitation, construction, operation, loans, grants, and~~
24 ~~other eligible uses determined by MOHCD, and as included in any Housing Stability Fund regulations.~~
25 ~~The Oversight Board shall seek to make its recommendations through a racial and economic equity~~

1 ~~lens, with an eye toward the short term and long term impact on the use of the monies from the~~
2 ~~Housing Stability Program Fund.~~

3 ~~(b) To aid the Oversight Board in making its recommendations and providing guidance,~~
4 ~~MOHCD shall submit a report to the Oversight Board by January 15 annually and present on the~~
5 ~~report at a subsequent Oversight Board meeting. MOHCD shall report on the use of the Housing~~
6 ~~Stability Fund during the preceding fiscal year, which report shall include, but need not be limited to,~~
7 ~~the amounts approved for disbursement for specific uses, the number and size of sites acquired and type~~
8 ~~(including improved or vacant), the scope of rehabilitation work for improved sites, the number of units~~
9 ~~developed or assisted by the Housing Stability Fund, the neighborhoods/geography of projects funded,~~
10 ~~and overall program implementation goals for the current fiscal year and proposed priorities for the~~
11 ~~next fiscal year.~~

12 ~~(c) The Controller's Office shall provide a written report to the Board of Supervisors and the~~
13 ~~Oversight Board, by February 1 annually, with a summary of all revenues collected under real~~
14 ~~property transfer tax in the prior fiscal year 1~~

15 ~~(d) The Oversight Board shall make recommendations, including budget recommendations, to~~
16 ~~the Board of Supervisors by March 31 annually.~~

18 **~~SEC. 5.45-5. MEETINGS AND PROCEDURES.~~**

19 ~~(a) The Oversight Board shall hold its inaugural meeting not more than 90 days after the~~
20 ~~effective date of the ordinance in Board File No. 200610 enacting this Article XLVI. There shall be at~~
21 ~~least 10 days' notice of the inaugural meeting. Following the inaugural meeting, the Oversight Board~~
22 ~~shall hold a regular meeting not less than once each quarter.~~

23 ~~(b) The Oversight Board shall elect a Chair and such other officers as it deems appropriate,~~
24 ~~and may establish bylaws and rules for its organization and procedures.~~

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Board of Supervisors a fourth member from the Board of Supervisors to serve as an alternate member of the EIFD Public Financing Authority No. 1. The alternate member may serve and vote in place of any one of the three members from the Board of Supervisors who is absent from a meeting of the EIFD Public Financing Authority No. 1, or with respect to any meeting agenda item for which one of the three members from the Board of Supervisors is recused, or may serve and vote if there is a vacancy in Seat 1, 2, or 3.

(c) Seats 4 and 5 shall be held by members of the public, nominated by the President of the Board of Supervisors and appointed by the Board of Supervisors. Appointment of members of the public to seats 4 and 5 shall comply with California Government Code Sections 54970 and 54972. Such appointees are not precluded from being appointed as members of the legislative body of other enhanced financing districts established by City ordinance.

SEC. 5.48-5. ORGANIZATION AND TERMS OF OFFICE.

~~(a) The EIFD Public Financing Authority No. 1 shall come into existence on the date that appointments have been made to three of the five seats on the body.~~

~~(b) The Board of Supervisors shall make initial appointments to all five seats on the EIFD Public Financing Authority No. 1 by no later than 60 days following the effective date of this Article XLVIII.~~

~~(c) The terms of all five seats shall commence on the date the EIFD Public Financing Authority No. 1 comes into existence, as stated in subsection (a).~~

~~(d) Members of the EIFD Public Financing Authority No. 1 shall serve four-year terms, with the exception that the initial appointments to seats 3 and 4 shall be for two-year terms. Subsequent appointments to seats 3 and 4 shall be for four-year terms. Regardless of when a specific member is actually appointed to a seat, the beginning date of the initial terms is as stated in~~

1 ~~subsection (e).~~ The terms and term limits established in Section 5.1-2 shall otherwise apply.

2 ~~(e) Members of the EIFD Public Financing Authority No. 1 shall serve at the pleasure of the~~
3 ~~Board of Supervisors and may be removed from serving on the body by the Board of Supervisors at any~~
4 ~~time.~~

5 ~~(f) When a vacancy occurs on the EIFD Public Financing Authority No. 1, the Board of~~
6 ~~Supervisors shall fill the vacancy in accordance with Section 5.48 4. The replacement appointee shall~~
7 ~~complete the term of the seat that was vacated, but is not precluded from being appointed to the EIFD~~
8 ~~Public Financing Authority No. 1 for an additional term or terms.~~

9 ~~(g) If a member of the EIFD Public Financing Authority No. 1 from the Board of Supervisors in~~
10 ~~seats 1-3 or serving as an alternate member leaves the Board of Supervisors, then that Supervisor's~~
11 ~~membership on the EIFD Public Financing Authority No. 1, or status as an alternate member, as the~~
12 ~~case may be, expires by operation of law, creating a vacancy in the seat or the alternate membership.~~

13 ~~(h)~~ Members of the EIFD Public Financing Authority No. 1 shall receive no
14 compensation, but they may receive reimbursement for actual and necessary expenses
15 incurred in the performance of official duties pursuant to Article 2.3 (commencing with Section
16 53232) of Chapter 2 of Part 1 of Division 2 of Title 5 of the California Government Code.

17 ~~(i)~~ Members of the EIFD Public Financing Authority No. 1 are subject to Article 2.4
18 (commencing with Section 53234) of Chapter 2 of Part 1 of Division 2 of Title 5 of the
19 California Government Code.

20 ~~(j)~~ The EIFD Public Financing Authority No. 1 shall establish such rules and
21 procedures as are necessary or appropriate to ensure compliance with California Government
22 Code Sections 53398.50 et seq., to further the purposes of the enhanced infrastructure
23 financing districts for which it acts as the governing board, and to satisfy the requirements of
24 Section 5.48.7 below.

25 ~~(k)~~ The Office of the Controller shall provide administrative and clerical support to the

EIFD Public Financing Authority No. 1, unless and until that function is re-assigned to another Department as part of the annual budget process.

SEC. 5.48-7. MEETINGS ~~AND PROCEDURES.~~

~~(a) The EIFD Public Financing Authority No. 1 shall hold its inaugural meeting no later than 90 days after the effective date of the ordinance establishing this Article XLVIII. There shall be at least ten days' notice of the inaugural meeting.~~

~~(b) Following the inaugural meeting, and not counting the inaugural meeting, the~~ The EIFD Public Financing Authority No. 1 shall hold a regular meeting not less than one time per year.

~~(c) The EIFD Public Financing Authority No. 1 shall elect a Chair, and in its discretion may establish such other offices, if any, as it deems appropriate, to be filled by election.~~

~~(d) The EIFD Public Financing Authority No. 1 may establish rules for its organization and procedures, as the Potrero EIFD Public Financing Authority No. 1 deems necessary or appropriate.~~

~~(e) Three members of the EIFD Public Financing Authority No. 1 shall constitute a quorum.~~

~~(f)~~ In accordance with California Government Code Section 53398.51.1(e), the EIFD Public Financing Authority No. 1 shall be deemed a local public agency subject to the Ralph M. Brown Act (Title 5, Division 2, Part 1, Chapter 9 (commencing with Section 54950) of the California Government Code); the California Public Records Act (Title 1, Division 10 (commencing with Section 7920.000) of the California Government Code); and the Political Reform Act of 1974 (Title 9 (commencing with Section 81000) of the California Government Code).

SEC. 5.48-8. SUNSET

Unless the Board of Supervisors by ordinance extends the term of the EIFD Public Financing Authority No. 1, it shall terminate on (a) the date on which enhanced infrastructure

1 financing districts for which it acts as governing board no longer receive property tax revenues
2 under the applicable infrastructure financing plans, or (b) the date on which no bonds or other
3 forms of indebtedness of the EIFD Public Financing Authority No. 1 are outstanding,
4 whichever date is later. After that date, the City Attorney is authorized to cause this Article
5 XLVIII to be removed from the Administrative Code.

6
7 **ARTICLE XLIX: BOARD OF DIRECTORS OF THE SAN FRANCISCO DOWNTOWN**
8 **REVITALIZATION AND ECONOMIC RECOVERY FINANCING DISTRICT**

9 **SEC. 5.49-1. DEFINITIONS.**

10 For purposes of this Article XLIX, the following words or phrases shall have the
11 following meanings:

12 “Board of Directors of the Downtown Revitalization District” or “Board of Directors” or
13 “District Board” shall mean the Board of Directors of the San Francisco Downtown
14 Revitalization and Economic Recovery Financing District, the governing board established to
15 act as the governing board for the Downtown Revitalization District. The Board of Directors of
16 the Downtown Revitalization District is a Commission as defined in Section 5.1-1.

17 “City” shall mean the City and County of San Francisco.

18 “Downtown Revitalization District” shall mean the San Francisco Downtown
19 Revitalization and Economic Recovery Financing District.

20 “Downtown Revitalization Financing Plan” shall have the meaning given that term in
21 Section 5.49-3.

22 * * * *

23
24 **SEC. 5.49-5. ORGANIZATION AND TERMS OF OFFICE.**

25 (a) The Board of Directors shall come into existence on the date that appointments

1 have been made to three of the five voting seats on the body.

2 (b) The President of the Board of Supervisors and the Board of Supervisors shall
3 make initial appointments to all five seats on the Board of Directors as specified in Section
4 5.49-4 above by no later than 90 days following the effective date of this Article XLIX.

5 (c) The terms of all six members of the Board of Directors shall commence on the date
6 the Board of Directors comes into existence, as specified in Section 5.49-5(a), whether or not
7 all members have been appointed as of that date.

8 (d) Members of the Board of Directors shall serve four-year terms, except that the
9 initial appointments to seats 3 and 5 shall be for two-year terms. Subsequent appointments to
10 seats 3 and 5 shall be for four-year terms. The terms and term limits established in Section 5.1-2
11 shall otherwise apply.

12 ~~(e) Members in seats 1, 2, and 3, and the alternate member in seat 4 shall serve at the pleasure~~
13 ~~of the President of the Board of Supervisors and may be removed by the President or by the Board of~~
14 ~~Supervisors at any time. Members in seats 5 and 6 shall serve at the pleasure of the Board of~~
15 ~~Supervisors and may be removed by the Board of Supervisors at any time.~~

16 ~~(f) When a vacancy occurs on the Board of Directors, the President of the Board of Supervisors~~
17 ~~and/or the Board of Supervisors shall fill the vacancy in accordance with Section 5.49-4. The~~
18 ~~replacement appointee shall complete the term of the seat that was vacated, but is not precluded from~~
19 ~~being appointed to the Board of Directors for an additional term or terms.~~

20 ~~(g) If a member of the Board of Directors in seats 1-4 leaves the Board of Supervisors, then~~
21 ~~that Supervisor's membership on the Board of Directors, or status as an alternate member, as the case~~
22 ~~may be, expires by operation of law, creating a vacancy in the seat.~~

23 (he) Members of the Board of Directors shall receive no compensation, but they may
24 receive reimbursement for actual and necessary expenses incurred in the performance of
25 official duties pursuant to Article 2.3 (commencing with Section 53232) of Chapter 2 of Part 1

1 of Division 2 of Title 5 of the California Government Code.

2 (if) Members of the Board of Directors are subject to Article 2.4 (commencing with
3 Section 53234) of Chapter 2 of Part 1 of Division 2 of Title 5 of the California Government
4 Code.

5 ~~(j) The Board of Directors shall establish such rules and procedures as are necessary or~~
6 ~~appropriate to ensure compliance with the Downtown Revitalization Law, to further the purposes of the~~
7 ~~Downtown Revitalization Financing District, and to satisfy the requirements of Section 5.49-7 below.~~

8 (kg) The Clerk of the Board of Supervisors shall provide administrative and clerical
9 support to the Board of Directors, unless and until that function is reassigned to another City
10 department as part of the annual budget process. Costs incurred in connection with
11 administrative and clerical support to the Board of Directors shall be paid by the Downtown
12 Revitalization District as provided in the Downtown Revitalization Law.

13 (lh) The Office of Economic and Workforce Development shall provide analytical
14 support to the Downtown Revitalization Financing District as needed to fulfill the obligations
15 and purposes described in Section 5.49-3. Costs incurred in connection with such analytical
16 support shall be paid by the Downtown Revitalization District as provided in the Downtown
17 Revitalization Law.

18 (mi) As permitted by the Downtown Revitalization Law, all costs incurred by any other
19 City department in connection with the creation, management or other administrative support
20 for the Downtown Revitalization District shall be paid by the Downtown Revitalization District.

21
22 **SEC. 5.49-6. POWERS AND DUTIES.**

23 (a) The Board of Directors shall have the powers and duties set forth in the Downtown
24 Revitalization Law.

25 (b) The Board of Directors shall have no authority to act on behalf of the City. The

1 Downtown Revitalization Financing District, once formed, shall be a governmental entity
2 separate and distinct from the City, and its sole purpose shall be to finance commercial-to-
3 residential conversion projects or other projects of communitywide significance in downtown
4 San Francisco that support downtown revitalization and economic recovery in accordance
5 with the Downtown Revitalization Law.

7 **SEC. 5.49-7. MEETINGS AND PROCEDURES.**

8 (a) The Board of Directors shall hold its inaugural meeting no later than 120 days after
9 the effective date of the ordinance establishing this Article XLIX.

10 (b) Following the inaugural meeting, and not counting the inaugural meeting, the Board
11 of Directors shall hold a regular meeting not less than one time per year.

12 ~~(c) At least 10 days before each meeting of the Board of Directors, including the inaugural~~
13 ~~meeting, the Board of Directors shall post notice of the public hearing as follows: (i) in an easily~~
14 ~~identifiable and accessible location on the Board of Directors' website; (ii) at the San Francisco Public~~
15 ~~Library; and (iii) in a newspaper of general circulation in San Francisco.~~

16 ~~(d) The Board of Directors shall elect a chair, and in its discretion may establish such other~~
17 ~~offices as it deems appropriate, to be filled by election.~~

18 ~~(e) The Board of Directors may establish rules for its organization and procedures, as it deems~~
19 ~~necessary or appropriate.~~

20 ~~(f) Three voting members of the Board of Directors shall constitute a quorum.~~

21 ~~(g) In accordance with Government Code Section 62452(e), the Board of Directors shall be~~
22 ~~deemed a local public agency subject to the Ralph M. Brown Act (Title 5, Division 2, Part 1, Chapter 9~~
23 ~~(commencing with Section 54950) of the California Government Code); the California Public Records~~
24 ~~Act (Title 1, Division 10 (commencing with Section 7920.000) of the California Government Code);~~
25 ~~and the Political Reform Act of 1974 (Title 9 (commencing with Section 81000) of the California~~

1 ~~Government Code).~~

2 ~~(h) The Downtown Revitalization Financing District shall also be subject to the requirements~~
3 ~~of the San Francisco Sunshine Ordinance, Chapter 67 of the Administrative Code.~~

4
5 **SEC. 5.49-8. SUNSET.**

6 Unless the Board of Supervisors by ordinance extends the term of the Board of
7 Directors, it shall terminate on the date on which the Downtown Revitalization Financing
8 District no longer receives property tax revenues under the Downtown Revitalization
9 Financing Plan. After that date, the City Attorney is authorized to cause this Article XLIX to be
10 removed from the Administrative Code.

11
12 Section 4. Chapter 2A of the Administrative Code is hereby amended by deleting
13 Section 2A.85 and Article XXI, and revising Sections 2A.31, 2A.233, and 2A.234 to read as
14 follows. In addition, as indicated below, Section 2A.233 as amended shall be redesignated as
15 Section 5.39-1 in Chapter 5 of the Administrative Code and shall be part of a new article in
16 Chapter 5 to be titled "ARTICLE XXXIX: CHILDREN, YOUTH AND THEIR FAMILIES
17 OVERSIGHT AND ADVISORY COMMITTEE," and Section 2A.234 shall be redesignated as
18 Section 5.40-1 in Chapter 5 of the Administrative Code and shall be part of a new article in
19 Chapter 5 to be titled "ARTICLE XL: CHILDREN, YOUTH, AND THEIR FAMILIES SERVICE
20 PROVIDER ADVISORY COUNCIL."

21
22 **SEC. 2A.31. DEPARTMENT RESPONSIBILITY FOR WORKERS' COMPENSATION**
23 **COSTS.**

24 The Board of Supervisors of the City and County of San Francisco hereby declares
25 that all departments shall share responsibility for workers' compensation costs and shall more

1 effectively monitor and manage workers' compensation costs for employees of the City and
2 County of San Francisco. To achieve this purpose, effective January 1, 2001, it shall be
3 required that:

4 (a) Department heads shall identify and utilize limited or modified duty assignments
5 whenever practical for workers with disabilities;

6 (b) Department heads shall identify the person or persons with authority and
7 responsibility for monitoring and managing workers' compensation costs and shall assist
8 communications between the workers' compensation claims division and the injured
9 employee;

10 (c) Operating managers at all levels shall be responsible for monitoring and
11 managing workers' compensation costs and shall receive training for this purpose;

12 (d) Performance evaluations of individual managers shall include review of their
13 management of workers' compensation claims and costs;

14 (e) City-wide budgeting and accounting mechanisms shall be established to allocate
15 to each department its equitable share of workers' compensation costs;

16 (f) Automated data on employee workers' compensation claims shall be produced
17 and made available by ~~the Human Resources Director~~, the Controller, and all departments, in
18 form and frequency determined by the ~~Workers' Compensation Council~~ Human Resources
19 Director to be sufficient to permit effective analysis for department management of workers'
20 compensation costs;

21 ~~(g) Department heads shall submit a written report each quarter to the Workers'~~
22 ~~Compensation Council on the status of the department's workers' compensation claims. These reports~~
23 ~~shall include but not be limited to incidence rates of employee injuries, lost workday incident rates,~~
24 ~~year-to-year comparisons, utilization by the department of limited or modified duty assignments and~~
25 ~~disability transfers.~~

1
2 ~~SEC. 2A.85. JUSTICE TRACKING INFORMATION SYSTEM (JUSTIS) COMMITTEE~~
3 ~~GOVERNANCE COUNCIL.~~

4 ~~(a) Creation of Council. The Board of Supervisors hereby creates a Governance Council~~
5 ~~comprised of representatives of all participating criminal justice agencies in the City and County of~~
6 ~~San Francisco, or agencies that operate programs integrally related to the criminal justice system, to~~
7 ~~establish policy related to implementation and ongoing operation of JUSTIS (Justice Tracking~~
8 ~~Information System). JUSTIS is an integrated criminal justice information system serving participating~~
9 ~~criminal justice agencies in San Francisco.~~

10 ~~(b) Functions of the JUSTIS Governance Council. The responsibility of the JUSTIS~~
11 ~~Governance Council include the following:~~

- 12 ~~— 1. Setting priorities and approving direction for project development and enhancements;~~
13 ~~— 2. Reviewing, approving, and submitting annual and supplemental appropriations~~
14 ~~requests.~~
15 ~~— 3. Approving vendor contracts.~~

16 ~~(c) Membership. The membership of the JUSTIS Governance Council shall be composed of the~~
17 ~~heads of the following agencies:~~

- 18 ~~— (1) San Francisco Superior Court.~~
19 ~~— (2) District Attorney.~~
20 ~~— (3) Public Defender.~~
21 ~~— (4) Sheriff.~~
22 ~~— (5) Adult Probation Department.~~
23 ~~— (6) Police Department.~~
24 ~~— (7) Department of Emergency Management.~~
25 ~~— (8) Juvenile Probation Department.~~

1 ~~—(9) Mayor's Office.~~

2 ~~—(10) Department on the Status of Women.~~

3 ~~—(11) City Administrator.~~

4 ~~—(12) Department of Technology (non-voting).~~

5 ~~(d) Chair and Co-Chair of Council. The City Administrator shall serve as the permanent~~
6 ~~Chair. The Co-Chair, selected from among voting members, shall serve on an annual rotating basis.~~

7 ~~(e) Meeting Frequency. The JUSTIS Governance Council shall meet at least twice annually.~~
8 ~~The Chair may call a special or emergency meeting as needed.~~

9 ~~(f) Voting. Each voting agency shall have one equal vote. Only department heads or their~~
10 ~~authorized designees may vote. A designee must be authorized by the Department Head to vote on all~~
11 ~~action items at the meeting.~~

12 ~~(g) Staffing. Each participating Department shall assign staff as needed to support the~~
13 ~~implementation of JUSTIS.~~

14 * * * *

15
16 **SEC. ~~2A.2335.39-1~~. CHILDREN, YOUTH AND THEIR FAMILIES OVERSIGHT AND**
17 **ADVISORY COMMITTEE.**

18 (a) **Purpose.** As provided in Charter Section 16.108-1, there shall be a Children,
19 Youth and Their Families Oversight and Advisory Committee ("Oversight and Advisory
20 Committee" or "Committee") to review the governance and policies of the Department of
21 Children, Youth and Their Families ("DCYF"), and to take steps to ensure that the Children
22 and Youth Fund ("Fund") is administered in a manner accountable to the community. The
23 Committee shall be a Commission as defined in Administrative Code Section 5.1-1.

24 ~~—The Oversight and Advisory Committee replaces the Children's Fund Citizens Advisory~~
25 ~~Committee formerly established by Charter Section 16.108(n) as adopted by the voters in November~~

1 ~~2000. Subsection (n) was repealed and the advisory committee terminated by operation of law upon~~
2 ~~the adoption of Proposition C by the voters in November 2014.~~

3 (b) **Duties and Functions.** The Oversight and Advisory Committee- shall carry out
4 the following duties and functions, ~~some of which are specified in Charter Section 16.108-1, and~~
5 ~~some of which are not specified by Charter but adopted by ordinance under the authority provided in~~
6 ~~Section 16.108-1:~~

7 (1) ~~The Oversight and Advisory Committee shall develop~~ Develop recommendations for
8 DCYF regarding outcomes for children and youth services, the evaluation of services,
9 common data systems, processes for making funding decisions, program improvement and
10 capacity-building of service providers, community engagement in planning and evaluating
11 services, leveraging dollars of the Fund and the use of the Fund as a catalyst for innovation.

12 (2) ~~The Oversight and Advisory Committee shall promote~~ Promote transparency for the
13 Fund and its processes.

14 (3) ~~Pursuant to Charter Section 16.108, the Oversight and Advisory Committee shall~~
15 ~~review~~ Review and approve the planning process for the Children and Youth Fund Community
16 Needs Assessment ("CNA") and final CNA, the Services and Allocation Plan (SAP), and the
17 annual Data and Evaluation Report.

18 (4) ~~The Oversight and Advisory Committee shall review~~ Review and approve DCYF's
19 overall annual budget expenditures_(including the approval of grants as a package, work
20 orders, supplemental funds, and add-back funds), and ~~shall~~ conduct a mid-year budget review
21 each year to prepare for the following year's budget process and may request budget
22 information as necessary for any of its meetings. The Committee-shall review best practices
23 developed or identified by DCYF and its Director for the grant-making process, including add-
24 back and supplemental funding, and for interdepartmental work orders. These practices shall
25 be designed to promote, among other things, transparency and accountability in the grant-

1 making process and coordination with the Children and Youth Fund SAP and CNA. The
2 Committee shall review any changes or adjustments in revenue to the Children and Youth
3 Fund and the Baseline as defined in Section 16.108. Nothing in this Section shall limit the
4 authority of the Mayor and Board of Supervisors to propose, amend, and adopt a budget
5 under Article IX of the Charter.

6 (5) ~~The Oversight and Advisory Committee shall p~~Participate in the evaluation of the
7 Director of DCYF and assist in recruitment for the Director when the position is vacant, and
8 may recommend candidates to the Mayor for appointment.

9 (6) ~~The Oversight and Advisory Committee shall establish~~ Establish and maintain a
10 Service Provider ~~Working Group~~ Advisory Council as provided in Charter Section 16.108-1 and
11 Article XL of the Administrative Code ~~Section 2A.234~~.

12 (7) ~~The Oversight and Advisory Committee shall confer~~ Confer with the Director of
13 DCYF at least once a year on DCYF's effectiveness and impact.

14 (c) **Meetings.** The Oversight and Advisory Committee shall meet at least six times
15 each calendar year. Any member who fails to attend at least half of the meetings in a
16 calendar year shall be deemed to have resigned from the Committee.

17 (d) **Composition.** ~~As provided in Charter Section 16.108-1, the~~ The Mayor shall appoint
18 members for Seats 1, 2, 3, 4, 5, and 6 on the Oversight and Advisory Committee; the Board of
19 Supervisors shall appoint members for Seats 7, 8, 9, 10, and 11 on the Committee. ~~The~~
20 ~~Mayor's appointments shall take effect 30 days after transmittal of the Mayor's notice of appointment~~
21 ~~to the Board of Supervisors. The Board of Supervisors may hold a public hearing on each of the~~
22 ~~Mayor's appointees to the Committee. If a vacancy occurs in any seat on the Committee, the~~
23 ~~appointing authority for the vacated seat shall appoint a successor.~~

24 (e) **Qualifications of Members.** ~~Members of the Oversight and Advisory Committee~~
25 ~~shall possess the following qualifications:~~ The following qualifications are desirable but not mandatory

1 for members of the Committee:

2 ~~Seat 1: (1)~~ A youth 19 years old or younger at the time of appointment for the term,
3 recommended to the Mayor by the Youth Commission. Because ~~this~~ Committee members
4 may be younger than 18 years at the time of appointment, ~~this member is~~ members are not
5 subject to the requirement of Charter Section 4.101(~~ba~~)(2) that members must be the minimum
6 age required to vote in municipal elections~~be electors of the City and County unless and until the~~
7 ~~member reaches the age of 18 years.~~

8 ~~Seat 2: The same qualifications as for Seat 1.~~

9 ~~Seat 3: (2)~~ A person with demonstrated commitment to improving access to and quality of
10 services for children, youth, and families and who is a parent or guardian of a youth, which youth,
11 at the time of the member's appointment for the term, is under the age of 18 years and
12 enrolled in the San Francisco Unified School District. ~~This Committee member shall have~~
13 ~~demonstrated commitment to improving access to and quality of services for children, youth, and~~
14 ~~families.~~

15 ~~Seat 4: (3)~~ A person with expertise or substantial experience working in services
16 and programs for children ages 5 and younger.

17 ~~Seat 5: (4)~~ A person with expertise or substantial experience working in the field of
18 children and youth services in communities that are low-income or underserved.

19 ~~Seat 6: (5)~~ A person who has demonstrated commitment to improving access and
20 quality of services for children, youth, and families in communities that are low-income or
21 underserved.

22 ~~Seat 7: (6)~~ A person who is a Disconnected Transitional-Aged Youth, as that term
23 is used in Charter Section 16.108, 18 through 24 years of age at the time of appointment, and
24 who is familiar with the issues and challenges faced by Disconnected Transitional-Aged Youth
25 and with services, programs, and systems for them.

1 ~~Seat 8: (7)~~ A parent or guardian of a child, which child is enrolled in kindergarten
2 through 8th grade at the time of the member's appointment for the term, and who is. ~~This~~
3 ~~Committee member shall be~~ from a low-income community or have expertise or substantial
4 experience working to promote the interests of communities of color, and ~~shall have~~ who has
5 demonstrated a commitment to improving access and quality of services for children, youth,
6 and families.

7 ~~Seat 9: (8)~~ A parent or guardian of a child, which child, at the time of the member's
8 appointment for the term, is under the age of 5 years and enrolled in a publicly-subsidized or
9 City-funded program, and who has. ~~This Committee member shall have~~ demonstrated a
10 commitment to improving access and quality of services for children, youth, and families.

11 ~~Seat 10: (9)~~ A person with expertise or substantial experience working in the field of
12 children and youth services in communities that are low-income or under served.

13 ~~Seat 11: (10)~~ A person who has demonstrated commitment to improving access to
14 and quality of services for children, youth, and families.

15 ~~In addition to the stated qualifications for each seat on the Committee, current~~ Current City
16 employees who are at the department head or deputy department head level of authority,
17 SFUSD employees who are at the Director or Assistant Superintendent level of authority or
18 higher, and current employees or members of the boards of directors of organizations where
19 DCYF is the decision-maker for funding may not serve as members of the Oversight and
20 Advisory Committee. For purposes of this subsection (e), a part-time intern with a DCYF-
21 funded organization who is 24 years old or younger shall not be considered an employee of
22 that organization.

23 ~~—(f) **Timing of Appointments; Measuring Terms; First Meeting.** The Mayor and the Board of~~
24 ~~Supervisors shall appoint the initial members of the Committee by July 1, 2015. The appointing~~
25 ~~authorities are encouraged to make their respective application processes as open and transparent as~~

possible.

~~—The terms of the initial appointees shall commence on the date of the first meeting of the Committee, which may occur when at least eight members have been appointed, and no later than July 1, 2015. Terms of Committee members shall be measured from the date of the first Committee meeting.~~

(fg) **Terms and Term Limits.** ~~Members may not serve more than two consecutive two-year terms, except that the members initially appointed to Seats 1, 3, 5, 7, 9, and 11, while remaining eligible to serve a consecutive second two-year term, shall serve for a first term of three years. For the purpose of these term limits, serving more than half of a term shall count as serving a full term on the Committee. Notwithstanding the term limits that generally apply to Commissions under Section 5.1-2, members of the Committee shall serve two-year terms and may serve up to two terms. A part of a term that exceeds one year shall count as a full term; a part of a term that is one year or less shall not. Notwithstanding the preceding sentence, the current term of any person serving on the Committee on January 1, 2027 shall count as a full term if the person serves more than one year of that term. Terms completed on or before December 31, 2026 shall not count as a term for the purpose of the lifetime term limit.~~

~~—(h) **Committee Operations.** At its first meeting, which, as subsection (f) states, shall be no later than July 1, 2015, the Oversight and Advisory Committee shall select a Chair and Vice Chair. Thereafter, the Oversight and Advisory Committee shall adopt bylaws governing its meetings and operations.~~

(gi) **Staffing.** DCYF shall provide sufficient staffing for the Oversight and Advisory Committee and the Service Provider ~~Working Group~~ Advisory Council referenced in Section ~~2A.2345.40-1~~. The Youth Commission shall provide support to the Committee members ~~in~~ Seats 1, 2, and 7 in areas such as training in city government operations, policy analysis and development, and public outreach.

1 **SEC. ~~2A.2345.40-1.~~ CHILDREN, YOUTH, AND THEIR FAMILIES SERVICE**
2 **PROVIDER ~~WORKING-GROUP~~ ADVISORY COUNCIL.**

3 (a) **Purpose.** ~~Pursuant to Charter Section 16.108-1, the The Children, Youth and Their~~
4 ~~Families Oversight and Advisory Committee (“Oversight and Advisory Committee” or “Committee”)~~
5 ~~shall create a Service Provider Working Group (“SP Working Group” or “Working Group”). There is~~
6 ~~hereby established a Children, Youth, and Their Families Service Provider Advisory Council~~
7 ~~(“Council”), which is an Advisory Body as defined in Section 5.1-1. The purpose of the SP Working~~
8 ~~Group Council shall be to advise the Committee Children, Youth and Their Families Oversight and~~
9 ~~Advisory Committee (“Committee”) on funding priorities, policy development, the planning cycle,~~
10 ~~evaluation design and plans, and any other issues of concern to the SP Working Group Council~~
11 ~~related to the Children and Youth Fund (“Fund”) established in Charter Section 16.108, or the~~
12 ~~responsibilities of the Department of Children Youth and Their Families (“DCYF”) or other~~
13 ~~departments receiving monies from the Fund. Where the Charter refers to the “Service Provider~~
14 ~~Working Group,” such references shall be understood to refer to the Council.~~

15 (b) **Membership and Meetings.** ~~The SP Working Group Council shall have at least 10~~
16 ~~seven members appointed by the Committee. The Working Group Council shall engage a broad~~
17 ~~cross-section of service providers in providing information, education, and consultation to the~~
18 ~~Committee. All members of the Working Group Council shall be persons actively providing~~
19 ~~services to children, youth, and their families during the members’ service on the SP Working~~
20 ~~Group Council. The Working Group Council shall meet at least four times each year.~~

21 The ~~SP Working Group Council~~ shall include members who are service providers
22 who currently receive funding from DCYF, service providers who have never received funding
23 from DCYF but currently provide services for children and youth, and service providers who
24 have received funding from DCYF in the past and who currently provide services for children
25 and youth. In addition, the ~~Working Group Council~~ shall include members with expertise or

1 experience in the various funding areas identified in DCYF's most recent Services and
2 Allocation Plan ~~as provided in Charter Section 16.108(i)(2).~~

3 ~~—(c) **Governance.** By September 1, 2015, the Oversight and Advisory Committee shall develop~~
4 ~~initial bylaws for the SP Working Group, and shall appoint an initial chair and vice chair for the SP~~
5 ~~Working Group who shall be responsible for developing its structure and facilitating its meetings. The~~
6 ~~chair and the vice chair appointed by the Oversight and Advisory Committee shall serve two-year~~
7 ~~terms in those positions. Thereafter, upon the expiration of each of these terms as chair and vice chair,~~
8 ~~the Working Group shall elect succeeding chairs and vice chairs.~~

9 ~~—The SP Working Group shall have its first meeting by December 1, 2015. Thereafter, the~~
10 ~~Working Group shall review and amend, as necessary, bylaws governing its meetings and operations.~~
11 ~~Meetings of the SP Working Group shall be open to the public and conducted in a manner to encourage~~
12 ~~widespread participation.~~

13 (c) **Sunset.** Unless the Board of Supervisors by ordinance extends the term of the Council, this
14 Article XL will expire by operation of law, and the Council shall sunset, on June 1, 2030. In that event
15 and after that date, the City Attorney shall cause this section to be removed from the Administrative
16 Code.

17
18 **~~ARTICLE XXI: CITIZEN'S COMMITTEE ON COMMUNITY DEVELOPMENT~~**

19 **~~SEC. 2A.290. CITIZEN'S COMMITTEE ON COMMUNITY DEVELOPMENT.~~**

20 ~~(a) If, in complying with the City's obligations to provide for citizen participation under U.S.~~
21 ~~Department of Housing and Urban Development ("HUD") Consolidated Planning regulations, the~~
22 ~~Mayor convenes a citizen's committee, the committee shall be called the Citizen's Committee on~~
23 ~~Community Development ("Committee") and shall be governed by this Section.~~

24 ~~(b) Purpose. The Committee shall be an advisory body whose purpose is to make~~
25 ~~recommendations to the Mayor and Board of Supervisors on HUD-based funding allocations and~~

1 ~~policy matters directly related to community development efforts in the City. For purposes of this~~
2 ~~Section, “community development” means a planned effort or program that increases the capacity of~~
3 ~~low- and moderate-income people to improve their quality of life.~~

4 ~~(c) Duties. The Committee’s duties shall include the following:~~

5 ~~—(1) Make policy recommendations to the Mayor and the Board of Supervisors on the~~
6 ~~development and implementation of a comprehensive community development structure and strategy~~
7 ~~for the City. In developing such recommendations, the Committee shall address (1) government~~
8 ~~structure, including coordination between City boards, commissions and advisory bodies with~~
9 ~~overlapping programmatic jurisdiction pertaining to community development, (2) citizen oversight and~~
10 ~~community participation, and (3) strengthening the capacity of community-based organizations that~~
11 ~~serve low- and moderate-income communities.~~

12 ~~—(2) Provide for citizen participation and oversight in the development of the City’s~~
13 ~~consolidated planning process that satisfies the requirements of the HUD Consolidated Planning~~
14 ~~regulations, as amended from time to time.~~

15 ~~—(3) Make annual funding recommendations to the Mayor and Board of Supervisors for the~~
16 ~~HUD entitlement resources of Community Development Block Grants (“CDBG”) and Emergency~~
17 ~~Shelter Grants (“ESG”), in accordance with all HUD requirements, as amended from time to time.~~

18 ~~—(4) Establish a regular Committee public meeting schedule, which shall consist of no less~~
19 ~~than six public meetings per year.~~

20 ~~(d) Committee Membership. The Committee shall consist of nine members. The Mayor shall~~
21 ~~have exclusive power to appoint five members of the Committee; the Board of Supervisors shall have~~
22 ~~exclusive power to appoint four members. The Mayor’s appointees shall have professional expertise in~~
23 ~~one or more of the following areas of community development: community development finance,~~
24 ~~affordable housing, small business development, microenterprise, homelessness, neighborhood~~
25 ~~planning, workforce development, social services, technical assistance to community-based service~~

1 ~~providers, and capital projects and public space improvement. In making its appointments to the~~
2 ~~Commission, the Board of Supervisors shall give consideration to the ability of its appointees to reflect~~
3 ~~and advance the concerns and needs of low-income neighborhoods and/or communities in the City.~~

4 ~~—No person who is either employed by or serves on the governing board of any entity that has~~
5 ~~a CDBG or ESG grant application pending with the City shall be eligible to serve as a member.~~

6 ~~—To stagger the terms of the members, the initial appointments to the Committee shall be as~~
7 ~~follows: the Mayor shall appoint three members to serve terms of two years, two members to serve~~
8 ~~terms of one year. The Board of Supervisors shall appoint two members to serve terms of two years,~~
9 ~~two members to serve terms of one year. Thereafter, all members shall serve for two-year terms.~~

10 ~~—Members shall serve fixed terms and may be removed for cause. Vacancies shall be filled~~
11 ~~by the appointing authority.~~

12 ~~—In addition, the following individuals, or their designee, shall serve ex officio as non-voting~~
13 ~~members of the Committee: the Director of Economic and Workforce Development Department and~~
14 ~~the Director of the Mayor's Office of Housing. The Director of the San Francisco Redevelopment~~
15 ~~Agency, or his or her designee, may also serve ex officio as a non-voting member of the Committee.~~

16 ~~(e) Attendance. The Committee Chair shall monitor the attendance of the Committee. Any~~
17 ~~Committee member who misses three regular or subcommittee meetings within a calendar year,~~
18 ~~whether excused or unexcused, will receive an inquiry from the Chair. If the same member has two or~~
19 ~~more additional unexcused absences, he or she will be deemed to have resigned from the Committee~~
20 ~~and will be notified of separation from the Committee by the Chair.~~

21 ~~(f) Staffing. The Committee shall be staffed primarily by the Mayor's Office of Housing, or its~~
22 ~~successor. As needed, additional staff support shall be provided by City departments that administer~~
23 ~~and oversee CDBG or ESG grants.~~

24
25 Section 5. Chapter 3 of the Administrative Code is hereby amended by revising

1 Section 3.21 as follows. In addition, as indicated below, Section 3.21 as amended shall be
2 redesignated as Section 5.12-1 in the Administrative Code and shall be part of a new article in
3 Chapter 5 to be titled "ARTICLE XII: CAPITAL PLANNING COUNCIL."

4
5 **ARTICLE XII: CAPITAL PLANNING COUNCIL**

6 **SEC. 3.215.12-1. CAPITAL PLANNING COMMITTEE COUNCIL.**

7 There is hereby created a Capital Planning ~~Committee~~Council, ~~an Advisory Body as that~~
8 ~~term is defined in Section 5.1-1~~, consisting of the City Administrator as chair, the President of the
9 Board of Supervisors, the Mayor's ~~Finance~~Budget Director, the Controller, the ~~City~~ Planning
10 Director, the Director of Public Works, the Airport Director, the ~~Executive~~ Director of ~~the~~
11 ~~Municipal~~ Transportation Agency, the General Manager of the Public Utilities ~~Commission~~System,
12 the General Manager of the Recreation and Parks Department, and the Executive Director of
13 the Port of San Francisco. Each member of the Capital Planning ~~Committee~~Council may
14 designate a person to represent ~~her or him~~them as a voting member of the ~~Committee~~Council.
15 Such designations shall be in written documents signed by the designating member and filed
16 with the City Administrator, ~~or her or his~~ their designee.

17 The mission of the Capital Planning ~~Committee~~Council is to review the proposed capital
18 expenditure plan and to monitor the City's ongoing compliance with the final adopted capital
19 plan. As such, the Capital Planning ~~Committee~~Council shall (1) establish prioritization and
20 assessment criteria to assist the City Administrator with the development of the capital
21 expenditure plan, (2) annually review the City Administrator's proposed capital expenditure
22 plan prior to its submission to the Mayor and Board of Supervisors, and (3) review the annual
23 budget and any proposed use of long-term debt, including General Obligation ~~B~~bonds, to
24 ensure compliance with the adopted capital expenditure plan.

25 The Board of Supervisors shall not place on the ballot, or otherwise authorize the

1 issuance of any long term financing, until the Capital Planning ~~Committee~~Council completes a
2 review of the proposal and submits its recommendation to the Board of Supervisors. Each
3 bonding proposal shall be in form and substance satisfactory to the ~~Committee~~Council, and
4 shall be accompanied by descriptive financial, architectural, and/or engineering data, and all
5 other pertinent material in sufficiently complete detail to permit the ~~Committee~~Council to ~~review~~
6 evaluate all aspects of the bonding proposal. The ~~Committee~~Council shall submit a written
7 report to the Mayor and the Board analyzing the feasibility, cost, and priority of each proposal
8 relative to the City's capital expenditure plan.

9 The Chair of the Capital Planning ~~Committee~~Council is hereby authorized to adopt such
10 rules, definitions, and procedures as are necessary to meet the requirements described in this
11 Section 5.12-1 and in Section 3.20 of this Code ~~and 3.21~~.

12
13 Section 6. Chapter 7 of the Administrative Code is hereby amended by revising
14 Sections 7.3, 7.4, and 7.7, and deleting Section 7.4-1, to read as follows:

15
16 **SEC. 7.3. DISASTER COUNCIL – CREATED; COMPOSITION; APPOINTMENT OF**
17 **MEMBERS.**

18 (a) The City and County Disaster Council is hereby created as an Advisory Body, as that
19 term is defined in Section 5.1-1 of the Administrative Code, and shall consist of the following:

20 (a1) The Mayor, who shall ~~be the~~ serve as Co-Chair;

21 ~~—(b) The Vice Chair, who shall be appointed by the Mayor, and who, in the absence of or at~~
22 ~~the direction of the Mayor, shall act on his or her behalf on matters within the purview of this Chapter.~~

23 ~~—(c) Such officers in charge of emergency services as are provided for in the current~~
24 ~~emergency plan of this City and County.~~

25 ~~—(d) Such other representatives of civic, business, labor, veterans, professional, or other~~

~~organizations having an official emergency responsibility, as may be appointed by the Mayor.~~

~~—(e) Three members of the Board of Supervisors, to be appointed by the President of the Board.~~

~~—(f) Controller.~~

~~—(g) The Director of Emergency Services who shall be the Executive Secretary.~~

(2) The Executive Director of the Department of Emergency Management, who shall serve as Co-Chair;

(3) A staff member of the Department of Emergency Management designated by the Executive Director, who shall serve as Secretary;

(4) The Chief of Police;

(5) The Chief of the Fire Department;

(6) The Director of Public Health;

(7) The Executive Director of the Port of San Francisco;

(8) The Executive Director of the Human Services Agency;

(9) The Director of Transportation;

(10) The Director of Public Works;

(11) The Director of Resilience and Capital Planning;

(12) The Controller;

(13) Three members of the Board of Supervisors, appointed by the President of the Board;

and

(14) A Disaster Preparedness Coordinator Chair, appointed by the Executive Director of the Department of Emergency Management, from among the Disaster Preparedness Coordinators of the City.

(b) The Council shall invite representatives of civic, business, labor, veterans, professional, and other organizations to present regularly.

1 (c) The Co-Chairs of the Council shall each retain authority to appoint additional members
2 in their discretion. A quorum of the Council shall consist of a majority of the number of members
3 appointed at the time.

4 (d) Notwithstanding Section 5.1-4 of the Administrative Code, members of the Disaster
5 Council shall serve indefinite terms and are not subject to term limits.

7 **SEC. 7.4. DISASTER COUNCIL – POWERS AND DUTIES.**

8 It shall be the duty of the ~~City and County~~ Disaster Council and it is hereby
9 empowered:

10 (a) To ~~develop a plan for meeting any emergency~~ advise, recommend, and review emergency
11 plans and provide feedback; such plan to provide for the effective mobilization of all the resources
12 of the community, both public and private in the event of an emergency; and to ~~prepare and~~
13 ~~recommend review and recommend to for consideration and adoption by~~ the Board of Supervisors
14 ~~such ordinances and resolutions and rules and regulations as are necessary to implement the~~
15 ~~emergency plan~~ ordinances, resolutions, and rules necessary to support and implement such emergency
16 plans; and

17 ~~—(b) To develop and recommend for consideration and adoption by the Board of Supervisors~~
18 ~~mutual-aid plans and agreements and such ordinances and resolutions and rules and regulations as~~
19 ~~are necessary to implement such plans and agreements; and~~

20 (eb) To meet ~~upon call of the chair, but no less often than on a quarterly basis~~ annually at a
21 minimum, with additional meetings convened at the Co-Chairs' discretion.

22 By enacting this Chapter, the City and County hereby agrees to follow the rules and
23 regulations established by the California Emergency Council under the provisions of the
24 California Emergency Services Act, Chapter 7 of Division 1 of Title 2 of the Government Code
25 (Stats. 1970, Chapter 1454-Assembly Bill 560) effective November 23, 1970.

1
2 **~~SEC. 7.4 1. REPORTS TO DISASTER COUNCIL.~~**

3 ~~Following any declared emergency, activation of the City's Emergency Operations Center, or~~
4 ~~credible disaster warning, the Office of Emergency Services shall submit a written report to the~~
5 ~~Disaster Council and the Board of Supervisors describing and evaluating the City's response.~~

6 * * * *

7
8 **SEC. 7.7. THE EMERGENCY SERVICES OF SAN FRANCISCO – DIRECTOR;**
9 **POWERS AND DUTIES.**

10 ~~—The Director of the Department of Emergency Management under Administrative Code~~
11 ~~Section 2A.200, subject to the general supervision of the Mayor and with the assistance of officers in~~
12 ~~charge of the Emergency Services, shall develop and manage an emergency plan of the City and~~
13 ~~County, coordinate all protective and relief services for the City and County, train all personnel~~
14 ~~connected therewith, and direct the operation and implementation of all emergency plans and~~
15 ~~activities. He or she shall work in close cooperation with the Disaster Council and with the heads of~~
16 ~~the several departments of the municipal government and the officers in charge of the Emergency~~
17 ~~Services. Under the general supervision of the Mayor, the Director shall maintain the necessary~~
18 ~~contacts with the State Emergency Council and the several local disaster councils within this~~
19 ~~metropolitan area, in order that coordination of the work of the Disaster Council with the State~~
20 ~~Emergency Council and other disaster councils may be had. The Director shall serve as the Executive~~
21 ~~Secretary of the City and County Disaster Council and shall have such other powers and duties as may~~
22 ~~be assigned by the Mayor. The Executive Director of the Department of Emergency Management,~~
23 ~~subject to the general supervision of the Mayor, shall be responsible for the development, management,~~
24 ~~and implementation of the City's emergency plans and coordination of emergency services. The~~
25 ~~Executive Director shall collaborate with the Disaster Council by providing regular updates and~~

1 reports, ensuring alignment between the Council's advisory responsibilities and the Department's
2 strategic objectives and functions.

3
4 Section 7. Chapter 8 of the Administrative Code is hereby amended by revising
5 Section 8.24-5 to read as follows. As indicated below, subsection (b), regarding the Real
6 Estate Fraud Prosecution Trust Fund Committee, is deleted from Section 8.24-5, but in
7 Section 3 of this ordinance it has been moved, with some revision of name and text, to
8 Chapter 5 of the Administrative Code, where it is designated as Article XIII, consisting of
9 Section 5.13-1.

10
11 **SEC. 8.24-5. REAL ESTATE FRAUD PROSECUTION RECORDATION FEE.**

12 (a) **Establishment of Fee.** Pursuant to Section 27388 of the California Government
13 Code, there is hereby established a fee of \$3.00 that shall be paid to the Recorder at the time
14 of recording every real estate instrument, paper, or notice required or permitted by law. This
15 fee may be adjusted by the Controller, upon notice from the District Attorney, that the
16 allowable recordation fee has been increased. Such fee shall be collected, administered, and
17 expended in accordance with Section 27388 of the California Government Code. Money
18 collected pursuant to this Section shall be used to fund programs to enhance the capacity of
19 local police and prosecutors to deter, investigate, and prosecute real estate fraud crimes and
20 other purposes hereafter authorized by State law.

21 ~~(b) **Real Estate Fraud Prosecution Trust Fund Committee.** There is hereby established a~~
22 ~~Real Estate Fraud Prosecution Trust Fund Committee ("Committee") composed of the District~~
23 ~~Attorney, City Administrator, and City Attorney, each of whom may appoint an appropriate~~
24 ~~representative to serve on the committee. The Committee shall review applications and make~~
25 ~~determinations by majority vote as to the award of funds using the procedures and criteria required by~~

1 ~~Section 27388 of the California Government Code.~~

2 (be) **Annual Review.** The Board of Supervisors shall annually review the
3 effectiveness of the District Attorney in deterring, investigating, and prosecuting real estate
4 fraud crimes based upon information provided by the District Attorney in an annual report
5 submitted to the Board of Supervisors in accordance with Section 27388(d) of the
6 Government Code.

7 (cd) **Administration of Funds.** Pursuant to Section 27388(g) of the Government
8 Code, no money collected pursuant to this Section shall be expended to offset a reduction in
9 any other source of funds. Funds from the Real Estate Fraud Prosecution Trust Fund shall be
10 used only in connection with criminal investigations or prosecutions involving recorded real
11 estate documents.

12 (de) Monies in this fund, including all interest earned, shall be deemed provided for
13 specific purposes, as stated in this ordinance, and shall be carried forward at the end of each
14 fiscal year, consistent with the provisions of the City Charter.

15
16 Section 8. Chapter 9A of the Administrative Code is hereby amended by revising
17 Section 9A.6 to read as follows:

18
19 **SEC. 9A.6. CITY-OPERATED FARMERS' MARKETS; FEES.**

20 * * * *

21 ~~(f) **Advisory Committees.** For each City Operated Farmers' Market, the Director of Property~~
22 ~~shall appoint a committee consisting of at least three persons with permission to sell at the market.~~
23 ~~Each committee member shall serve at the pleasure of the Director of Property. Each committee shall~~
24 ~~advise the Director of Property as to the general policies under which that committee's market should~~
25 ~~be conducted and generally as to the character and nature of the products to be sold there. The~~

~~Director of Property shall consider all recommendations made by each committee and may, in the exercise of discretion, accept, reject, or modify said recommendations, and implement them as the Director deems appropriate.~~

Section 9. Chapter 10 of the Administrative Code is hereby amended by revising Sections 10.100-73, 10.100-131, and 10.100-376 to read as follows:

SEC. 10.100-73. FOOD EMPOWERMENT MARKET FUND.

(a) Establishment of Fund. The Food Empowerment Market Fund (the “Fund”) is established as a category four fund to receive any monies appropriated or donated to address food insecurity in the City’s most vulnerable neighborhoods and equip those communities with tools and skills to produce and prepare their own healthy and culturally appropriate food and to define their own food systems, otherwise referred to as “food sovereignty.” Donations to the Fund are deemed approved for acceptance and expenditure.

* * * *

(d) Administration of Fund. HSA shall administer the Fund.

(1) No later than six months after the effective date of the ordinance in Board File No. 210567 enacting this Section 10.100-73, and prior to issuing any grants, HSA shall adopt rules for the grant program consistent with this Section.

~~(A) HSA shall consult with the Food Security Task Force established in Article X of Chapter 5 of the Administrative Code, on the development of the rules for the grant program, including consideration of the “2018 Assessment of Food Security” report issued by the Task Force.~~

——(B) HSA shall consult with the Office of Economic and Workforce Development (OEWD) on the development of the rules for the grant program as they affect the community kitchen component.

1 (~~BE~~) Subject to the budgetary and fiscal provisions of the Charter, HSA may
2 contract with a grocery or supermarket business consultant to assist HSA with developing the
3 rules for the grant program and to assist grantees with setting up the food empowerment
4 markets, and the costs of such contract may be charged to the Fund.

5 * * * *

6 (5) The rules shall require each food empowerment market to have a district food
7 liaison. The liaison shall serve as the primary point of contact for the facility, convene or
8 participate in public meetings within the district regarding food security and related issues, and
9 coordinate with public agencies on programs affecting the facility and administration of the
10 grant, ~~including coordinating with the Food Security Task Force~~. The liaison shall also oversee
11 efforts to keep the local community informed about the facility and its offerings.

12 * * * *

13
14 **SEC. 10.100-131. MAYOR'S SUPPORTIVE HOUSING SERVICE FUND.**

15 * * * *

16 (e) Exceptions to Fund Category. The ~~Executive~~ Director of the Mayor's Office of
17 Housing and Community Development, or their ~~his or her~~ designee, shall administer expenditures
18 from the fund, subject to the rules and regulations established through the process described
19 in (f). Interest shall accrue to the fund if the balance in the fund exceeds \$10,000.

20 (f) **Administration of Fund.** The ~~Executive~~ Director of the Mayor's Office of Housing
21 and Community Development shall promulgate such rules and regulations as ~~he or she~~ they may
22 deem appropriate to carry out the provisions of the fund. Such rules and regulations shall be
23 developed in consultation with the organizations that participate in the Council of Community
24 Housing, or successor or similar organization, and any other appropriate agencies or
25 organizations with which the ~~Executive~~ Director, or ~~his or her~~ their designee, may choose to

1 consult. Such rules and regulations shall include, but not be limited to, the qualifications of
2 applicants and factors to be considered in the award of grants to fund supportive housing
3 services. Such rules and regulations shall be designed to ensure that although the highest
4 priority use is established for supportive services at proposed new affordable housing
5 developments, that monies from this fund may also be expended for supportive services at
6 existing affordable housing developments. The rules and regulations shall be subject to a
7 public hearing and approved by ~~resolution~~ ordinance of the Board of Supervisors.

8 ~~—The Supportive Housing Services Fund Committee shall consist of those officials currently~~
9 ~~serving as members of the Affordable Housing Loan Committee (the Executive Director of the~~
10 ~~Redevelopment Agency, the Director of the Mayor's Office of Housing and the Mayor's Homeless~~
11 ~~Coordinator, or any respective successors responsible for housing and homeless services as designated~~
12 ~~by the Mayor), a representative from the Department of Social Services and a representative from the~~
13 ~~Department of Public Health who shall be appointed by the respective department head in consultation~~
14 ~~with the Mayor. Vacancies shall be filled by the Mayor as they may occur.~~

15 ~~—The Supportive Housing Services Fund Committee shall be delegated the following~~
16 ~~responsibilities:~~

17 ~~—(1) To prepare and distribute announcements and requests for grant proposals to existing~~
18 ~~providers of affordable housing and supportive services, and others who may be interested;~~

19 ~~—(2) To review and evaluate all proposals and requests of housing providers eligible to~~
20 ~~receive funding under this program. The Supportive Housing Services Fund Committee shall consult~~
21 ~~with individuals or groups who have expertise in the particular supportive services or target~~
22 ~~populations under consideration, in making their evaluations;~~

23 ~~—(3) To recommend appropriate action to the Mayor on all proposals and requests for~~
24 ~~funding;~~

25 ~~—(4) To monitor the implementation of the proposals approved for funding under this~~

1 ~~program in compliance with the provisions herein;~~

2 ~~—(5) To submit a semi-annual report to the Budget Committee of the Board of Supervisors~~
3 ~~setting forth an accounting of the amounts disbursed and the uses for which said funds were made.~~

4 * * * *

5
6 **SEC. 10.100-376. YOUTH JUSTICE REINVESTMENT FUND.**

7 (a) **Establishment of Fund.** The Youth Justice Reinvestment Fund is established
8 as a category eight fund to receive monies appropriated for community-based alternatives to
9 juvenile detention and other contributions to the fund.

10 (b) **Use of Fund.** The fund is to be used exclusively by the Executive Director of the
11 Human Rights Commission, for the purpose of supporting community-based alternatives to
12 juvenile detention ~~and the work of the Close Juvenile Hall Working Group established in Article XL of~~
13 ~~Chapter 5 of the Administrative Code.~~

14 (c) **Administration of Fund.** The Executive Director of the Human Rights Commission,
15 shall administer the fund and shall report annually to the Board of Supervisors on the current
16 status of the fund, the amounts approved for disbursement, and the number and types of
17 community-based alternatives to juvenile detention assisted. The Executive Director shall have
18 the authority to prescribe rules and regulations governing the Fund.

19
20 Section 10. Chapter 10E of the Administrative Code is hereby amended by revising
21 Sections 10E.2 and 10E.3 to read as follows:

22
23 **SEC. 10E.2. EASTERN NEIGHBORHOODS AREA PLANS MONITORING**
24 **PROGRAM.**

25 * * * *

1 (b) REPORTING REQUIREMENTS.

2 * * * *

3 (9) Budget Implications. In cooperation with the Annual Progress reports required
4 by Administrative Code Chapter 36.4, and prior to the annual budget process, the Board shall
5 receive a presentation by the ~~Interagency Planning and Implementation Committee and its member~~
6 ~~agencies~~ Planning Department and other departments involved in monitoring the Plan's
7 implementation to describe how each agency's proposed annual budget advances the Plans'
8 objectives, including specific projects called for by this section. The Board of Supervisors shall
9 give particular consideration to proposed agency budgets that meet the implementation
10 responsibilities as assigned by the City's General Plan, including the Eastern Neighborhoods
11 Implementation Matrix. Budget proposals that do not include items to meet these
12 implementation responsibilities shall respond to Board inquiries as to why inclusion was not
13 possible.

14 * * * *

15
16 **SEC. 10E.3. BALBOA PARK STATION AREA PLAN MONITORING.**

17 * * * *

18 (b) Reporting Requirements.

19 * * * *

20 (9) Budget Implications. In cooperation with the Annual Progress reports required
21 by Administrative Code Chapter 36.4, and prior to the annual budget process, the Board shall
22 receive a presentation by the ~~Interagency Planning and Implementation Committee and its member~~
23 ~~agencies~~ Planning Department and other departments involved in monitoring the Plan's
24 implementation to describe how each agency's proposed annual budget advances the Plans'
25 objectives, including specific projects called for by this section. The Board of Supervisors shall

1 give particular consideration to proposed agency budgets that meet the implementation
2 responsibilities as assigned by the City's General Plan, including the Balboa Park
3 Implementation Matrix. Budget proposals that do not include items to meet these
4 implementation responsibilities shall respond to Board inquiries as to why inclusion was not
5 possible.

6
7 Section 11. Chapter 12A of the Administrative Code is hereby amended by revising
8 Sections 12A.4 through 12A.6 to read as follows. In addition, Section 12A.6 as amended
9 shall be redesignated as Section 5.35-1 in Chapter 5 of the Administrative Code and shall be
10 part of a new article in Chapter 5 to be titled "ARTICLE XXXV: LGBTQI+ ADVISORY
11 COUNCIL."

12
13 **SEC. 12A.4. ~~ESTABLISHMENT; APPOINTMENT; TERMS; EXECUTIVE SECRETARY~~**
14 **DIRECTOR.**

15 (a) ~~There is hereby~~ The City has established a commission to be known as the Human
16 Rights Commission ~~of the City and County of San Francisco~~ (hereinafter called "Commission"); as
17 set forth in Charter Section 4.107. The Commission shall be a Commission as defined in
18 Administrative Code Section 5.1-1. ~~consisting of 15 members broadly representative of the general~~
19 public and the employer, labor, religious, racial, age, sex, sexual orientation, gender identity, disabled
20 and ethnic groups in the City and County, to be appointed by the Mayor. ~~Four of the members who are~~
21 first appointed shall be designated to serve for terms of one year, four for two years, four for three
22 years and three for four years from the date of their appointments. Thereafter, members shall be
23 appointed as aforesaid for a term of office of four years, except that all of the vacancies occurring
24 during a term shall be filled for the unexpired term. A member shall hold office until his or her
25 successor has been appointed and has qualified. The Commission shall elect a chair from among its

1 ~~members. The term of office as chair of the Commission shall be for the calendar year or for that~~
2 ~~portion thereof remaining after each such chair is designated or elected.~~ The compensation of
3 members of said Commission shall be \$25 for each meeting of the Commission actually
4 attended by said members; provided, however, that no member shall be paid for attending
5 more than four Commission meetings in any one calendar month.

6 (b) The Human Rights Commission shall have an ~~position of~~ Executive Director who may
7 exercise the powers of a department head under Charter Section 4.126 ~~Secretary to the Commission~~
8 ~~shall be established pursuant to and subject to Sections 3.500 and 8.200 of the Charter of the City and~~
9 ~~County of San Francisco. The person occupying such position shall be appointed by the chair of the~~
10 ~~Commission with the approval of a majority of the members of the Commission. The position of~~
11 ~~Executive Secretary to the Commission shall be exempted from the residency and electoral~~
12 ~~requirements of Section 16.98 of the San Francisco Administrative Code.~~ All staff personnel shall be
13 under the immediate direction and supervision of the Executive ~~Secretary~~ Director.

14 15 **SEC. 12A.5. POWERS AND DUTIES.**

16 In addition to the other powers and duties set forth in this ordinance, the Commission
17 shall have the power and duty to:

18 (a) Study, investigate, mediate and hold public hearings on community-wide problems
19 arising in this City and County which may result in intergroup tensions or discrimination
20 because of actual or perceived race, religion, color, ancestry, age, sex, sexual orientation,
21 gender identity, physical disability, weight, height or place of birth. ~~In the performance of its~~
22 ~~duties under this subsection, the Commission, as permitted by law, may require by subpoena ad~~
23 ~~testificandum setting forth the specific nature of its inquiry, the attendance and testimony under oath of~~
24 ~~any person directly involved in or concerned with discrimination within the scope of this ordinance~~
25 ~~whose presence and testimony is reasonably necessary to its inquiry; provided, however, that any such~~

1 ~~inquiry involving any agency, board, or officer of the City and County shall be governed by the~~
2 ~~provisions of Subsection (f) hereof. In case of the refusal of any person to attend or testify as required~~
3 ~~by a subpoena ad testificandum issued by the Commission, the Commission may proceed to petition for~~
4 ~~a court order pursuant to Section 1991 of the California Code of Civil Procedure.~~

5 (b) Prepare and disseminate educational and informational material relating to
6 prejudice and discrimination and ways and means of eliminating such prejudice and
7 discrimination.

8 (c) Furnish cooperation, information, guidance and technical assistance to other public
9 agencies and private persons, organizations and institutions engaged in activities and
10 programs intended to eliminate prejudice and discrimination.

11 (d) Consult with and maintain contact with other public agencies and with
12 representatives of employers, labor unions, property owners associations, realtor
13 associations, religious denominations and institutions, professional associations, national
14 origin groups, community organizations concerned with interracial, interreligious and
15 intercultural understanding, social welfare organizations and such other private organizations
16 and institutions as the Commission shall deem advisable to further the objectives of this
17 ordinance.

18 (e) Cooperate with and make written recommendations to City ~~and County~~ agencies,
19 ~~boards~~ Commissions, and officers, as well as the agencies, boards or officers operating under
20 State law within the City ~~and County of San Francisco~~, towards the development and
21 implementation of programs and practices for the purpose of furthering the objectives of this
22 ~~ordinance~~ Chapter 12A. The Commission and the affected agency, ~~board~~ Commission, or officer
23 shall submit reports of progress in establishing and implementing such programs and
24 practices as are from time to time requested by the Mayor through the chair of the
25 Commission.

1 (f) Subject to the approval of the Mayor, request of any City ~~and County~~ agency, ~~board~~
2 Commission, or office information, services, facilities and any other assistance for the purpose
3 of furthering the objectives of this ordinance. All such requests shall be promptly complied
4 with by the affected agency, ~~board~~ Commission, or officer.

5 (g) Investigate and, with the assent of the parties, mediate all incidents of
6 discrimination within the scope of this ~~ordinance~~ Chapter 12A to the extent such functions are
7 not within the exclusive responsibilities of the California ~~Fair Employment Practices~~
8 ~~Commission~~ Civil Rights Department or any federal or other State agency, and make specific and
9 detailed recommendations to the interested parties as to the method of eliminating such
10 discrimination. The Commission shall also be authorized to investigate complaints of
11 discrimination brought by citizens involving agencies, boards or officers operating under State
12 law within the City ~~and County of San Francisco~~, and, where appropriate, to make written
13 recommendations to said agencies ~~or to represent citizens before said agencies~~.

14 (h) Prepare, encourage and coordinate programs ~~of voluntary affirmative action~~ to
15 reduce or eliminate existing inequalities and disadvantages in the City ~~and County~~ resulting
16 from past discriminatory practices.

17 (i) Make recommendations to the Board of Supervisors about legislation consistent with the
18 Commission's authority under this Section.

19
20 **SEC. 12A.65.35-1. ADVISORY COUNCIL; SPECIAL COMMITTEES LGBTQI+**
21 **ADVISORY COUNCIL.**

22 ~~(a) There shall be established a council to be known as the Advisory Council on Human Rights~~
23 ~~(hereinafter called "Council"), representative of the following interests or groups: Employer, labor,~~
24 ~~racial, religious, ethnic, housing, appropriate governmental agencies, and such other as the Mayor~~
25 ~~shall deem advisable. The members of the Council shall be appointed by the Mayor to serve at his or~~

1 ~~her pleasure and shall not be subject to the residence requirements of the Charter. The Council shall~~
2 ~~advise the Commission and shall be authorized to mediate and conciliate, upon specific request by the~~
3 ~~Commission, and to perform such other functions as shall from time to time be deemed appropriate by~~
4 ~~the Commission.~~

5 ~~Members of the council shall serve without compensation.~~

6 ~~(b) The Commission may form such special committees within and without the Advisory~~
7 ~~Council as are necessary to assist the Commission in the solution of specific problems within the scope~~
8 ~~of its responsibilities. The members of such committees shall be appointed by the Mayor upon the~~
9 ~~recommendation of the Commission, and shall serve until released by the Mayor upon the~~
10 ~~recommendation of the Commission and shall be residents of the City and County of San Francisco.~~

11 ~~Members of special committees shall serve without compensation.~~

12 ~~(c) There shall be established a special committee~~ a LGBTQI+ Advisory Council
13 ~~("Council"), which shall be an Advisory Body as defined in Administrative Code Section 5.1-1,~~
14 ~~consisting of no fewer than three and no more than 15 persons who are publicly identified with~~
15 ~~the lesbian/gay LGBTQI+ community or who have worked closely with such community. The~~
16 ~~members of the committee~~ Council ~~shall be appointed by the Human Rights Commission~~
17 ~~("Commission") and shall serve until released by the Commission. Members shall be residents of the~~
18 ~~City and County of San Francisco. A quorum of the Council shall consist of a majority of the number~~
19 ~~of members appointed at the time.~~

20 ~~The committee~~ Council ~~shall address itself specifically to provide advice and recommendations~~
21 ~~to the Commission regarding~~ the identification and solution of problems associated with the
22 ~~lesbian/gay LGBTQI+ community, and shall file written reports thereon with the Commission.~~

23 ~~—Members of the committee shall serve without compensation and all meetings of the~~
24 ~~committee shall be public.~~

25 ~~(dc) The Board of Supervisors declares that individuals appointed to the Advisory Council on~~

~~Human Rights and Special Committees created pursuant to this Section, and other advisory committees created to advise the Commission, are intended to represent and further the interests of Minority Business Enterprises, Woman Business Enterprises and Local Business Enterprises, and that such representation and furtherance will ultimately serve the public interest. Accordingly, the Board of Supervisors finds that for the purposes of persons who hold such office, the owners, officers, and employees of Minority Business Enterprises, Women Business Enterprises and Local Business Enterprises are tantamount to and constitute the public generally within the meaning of Section 87103 of the California Government Code.~~

Section 12. Chapter 12D of the Administrative Code is hereby amended by revising Sections 12D.6, 12D.8, 12D.9, 12D.11, and 12D.15 to read as follows:

SEC. 12D.6. POWERS AND DUTIES OF THE COMMISSION AND THE DIRECTOR.

* * * *

~~7.—Where after determining that a department, despite its good faith efforts and application of the bid preference(s), has failed substantially to eliminate the exclusion of MBEs and/or WBEs from City contracting, the Director, after consulting with the department responsible for the project(s), may request the Contract Review Committee established in Section 12D.8.(A)(3) to review and approve the proposed project(s) for a set aside;~~

8. Work with the Controller and representatives of City departments to implement a City-wide prompt-payment policy requiring that MBEs, WBEs and LBEs be paid by the City within 60 days of the date on which the City receives an invoice from an MBE, WBE or LBE for work performed for the City.

* * * *

1 **SEC. 12D.8. POWERS AND DUTIES OF THE MAYOR, DEPARTMENTS OR**
2 **CONTRACT AWARDING AUTHORITIES.**

3 (A) In addition to the duties given to the Mayor elsewhere, the Mayor shall:

4 1. By July 1st of each fiscal year subject to this ordinance, issue notices to all City
5 departments informing them of their duties under this ordinance. The notice shall contain the
6 following information: (1) the City-wide MBE/WBE participation goals that departments are
7 expected to use good-faith efforts to attain during the fiscal year and that a department's
8 failure to use good-faith efforts to attain the MBE/WBE participation goals shall be reported to
9 the Board of Supervisors in the Commission's annual report; and (2) the data each
10 department is required to provide the Controller on each contract award;

11 2. Coordinate and enforce cooperation and compliance by all departments with
12 this ordinance;

13 ~~3. Establish a three-member Contract Review Committee who shall have the authority to~~
14 ~~review contracts proposed by the Director or a department to be set aside, where competition for these~~
15 ~~contracts is limited to MBEs, WBEs and/or joint ventures with MBE/WBEs. The three-member~~
16 ~~Contract Review Committee shall be composed of the HRC Director, an individual appointed by the~~
17 ~~Board of Supervisors and an individual appointed by the Mayor. The Board and the Mayor shall~~
18 ~~appoint individuals who are knowledgeable about contracting practices of the City and of the industry~~
19 ~~or profession affected by the set-aside of the contract;~~

20 ~~4. Establish a three-member Subcontracting Goals Committee which shall have the~~
21 ~~authority to review decisions by the Director denying a contractor's request, pursuant to Section~~
22 ~~12D.9(D) (4) or 12D.11(A) (6), to waive or reduce subcontractor participation goals. The three-~~
23 ~~member Subcontracting Goals Committee shall be composed of an individual appointed by the~~
24 ~~Commission, an individual appointed by the Board of Supervisors and an individual appointed by the~~
25 ~~Mayor. The Commission, the Board of Supervisors and the Mayor shall appoint individuals who are~~

1 knowledgeable about the City's contracting and subcontracting practices and the relevant construction
2 or professional service industry. The Commission, the Board of Supervisors, or the Mayor may not
3 appoint to the Subcontracting Goals Committee the Director or any employee of the Human Rights
4 Commission.

5 * * * *

6 ~~(G) Where a department can demonstrate, despite its good faith efforts and application of the~~
7 ~~bid preference(s), that it has failed substantially to eliminate the exclusion of MBEs or WBEs from City~~
8 ~~contracting, the department, after consulting with the Director, may request the Contract Review~~
9 ~~Committee established in Section 12D.8(A)(3) to review and approve the proposed project(s) selected~~
10 ~~by the department for a set-aside.~~

11 ~~(GH)~~ City department heads and commissioners shall attend a one-hour mandatory
12 training session on an annual basis. The training session shall be organized and conducted
13 by the Director and shall inform City department heads and commissioners of the
14 requirements of this ordinance.

15
16 **SEC. 12D.9. ADDITIONAL FINDINGS SUPPORTING RACE- AND GENDER-**
17 **CONSCIOUS BID PREFERENCES AND SUBCONTRACTOR PARTICIPATION**
18 **GOALSWORKS/CONSTRUCTION; SUBCONTRACTING PROGRAM.**

19 * * * *

20 ~~-(D) (6) Whenever the Director denies a contractor's request to waive or reduce the~~
21 ~~participation goals, the contractor may appeal that denial to the Subcontracting Goals Committee~~
22 ~~established pursuant to Section 12D.8(A)4. The Subcontracting Goals Committee's decision on the~~
23 ~~request shall be final. In reviewing the Director's denial of a contractor's request to waive or reduce~~
24 ~~participation goals, the Subcontracting Goals Committee shall consider the extent of subcontracting~~
25 ~~opportunities presented by the contract and the availability of MBE/WBE subcontractors capable of~~

1 ~~providing goods and services on the construction contract.~~

2 ~~—The Subcontracting Goals Committee may overrule the Director and grant the request for~~
3 ~~waiver or reduction only upon finding that:~~

4 ~~—1. The reasonable and necessary requirements of the construction contract render~~
5 ~~subcontracting or the participation of businesses other than bidder unfeasible;~~

6 ~~—2. Qualified MBEs and/or WBEs capable of providing the goods or services required by~~
7 ~~the contract are unavailable, despite the prime contractor's or the department's good faith efforts to~~
8 ~~locate MBEs and WBEs to meet the participation goals; or~~

9 ~~—3. The available MBEs and WBEs have given price quotes which are unreasonably high in~~
10 ~~that they exceed competitive levels beyond amounts which can be attributed to cover costs inflated by~~
11 ~~the present effects of discrimination.~~

12 (D)-(76) Prior to entering into any prime construction contract, the contract awarding
13 authority shall require bidders on the contracts to contact all MBEs and WBEs before the
14 MBE/WBEs are listed as subcontractors in the bid.

15 (D)-(87) During the term of the contract, any failure to comply with the level of MBE
16 and WBE subcontractor participation specified in the contract shall be deemed a material
17 breach of contract.

18
19 **SEC. 12D.11. ADDITIONAL FINDINGS SUPPORTING THE RACE- AND GENDER-**
20 **CONSCIOUS BID PREFERENCES AND PROFESSIONAL SERVICES.**

21 * * * *

22 (A)-(8) ~~Whenever the Director denies a bidder's request to waive or reduce the participation~~
23 ~~goals, the bidder may appeal that denial to the Subcontracting Goals Committee established pursuant~~
24 ~~to Section 12D.8(A)4. The Subcontracting Goals Committee's decision on the request shall be final. In~~
25 ~~reviewing the Director's denial of a bidder's request to waive or reduce participation goals, the~~

1 ~~Subcontracting Goals Committee shall consider the extent of subcontracting opportunities presented by~~
2 ~~the contract and the availability of MBE/WBE subcontractors capable of providing services on the~~
3 ~~contract.~~

4 ~~—The Subcontracting Goals Committee may overrule the Director and grant the request for~~
5 ~~waiver or reduction only upon finding that:~~

6 ~~—1. The reasonable and necessary requirements of the contract render subcontracting or the~~
7 ~~participation of businesses other than bidder unfeasible;~~

8 ~~—2. Qualified MBEs and/or WBEs capable of providing the services required by the contract~~
9 ~~are unavailable, despite the bidder's or the department's good faith efforts to locate MBEs and WBEs~~
10 ~~to meet the participation goals; or~~

11 ~~—3. The available MBEs and WBEs have given price quotes which are unreasonably high in~~
12 ~~that they exceed competitive levels beyond amounts which can be attributed to cover costs inflated by~~
13 ~~the present effects of discrimination.~~

14 ~~(A)-(9)~~—The contract awarding authority shall require bidders on architectural and
15 engineering contracts to contact all MBEs and WBEs listed as subcontractors in proposals
16 before listing such MBEs and WBEs.

17 (A)-(10) During the term of the contract, any failure to comply with the level of MBE
18 and WBE subcontractor participation specified in the contract shall be deemed a material
19 breach of contract.

20 (A)-(11) In implementing this subcontracting program, the Director may encourage
21 contract awarding authorities and prime contractors to take into consideration when recruiting
22 subcontractors the degree of underutilization of MBEs and WBEs within the specific industries
23 or subindustries called for by the contract.

24 * * * *

1 **SEC. 12D.15. REPORTING AND REVIEW; EXTENSION.**

2 * * * *

3 ~~(F) **Review by the Contract Review Committee.** The Contract Review Committee established~~
4 ~~pursuant to Section 12D.8(A)3 shall have the following powers and duties:~~

5 ~~—1. To review contracts referred to it by the Director or a department for determining~~
6 ~~whether the contract should be set aside, where competition for the contract is limited to MBEs, WBEs~~
7 ~~and/or joint ventures with MBE/WBEs;~~

8 ~~—2. Before approving a set aside of a contract, the Contract Review Committee shall first~~
9 ~~determine that: (1) the department seeking or affected by the set aside has complied with all of the~~
10 ~~requirements of Section 12D.8(B); and (2) there are at least three business enterprises which are~~
11 ~~certified or eligible for certification as a MBE or WBE which can compete for the contract set aside.~~

12 ~~—3. After making the findings required by Section 12D.15(F)2, the Contract Review~~
13 ~~Committee may approve that a contract be set aside. However, the Contract Review Committee shall~~
14 ~~first consider the feasibility of approving a set aside where competition is limited to joint ventures with~~
15 ~~MBE and/or WBE participation which equals or exceeds 35 percent. The Contract Review Committee~~
16 ~~shall issue its findings and approval in writing to the department affected by the set aside.~~

17 (~~GE~~) **Extension.** Pursuant to Section 12D.15(E) of Ordinance 155-92, as amended
18 by Ordinances 210-97, 457-97, 82-98 and 186-98 and based upon the Further Additional
19 Findings Supporting Six-Month Extension of MBE/WBE/LBE Ordinances set forth in Section
20 12D.2-2, the Further Additional Findings Supporting a Three-Month Extension of
21 MBE/WBE/LBE Ordinances as set forth in Section 12D.2-3, Further Additional Findings
22 Supporting a Three-Month Extension of MBE/WBE/LBE Ordinances as set forth in Section
23 12D.2-4, Further Additional Findings Supporting a Two-Month Extension of MBE/WBE/LBE
24 Ordinances as set forth in Section 12D.2-5, and Additional Findings Supporting a Two-Month
25 Extension of the MBE/WBE/LBE Ordinance as set forth in Section 12D.2-6, the Board hereby

1 extends Ordinance 155-92, as amended, to October 31, 1998.

2
3 Section 13. Chapter 14B of the Administrative Code is hereby amended by revising
4 Sections 14B.5 and 14B.16 to read as follows:

5
6 **SEC. 14B.5. PUC-LBE CERTIFICATION.**

7 * * * *

8 ~~—(B) **PUC Small Firm Advisory Committee.** There is hereby established a PUC Small Firm~~
9 ~~Advisory Committee as follows:~~

10 ~~—(1) The PUC Small Firm Advisory Committee shall have five members who shall be~~
11 ~~appointed by the PUC General Manager to represent the interest of individuals and businesses that are~~
12 ~~or may be eligible for PUC LBE certification. Members shall serve at the pleasure of the PUC~~
13 ~~General Manager. Members of the PUC Small Firm Advisory Committee shall not be compensated,~~
14 ~~but shall be reimbursed for expenses in accordance with the Controller's published policies.~~

15 ~~—(2) The purposes and duties of the PUC Small Firm Advisory Committee are:~~

16 ~~——(a) To adopt rules and procedures within the Advisory Committee's responsibilities;~~

17 ~~——(b) To assist the Director in verifying the eligibility for certification of PUC LBE~~
18 ~~applicants by conducting site visits or undertaking other local or regional fact gathering to ensure that~~
19 ~~applications for PUC LBE certification undergo substantially the same scrutiny as applications for~~
20 ~~other LBE certification;~~

21 ~~——(c) To outreach to the business community about PUC LBE certification and contracting~~
22 ~~opportunities and to provide information to the Director regarding the availability of potential PUC-~~
23 ~~LBEs;~~

24 ~~——(d) To receive reports from the City, to publicly discuss, and make recommendations for~~
25 ~~rules and procedures regarding the implementation of this Chapter 14B for PUC regional projects to~~

1 ~~the Director and the PUC;~~

2 ~~——(e) To make recommendations to the SFPUC General Manager to study the feasibility of~~
3 ~~additional programs that will increase the participation of eligible firms for the regional program; and~~

4 ~~——(f) To provide status reports on the Advisory Committee's activities to the SFPUC~~
5 ~~General Manager and the Director.~~

6 ~~——(3) The PUC Small Firm Advisory Committee shall establish bylaws, rules and/or~~
7 ~~regulations for the conduct of its business. Administrative assistance and staffing for the PUC Small~~
8 ~~Firm Advisory Committee shall be provided at the discretion of the PUC.~~

9 ~~——(4) Except for the PUC Small Firm Advisory Committee's authority as provided in Section~~
10 ~~14B.5(B)(2), the Director shall have the authority over the implementation of this Chapter 14B for~~
11 ~~PUC Regional Projects to the same extent as all other Bids, proposals, and Contracts subject to the~~
12 ~~Chapter.~~

13 **(BE) PUC-LBE Status.** Except as provided in Subsection 14B.5(CD), PUC-LBEs
14 shall have the status of LBEs for all purposes of this Chapter 14B for construction, specialty
15 construction, construction material suppliers, construction equipment rental firms, trucking,
16 and professional services including architectural and engineering for PUC Regional Projects.
17 PUC-LBEs shall not have the status of LBEs for PUC Regional Contracts for general services
18 or for any other Bid, proposal, or Contract subject to this Chapter.

19 **(CD) Bid Discount Exception.** For PUC Regional Projects that will be performed
20 exclusively 70 miles or more beyond the jurisdictional boundaries of San Francisco and for
21 which no cost will be shared by members of BAWSCA, Contract Awarding Authorities shall
22 only apply Discounts to Bids from PUC-LBEs for the purpose of determining the apparent
23 highest ranked proposal or the apparent lowest Bid where application of the Discount will not
24 adversely impact the ranking for negotiation or award process of a Bid submitted by any
25 Micro-LBE, Small-LBE, or SBA-LBE certified under Section 14B.3. For Water System

1 Improvement Program projects, and projects outside of the jurisdictional boundaries of San
2 Francisco where all or some cost is shared by members of BAWSCA, PUC-LBEs shall have
3 the same status as LBEs.

4
5 **SEC. 14B.16. SAN FRANCISCO BONDING AND OTHER ASSISTANCE.**

6 * * * *

7 ~~(F) City Lease and Concession Agreements. The Office of Economic and Workforce~~
8 ~~Development shall convene a working group with members including but not limited to representatives~~
9 ~~from the Real Estate Division, Port, Municipal Transportation Agency, Airport, Recreation and Park~~
10 ~~Department, and the LBE community, to investigate a local business enterprise preference program for~~
11 ~~City leases and concession agreements. The working group shall submit its program recommendations~~
12 ~~to the Mayor and Board by June 1, 2015.~~

13 ~~(G) The City Administrator shall convene a working group to investigate whether there are~~
14 ~~barriers to participation by LBE firms in specific industries such as architecture. The working group~~
15 ~~shall report any findings to the Mayor and Board by September 1, 2015.~~

16 **(FH) Pilot Trucking Program.** The Director shall develop and implement a set-aside
17 utilization program for Micro-LBE certified trucking firms. This pilot program shall apply to
18 public works projects where trade subcontractors are procured under Administrative Code
19 subsections 6.61(c)(5) and 6.68(c). This pilot program shall sunset five years from the
20 operative date of the Ordinance in Board File No. 210835 establishing the program. Four
21 years and six months after the start of the pilot program, the Director shall prepare a report on
22 the efficacy of the program to the City Administrator.

23
24 Section 14. Chapter 15 of the Administrative Code is hereby amended by revising
25 Sections 15.12 through 15.14 to read as follows. In addition, Sections 15.12 through 15.14 as

1 amended shall be redesignated as Sections 5.16-1 through 5.16-3 in Chapter 5 of the
2 Administrative Code and shall be part of a new article in Chapter 5 to be titled "ARTICLE XVI:
3 BEHAVIORAL HEALTH COUNCIL ."

4
5 **SEC. ~~15.12~~5.16-1. BEHAVIORAL HEALTH ~~COMMISSION~~COUNCIL –**
6 **COMPOSITION AND APPOINTMENT OF MEMBERS.**

7 (a) There is hereby established a mental health board pursuant to the requirements of
8 California Welfare and Institutions Code Sections 5604 et seq., to be known as the Behavioral
9 Health ~~Commission~~Council ("~~Commission~~Council"). *The Council is an Advisory Body as defined in*
10 *Section 5.1-1.*

11 (b) The ~~Commission~~Council shall consist of 12 members. The Board of Supervisors
12 shall appoint all members, one of whom shall be a member of the Board of Supervisors.

13 (c) As required by California Welfare and Institutions Code Section 5604, at least six
14 members of the ~~Commission~~Council shall be consumers or the parents, spouses, siblings, or
15 adult children of consumers, with at least three members being consumers and at least three
16 other members being family of consumers. For purposes of this subsection (c), "family of
17 consumer" includes domestic partners and significant others. For purposes of this Section
18 ~~15.12~~5.16-1, a "consumer" is a person who has received mental health and/or substance use
19 services in San Francisco from any program operated or funded by the City, from a State
20 hospital, or from any public or private nonprofit mental health agency. The Board of
21 Supervisors member position shall not count in determining whether the "consumer" and
22 "family of consumer" requirements of this subsection are met.

23 (d) In addition to the requirements of subsection (c), one member of the ~~Commission~~
24 Council shall be a veteran or veteran advocate. For the purposes of this subsection (d), a
25 "veteran advocate" includes a parent, spouse, or adult child of a veteran, or an individual who

1 is part of a veteran organization including but not limited to the Veterans of Foreign Wars or
2 the American Legion. Additionally, one member shall be a child advocate. For purposes of
3 this subsection (d), a “child advocate” includes a family member of a child consumer or
4 consumer advocate for minors who use mental health services. A member may satisfy the
5 requirements of both subsection (c) and this subsection (d) concurrently. The Board of
6 Supervisors member position shall not count in determining whether the requirements of this
7 subsection (d) are met.

8 (e) In addition to the requirements of subsections (c) and (d), ~~on or after July 1, 2024~~
9 two members shall be from the following professions: psychiatry, psychology, mental health
10 social work, nursing with a specialty in mental health, marriage and family counseling,
11 psychiatric technology, or administration of a hospital providing mental health services or of a
12 community mental health facility.

13 (f) Any positions on the ~~Commission~~ Council not allocated to specific types of members
14 may be filled by persons with experience and knowledge of the mental health system
15 representing the public interest, which may include, but need not be limited to, people who
16 engage with individuals living with mental illness in the course of daily operations, such as
17 representatives of county offices of education, large and small businesses, hospitals, hospital
18 districts, physicians practicing in emergency departments, city police chiefs, county sheriffs,
19 and community and nonprofit service providers.

20 (g) The ~~Commission~~ Council membership shall reflect the ethnic diversity of the client
21 population in the City. The composition of the ~~Commission~~ Council shall, to the extent feasible,
22 represent the demographics of the City as a whole. Except as provided in subsection (h), no
23 member of the Commission or the member’s spouse shall be a full-time or part-time ~~County~~
24 City employee of a ~~County~~ City mental health service, an employee of the State Department of
25 Health Care Services, or an employee of, or a paid member of the governing body of, a

1 mental health contract agency.

2 (h) A consumer who has obtained employment with an employer described in
3 subsection (g), and who holds a position in which the consumer has no interest, influence, or
4 authority over any financial or contractual matter concerning the employer may be appointed
5 to the ~~Commission~~ Council. Such a member shall not participate in any matter concerning the
6 member's employer if prohibited by state or local law.

7 ~~(i) References in the Administrative Code or any other part of the Municipal Code, or any City~~
8 ~~ordinance, to the Advisory Board of the Community Mental Health Services, or to the San Francisco~~
9 ~~Mental Health Board shall be deemed references to the Commission.~~

10
11 **SEC. ~~15.135.16-2~~. BEHAVIORAL HEALTH COMMISSION COUNCIL – TERMS; ~~OF~~**
12 **REMOVAL.**

13 (a) Except for the Board of Supervisors member, the term of each member of the
14 ~~Behavioral Health Commission~~ Council (~~"Commission"~~) shall be for three years. No member
15 shall serve more than two ~~consecutive full~~ terms. A member shall be deemed to have served a
16 full term only if the member serves at least half of a full term. A part of a term that exceeds 18
17 months shall count as a full term; a part of a term that is 18 months or less shall not. Notwithstanding
18 the preceding sentence, the current term of any person serving on the Council on January 1, 2027 shall
19 count as a full term if the person has served more than 18 months of that term. Terms completed on or
20 before December 31, 2026 shall not count as a term for the purpose of the lifetime term limit. The
21 terms and term limits in Administrative Code Section 5.1-4 shall not apply to the Council. The clerk of
22 the Commission in consultation with the Clerk of the Board of Supervisors, shall, upon the effective
23 date of the ordinance in Board File No. 231076, change the number of the seats on the Commission,
24 and assign existing Commission members, including members with expired terms serving as holdover
25 appointees, to Seats 2-12 in accordance with the requirements of Section 15.12. Their terms of office

1 ~~shall be aligned with the terms of office extant prior to the effective date of the aforementioned~~
2 ~~ordinance; with the understanding that holdover appointees shall not thereby acquire any permanent~~
3 ~~or other special status. The Clerk of the Board of Supervisors shall equitably stagger the appointments~~
4 ~~so that approximately one-third of the appointments expire in each year, as required by California~~
5 ~~Welfare and Institutions Code Section 5604(c). Seats occupied by holdover appointees shall expire~~
6 ~~June 30, 2024. New appointments made to Commission Seats 2-12 following the effective date of the~~
7 ~~aforementioned ordinance shall be made in accordance with Section 15.12. The Board of Supervisors~~
8 ~~member shall be appointed to Seat 1.~~

9 ~~—(b) A member shall be removed from office if the member is absent for four meetings in one~~
10 ~~12-month period, unless the Commission grants that person a leave of absence. The Commission may~~
11 ~~grant leaves of absence for one or more meetings. Upon determining that a member has been absent~~
12 ~~for four meetings in a 12-month period and that no leave of absence had been granted for these~~
13 ~~meetings, the Commission shall provide written notification to the Board of Supervisors. Upon receipt~~
14 ~~of the notification, the position shall be deemed vacant.~~

15 ~~(eb) The Board of Supervisors may remove a member of the Council at will. In addition, the~~
16 ~~Commission-Council may recommend to the Board of Supervisors that a member be removed~~
17 ~~from the Commission-Council on the grounds that the member's conduct is seriously disruptive of the~~
18 ~~functioning of the Commission. The the Board of Supervisors may remove a member from the~~
19 ~~Commission for cause or upon the Commission's recommendation if it determines that the member's~~
20 ~~conduct is seriously disruptive of the functioning of the Commission.~~

21
22 **SEC. ~~15.14~~15.16-3. BEHAVIORAL HEALTH ~~COMMISSION~~COUNCIL – POWERS**
23 **AND DUTIES.**

24 (a) The ~~Behavioral Health Commission-Council~~ (“~~Commission~~”) shall:

25 (1) Review and evaluate the City ~~and County~~'s mental health needs, services,

1 facilities, and special problems;

2 (2) Review any City ~~and County~~ agreements entered into pursuant to California
3 Welfare and Institutions Code Section 5650;

4 (3) Advise the Board of Supervisors, the Health Commission, the Director of
5 Health, and the Director of Behavioral Health Services, as to any aspect of the local
6 behavioral health program;

7 (4) Review and approve the procedures used to ensure citizen and professional
8 involvement at all stages of the planning process;

9 (5) Review the procedures used to ensure the involvement of interested members
10 of the behavioral health community and the public in the development of the budget for
11 behavioral health services and report on the matter to the Board of Supervisors;

12 (6) Submit an annual report to the Board of Supervisors on the needs and
13 performance of the City ~~and County~~'s behavioral health system;

14 (7) As provided in Welfare and Institutions Code Section 5604.2(a)(6). ~~R~~review and
15 make recommendations on applicants for the appointment of Director of Behavioral Health
16 Services. The ~~Commission~~ Council shall be included in the selection process prior to the
17 selection of a person to fill this position;

18 (8) Review and comment on the City ~~and County~~'s performance outcome data and
19 communicate its findings to the State Mental Health Commission;

20 (9) Assess the impact of the realignment of services from the State to the City ~~and~~
21 ~~County~~ on services delivered to clients and on the local community; and

22 (10) In accordance with California Welfare and Institutions Code Section 5848(b),
23 conduct a public hearing on the Adult and Older Adult Mental Health System of Care Act,
24 California Welfare and Institutions Code Sections 5845-5848, draft three-year program and
25 expenditure plan, and annual updates at the close of the 30-day comment period, as set forth

1 in California Welfare and Institutions Code Section 5857(a). The ~~Commission~~Council shall
2 review the adopted plan or update(s) to the plan, and make recommendations to the Board of
3 Supervisors, the Health Commission, the Director of Health, and the Director of Behavioral
4 Health Services.

5 (b) Members of the ~~Commission~~Council shall abstain from voting on any issue in
6 which the member has a financial interest as defined in California Government Code Section
7 87103. The ~~Commission~~Council is subject to the provisions of California Government Code
8 Sections 54950 et seq. relating to the conduct of open meetings by local agencies.

9
10 Section 15. Chapter 16 of the Administrative Code is hereby amended by deleting
11 Article VIII-A, Sections 16.121-1 through 16.121-5 to read as follows:

12
13 **~~ARTICLE VIII A: ACCIDENT PREVENTION~~**

14 **~~SEC. 16.121-1. PURPOSE OF ARTICLE.~~**

15 ~~—The Board of Supervisors of the City and County of San Francisco hereby declares that this~~
16 ~~Article is adopted to achieve top management oversight of workers' compensation and an integrated~~
17 ~~accident prevention program for employees of the City and County of San Francisco. To the extent that~~
18 ~~funds made available permit, the program shall include, without being limited to, the following~~
19 ~~objectives:~~

20 ~~—(a) Training of supervisory personnel and employees generally in safety practices and~~
21 ~~procedures and workers' compensation best practices and procedures through oral and visual~~
22 ~~education at meetings, by personal contact, and through the issuance of posters, bulletins and other~~
23 ~~material through print and electronic means;~~

24 ~~—(b) Gathering and analysis of data relating to accident experience; and~~

25 ~~—(c) Providing safety guidance to department heads and other responsible officials.~~

1
2 **~~SEC. 16.121-2. WORKERS' COMPENSATION COUNCIL; MEMBERS; PROCEDURE.~~**

3 ~~—A Workers' Compensation Council is hereby established consisting of the Human Resources~~
4 ~~Director, who shall be chair, the City Administrator, the Controller, the City Attorney, the Executive~~
5 ~~Director of the Retirement System, and the Mayor's Director of Budget and Finance. It shall be the~~
6 ~~duty of each of these designated officers to serve on the Workers' Compensation Council, except that~~
7 ~~any member of the Council may deputize in writing filed with the Council any member of his or her~~
8 ~~office or department to serve in his or her place on the Council for such period or in such meeting as he~~
9 ~~or she may desire. Neither the members of the Council nor the members of their offices or departments~~
10 ~~deputized to serve in their places at any time shall receive any additional compensation for their~~
11 ~~services on the Committee.~~

12
13 **~~SEC. 16.121-3. WORKERS' COMPENSATION COUNCIL; POWERS AND DUTIES.~~**

14 ~~—The Workers' Compensation Council shall have power, and it shall be its duty to:~~

15 ~~—(a) Act in an advisory capacity in all matters pertaining to workers' compensation and safety~~
16 ~~as required for the guidance of management, department heads, officers and employees of the City and~~
17 ~~County of San Francisco;~~

18 ~~—(b) Assist the Human Resources Director in the establishment and maintenance of a record~~
19 ~~system that will continuously collect and compile all pertinent statistical data relating to all work-~~
20 ~~related injuries and illnesses involving employees of the City and County of San Francisco;~~

21 ~~—(c) Submit an annual report to the Board of Supervisors generally setting forth the work~~
22 ~~performed and the progress made toward achievement of the purpose of the Workers' Compensation~~
23 ~~Council.~~

24
25 **~~SEC. 16.121-4. HUMAN RESOURCES DIRECTOR; POWERS AND DUTIES.~~**

1 ~~The Human Resources Director shall act as coordinator of the Workers' Compensation~~
2 ~~Council.~~

3
4 **~~SEC. 16.121-5. POWERS OF CITY AND COUNTY OFFICERS NOT DIVESTED.~~**

5 ~~No provision of this Article shall be deemed or construed to grant any authority to, or impose~~
6 ~~any duty upon, the Workers' Compensation Council or the Human Resources Director which is vested~~
7 ~~or imposed by general law or the Charter of the City and County of San Francisco in or on any other~~
8 ~~officer, board, commission, department, or employee of the City and County.~~

9
10 Section 16. Chapter 20 of the Administrative Code is hereby amended by revising
11 Article XVII, Section 20.17-3, Article XVIII, Sections 20.18-3 and 20.18-9, and Article XII,
12 Sections 20.405, and 20.406, and deleting Article IV, Sections 20.50 through 20.52, and
13 Article XII, Sections 20.300 through 20.312, to read as follows:

14
15 **SEC. 20.17-3. REPORTS.**

16 The spending plan described in Section 20.17-2(b) shall also include metrics designed
17 to evaluate the effectiveness of the Initiative and each of its specific components. Within one
18 year of the Department's submission of the spending plan to the Board of Supervisors, and on
19 an annual basis thereafter, the Department shall prepare, and submit to the Children and
20 Families First Commission (the "~~First Five~~ Commission"), established by Article XXVIII of
21 Chapter 5-Chapter 86 of the Administrative Code, ~~the Early Childhood Community Oversight and~~
22 ~~Advisory Committee (the "EC COAC"), established by Article XIII of Chapter 5 of the Administrative~~
23 ~~Code~~, the CCPAC, and the Board of Supervisors, a report evaluating the effectiveness of the
24 Initiative and each of its specific components, using the metrics previously developed in the
25 Department's spending plan and include a financial analysis forecasting how the Department

1 will achieve universal access to early care and education, and establish a universal system for
2 high-quality early care and education that interrupts racialized outcomes for children by
3 building and funding an integrated system of early childhood supports and service in San
4 Francisco and is based on planned expenditures and anticipated funding. The report should
5 also consider and report on emerging needs, and new conditions or circumstances that would
6 impact effectiveness such as workforce retention or newly identified revenue sources,
7 economic conditions, or new policy directives. Before the Department submits this annual
8 report to the Board of Supervisors, ~~the EC COAC~~, the CCPAC, and the ~~First Five~~ Commission
9 shall have an opportunity to review the report and submit related recommendations to the
10 Department and the Board of Supervisors.

11
12 **SEC. 20.18-3. ESTABLISHMENT OF SHELTER GRIEVANCE POLICY AND**
13 **ADMINISTRATION.**

14 The Department shall administer the Shelter Grievance Policy. The Director shall
15 establish regulations for the proper administration of the Shelter Grievance Policy consistent
16 with this Article XVIII. ~~The Shelter Grievance Advisory Committee shall advise the Department and~~
17 ~~the Director on administration of the Shelter Grievance Policy and the regulations promulgated~~
18 ~~thereunder.~~ Whenever any discretion as to the exercise of authority is given to the Director by
19 this Article or by a regulation, the Director shall exercise said discretion only in so far as the
20 same is necessary to protect the health or safety of the Clients, the Shelter and its employees,
21 or the public, or to promote the reasonable, humane, and efficient operation of the Shelter.
22 The Shelter Grievance Policy and any regulations promulgated pursuant to the Shelter
23 Grievance Policy shall apply to the Shelter operations of all City departments that fund or
24 contract with Shelters. All contracts between the City and Shelters shall include a provision
25 that requires each Shelter to adhere to the Shelter Grievance Policy.

1
2 **SEC. 20.18-9. COMPLAINT PROCEDURE.**

3 The Department shall provide for a process for a party to file a complaint in the
4 following situations: (a) when a Shelter acts outside its scope of authority under this Article
5 XVIII; (b) when a Shelter hearing officer or an arbitrator acts outside their scope of authority
6 under this Article XVIII; (c) when a Shelter or arbitrator unreasonably rejects a Client's
7 showing of good cause under Section 20.18-7; or (d) when a hearing officer or arbitrator is
8 accused of bias, prejudice, or interest in the proceeding. ~~The Shelter Grievance Advisory~~
9 ~~Committee (established in Article XXXVI of Chapter 5 of the Administrative Code) shall hear~~
10 ~~complaints related to scope of authority and good cause (subsection (a) through (c) of this Section~~
11 ~~20.18-9) and make nonbinding recommendations to the Department regarding such complaints.~~ The
12 Department shall take appropriate action to resolve such complaints. The Department shall
13 hear complaints related to hearing officer or arbitrator bias, prejudice, or interest in the
14 proceeding (subsection (d) of this Section 20.18-9), and shall take appropriate action to
15 resolve such complaints.
16

17 **~~ARTICLE IV: DELINQUENCY PREVENTION COMMISSION~~**

18 **~~SEC. 20.50. DELINQUENCY PREVENTION COMMISSION; ESTABLISHMENT;~~**
19 **~~COMPOSITION; PURPOSE.~~**

20 ~~Pursuant to the provisions of Section 233 of the Welfare and Institutions Code of the State of~~
21 ~~California, there is hereby established a Delinquency Prevention Commission ("Commission")~~
22 ~~composed of 11 citizens, to coordinate the work of those governmental and nongovernmental~~
23 ~~organizations engaged in activities designed to prevent juvenile delinquency within the City and County~~
24 ~~of San Francisco. Each individual Supervisor on the Board of Supervisors shall appoint one~~
25 ~~commissioner to the Commission through the Rules Committee.~~

1 ~~The Commission is to review and make recommendations to the Board of Supervisors~~
2 ~~(“Board”) on possible legislative and budgetary actions regarding: (1) the coordination of City~~
3 ~~agencies and community-based organizations aimed at the prevention of juvenile delinquency; (2) the~~
4 ~~allocation of City, state and federal funding for the prevention of juvenile delinquency; (3)~~
5 ~~programmatic changes to improve the cost-effectiveness and quality of care programs and services;~~
6 ~~and (4) any other matters pertaining to the prevention of juvenile delinquency referred to it by the~~
7 ~~Board.~~

8
9 **~~SEC. 20.51. MEMBERS’ APPOINTMENT; TERMS; EXPENSES; VACANCIES.~~**

10 ~~—Members of the Delinquency Prevention Commission shall be appointed by the Board of~~
11 ~~Supervisors, through the Rules Committee, to serve a term of four years, and they shall be reimbursed~~
12 ~~for their actual and necessary expenses incurred in the performance of their duties. The Commission~~
13 ~~shall have at least five members who have advanced degrees or at least five years experience in: (1)~~
14 ~~law enforcement or criminal justice, (2) social services, (3) mental health, (4) education, and (5)~~
15 ~~physical health, respectively. At least two of the remaining members of the Commission shall be~~
16 ~~persons between the ages of 14 and 21 years of age. Upon a vacancy occurring in the membership of~~
17 ~~the Commission and upon the expiration in the term of office of any member a successor shall be~~
18 ~~appointed by the Board of Supervisors. When a vacancy occurs for any reason other than the~~
19 ~~expiration of a term of office, the appointee to fill such vacancy shall hold office for the unexpired term~~
20 ~~of his or her predecessor.~~

21
22 **~~SEC. 20.52. FUNDING.~~**

23 ~~—The Department of Children, Youth and Their Families shall provide staff, administrative~~
24 ~~support, and other services to the Commission as needed. The Board of Supervisors may, subject to the~~
25 ~~budget and fiscal provisions of the Charter, provide funds to pay for such staff personnel services and~~

1 facilities as may be reasonably necessary to enable the Delinquency Prevention Commission to
2 exercise its powers and perform its duties under the Welfare and Institutions Code.

3 —Nothing in this provision shall prevent the Commission from receiving and expending funds
4 from other governmental and nongovernmental sources to assist the Commission in carrying out
5 specific projects designed to accomplish its objectives. —

7 **ARTICLE XII: SHELTER MONITORING COMMITTEE**

8 **SEC. 20.300. FINDINGS.**

9 —The Board of Supervisors finds and declares the following:

10 —(a) The City and County of San Francisco funds shelters and resource centers that serve
11 homeless people; and

12 —(b) There is a significant public interest in determining that the homeless shelters that the
13 City funds are safe and sanitary; that the shelters' policies and procedures are fair and meet the needs
14 of the clients accessing shelter services; that operators receiving City funds are complying with their
15 contractual obligations to the City, and that shelter clients benefit from the expenditure of public funds;
16 and

17 —(c) The Mayor, the Board of Supervisors, the Homelessness Oversight Commission
18 ("Commission"), established by Charter Section 4.133, any future advisory body created by the City
19 and County of San Francisco, and the public, among others, need to be able to access accurate and
20 comprehensive information regarding shelters.

22 **SEC. 20.301. DEFINITIONS.**

23 —For purposes of this Article only, "shelter" shall include shelters and resource centers that
24 have a primary goal of serving homeless people and that are funded in whole or in part by the City.

1 **~~SEC. 20.302. ESTABLISHMENT.~~**

2 ~~—A Shelter Monitoring Committee (“Committee”) is hereby established. The Committee shall~~
3 ~~document its findings and shall submit reports consistent with this Article to the Mayor, the Board of~~
4 ~~Supervisors, the Local Homeless Coordinating Board, the public, and any other entity, as appropriate.~~
5 ~~Subject to the fiscal and budgetary provisions of the Charter, the Department of Public Health shall~~
6 ~~assign two full-time employees to staff the Shelter Monitoring Committee. The Committee shall, among~~
7 ~~other things, receive and document complaints made to the Committee regarding shelters and shall~~
8 ~~refer complaints to appropriate committee members for follow-up.~~

9
10 **~~SEC. 20.303. PURPOSE.~~**

11 ~~—The purpose of the Committee is to provide the Mayor, the Board of Supervisors, the~~
12 ~~Commission, the public, and any other appropriate agency with accurate, comprehensive information~~
13 ~~about the conditions in and operations of shelters covered by this Article XII, as well as City policies in~~
14 ~~place that affect operations of shelters or their impact on shelter clients.~~

15
16 **~~SEC. 20.304. POWERS AND DUTIES.~~**

17 ~~—The Committee shall have all of the powers and duties necessary to carry out the functions of~~
18 ~~the Committee as follows:~~

19 ~~—(a) Site Visits. Individual Committee members shall form teams and make unannounced site~~
20 ~~visits to all shelters a minimum of two times per year, per site. The scope of the site visits shall be~~
21 ~~limited to gathering information relevant to: 1) health and safety conditions in shelters, 2) the~~
22 ~~adequacy of policies and procedures governing each facility, and 3) the treatment and personal~~
23 ~~experience of shelter residents in the shelters. Committee members shall conduct site visits in the least~~
24 ~~invasive manner possible and shall respect the privacy rights of shelter clients. In addition, teams shall~~
25 ~~make one announced site visit per year for the purpose of giving shelter residents the opportunity to~~

1 ~~discuss shelter conditions with the members of the Committee. The Committee shall conduct additional~~
2 ~~site visits when it receives complaints or out-of-compliance findings. The Committee shall establish in~~
3 ~~its By-Laws thresholds for the number of complaints or out-of-compliance findings during a year that~~
4 ~~triggers the additional site visits. All site visits shall occur during shelter operating hours only. After~~
5 ~~consulting shelter staff, the Committee shall post Committee contact information and information~~
6 ~~regarding announced visits at each shelter. Each team shall prepare a report for the full Committee on~~
7 ~~its findings and recommendations as described below under subsection (b), "Reports."~~

8 ~~—(b) Reports. The Committee shall prepare and submit quarterly reports that shall include but~~
9 ~~not be limited to information on the following: safety in the shelter, cleanliness in the shelter, disability~~
10 ~~access to and within the shelter, family life in the shelter, a review of policies and procedures in place~~
11 ~~at the shelter, and any information received regarding the treatment and personal experiences of~~
12 ~~shelter residents. In order to enable the Committee to prepare reports required under this subsection~~
13 ~~(b), City departments that contract for services at a shelter that is under review must respond within 15~~
14 ~~days to any reasonable request for information submitted by the Committee relative to the shelter or to~~
15 ~~City policies that affect shelter clients. The reports shall also include recommended action steps for the~~
16 ~~shelter and for the City department that contracts for services at the shelter. City departments and the~~
17 ~~reports referenced in this subsection shall not identify shelter residents or disclose any confidential~~
18 ~~information concerning shelter residents consistent with state and federal law. The Committee may~~
19 ~~issue emergency reports at any time it deems necessary. The reports shall be provided to: 1) the~~
20 ~~Mayor, 2) the Board of Supervisors, 3) the Commission, 4) the appropriate City department responsible~~
21 ~~to take action, 5) the City department that contracts for services at the shelter, 6) the shelter under~~
22 ~~review, and 7) the public. These reports shall be public documents. Any City department identified in~~
23 ~~the report as responsible to take action recommended in the report shall, within 30 days of issuance of~~
24 ~~the report, provide to the Board of Supervisors a departmental report setting forth how the department~~
25 ~~intends to respond to the Committee's recommendations.~~

1 ~~—(c) Training. All members of the Committee shall receive training in confidentiality laws~~
2 ~~regarding the provision of services to homeless people, as applicable, and will agree in writing to~~
3 ~~comply with any and all confidentiality requirements. In addition, members of the Committee may not~~
4 ~~disclose the following information before an unannounced shelter visit occurs: the date, time, and~~
5 ~~location of an unannounced shelter visit and the identity of the members of the team conducting the~~
6 ~~visit. After providing notice and an opportunity to be heard, the Committee may remove a Committee~~
7 ~~member for making disclosures prohibited by this subsection. If the Committee removes a Committee~~
8 ~~member pursuant to this subsection, it shall inform the appointing authority of this fact and request that~~
9 ~~the appointing authority appoint a replacement as soon as possible. All members of the Committee~~
10 ~~shall receive sensitivity training related to cultural differences, gender issues and the Americans With~~
11 ~~Disabilities Act. Committee members shall receive other training deemed necessary by the Committee~~
12 ~~to carry out its functions.~~

13 ~~—(d) Monitoring unaccepted shelter bed reservations. The Committee shall collect information~~
14 ~~from reservation sites regarding how many shelter clients are turned away from a shelter bed~~
15 ~~reservation and shall include this information in the reports required under subsection (b), above.~~
16 ~~Information reported shall include the number of unaccepted bed reservations and the reason, if~~
17 ~~available, for the missed reservation.~~

18 ~~—(e) Retaliation Prohibition. Shelter staff and shelter clients shall not be retaliated against for~~
19 ~~participating in any activity involving the Committee. This section is not intended to create a private~~
20 ~~right of action against the City and County of San Francisco.~~

21
22 **SEC. 20.305. MEMBERSHIP AND ORGANIZATION.**

23 ~~—(a) The membership of the Committee shall reflect the diversity of the homeless people that~~
24 ~~access shelter in the City. The Committee shall consist of 12 members, appointed by the Homelessness~~
25 ~~Oversight Commission (“Commission”) as follows:~~

1 ~~—Seat 1 shall be held by a person who is (1) providing direct services to homeless families, or~~
2 ~~(2) a parent, legal guardian, or caregiver who is personally experiencing or has personally~~
3 ~~experienced being homeless.~~

4 ~~—Seat 2 shall be held by a person who is homeless or has been homeless within the three years~~
5 ~~prior to being appointed to the Committee, and who has a disability.~~

6 ~~—Seats 3 and 4 shall be held by persons with experience providing direct services to homeless~~
7 ~~people through a community setting.~~

8 ~~—Seat 5 shall be held by a person nominated by one or more community agencies that provide~~
9 ~~behavioral health, housing placement, or other services to homeless people.~~

10 ~~—Seat 6 shall be held by a person who is homeless or formerly homeless, and who has been~~
11 ~~nominated by one or more nonprofit agencies that provide advocacy or organizing services for~~
12 ~~homeless people.~~

13 ~~—Seats 7 and 8 shall be held by persons nominated by one or more nonprofit agencies that~~
14 ~~provide advocacy or organizing services for homeless people.~~

15 ~~—Seats 9 and 10 shall be held by persons who are homeless or formerly homeless, and who~~
16 ~~have experience providing direct services to homeless people through a community setting.~~

17 ~~—Seat 11 shall be held by a person who is homeless or formerly homeless, and who has been~~
18 ~~nominated by one or more community agencies that provide behavioral health, housing placement, or~~
19 ~~other services to homeless people.~~

20 ~~—Seat 12 shall be held by an employee of the Department of Public Health.~~

21 ~~—In making its appointments to the Committee, the Commission is encouraged to select people~~
22 ~~who are bilingual.~~

23 ~~—(b) The Committee shall elect its own officers and may establish rules for its own~~
24 ~~organization and procedures, consistent with this Article XII.~~

25 ~~—(c) Limitations on site visits.~~

1 ~~—(1) Committee members who work at a resource center or shelter shall not conduct site~~
2 ~~visits at that site or any other site that is part of that agency. If they are former employees of a site,~~
3 ~~they must wait at least six months after leaving employment before conducting a site visit.~~

4 ~~—(2) Committee members who reside at a shelter shall not conduct site visits at that site or~~
5 ~~any other site that is part of the agency responsible for the shelter. Committee members who formerly~~
6 ~~resided at a shelter must wait at least six months after leaving the shelter before conducting a site visit~~
7 ~~at that site or any other site that is part of the agency responsible for the shelter.~~

8 ~~—(3) Committee members from the Department of Homelessness and Supportive Housing and~~
9 ~~the Department of Public Health shall not conduct official site visits on behalf of the Shelter~~
10 ~~Monitoring Committee at a site where their respective agency holds a contract with said site or agency.~~

11 ~~—(d) Members of the Committee may not serve on any other City body that advises on issues~~
12 ~~relating to homelessness, including but not limited to the Commission, Local Homeless Coordinating~~
13 ~~Board, and Shelter Grievance Advisory Committee, during their term(s) on the Committee.~~

14
15 **~~SEC. 20.306. TERMS OF OFFICE.~~**

16 ~~—(a) Continuing Membership on the Committee. Members of the Committee seated as of the~~
17 ~~effective date of the ordinance in Board File No. _____ shall by operation of law remain members of~~
18 ~~the Committee for one year from the effective date of said ordinance. New terms for members of the~~
19 ~~Committee shall commence on that date, and the Commission shall make appointments to the~~
20 ~~Committee for those terms in accordance with Section 20.305. Members of the Committee seated as of~~
21 ~~that date shall be eligible for reappointment to the Committee by the Commission.~~

22 ~~—(b) To provide for staggered terms, the members appointed to Seats, 2, 4, 6, 8, 10, and 12~~
23 ~~shall serve for an initial term of one year; thereafter the term for Seats, 2, 4, 6, 8, 10, and 12 shall be a~~
24 ~~two-year term. The members appointed to Seats 1, 3, 5, 7, 9, 11, and 13 shall serve for an initial term~~
25 ~~of two years.~~

1 ~~—(c) In the event that a vacancy occurs during the term of office of any Committee member, a~~
2 ~~successor shall be appointed by the Commission to complete the expired term of office.~~

3
4 **~~SEC. 20.307. MEETINGS; ADMINISTRATIVE SUPPORT.~~**

5 ~~—(a) The Committee shall meet a minimum of once per quarter at such times and places as the~~
6 ~~Committee shall designate.~~

7 ~~—(b) The Department of Department of 1 Homelessness and Supportive Housing shall provide~~
8 ~~clerical and administrative support and staffing for the Committee.~~

9
10 **~~SEC. 20.308. ATTENDANCE REQUIREMENT.~~**

11 ~~—The Committee shall monitor the attendance of Committee members. In the event that any~~
12 ~~Committee member misses three regularly scheduled Committee meetings in a six-month period~~
13 ~~without the express approval of the Committee at or before the missed meetings, the member shall be~~
14 ~~deemed to have resigned from the Committee 10 days after the third unapproved absence. The~~
15 ~~Committee shall notify the appointing authority accordingly and request the appointment of a new~~
16 ~~member.~~

17
18 **~~SEC. 20.309. LIMITATION OF LIABILITY.~~**

19 ~~—By adopting this Article, the City and County of San Francisco is assuming an undertaking~~
20 ~~only to promote the general welfare. It is not assuming, nor is it imposing on its officers and~~
21 ~~employees, an obligation for breach of which it is liable in money damages to any person who claims~~
22 ~~that such a breach proximately caused injury.~~

23
24 **~~SEC. 20.310. SUNSET.~~**

25 ~~—Unless extended by ordinance, this Article XII shall expire by operation of law, and the~~

1 ~~Committee shall terminate, on July 1, 2027. After the expiration of the Committee, the City Attorney~~
2 ~~shall cause this Article to be removed from the Administrative Code.~~

3
4 **~~SEC. 20.312. COORDINATION WITH HOMELESSNESS OVERSIGHT COMMISSION.~~**

5 ~~—The Chair of the Shelter Monitoring Committee, or the Chair’s designee, shall attend~~
6 ~~meetings of the Homelessness Oversight Commission (“Commission”) as scheduled by the~~
7 ~~Commission, to regularly report on this Committee’s site visits and recommended actions based on~~
8 ~~those site visits.~~

9
10 **SEC. 20.405. COMPLAINT PROCESS AND INVESTIGATION.**

11 (a) Each shelter shall provide client complaint forms in common areas of the shelter
12 and shall make a complaint form available to a shelter client upon request. ~~In addition, shelter~~
13 ~~staff must accept and investigate written client complaints from the Shelter Monitoring Committee.~~
14 Shelter staff shall acknowledge receipt of the client complaints within two business days.
15 Shelter staff shall review and respond to written client complaints within five business days. If
16 the client is not satisfied with the response, the shelter provider shall refer the complaint to the
17 program manager and to the ~~Shelter Monitoring Committee~~ Department of Homelessness and
18 Supportive Housing. The ~~Shelter Monitoring Committee~~ Department of Homelessness and Supportive
19 Housing shall investigate these complaints, if requested by the client, within 10 business days
20 of the request and shall provide the shelter provider with an opportunity to respond to the
21 allegations. The Department of Homelessness and Supportive Housing shall also forward the
22 results of its investigation to the Director, who shall comply with Section 20.406(a) below
23 within 45 days.

24 (b) The Director, may promulgate appropriate guidelines or rules for the
25 enforcement of the shelter provider’s contractual obligations imposed pursuant to this Article

1 XIII. Such guidelines or rules may establish procedures for ensuring fair, efficient, and cost-
2 effective implementation of these obligations, including mechanisms to monitor contractor
3 compliance and to determine whether a contractor has failed to comply with its contract
4 obligations set forth in Section 20.404, ~~above~~.

5 (c) ~~Committee~~ Teams conducting site visits may initiate investigations into alleged
6 violations of contractual obligations imposed by this Chapter and shall forward a request for a
7 full investigation to the ~~full Shelter Monitoring Committee~~ Department of Homelessness and
8 Supportive Housing.

9
10 **SEC. 20.406. CORRECTIVE ACTION PLAN, IMPOSITION OF LIQUIDATED**
11 **DAMAGES.**

12 * * *

13 (c) (1) 15 days after receiving an appeal from the Director's final determination, the
14 arbitration panel shall notify the ~~Shelter Monitoring Committee~~ Department of Homelessness and
15 Supportive Housing, the program manager, the shelter provider, the Director, and/or their
16 respective counsel or authorized representative of the appeal. The arbitration panel may
17 assign a hearing officer within the panel to collect and review evidence and to make
18 recommendations to the full arbitration panel, but the full arbitration panel must issue written
19 findings and orders consistent with subsection (c)(4), below.

20 * * * *

21
22 Section 17. Chapter 22A of the Administrative Code is hereby amended by revising
23 Section 22A.3 to read as follows. In addition, Section 22A.3 as amended shall be
24 redesignated as Section 5.17-1 in in Chapter 5 of the Administrative Code and shall be part of
25 a new article in Chapter 5 to be titled "ARTICLE XVII: COUNCIL ON INFORMATION

1 TECHNOLOGY.”

2
3 **SEC. 22A.35.17-1. COMMITTEE COUNCIL ON INFORMATION TECHNOLOGY.**

4 **(a) Establishment and Composition.** There is hereby created a Committee-Council
5 on Information Technology (COIT).

6 ~~(a)~~ COIT shall be composed of eight permanent members consisting of the Mayor, the
7 President of the Board of Supervisors, the Controller, the City Administrator, the Clerk of the
8 Board of Supervisors, the Executive Director of the Human Rights Commission, the Chief
9 Information Officer (CIO), and the Chief Information Security Officer (CISO), or their
10 designees. The City Administrator or the City Administrator’s designee shall serve as Chair.
11 Five additional Department Heads shall be recommended by the Chair and approved by the
12 permanent members for two-year terms, one representing each of the major service areas:
13 (a) Public Protection, (b) Human Welfare and Neighborhood Development, (c) Community
14 Health, (d) Culture and Recreation, and (e) General Administration and Finance; and three
15 additional non-permanent members representing the major service area of Public Works,
16 Transportation, and Commerce. The eight permanent members and eight non-permanent
17 members shall be voting members of COIT.

18 **~~COIT shall organize into s~~Subcommittees.** The Chair shall appoint subcommittee
19 members based on participants’ technical, financial, management, and policy-making
20 capabilities and responsibilities. The Chair shall consult with and consider the
21 recommendations of the CIO regarding the number, type and make-up of subcommittees,
22 Subcommittee members shall represent major service areas of the City.

23 **(c) Purpose and Duties.** COIT shall review and approve the recommendations of the
24 City CIO for (i) the five-year City ICT plan, including budget, projects and staffing for all City
25 departments, ~~boards, c~~Commissions and agencies (City Departments), (ii) ICT plans, budgets,

1 projects and staffing plans for City Departments; and (iii) ICT standards, policies and
2 procedures to enable successful development, operation, maintenance, and support of the
3 City's ICT.

4 (d) COIT shall monitor compliance of all City Departments with adopted ICT plans,
5 budgets, projects, standards, policies and procedures.

6 (e) COIT shall ensure the most cost-effective and useful retrieval and exchange of
7 information both within and among City Departments and from the City to the people of San
8 Francisco.

9 (f) There will be two additional non_voting members of COIT selected by the voting
10 members of COIT. These individuals cannot be employees of the City ~~and County of San~~
11 ~~Francisco~~ and shall have expertise in fields of ICT innovation and advances, emerging ICT
12 applications, and public policy issues related to ICT.

13 (g) COIT shall incorporate performance and financial reporting on the Department of
14 Technology and all other City Departments' ICT planning and purchases in the ICT Capital
15 and Operating Plan and the annual reviews of the plan. The factors to be evaluated in
16 determining the performance of all departments shall include, but are not limited to: quality of
17 service level agreements, adherence to budgeted costs, and cost recovery methodology for
18 all ICT products and services provided by City Departments, including the Department of
19 Technology.

20 (h) COIT shall work to ensure adequate City ICT workforce development, including
21 training and certification in order to maintain the competitiveness of City ICT staff.

22 (i) COIT will review and approve procedures, developed by the Office of Contract
23 Administration and the Department of Technology, for the development and administration of
24 ICT enterprise agreements. The factors addressed by the procedures will include, but not be
25 limited to: (1) Whether the purchase is consistent with the City's current ICT Capital and

1 Operating Plan; (2) Whether the purchase is the most economical method of obtaining the
2 highest-quality products and services; and (3) The best interests of the City.

3 (j) The Department of Technology shall provide support to the COIT. COIT shall
4 review and approve the Department's annual plan, budget, and staffing required to support
5 the Committee.

6 (k) When a City Department submits to COIT a Surveillance Impact Report under
7 subsection 19B.2(b)(1) of Chapter 19B of the Administrative Code, COIT shall develop a
8 Surveillance Technology Policy for the Department. For purposes of this subsection (k), "City
9 Department," "Surveillance Technology Policy," and "Surveillance Impact Report" shall have
10 the meanings set forth in Section 19B.1 of Chapter 19B of the Administrative Code.
11

12 Section 18. Chapters 24 and 24B of the Administrative Code are hereby amended by
13 revising Section 24.7, and deleting Chapter 24B, Sections 24B.1 through 24B.11, to read as
14 follows. In addition, Sections 24.7 as amended shall be redesignated as Section 5.18-1-in
15 Chapter 5 of the Administrative Code and shall be part of a new article in Chapter 5 to be
16 titled "ARTICLE XVIII: RELOCATION APPEALS BOARD."
17

18 **SEC. ~~24.7~~5.18-1. RELOCATION APPEALS BOARD; ESTABLISHMENT;**
19 **COMPOSITION; APPOINTMENT; TERMS; DUTIES; COMPENSATION.**

20 There is hereby established, pursuant to the provisions of California Health and Safety
21 Code Section 33417.5, a Relocation Appeals Board ("Board") composed of five members
22 appointed by the Mayor and approved by the Board of Supervisors. The Relocation Appeals
23 Board is an Advisory Body as defined in Section 5.1-1. One of the members first appointed shall be
24 designated to serve for a term of one year; two for two years; and two for three years from the date of
25 appointment. Thereafter, members shall be appointed as aforesaid for a term of office of three years;

1 ~~except that all vacancies occurring during a term shall be filled for the unexpired term.~~

2 The Board shall promptly hear all complaints brought by residents of the various
3 project areas relating to relocation and shall determine if the ~~Redevelopment Agency~~ Office of
4 Community Investment and Infrastructure has complied with the provisions of Chapter 4 of the
5 California Health and Safety Code and, where applicable, federal regulations. The Board
6 shall, after a public hearing, transmit its findings and recommendations to the ~~Agency~~ Office of
7 Community Investment and Infrastructure. The members of the Board shall serve without
8 compensation; but each of the members shall be reimbursed for ~~his or her~~ their necessary
9 expenses incurred in performance of ~~his or her~~ their duties but not to exceed \$15 per meeting
10 and \$45 per month. The Mayor's Office shall provide administrative and clerical support to the
11 Board.

12 13 **~~CHAPTER 24B: RELOCATION APPEALS BOARD~~**

14 **~~SEC. 24B.1. ESTABLISHMENT; APPOINTMENT; TERMS; STAFF; FUNDING.~~**

15 ~~—(a) There is hereby established a board to be known as the San Francisco Relocation~~
16 ~~Appeals Board (hereinafter called "Board") consisting of five members, to be appointed by the Mayor~~
17 ~~and subject to the approval of the Board of Supervisors.~~

18 ~~—(b) One of the members who is first appointed shall be designated to serve for a term of one~~
19 ~~year; two for two years; and two for three years from the date of their appointments. Thereafter,~~
20 ~~members shall be appointed as aforesaid for a term of office of three years, except that all of the~~
21 ~~vacancies occurring during a term shall be filled for the unexpired term. A member shall hold office~~
22 ~~until a successor has been appointed.~~

23 ~~—(c) The Board shall elect a president from among its members. The term of office as~~
24 ~~President of the Board shall be for the calendar year or for the portion thereof remaining after each~~
25 ~~such president is elected.~~

1 ~~—(d) The Mayor shall be responsible for assigning a member of his office or any office under~~
2 ~~his jurisdiction the position of Executive Secretary to the Board. All other staff personnel of the Board~~
3 ~~shall be under the immediate direction and supervision of the Executive Secretary.~~

4 ~~—(e) The Board of Supervisors shall provide funds to pay for staff personnel, services and~~
5 ~~facilities as may be reasonably necessary to enable the Board to exercise its powers and perform its~~
6 ~~duties under this ordinance.~~

7 ~~—(f) The members of the Board shall serve without compensation; but each of the members~~
8 ~~shall be reimbursed for necessary expenses incurred in performance of duties, but not to exceed \$15~~
9 ~~per meeting and \$45 per month.~~

10
11 **~~SEC. 24B.2. SCOPE OF ORDINANCE.~~**

12 ~~—This ordinance applies to appeals taken regarding individuals or families who are being, or~~
13 ~~have been, forced to relocate their homes or businesses by public action within the City and County of~~
14 ~~San Francisco by the City and County or any agency of the City and County of San Francisco. Nothing~~
15 ~~in this ordinance, however, shall be interpreted or applied so as to create any power or duty in conflict~~
16 ~~with the pre-emptive effect of any federal or State law.~~

17
18 **~~SEC. 24B.3. TIME AND PLACE OF MEETING.~~**

19 ~~—The Board shall meet at least once a month if there is business pending before the Board. The~~
20 ~~time and place of meetings shall be determined by rules adopted by the Board.~~

21
22 **~~SEC. 24B.4. NOTICE OF MEETING.~~**

23 ~~—The members shall be notified of the time and place of meeting not less than 24 hours prior to~~
24 ~~said meeting.~~

1 **SEC. 24B.5. QUORUM.**

2 ~~—A quorum shall consist of a simple majority of the total Board members. No action may be~~
3 ~~taken by the Board at any meeting attended by less than the quorum. A decision by the Board shall~~
4 ~~require a simple majority of those members attending a meeting or hearing.~~

6 **SEC. 24B.6. POWERS AND DUTIES.**

7 ~~—In addition to the other powers and duties set forth in this ordinance, the Board shall have the~~
8 ~~power to:~~

9 ~~—(a) Study, investigate and hold hearings on grievances and disputes arising between~~
10 ~~displacing agency or any agency responsible for providing relocation services, and a relocatee who is~~
11 ~~dissatisfied with the relocation services;~~

12 ~~—(b) Require agencies to investigate grievances upon request of the Board and submit reports~~
13 ~~of investigations to the Board;~~

14 ~~—(c) Mediate disputes between displacing agency or agency responsible for providing~~
15 ~~relocation services and aggrieved party when requested to do so by aggrieved party; and~~

16 ~~—(d) Issue rules and regulations for the conduct of its own affairs.~~

18 **SEC. 24B.7. ADJUSTMENT AND SETTLEMENT OF COMPLAINTS.**

19 ~~—(a) Upon the filing with the Board of a signed complaint, specifying the nature of the~~
20 ~~grievance, the displacing agency and/or agency responsible for providing relocation services and the~~
21 ~~address to which notices may be sent, the Secretary shall notify said agency or agencies of the~~
22 ~~complaint and request said agency or agencies to submit a report to the Board within 15 days. An~~
23 ~~additional 15-day period may be granted by the Executive Secretary or President if necessary for the~~
24 ~~agency to complete its report. The Executive Secretary may attempt to resolve the complaint by~~
25 ~~conference, conciliation, persuasion or other means, shall maintain records of such attempts and shall~~

1 ~~submit such records and reports to the Board in accordance with said Board's wishes. If the aggrieved~~
2 ~~party is dissatisfied with any solution proposed by the Secretary, said party may request in writing that~~
3 ~~the matter be heard by the Board forthwith. Thereupon the Secretary shall set the matter for hearing by~~
4 ~~the Board and in writing notify the aggrieved party and the agency or agencies involved of the time and~~
5 ~~place of said hearing.~~

6 ~~—(b) Following the Secretary's investigation, provided attempts to resolve the complaint are~~
7 ~~unsuccessful, the complainant and agencies involved shall be notified of the time and place of hearing~~
8 ~~by mail. The date fixed for the hearing shall be not less than five days from the date of notice thereof.~~
9 ~~The hearing shall be informal and the complainant shall be entitled to bring counsel, witness and~~
10 ~~documentation. The Board's decision will be based on the complainant and any related evidence~~
11 ~~presented.~~

12 ~~—(c) If the Board determines that the complaint is unjustified or unsubstantiated, or that there~~
13 ~~is insufficient or inadequate basis for the complaint, the complaint shall be dismissed and the~~
14 ~~complainant shall be notified of this action by certified mail. Such notice shall also report the reasons~~
15 ~~for the dismissal.~~

16 ~~—(d) Where the Board determines that the complaint is well founded, the Board shall notify the~~
17 ~~displacing agency of its decision and make recommendation for the settlement of the dispute, giving the~~
18 ~~reasons therefor. The displacing agency or agency responsible for providing relocation services shall~~
19 ~~comply with the recommendation to the maximum extent permitted by law and governmental~~
20 ~~regulations. The complainant will be notified of the decision of the Board.~~

21 22 **~~SEC. 24B.8. INDIVIDUAL REMEDIES.~~**

23 ~~—Nothing in this ordinance or provisions thereof shall be construed as granting to an aggrieved~~
24 ~~party any right to pursue a civil action against the City and County of San Francisco or officer,~~
25 ~~employee, agency or representative thereof.~~

1
2 **~~SEC. 24B.9. REPEAL.~~**

3 ~~—Any ordinance or part of any ordinance conflicting with the provisions of this ordinance~~
4 ~~hereby is repealed to the extent of such conflict.~~

5
6 **~~SEC. 24B.10. PUBLIC MEETINGS.~~**

7 ~~—All meetings of the Board shall be public.~~

8
9 **~~SEC. 24B.11. SEVERABILITY.~~**

10 ~~—If any part or provision of this ordinance, or application thereof, to any person or~~
11 ~~circumstance is held invalid, the remainder of the ordinance, including the application of such part or~~
12 ~~provision to other persons or circumstances, shall not be affected thereby and shall continue in full~~
13 ~~force and effect. To this end the provisions of this ordinance are severable.~~

14
15 Section 19. Chapter 30 of the Administrative Code is hereby amended by revising
16 Sections 30.2 and 30.4 through 30.6, and adding new Section 30.5-1, to read as follows. In
17 addition, Sections 30.4 as amended shall be redesignated as Section 5.36-1 in Chapter 5 of
18 the Administrative Code and shall be part of a new article in Chapter 5 to be titled “ARTICLE
19 XXXVI: WORKFORCE INVESTMENT SAN FRANCISCO,” and Sections 30.5 and 30.5-1 as
20 amended shall be redesignated as Section 5.37-1 and 5.37-2 and shall be part of a new
21 article in Chapter 5 to be titled “ARTICLE XXXVII: COUNCIL ON CITY WORKFORCE
22 ALIGNMENT.”

23
24 **SEC. 30.2. DEFINITIONS.**

25 For the purposes of this Chapter 30, the following definitions shall apply to the terms

used herein:

“Alignment ~~Committee~~ Council” shall mean the ~~Committee~~ Council on City Workforce Alignment established in Section ~~30.55.37-1~~. The Council shall be an Advisory Body as defined in Section 5.1-1 of this Code.

* * * *

“Workforce Investment San Francisco” or “WISF” shall mean the ~~Local Workforce Investment Board~~ local workforce investment board required by the federal Workforce Innovation and Opportunity Act and defined at 29 U.S.C. Sec. 3122 and established in Section 5.36-1 of this Code. WISF shall be an Advisory Body as defined in Section 5.1-1 of this Code.

SEC. ~~30.45.36-1~~. LOCAL WORKFORCE INVESTMENT SAN FRANCISCO BOARD.

(a) ~~Prior to making any appointments to the WISF, as set forth in the federal Workforce Innovation and Opportunity Act, the Mayor shall submit the name of each nominee to the Board of Supervisors. Unless the Board of Supervisors disapproves a nominee within 30 days after receipt of the Notice of Appointment, the appointment shall become final. The Mayor need not submit WISF nominees to the Board of Supervisors for approval, if the Mayor appoints two members of the Board of Supervisors to the WISF.~~ “Workforce Investment San Francisco” or “WISF,” as defined in Administrative Code Section 30.2, is here established as an Advisory Body as defined in Section 5.1-1.

(b) ~~Pursuant to the relevant provisions of the federal Workforce Innovation and Opportunity Act, the Mayor may include individuals on the WISF as the Mayor determines to be appropriate. The WISF shall have 28 members appointed by the Mayor, subject to Charter Section 3.100(19), and subject to the membership requirements in 29 U.S.C. Section 3122, as it may be amended from time to time. The Mayor may appoint one or more members of the Board of Supervisors to the WISF.~~ As a matter of policy, the Board of Supervisors strongly urges the Mayor to appoint a member of the Board of Supervisors to the WISF.

1 (c) Notwithstanding Administrative Code Section 5.1-4, members of the WISF shall serve two-
2 year terms and may serve up to six terms. A part of a term that exceeds one year shall count as a full
3 term; a part of a term that is one year or less shall not. Notwithstanding the preceding sentence, the
4 current term of any person serving on the WISF on January 1, 2027 shall count as a full term if the
5 person serves more than one year of that term. Terms completed on or before December 31, 2026 shall
6 not count as a term for the purpose of the lifetime term limit.

7 (ed) The Director of Workforce Development shall submit the Local Plan developed by
8 the WISF to the Board of Supervisors for review and comment not less than 30 days prior to
9 submitting it to the Governor.

10
11 **SEC. ~~30.55.37-1.~~ COMMITTEE COUNCIL ON CITY WORKFORCE ALIGNMENT.**

12 (a) The City hereby establishes a ~~Committee Council~~ on City Workforce Alignment
13 (“Alignment ~~Committee Council~~”), as defined in Section 30.2 and comprised of City employees and
14 community representatives as provided below. The Alignment Council shall be an Advisory Body,
15 as defined in Section 5.1-1. The Alignment ~~Committee Council~~ shall coordinate Workforce
16 Development Services across City departments in order to increase their effectiveness
17 through methods such as program evaluation and deduplication of client data. The Alignment
18 ~~Committee Council~~ also shall establish a definition of the term “workforce development” that
19 shall be uniformly adopted across City departments, as well as a shared approach to
20 Workforce Development Services that leads to measurable system success.

21 (b) The Alignment ~~Committee Council~~ shall be comprised of 17 members:

22 (1) Seat 1 shall be held by a member of the Board of Supervisors or a City
23 employee designated by the Board (with the department head’s approval);

24 (2) Seat 2 shall be held by the Director of the Office of Economic and Workforce
25 Development, or the Director’s designee;

1 (3) Seat 3 shall be held by the Executive Director of the Human Rights
2 Commission, or the Executive Director's designee;

3 (4) Seat 4 shall be held by the Executive Director of the Human Services Agency,
4 or the Executive Director's designee;

5 (5) Seat 5 shall be held by the Director of the Department of Children, Youth and
6 Their Families, or the Director's designee;

7 (6) Seat 6 shall be held by the General Manager of the Public Utilities Commission,
8 or the General Manager's designee;

9 (7) Seat 7 shall be held by the ~~Director of the Department of~~ Human Resources
10 Director, or the Director's designee;

11 (8) Seat 8 shall be held by the Director of the Department of Public Health, or the
12 Director's designee;

13 (9) Seat 9 shall be held by the Director of the Department of Public Works, or the
14 Director's designee;

15 (10) Seat 10 shall be held by the Director of the Department of Homelessness and
16 Supportive Housing, or the Director's designee;

17 (11) Seat 11 shall be held by the Chief Adult Probation Officer, or the Chief Adult
18 Probation Officer's designee;

19 (12) Seats 12 and 13 shall be held by public representatives who, at the time of
20 their appointments, are employed by Nonprofit Corporations that provide Workforce
21 Development Services to low-income San Francisco residents and those with barriers to
22 employment, appointed by the Mayor ~~to serve for a three-year term~~;

23 (13) Seat 14 shall be held by a public representative who is affiliated with a labor
24 organization and has leadership experience and demonstrated expertise in workforce
25 development systems, policies, and programs, including registered apprenticeship programs,

1 appointed by the Mayor ~~to serve a three-year term~~;

2 (14) Seats 15 and 16 shall be held by public representatives who, at the time of
3 their appointments, are employed by Nonprofit Corporations that provide Workforce
4 Development Services to low-income San Francisco residents and those with barriers to
5 employment, appointed by the Board of Supervisors ~~to serve for a three-year term~~;

6 (15) Seat 17 shall be held by a public representative who is affiliated with a labor
7 organization and has leadership experience and demonstrated expertise in workforce
8 development systems, policies, and programs, including registered apprenticeship programs,
9 appointed by the Board of Supervisors ~~to serve a three-year term~~.

10 Members in Seats 12 through 17 shall be subject to the terms and term limits in Section 5.1-4.

11 (c) The appointment of public representatives is intended to ensure adequate
12 representation of the priority sectors of the local economy as designated in the Local Plan,
13 and of persons with expertise in racial equity and in serving transitional age youth, homeless
14 individuals, and re-entry populations.

15 (d) The Director of Workforce Development shall ~~convene and~~ chair the Alignment
16 ~~Committee-Council~~. The Mayor may annually ~~appoint~~ designate one or more members of the
17 Alignment ~~Committee-Council~~ to serve as co-chairs with the Director of Workforce
18 Development. The Mayor or Director of Workforce Development may invite additional City
19 departments that administer Workforce Development programs to present to the Alignment
20 ~~Committee-Council~~ as needed for short-term City strategic planning needs.

21 (e) The Alignment ~~Committee-Council~~ shall establish an appropriate organizational
22 structure and resourcing mechanisms to advance its work, ~~including staffing and funding for~~
23 ~~special projects as recommended by the Economic Recovery Task Force.~~

24 (f) To the extent allowable by the Charter, local, state, and federal law:

25 (1) The Alignment ~~Committee-Council~~, by March 15, 2024, and every five years

1 thereafter, shall submit to the WISF for its review and comment a Citywide Workforce
2 Development Plan, which shall include an assessment of existing workforce development
3 services, the City's anticipated workforce development needs from the Office of Economic
4 Analysis, benchmarks for system efficacy, documentation of partnerships and mission
5 alignment across the entire workforce development system, and measurable progress
6 towards identified benchmarks. The Citywide Workforce Development Plan shall include
7 goals and strategies for all Workforce Development Services in San Francisco and a
8 projection of the funding needed to achieve the goals, consistent with the October 2020
9 COVID-19 Economic Recovery Task Force Report, the San Francisco Racial Equity
10 Framework developed by the Office of Racial Equity, and the current Local Plan approved by
11 WISF.

12 (2) The Alignment ~~Committee~~ Council, by March 15, 2025, and every two years
13 thereafter, shall submit to the WISF for review and comment updates to the Citywide
14 Workforce Development Plan that include (A) a summary of the City's implementation of the
15 plan, including data detailing departmental performance metrics solicited through the annual
16 Citywide Workforce Services Inventory due in December of each year, (B) a summary of
17 changes to federal and state funding, (C) a summary of current fiscal year programs and
18 expenditures for Workforce Development Services, (D) recommended funding levels for new
19 and existing collaborative programs and initiatives in furtherance of workforce system
20 alignment for the next fiscal year, (E) a statement of priorities to guide the allocation of
21 unanticipated funding that becomes available for Citywide Workforce Development Services
22 during the annual budget process or during the fiscal year, and (F) progress towards
23 benchmarks identified in the Five-Year Plan.

24 (g) The Director of Workforce Development shall submit the five-year Citywide
25 Workforce Development Plan, and each plan update, to the Board of Supervisors.

1 (h) The Alignment ~~Committee~~Council may provide guidance to City departments on the
2 meaning of the terms used in the definition of Workforce Development Services in this
3 Chapter 30, either in the Citywide Workforce Development Plan or through other policy
4 guidance.

5 (i) The Alignment ~~Committee~~Council shall meet at least every four months.

6 ~~(j) Any member of the Alignment Committee who fails to attend at least half of the meetings~~
7 ~~held in a calendar year shall be deemed to have resigned from the committee. In that event, the~~
8 ~~Alignment Committee or its representative shall notify the member's appointing authority of the~~
9 ~~vacancy on the committee created by the constructive resignation.~~

10
11 **SEC. 30.5-15.37-2. SUNSET.**

12 Unless the Board of Supervisors by ordinance extends the term of the Alignment Council,
13 Article XVII will expire by operation of law, and the Alignment Council shall sunset, on December 31,
14 2030. In that event and after that date, the City Attorney shall cause these sections to be removed from
15 the Administrative Code.

16
17 **SEC. 30.6. CITY DEPARTMENT RESPONSIBILITIES.**

18 (a) The Office of Economic and Workforce Development shall provide administrative
19 support for the Alignment ~~Committee~~Council.

20 (b) All City departments engaged in Workforce Development Services shall provide
21 information regarding the Workforce Development Services and an accounting of all federal,
22 state, local, and private Workforce Development funds received by the departments to the
23 Alignment ~~Committee~~Council in the format and within the timeline that the Alignment ~~Committee~~
24 Council requests.

1 Section 20. Chapter 32 of the Administrative Code is hereby amended by deleting
2 Article IV, Sections 32.30 through 32.34 to read as follows:

3
4 **~~ARTICLE IV: CITIZENS ADVISORY COMMITTEE, AREA LOAN~~**
5 **~~COMMITTEE AND AREA RENT COMMITTEE~~**

6 **~~SEC. 32.30. CITIZENS ADVISORY COMMITTEE—MEMBERSHIP.~~**

7 ~~(a) There shall be established a Citizens Advisory Committee for each residential rehabilitation~~
8 ~~area. Each Citizens Advisory Committee shall consist of not more than 11 persons.~~

9 ~~(b) Property owners shall constitute six of the 11 members when 50 percent or more of the~~
10 ~~structures are owner occupied. The balance of the membership shall be tenants.~~

11 ~~(c) Tenants shall constitute six of the 11 members when less than 50 percent of the structures~~
12 ~~are owner occupied. The balance of the membership shall be property owners.~~

13 ~~(d) The determination as to whether 50 percent or more of the structures are owner occupied~~
14 ~~shall be made by Director of Planning at the time an area is proposed for designation as a RAP area~~
15 ~~by the Director.~~

16
17 **~~SEC. 32.30-1. CITIZENS ADVISORY COMMITTEE—MEMBERSHIP.~~**

18 ~~(a) There shall be established a Citizens Advisory Committee for each residential rehabilitation~~
19 ~~area. Each Citizens Advisory Committee shall consist of 11 persons.~~

20 ~~(b) Members of the Citizens Advisory Committee shall be selected from the following groups~~
21 ~~which are defined only for the purposes of Section 32.30-1.~~

22 ~~—(1) "Property owners" means persons owning property in the residential rehabilitation~~
23 ~~area.~~

24 ~~—(2) "Employees of property owners" means residents of the residential rehabilitation area~~
25 ~~who are employed by area property owners for 20 or more hours per month.~~

1 ~~—(3) "Agents of property owners" means residents of the residential rehabilitation area who~~
2 ~~represent an area property owner in dealing with third persons for any purpose.~~

3 ~~—(4) "Tenants" means residents of the residential rehabilitation area who are not area~~
4 ~~property owners, employees of property owners, or agents of property owners as defined in this~~
5 ~~Section.~~

6 ~~(c) At least one property owner, and either additional property owners, employees of property~~
7 ~~owners, or agents of property owners shall constitute six of the 11 members of the Citizens Advisory~~
8 ~~Committee when 50 percent of the structures are owner-occupied. The balance of the membership~~
9 ~~shall be tenants.~~

10 ~~(d) Tenants shall constitute six of the 11 members of the Citizens Advisory Committee when less~~
11 ~~than 50 percent of the structures are owner-occupied. The balance of the membership shall consist of~~
12 ~~at least one property owner and either additional property owners, employees of property owners, or~~
13 ~~agents of property owners.~~

14 ~~(e) The determination as to whether 50 percent or more of the structures are owner-occupied~~
15 ~~shall be made by the Director of Planning at the time an area is proposed for designation as a RAP~~
16 ~~area by the Director.~~

17 ~~(f) If the number of nominees for any constituency on the Citizens Advisory Committee exceeds~~
18 ~~the number of openings for that constituency, a publicly announced election shall be held to select the~~
19 ~~members of that constituency and only members of that constituency may vote in that election.~~
20 ~~Property owners, employees of property owners, and agents of property owners shall constitute one~~
21 ~~constituency. Tenants shall constitute a separate constituency.~~

22 ~~(g) All nominations, appointments and elections necessary to carry out the purposes of this~~
23 ~~Section shall be in accordance with rules and regulations promulgated by the Chief Administrative~~
24 ~~Officer or the person to whom responsibility for administration of the program has been delegated.~~

25 ~~(h) The provision of this Section shall apply only in residential rehabilitation assistance areas~~

1 designated by resolution of the Board of Supervisors pursuant to Section 32.43 on or after July 1, 1977.

2
3 **~~SEC. 32.31. CITIZENS ADVISORY COMMITTEE—FUNCTIONS.~~**

4 ~~—The functions of the Citizens Advisory Committee include the following:~~

5 ~~—(a) Assist the Director of Planning and other relevant City and County departments in~~
6 ~~developing a plan for public improvements in the residential rehabilitation area;~~

7 ~~—(b) Participate with the Chief Administrative Officer in development of the rules and~~
8 ~~regulations governing implementation of the program;~~

9 ~~—(c) Assist the Chief Administrative Officer in implementation of the Residential Rehabilitation~~
10 ~~Program in the Residential Rehabilitation Area;~~

11 ~~—(d) Appoint a representative from the Residential Rehabilitation Area to the Loan Committee;~~

12 ~~—(e) Appoint members of the Area Rent Committee;~~

13 ~~—(f) Develop by-laws for the operation of the Citizens Advisory Committee, which by-laws~~
14 ~~shall be subject to the approval of the Chief Administrative Officer;~~

15 ~~—(g) Assist the Chief Administrative Officer in his or her selection of the liaison staff; and~~

16 ~~—(h) Act as liaison between the Chief Administrative Officer and the owners of property in and~~
17 ~~residents of the Residential Rehabilitation Area in solving problems which arise in the course of~~
18 ~~implementation of the program.~~

19
20 **~~SEC. 32.32. LOAN COMMITTEE—MEMBERSHIP.~~**

21 ~~—There shall be a loan committee consisting of the following members:~~

22 ~~—(a) One individual from each Residential Rehabilitation Area who shall be appointed by the~~
23 ~~Citizens Advisory Committee for the area;~~

24 ~~—(b) One individual who is a permanent employee of the Real Estate Department; and~~

25 ~~—(c) One individual qualified in the field of real estate lending and financing who shall be~~

1 ~~appointed by the Chief Administrative Officer, unless provided otherwise in any bond resolution issued~~
2 ~~pursuant to the provisions of this Chapter.~~

3
4 **~~SEC. 32.33. LOAN COMMITTEE—FUNCTIONS.~~**

5 ~~—The functions of Loan Committee are as follows:~~

6 ~~—(a) The Loan Committee shall periodically review the rules and procedures and standards~~
7 ~~for the granting of residential rehabilitation loans and shall recommend changes as needed to the chief~~
8 ~~Administrative Officer.~~

9 ~~—(b) The Loan Committee shall review and recommend approval or denial of applications~~
10 ~~required to be considered by the Loan Committee by or pursuant to this Chapter.~~

11 ~~—(c) The Loan Committee shall operate in a manner consistent with by laws which shall be~~
12 ~~developed by the Chief Administrative Officer, and the recommendations of approval or denial of loan~~
13 ~~applications shall be in accordance with the requirements contained in, or adopted pursuant to, this~~
14 ~~Chapter.~~

15
16 **~~SEC. 32.34. AREA RENT COMMITTEE.~~**

17 ~~There shall be an Area Rent Committee established in each Residential Rehabilitation Area.~~
18 ~~Each Area Rent Committee shall consist of two tenants and two landlords living in the area who shall~~
19 ~~be appointed by the Citizens Advisory Committee pursuant to procedures established by the Chief~~
20 ~~Administrative Officer.~~

21
22 Section 21. Chapter 36 of the Administrative Code is hereby amended by deleting
23 Section 36.3 and revising Section 36.4 to read as follows:

24
25 **~~SEC. 36.3. INTERAGENCY PLANNING AND IMPLEMENTATION COMMITTEES.~~**

~~For each area subject to the provisions of this Article, there shall be an Interagency Planning and Implementation Committee that shall be comprised of representatives of the departments, offices, and agencies whose responsibilities include provision of one or more of the community improvements that are likely to be needed or desired in a Plan Area. In addition to the Planning Department, these departments, offices, and agencies shall, if relevant, include, but are not limited to, the County Transportation Authority, Municipal Transportation Agency, Department of Public Works, Library Commission, Redevelopment Agency or its successor agency, Mayor's Office of Economic and Workforce Development, Mayor's Office of Community Development, Public Utilities Commission, Department of Recreation and Parks, Department of the Environment, and the Office of City Greening. Representatives from the Transbay Joint Powers Authority (TJPA) and Bay Area Rapid Transit District (BART) shall be consulted when formulating recommendations regarding implementation and funding related to the Transit Center District Plan. The Interagency Planning and Implementation Committees shall be chaired by the Planning Director or his or her designee. It shall be the responsibility of each such department, office, or agency to participate, using its own administrative funds, in the preparation of that portion of a Community Improvements Plan falling within its area of responsibility and, after Area Plan adoption, to participate in the detailed design of the community improvement or improvements and to seek the funding for its implementation as provided in the Implementation Program, as amended from time to time.~~

SEC. 36.4. ANNUAL PROGRESS REPORTS.

(a) **Preparation.** After the final adoption of an Area Plan, including the Community Improvements Plan and Implementation Program, for a portion of the City subject to the provisions of this Article, the Planning Department shall prepare for each Area Plan a brief Annual Progress Report indicating the status of implementation of the Area Plan and its various components. It shall contain information regarding the progress made to date in

1 implementing the Area Plan and its various components, including a summary of the
2 individual development projects, public and private, that have been approved during the report
3 period, and shall also describe the steps taken regarding implementation of the various
4 community improvements in accordance with the Plan's projected phasing and update and, if
5 necessary, modify and amend, the contents and/or phasing of the Community Improvements
6 Plan and Implementation Program. It shall also include proposed departmental work
7 programs and budgets for the coming fiscal year that describe the steps to be taken by each
8 responsible department, office, or agency to implement the Community Improvements Plan. It
9 shall be the responsibility of each department, office and agency to provide to the Planning
10 Department the following: (i) information regarding its progress in implementing the
11 community improvement(s) for which it is responsible; (ii) any changes in the time-phased
12 schedule for implementing the improvement(s); and (iii) information regarding its relevant
13 proposed work program and efforts to secure the funding sources for implementing the
14 improvement(s) in the coming year. The Planning Department shall summarize this
15 information together with information regarding ~~it's~~its own progress and relevant proposed
16 work program and budget into the Annual Progress Report.

17 * * * *

18 (c) **Submission to Relevant Committee of the Board of Supervisors.** The
19 Annual Progress Report shall also be submitted to the committee of the Board of Supervisors
20 responsible for land use matters, which Committee may schedule a public hearing. Further,
21 the Board urges the Planning Department Director and/or ~~his or her~~ their designee ~~who chairs~~
22 ~~the Interagency Planning and Implementation Committee for each Area Plan~~ to be available to
23 provide a briefing and answer questions about the Report at the appropriate Board of
24 Supervisors committee hearing.

25 * * * *

Section 22. Chapter 37 of the Administrative Code is hereby amended by revising Sections 37.4 and 37.5 to read as follows:

SEC. 37.4. ESTABLISHMENT; APPOINTMENT; TERMS; EXECUTIVE DIRECTOR; FUNDING; COMPENSATION.

(a) There is hereby established a board to be known as the San Francisco Residential Rent Stabilization and Arbitration Board (hereinafter called "Board"), consisting of five members. The Board is a Commission as defined in Section 5.1-1 of this Code. Regular members, each of whom shall have a specific alternate having the same qualifications as the regular member, shall serve at the pleasure of the Mayor. All regular members and alternate members shall be appointed by the Mayor.

(b) The Board shall consist of two landlords, two tenants, and one person who is neither a landlord nor a tenant and who owns no residential rental property; and an alternate for each specific member. All members shall be residents of the City ~~and County of San Francisco~~. If one of the two regular landlord members is unavailable to vote, that regular member's specific alternate shall be seated and vote, and if that regular member's specific alternate is also unavailable to vote, the other landlord alternate shall (if available) be seated and vote as a substitute alternate. If one of the two regular tenant members is unavailable to vote, that regular member's specific alternate shall be seated and vote, and if that regular member's specific alternate is also unavailable to vote, the other tenant alternate shall (if available) be seated and vote as a substitute alternate.

(c) In accordance with applicable State law, all members shall disclose all present holdings and interests in real property, including interests in corporations, trusts or other entities with real property holdings.

1 (d) All members shall be appointed by the Mayor to serve 48-month terms. All
2 vacancies occurring during a term shall be filled for the unexpired term.

3 (e) The Board shall elect a Chairman and Vice-Chairman from among its regular
4 members.

5 (f) The ~~position of~~ Executive Director of the Board shall have the powers and duties set forth
6 in shall be established pursuant to and subject to Charter Sections 3.500 and 8.200 Section 4.126. The
7 person occupying the position of Executive Director shall be appointed by the Chairman of the Board
8 with the approval of a majority of the members. The Board shall submit to the Mayor at least three
9 qualified applicants, and if rejected, shall make additional nominations in the same manner, for the
10 position of Executive Director, subject to appointment by the Mayor; and may in its discretion remove
11 the Executive Director. All staff personnel shall be under the immediate direction and
12 supervision of the Executive Director.

13 (g) Pursuant to the budgetary and fiscal ~~provisions~~ provisions of the Charter, the Board
14 of Supervisors shall provide funds to pay for staff personnel, services and facilities as may be
15 reasonably necessary to enable the Board to exercise its powers and perform its duties under
16 this Chapter. A special fund to be known as the Residential Rent Stabilization and Arbitration
17 Fund shall be established under the supervision and direction of the Board for the receipt of
18 fees under ~~this~~ Chapter 37A, such fees to be appropriated by the Board of Supervisors for the
19 operation of the Board.

20 (h) Subject to the budgetary and fiscal limitations of the Charter, each member shall be
21 paid \$75 per ~~Commission~~ Board meeting attended if the meeting lasts for six hours or more in a
22 single 24-hour period. The ~~Commission~~ Board shall adopt rules to allow for payment of an
23 equitable portion of this per diem if a meeting lasts less than six hours. The total per diem
24 shall not exceed \$750 per month. In addition, each member may receive reimbursement for
25 actual expenses incurred in the course and scope of the member's duties.

1
2 **SEC. 37.5. MEETINGS OF THE BOARD.**

3 ~~—(a) Time and Place of Meetings.~~ The Board shall meet as often as necessary to stay
4 current with the workload but in no event less than once a month. ~~The time and place of meetings~~
5 ~~shall be determined by rules adopted by the Board. The first meeting shall be held within 15 days of the~~
6 ~~appointment of the first Board. The matter of establishing standards for the selection of Administrative~~
7 ~~Law Judges shall be considered at the first meeting.~~

8 ~~—(b) Quorum.~~ A quorum for the transaction of official business shall consist of a majority of
9 the total Board members. No action may be taken by the Board at any meeting attended by less than the
10 quorum. A decision by the Board shall require a majority of all of the members of the Board.

11 ~~—(c) Special Meetings.~~ The Board may hold special meetings in accordance with Charter
12 Section 3.500.

13 ~~—(d) Meetings Open and Public.~~ All meetings of the Board shall be open and public in
14 accordance with the Charter and applicable State law.

15
16 Section 23. Chapter 40 of the Administrative Code is hereby amended by deleting
17 Article IV, Sections 40.14 and 40.15, to read as follows:

18
19 **ARTICLE IV: LOAN COMMITTEE**

20 **SEC. 40.14. LOAN COMMITTEE — MEMBERSHIP.**

21 ~~—There shall be a Loan Committee, whose members shall serve without compensation,~~
22 ~~consisting of the following members, all of whom shall be residents of the City and County:~~

23 ~~—(a) One individual, with permanent residence as a tenant in the City and County, appointed~~
24 ~~by the Mayor.~~

25 ~~—(b) One individual, with permanent residence as a tenant in the City and County, appointed~~

1 ~~by the President of the Board of Supervisors.~~

2 ~~—(c) One individual appointed by the Controller.~~

3 ~~—(d) One individual qualified in the field of real estate lending and financing who shall be~~
4 ~~appointed by the Chief Administrative Officer.~~

5 ~~—(e) One individual who is a permanent employee of the Real Estate Department.~~

6
7 **~~SEC. 40.15. LOAN COMMITTEE—FUNCTIONS.~~**

8 ~~—The functions of the Loan Committee are as follows:~~

9 ~~—(a) The Loan Committee shall periodically review the rules and procedures and standards for~~
10 ~~the granting of residential rehabilitation loans and shall recommend changes as needed to the Chief~~
11 ~~Administrative Officer.~~

12 ~~—(b) The Loan Committee shall review and recommend approval or denial of applications~~
13 ~~required to be considered by the Loan Committee by or pursuant to this Chapter.~~

14 ~~—(c) The Loan Committee shall operate in a manner consistent with by-laws which shall be~~
15 ~~developed by the Loan Committee and approved by the Chief Administrative Officer, and the~~
16 ~~recommendation of approval or denial of loan applications shall be in accordance with the~~
17 ~~requirements contained in, or adopted pursuant to, this Chapter.~~

18
19 Section 24. Chapter 41 of the Administrative Code is hereby amended by revising
20 Section 41.21 to read as follows:

21
22 **SEC. 41.21. ANNUAL REVIEW OF RESIDENTIAL HOTEL STATUS.**

23 * * * *

24 ~~(c) The Department of Building Inspection should establish a San Francisco Residential Hotel~~
25 ~~Operators Advisory Committee composed of:~~

1 ~~—3 members nominated by the San Francisco Hotel Association (for-profit operators);~~
2 ~~—3 members nominated by the Golden Gate Hotel Association (for-profit operators);~~
3 ~~—2 members nominated by the Council of Community Housing Organizations (nonprofit hotel~~
4 ~~operators);~~
5 ~~—Deputy Mayor for Housing.~~
6 ~~The committee shall meet no less than once every three months to advise the Mayor's Office of~~
7 ~~Housing on matters including, but not limited to:~~
8 ~~—(1) Proposed revisions to this ordinance;~~
9 ~~—(2) Programs that various City agencies (i.e. Mayor's Office of Housing, Department of~~
10 ~~Social Services, etc.) should develop to assist the City's residential hotel operators;~~
11 ~~—(3) Any state or federal laws the City should support, oppose or seek to revise that impact~~
12 ~~residential hotel operators;~~
13 ~~—(4) Any new City, State or Federal programs the City shall encourage that would provide~~
14 ~~financial or technical support or assistance to San Francisco Residential Hotel Operators.~~

15
16 Section 25. Chapter 42 of the Administrative Code is hereby amended by deleting
17 Chapter 42, Sections 42.1 through 42.22, to read as follows:

18
19 **~~CHAPTER 42: INDUSTRIAL DEVELOPMENT AUTHORITY~~**

20 **~~SEC. 42.1. CREATED UNDER PROVISIONS OF STATE LAW.~~**

21 ~~There is need for a public corporation to be known as the Industrial Development Authority of~~
22 ~~the City and County of San Francisco, to function in the City and County under the provisions of the~~
23 ~~California Industrial Development Financing Act, Title 10 (commencing with Section 91500) of the~~
24 ~~Government Code.~~

25 ~~An Industrial Development Authority shall be created and constituted at the same time and in~~

1 ~~the same manner prescribed by the California Industrial Development Financing Act of said code.~~

2
3 **~~SEC. 42.2. DEFINITIONS.~~**

4 ~~Unless the context otherwise requires, the definitions in this section shall govern the~~
5 ~~construction of this chapter, as follows:~~

6 ~~(a) "Act" means the California Industrial Development Financing Act, Title 10 (commencing~~
7 ~~with Section 91500) of Government Code.~~

8 ~~(b) "Authority" means the Industrial Development Authority of the City and County of San~~
9 ~~Francisco.~~

10 ~~(c) "Board" means the Board of Directors of the Authority.~~

11 ~~(d) "Officer" means the Chairperson and members of the Board, a secretary, a treasurer, and~~
12 ~~such assistants for the secretary and the treasurer as the Board may appoint.~~

13
14 **~~SEC. 42.3. GOVERNING BODY; NAME.~~**

15 ~~There shall be a five member board which shall be known as the "Industrial Development~~
16 ~~Authority of the City and County of San Francisco Board of Directors."~~

17
18 **~~SEC. 42.4. SELECTION OF BOARD.~~**

19 ~~For purposes of selecting original members of the Board and each replacement to the Board as~~
20 ~~may be required from time to time, the Mayor shall present to the Board of Supervisors of the City and~~
21 ~~County of San Francisco the name of one person for each vacancy of the Board for consideration for~~
22 ~~appointment to the Board by the Board of Supervisors. The Board of Supervisors, alone, shall officially~~
23 ~~appoint members of the Board.~~

24
25 **~~SEC. 42.5. TERMS OF OFFICE.~~**

1 ~~At the time of the appointment of the first directors, the Board of Supervisors shall divide the~~
2 ~~directors into three groups containing as nearly equal whole numbers as possible. The first term of the~~
3 ~~directors included in the first group shall be approximately one year; the first term of the directors in~~
4 ~~the second group shall be approximately two years; the first term of the directors included in the third~~
5 ~~group shall be approximately three years, as determined by the Board of Supervisors, and thereafter~~
6 ~~the terms of all directors shall be three years. Directors shall be eligible for reappointment for an~~
7 ~~unlimited number of terms.~~

8
9 **~~SEC. 42.6. CHAIRPERSON OF BOARD.~~**

10 ~~The authority shall have a chairperson of its board who shall be elected by the members of the~~
11 ~~Board from among its membership.~~

12
13 **~~SEC. 42.7. ORGANIZATIONAL MEETING.~~**

14 ~~Within 90 days after the effective date of this ordinance, the Board shall meet and organize as a~~
15 ~~board of the authority.~~

16
17 **~~SEC. 42.8. POWERS AND LIMITATIONS OF AUTHORITY.~~**

18 ~~The authority shall exercise all powers, and be subject to all limitations, prescribed in the Act.~~
19 ~~Direct and indirect expenses of operation of the authority shall be paid exclusively from proceeds of~~
20 ~~bonds issued pursuant to the Act and this ordinance, or from fees charged by the authority for~~
21 ~~applications and other filings.~~

22
23 **~~SEC. 42.9. OFFICERS, EMPLOYEES AND AGENTS.~~**

24 ~~The authority may appoint officers, employees, and agents as prescribed in the Act and not~~
25 ~~otherwise inconsistent with this chapter.~~

1
2 **~~SEC. 42.10. SECRETARY.~~**

3 *The authority shall appoint a secretary.*
4

5 **~~SEC. 42.11. ATTORNEY.~~**

6 *The City Attorney of the City and County of San Francisco shall serve as attorney to the*
7 *authority.*
8

9 **~~SEC. 42.12. OATH OF OFFICE.~~**

10 *Each officer of the authority before entering upon the duties of office shall take and subscribe to*
11 *the official oath and file it with the secretary of the authority. The oath of office may be before the*
12 *secretary, any member of the authority, or any officer authorized by law to administer oaths.*
13

14 **~~SEC. 42.13. MANNER OF ACTION BY AUTHORITY.~~**

15 *The authority shall act in the manner and be subject to the Charter of the City and County of*
16 *San Francisco and ordinances enacted thereto.*
17

18 **~~SEC. 42.14. QUORUM.~~**

19 *A majority of the Board shall constitute a quorum for the transaction of business.*
20

21 **~~SEC. 42.15. ADOPTION OF RESOLUTION AND MOTIONS BY MAJORITY VOTE.~~**

22 *No resolution or motion shall be passed or become effective without the affirmative votes of at*
23 *least a majority of the members of the Board.*
24

25 **~~SEC. 42.16. TAKING OF AYES AND NOES, ENTRY UPON MINUTES.~~**

1 ~~The ayes and noes shall be taken upon the passage of all resolutions or motions and entered~~
2 ~~upon the minutes of the Board.~~

3
4 ~~**SEC. 42.17. SIGNING OF RESOLUTIONS; ATTESTATION.**~~

5 ~~All resolutions shall be signed by the Chairperson and attested by the Secretary.~~

6
7 ~~**SEC. 42.18. ESTABLISHMENT OF RULES.**~~

8 ~~Except for any applicable provisions of the Act prescribing rules for the proceedings of the~~
9 ~~authority, the authority shall establish rules for its proceedings. The authority shall submit to the~~
10 ~~Board of Supervisors for approval guidelines and priority businesses and types of facilities to be~~
11 ~~provided financing under this ordinance.~~

12
13 ~~**SEC. 42.19. ADMINISTRATION OF OATHS AND AFFIRMATIONS.**~~

14 ~~Each member of the Board, or the Secretary, may administer oaths and affirmations in~~
15 ~~connection with the taking of testimony at any hearing, investigation, or other matters pending before~~
16 ~~the authority.~~

17
18 ~~**SEC. 42.20. DUTIES OF CHAIRPERSON.**~~

19 ~~The Chairperson shall: (a) sign all contracts on behalf of the authority; (b) perform other~~
20 ~~duties imposed by the Board.~~

21
22 ~~**SEC. 42.21. DUTIES OF SECRETARY.**~~

23 ~~The Secretary shall: (a) Countersign all contracts on behalf of the authority; (b) perform other~~
24 ~~duties imposed by the Board.~~

1 **~~SEC. 42.22. QUARTERLY REPORTS TO BOARD OF SUPERVISORS.~~**

2 ~~The authority shall file with the Board of Supervisors at quarterly intervals a detailed report of~~
3 ~~all its transactions, including a statement of all revenues and expenditures. The budget of the authority~~
4 ~~shall be transmitted to the Board of Supervisors and approved annually by the Board of Supervisors in~~
5 ~~conjunction with the annual budget of the City and County of San Francisco.~~
6

7 Section 26. Chapter 44 of the Administrative Code is hereby amended by deleting
8 Chapter 44, Sections 44.1 through 44.8, to read as follows:
9

10 **~~CHAPTER 44: ADULT DAY HEALTH CARE PLANNING COUNCIL~~**

11 **~~SEC. 44.1. ESTABLISHMENT OF THE COUNCIL; APPOINTMENT.~~**

12 ~~—Pursuant to Section 1572.5 of the California Health and Safety Code, there is hereby~~
13 ~~established an advisory council of 17 members, known as the Adult Day Health Care Planning Council,~~
14 ~~who shall be appointed by the Board of Supervisors.~~
15

16 **~~SEC. 44.2. PUBLIC HEARING.~~**

17 ~~—In accordance with Section 1572.7 of the California Health and Safety Code, there shall be a~~
18 ~~public hearing prior to the establishment of the Council.~~

19 **~~SEC. 44.3. COMPOSITION OF COUNCIL.~~**

20 ~~—The composition of the Council shall be as follows:~~

21 ~~—(a) Nine persons over 55 years of age who have a demonstrated interest in the special health~~
22 ~~and social needs of the elderly and who are representative of organizations dedicated primarily to the~~
23 ~~needs of older persons, including those of low income and racial and ethnic minorities;~~

24 ~~—(b) One representative of the area agency on aging designated pursuant to Public Law 94-~~
25 ~~135; or, if none, a county agency responsible for services to senior citizens;~~

1 ~~—(c) One representative of a county agency responsible for administration of health programs~~
2 ~~for senior citizens;~~

3 ~~—(d) A representative of the County Department of Human Services, or the equivalent agency;~~

4 ~~—(e) One representative of the San Francisco Medical Society;~~

5 ~~—(f) One representative of a publicly funded senior citizen transportation program;~~

6 ~~—(g) One representative of a health facility or organization of health facilities providing acute~~
7 ~~or long-term care to the elderly;~~

8 ~~—(h) A member at large who has demonstrated interest in alternatives to institutional long-~~
9 ~~term care; and~~

10 ~~—(i) A functionally impaired adult member with a demonstrated interest in community-based,~~
11 ~~long-term care needs of the functionally impaired who is 18 or over, and under 55 years of age.~~

12 ~~—In making appointments to the Council, the Board shall take into consideration any~~
13 ~~recommendations made by the Mayor with respect to any of the above categories.~~

14
15 **~~SEC. 44.4. TERMS OF COUNCIL MEMBERS.~~**

16 ~~—The term of each member shall be for three years. Where a member, prior to the expiration of~~
17 ~~his or her term, ceases to retain the status which qualified him or her for appointment to the Council,~~
18 ~~the membership shall terminate and there shall be a vacancy on the Council.~~

19
20 **~~SEC. 44.5. PRESIDENT AND VICE PRESIDENT OF THE COUNCIL.~~**

21 ~~—Commencing with the date upon which the first members take office, the Council shall elect a~~
22 ~~president and vice president from among its members.~~

23
24 **~~SEC. 44.6. COMPENSATION.~~**

25 ~~—Members of the Council shall serve without compensation.~~

1
2 **~~SEC. 44.7. POWER AND DUTIES.~~**

3 ~~—Pursuant to Section 1572.9 of the California Health and Safety Code and guidelines adopted~~
4 ~~thereunder, the Council shall have the following powers and duties:~~

5 ~~—(a) To prepare a City and County plan for the development of a community-based system of~~
6 ~~quality adult day health care;~~

7 ~~—(b) To hold public hearings on the City and County plan prior to the plan's adoption; and~~

8 ~~—(c) To review all applications for adult day health care licenses within the City and County~~
9 ~~and make recommendations to the California Department of Health Services.~~

10
11 **~~SEC. 44.8. ASSISTANCE IN THE DEVELOPMENT OF THE COUNTY PLAN.~~**

12 ~~—The Department of Public Health and the Commission on the Aging shall assist the Council in~~
13 ~~the development of the City and County plan for adult day health care. Staff support shall be provided~~
14 ~~by the Department of Public Health.~~

15
16 Section 27. Chapter 54 of the Administrative Code is hereby amended by revising
17 Sections 54.1 through 54.4 to read as follows. In addition, Sections 54.1 through 54.4 as
18 amended shall be redesignated as Sections 5.14-1 through 5.14-4 in Chapter 5 of the
19 Administrative Code and shall be part of a new article in Chapter 5 to be titled "ARTICLE XIV:
20 SOUTHEAST COMMUNITY CENTER COUNCIL," and Chapter 54 shall thereafter be deleted.

21
22 **~~SEC. 54.15.14-1. FINDINGS.~~**

23 The Board of Supervisors finds and declares that it is necessary and essential to the
24 well-being of the City to establish a ~~Commission~~ Council to review and provide guidance for the
25 operations of the Southeast Community ~~Facility~~ Center.

1 The ~~Commission~~Council will foster the following public purposes and municipal affairs
2 of the City:

3 (a) The full and gainful employment of residents of chronically economically
4 depressed areas of the City;

5 (b) The progressive development of marketable job skills for untrained and
6 undertrained City residents;

7 (c) The creation and expansion of opportunities for residents to participate in day
8 and evening education programs;

9 (d) The creation and expansion of opportunities for providing day care services at a
10 low and reasonable cost to parents;

11 (e) The expansion of opportunities for special community services for senior citizens;

12 (f) The overall improvement of the general economic prosperity, health, safety and
13 welfare of residents of chronically economically depressed areas of the City.

14 The Board of Supervisors further finds and declares that the Bayview-Hunters Point
15 community, as defined in Section ~~5.14-2~~ ~~54.2 (b) of this Chapter~~, is an historically disadvantaged
16 and economically depressed part of the City and that guidance by and participation of persons
17 living or working in that area are essential to the successful operations of the Southeast
18 Community ~~Facility~~ Center and the attainment of the goals and purposes mentioned above.

19
20 **SEC. ~~54.25.14-2~~. ESTABLISHMENT OF COMMISSION COUNCIL; APPOINTMENT;**
21 **~~TERMS~~; MEETINGS; COMPENSATION; EXECUTIVE DIRECTOR.**

22 (a) There is established a ~~Commission~~Council to be known as the Southeast
23 Community ~~Facility~~ ~~Commission~~ Center Council consisting of seven members. The Council shall
24 be an Advisory Body as defined in Section 5.1-1, except that the Council shall exercise the authority set
25 forth in this Article XIV. ~~Commission~~ Council members shall be appointed by ~~and serve at the~~

1 ~~pleasure~~ of the Mayor. Unless the Mayor determines that it is otherwise impracticable, persons
2 appointed to serve as members of the ~~Commission~~ Council shall either reside or work in the
3 Bayview-Hunters Point community, as defined in subsection (b) Section 54.2(b) of this Chapter.

4 (b) For purposes of this Chapter, the Bayview-Hunters Point community is defined as
5 the area south of the southern curb line of Army Street, east of the eastern curb line of the
6 James Lick Freeway (also known as U.S. Route 101), north of the city and county boundary
7 line shared with San Mateo County, and west of San Francisco Bay.

8 ~~—(c) Members will be appointed for a term of office of four years, except that all of the~~
9 ~~vacancies occurring during a term will be filled by an appointment made by the Mayor for the~~
10 ~~unexpired term. Each vacancy shall be filled within 30 days of the occurrence of the vacancy.~~

11 ~~—(d) A president shall be selected by majority vote of the members of the Commission. The~~
12 ~~president shall serve for a term of two years and shall not serve more than two consecutive terms.~~

13 (e) ~~The date, place and time of meeting shall be determined by rules adopted by the~~
14 ~~Commission; provided, however, that the Commission~~ Council will hold a regular meeting not less
15 than once each month.

16 (f) ~~d~~ Subject to the budgetary and fiscal requirements of the Charter, each member
17 shall be paid \$50 per ~~Commission~~ Council meeting or committee meeting attended. Total
18 compensation shall not exceed \$100 per month.

19 ~~—(g) Any member who misses three regularly scheduled meetings of the Commission in any 12-~~
20 ~~month period without the express approval of the Commission given at a regularly scheduled meeting~~
21 ~~will be deemed to have resigned from the Commission.~~

22 (h) ~~The Commission~~ Council shall appoint an Executive Director, who shall serve at
23 the pleasure of the ~~Commission~~ Council and shall not be subject to the civil service provisions
24 of the Charter. The Executive Director shall possess the qualifications and experience
25 essential to the administration of the Southeast Community ~~Facility~~ Center. The Executive

1 Director shall be responsible for the enforcement of the rules and regulations of the
2 ~~Commission~~ Council and shall manage the daily activities of the Southeast Community ~~Facility~~
3 Center not undertaken by lessees.

4
5 **SEC. ~~54.35.14-3~~. POWERS AND DUTIES OF THE ~~COMMISSION~~ COUNCIL.**

6 The powers and duties of the ~~Commission~~ Council shall be limited to those necessary
7 to:

8 (a) Provide guidance necessary for the establishment, retention and enhancement of
9 business activities of the ~~greenhouse~~, educational and job skills centers, child care and senior
10 activities centers, and any other appropriate activities at the Southeast Community ~~Facility~~
11 Center;

12 (b) Provide guidance to ensure that operation of the facility enhances opportunities
13 first for the benefit of the residents of the Bayview-Hunters Point community and thereafter for
14 the benefit of all other residents of the City ~~and County of San Francisco~~ to engage in
15 employment training and educational activities;

16 (c) Review and provide guidance on budget matters necessarily affecting the
17 development and improvement of operations of the ~~greenhouse~~, educational and job skills
18 centers, child care and senior activities centers, and any other appropriate activities at the
19 Southeast Community ~~Facility~~ Center;

20 (d) Review and provide guidance regarding proposed lessees and agreements with
21 qualified private, community, public assistance and horticultural organizations;

22 (e) Provide policy guidance necessary to ensure compliance with all relevant
23 municipal, State and federal laws and regulations, including, but not limited to, construction
24 grant agreements, regulations and orders; and

25 (f) Review and provide guidance on a regular basis on budgetary matters related to

1 the operation and maintenance expenses at the Southeast Community ~~Facility~~Center.

2
3 **SEC. 54.45.14-4. SURPLUS FUNDS LEASE REVENUES.**

4 (a) In accordance with State and federal grant agreements, regulations and orders,
5 all proceeds from the leasing of the Southeast Community ~~Facility~~Center shall be used to
6 defray City ~~and County~~ costs of operating and administering the facilities.

7 (b) Proceeds from the leasing of the facilities that exceed the costs of operating and
8 administering the facilities, as calculated at the end of the fiscal year, shall be known as
9 “surplus funds.”

10 (c) Subject to the budgetary and fiscal requirements of the Charter, the ~~Commission~~
11 Council may allocate surplus funds accrued during the prior fiscal year for certain uses related
12 to the operations and activities of the Southeast Community ~~Facility~~Center.

13 (d) Surplus funds may be allocated for the following purposes:

14 (1) Scholarships first for residents of the Bayview-Hunters Point community and
15 thereafter for all other residents of the City and County of San Francisco to attend classes and
16 other educational activities at the Southeast Community ~~Facility~~Center or other accredited
17 institutions of education;

18 (2) Scholarships first for children residing in the Bayview-Hunters Point community
19 and thereafter for all other resident children of the City and County of San Francisco to attend
20 child care centers at the Southeast Community ~~Facility~~Center or other State-licensed child
21 care providers;

22 (3) Supplementary funding for job training programs and activities at the Southeast
23 Community ~~Facility~~Center;

24 (4) Supplementary funding for community agencies which address the needs as
25 identified in Section ~~5.14-154.1~~54.1, *Findings*.

1 * * * *

2
3 Section 28. Chapter 57 of the Administrative Code is hereby amended by revising
4 Section 57.2 to read as follows:

5
6 **SEC. 57.2. ESTABLISHMENT OF COMMISSION; APPOINTMENT OF**
7 **COMMISSIONERS; QUALIFICATIONS; TERMS OF OFFICE; COMPENSATION.**

8 (a) **Establishment of Commission.** A Film Commission for the City ~~and County of~~
9 ~~San Francisco~~ (referred to hereafter in this Chapter as "Commission") is hereby created
10 consisting of ~~eleven~~ (11) members. Notwithstanding the name of the Film Commission, the Film
11 Commission shall be an Advisory Body as defined in Section 5.1-1 of this Code.

12 (b) **Appointment of Commissioners; Qualifications.** The members of the
13 Commission shall be appointed by and serve at the pleasure of the Mayor. At least six
14 members of the Commission shall be residents of the City and County of San Francisco. ~~The~~
15 ~~Commission shall be composed of outstanding members of the community.~~ The membership of the
16 Commission may include members who have experience in areas such as: Performing and
17 Creative Arts, Production, Film or Sound Technology, Services and Facilities, Education,
18 Presentation and Producing, and Interactive Multimedia, ~~and shall be broadly representative of~~
19 ~~ethnic, racial, gender, age and sexual orientation groups, and shall otherwise reflect the diversity of the~~
20 ~~City and County.~~ The President of the Arts Commission ~~of the City and County~~ shall be invited to
21 serve as a nonvoting, ex-officio member of the Film Commission.

22 (c) **Term of Office.** Commissioners shall be appointed for a term of office of four
23 years, ~~except that vacancies occurring during a term shall be filled for the unexpired term.~~
24 Notwithstanding Section 5.1-4 of this Code, there shall be no limit on the number of terms a
25 commissioner may serve.

1 (d) **Compensation.** Members of the Commission shall not be compensated for their
2 service as members of the Commission. On a majority vote of the Commission,
3 Commissioners may be reimbursed for expenses incurred resulting from their authorized
4 activities on behalf of the Commission.

5 ~~—(e) **Selection of Chair.** The Commission shall, annually, select a Chair who shall serve for a~~
6 ~~term of one year. The Commission may reappoint a Chair to serve additional terms. In addition to any~~
7 ~~other authority vested in or duly charged to him or her, the Chair of the Commission shall have the~~
8 ~~duty and authority to call meetings of the Commission and to maintain liaison with the Arts~~
9 ~~Commission from the perspective of film arts.~~

10 (f) **Executive Director.** The Executive Director shall act as the department head
11 and appointing officer of Film Commission (Film SF) employees pursuant to Charter Section
12 4.126. ~~The Executive Director shall supervise the Commission's staff, and shall have other duties and~~
13 ~~responsibilities as provided in this Chapter. The Mayor shall appoint the Executive Director as~~
14 ~~provided in Charter Sections 3.100(19) and 4.102(5). The Commission may remove the Executive~~
15 ~~Director as provided in Charter Section 4.102(6).~~

16
17 Section 29. Chapter 70 of the Administrative Code is hereby amended by revising
18 Section 70.2 to read as follows:
19

20 **CHAPTER 70: IN-HOME SUPPORTIVE SERVICES PUBLIC AUTHORITY**

21 **SEC. 70.2. MEMBERSHIP OF GOVERNING BODY.**

22 (a) The governing body of the Authority shall be composed of 13 members appointed
23 by the Board of Supervisors. This body is not subject to the rules that apply to Commissions or
24 Advisory Bodies in Chapter 5 of this Code or Article IV of the Charter. The Board of Supervisors
25 shall solicit recommendations for appointment of qualified members through a fair and open

process, including reasonable written notice to, and affording reasonable response time from, the IHSS Authority, members of the general public, and other interested persons and organizations. No fewer than 50% ~~percent~~ of the membership shall be individuals who are current or past users of personal assistance services paid for through public or private funds or who are recipients of IHSS, referred to in this Chapter as “consumers.”

* * * *

Section 30. Chapter 83 of the Administrative Code is hereby amended by revising Section 83.6 and deleting Section 83.8 to read as follows:

SEC. 83.6. FIRST SOURCE HIRING ADMINISTRATION.

* * * *

(b) **Powers and Duties.** The FSHA shall be responsible for the implementation, oversight, and monitoring of the first source hiring requirements of this Chapter. Its powers and duties shall include:

* * * *

~~—(9) Submitting all approved first source hiring implementation and monitoring plans (“approved plan”) to the Workforce Development Advisory Committee for review;~~

(10) Developing effective outreach, education, support services for, and recognition of, employers.

* * * *

~~SEC. 83.8. WORKFORCE DEVELOPMENT ADVISORY COMMITTEE.~~

~~There shall be established a Workforce Development Advisory Committee (“Advisory Committee”) to advise the FSHA on workforce development, employer-mended needs, program policy,~~

1 ~~design, implementation, oversight, and monitoring. This advisory committee shall be appointed by the~~
2 ~~Mayor and shall include representatives of community-based organizations, labor, the business~~
3 ~~community, educational institutions, and City departments. The members of this advisory committee~~
4 ~~shall serve at will for a term of one year, and may be reappointed. This advisory committee shall meet~~
5 ~~at least quarterly.~~

6
7 Section 31. Chapter 86 of the Administrative Code is hereby amended by revising
8 Sections 86.1 through 86.4 and deleting Section 86.5 to read as follows. In addition, Sections
9 86.1 through 86.4 as amended shall be redesignated as Sections 5.28-1 through 5.28-4 in
10 Chapter 5 of the Administrative Code and shall be part of a new article in Chapter 5 to be
11 titled "ARTICLE XXVIII: CHILDREN AND FAMILIES FIRST COMMISSION," and Chapter 86
12 shall thereafter be deleted.

13
14 **SEC. ~~86.15.28-1~~. ESTABLISHMENT OF THE SAN FRANCISCO CHILDREN AND**
15 **FAMILIES FIRST COMMISSION.**

16 (a) **Establishment.** The San Francisco Children and Families First Commission (the
17 "Commission"), shall be a Commission as defined in Administrative Code Section 5.1-1, and is
18 hereby established and designated as the county commission for purposes of California
19 Health & Safety Code Sections 130100 et seq., as it may be amended from time to time. The
20 Department of Early Childhood (the "Department") shall provide office space, administrative
21 support, and other services for the Commission. The Commission shall consist of nine
22 members. The terms and term limits in Section 5.1-2 shall apply to the Commission.

23 (b) **Purpose.** The Commission is established to promote, support, and improve the
24 early development of children from the prenatal stage to five years of age and to carry out the
25 provisions of the California Children and Families First Act of 1998 (the "Act"), including by

1 way of example but not limitation, support for families through parenting education and child
2 health and wellness programs.

3
4 **SEC. ~~86.25.28-2~~. POWERS AND DUTIES OF THE SAN FRANCISCO CHILDREN**
5 **AND FAMILIES FIRST COMMISSION.**

6 The Commission shall have the following powers and duties:

7 (a) The Commission shall adopt an adequate and complete San Francisco Strategic
8 Plan (the "County Strategic Plan"), as described in Section 86.4 below, for the support and
9 improvement of early childhood development, including family support related to caring for
10 children ages zero to five, within the City ~~and County of San Francisco~~. Prior to adopting the
11 County Strategic Plan, the Commission shall hold no less than one public hearing on the
12 proposed County Strategic Plan.

13 (b) On at least an annual basis, the Commission shall review its County Strategic
14 Plan and revise the Plan as may be necessary or appropriate. The Commission shall hold no
15 less than one public hearing on its periodic review of the County Strategic Plan before any
16 revisions to the Plan are adopted.

17 (c) The Commission shall submit its adopted County Strategic Plan, and any
18 subsequent revisions thereto, to the State Children and Families First Commission (the "State
19 Commission").

20 (d) On or before October 15 of each year, the Commission shall conduct and
21 prepare an audit of and issue a written report on the implementation and performance of its
22 functions during the preceding fiscal year.

23 (1) At a minimum, the audit and report shall include the manner in which the funds
24 were expended, the progress toward and the achievement of program goals and objectives,
25 and the measurement of specific outcomes through appropriate reliable indicators.

1 (2) On or before November 1 of each year, the Commission shall transmit the audit
2 and report to the State Commission.

3 (3) The Commission shall conduct no less than one public hearing prior to
4 adopting any annual audit and report.

5 (e) The Commission shall conduct no less than one public hearing on each annual
6 report by the State Commission prepared pursuant to California Health and Safety Code
7 Section 130150(b).

8 ~~—(f) The Commission shall establish no less than one advisory committee to provide technical~~
9 ~~and professional expertise and support for any purposes that will be beneficial in accomplishing the~~
10 ~~purposes of the Act. Each advisory committee shall meet and shall make recommendations and reports~~
11 ~~as deemed necessary or appropriate.~~

12 (gf) The Commission shall expend the funds in the San Francisco Children and
13 Families First Trust Fund, only for the purposes authorized by the Act and this Chapter 86 and
14 in accordance with the County Strategic Plan approved by the Commission. The Commission
15 shall not expend funds that are not authorized by the Act, including but not limited to the
16 Babies and Families First Fund established in Section 10.100-36 of the Administrative Code
17 and grant funds directed to the Department and general fund appropriations, but may make
18 recommendations to the Department regarding spending from other funding sources. The
19 Commission shall hold at least one ~~joint~~ public hearing annually ~~with the Early Childhood~~
20 ~~Community Oversight and Advisory Committee (the “EC COAC”), established by Article XIII of~~
21 ~~Chapter 5 of the Administrative Code,~~ to review and make recommendations regarding the
22 Department’s budget no later than February 14 of each year.

23 (hg) The Commission shall hold at least one ~~joint~~ public hearing annually ~~with the EC~~
24 ~~COAC~~ to review, and provide input to, the Department’s annual report evaluating the
25 effectiveness of the Early Care and Education for All Initiative, required by Section 20.17-3 of

1 the Administrative Code. Following the ~~joint public~~ hearing, and before the Department
2 submits the report to the Board of Supervisors, the Commission ~~and the EC COAC~~ shall ~~each~~
3 transmit recommendations regarding the report to the Department. The Department's final
4 report shall include a summary of the recommendations received and describe the ways in
5 which the Department has addressed the recommendations.

6 ~~—(i) The Commission may recommend candidates for Director of the Department to the Mayor~~
7 ~~and may hold a joint public meeting with the EC COAC to recommend such candidates to the Mayor.~~

8 (j) The Commission may review national, state, and local legislation that may affect
9 young children and their families and

10 (1) Make recommendations to the Mayor and the Board of Supervisors regarding
11 the proposed legislation; and

12 (2) Consistent with Charter Section 3.100, communicate the Commission's position
13 regarding the proposed legislation to the appropriate legislative bodies, as long as the
14 Commission's position on state and federal legislation does not conflict with any official
15 position taken by the City ~~and County~~ and the communication is coordinated with the Office of
16 the Mayor.

17 (k) The Commission shall ~~coordinate with the EC COAC to~~ develop ~~joint~~ policy
18 recommendations ~~with the EC COAC~~ regarding the Department's coordination of services,
19 policies, and planning strategies for early childhood care and education and family support for
20 children ages zero to five to include:

21 (1) Addressing the continuous quality improvement of programs and capacity-
22 building of providers.

23 (2) Developing recommendations for equitable, inclusive, culturally and
24 linguistically appropriate services and innovations responsive to emerging early childhood
25 needs.

(3) Developing recommendations for processes to ensure data and data systems are used for greater accountability of program outcomes, enhance learning internally, across investments, and across service sectors, and address persistent racial, diversity, equity, and inclusion gaps.

(4) Promoting public interest and awareness around issues facing young children and their families.

(5) Developing processes and structures that support organizations, communities, and public agencies to work together to advance the well-being of young children and their families.

(h) The Commission shall meet at least four times each calendar year.

SEC. ~~86.35.28-3~~. MEMBERSHIP AND ORGANIZATION OF THE SAN FRANCISCO CHILDREN AND FAMILIES FIRST COMMISSION.

(a) The members of the Commission are as follows. Seats 3 and 5 through 9 shall be appointed by the Board of Supervisors:

(1) Seat 1 shall be the Director of Public Health or the Director's designee.

(2) Seat 2 shall be the Executive Director of the Human Services Agency or the Executive Director's designee.

(3) Seat 3 shall be a member of the Board of Supervisors.

(4) Seat 4 shall be the head of the Department of Children, Youth and Their Families or ~~the Department Head's~~ their designee.

(5) Seat 5 shall be nominated by the Mayor (and approved by the Board of Supervisors) as a representative director or supervisor of a Mayoral office or other City program for prevention or early intervention for families at risk.

(6) Seat 6 shall be a member of the Child Care Planning and Advisory Council,

1 established in Article XX of Chapter 5 of the Administrative Code.

2 (7) Seat 7 shall be a provider of family support services as described in the San
3 Francisco County Strategic Plan established by Section 86.4 below.

4 (8) Seats 8 and 9 shall be appointed from among the following categories:
5 recipients of project services included in the Strategic Plan; educators specializing in early
6 childhood development; representatives of a local child care resource or referral agency, a
7 local child care coordinating group; representatives of a local organization for prevention or
8 early intervention for families at risk; representatives of community-based organizations that
9 have the goal of promoting and nurturing early childhood development; representatives of
10 local school districts; and representatives of local medical, pediatric, or obstetric associations
11 or societies. To the extent feasible, members shall be selected from existing committees,
12 councils, or coalitions promoting early childhood development and support of their families in
13 order to facilitate planning and coordination of services.

14 ~~—(b) The Commission shall convene by March 1, 1999.~~

15 ~~—(c) Members of the Commission appointed to Seats 3 and 5 through 9 shall serve at the~~
16 ~~pleasure of the Board of Supervisors. The term of each Commission member appointed to Seats 3 and~~
17 ~~5 through 9 shall be for four years; provided, however, that the members first appointed shall, by lot,~~
18 ~~classify their terms so that two members shall serve a three-year term, and three members shall serve a~~
19 ~~four-year term. On the expiration of these terms, their successors shall be appointed for a four-year~~
20 ~~term. In the event a vacancy occurs during the term of office of any appointed member, a successor~~
21 ~~shall be appointed for the unexpired term of the office vacated in a manner similar to that for the initial~~
22 ~~member. After serving the unexpired term of a predecessor, the successor may be appointed for a full~~
23 ~~four-year term. Members in Seats 5 through 9 may serve no more than two consecutive terms on the~~
24 ~~Commission. For the purposes of these term limits, serving more than half of a term shall count as~~
25 ~~serving a full term on the Commission. Any member in Seats 3 and 5 through 9 who fails to attend at~~

1 ~~least half of the meetings held in a calendar year shall be deemed to have resigned from the~~
2 ~~Commission.~~

3 ~~—(d) A majority of the members of the Commission shall constitute a quorum.~~

4 ~~—(e) The Commission shall establish any additional rules and regulations for its own~~
5 ~~organization and procedure consistent with State and local law.~~

6 ~~—(f) No member of the Commission shall be compensated for their services, except members~~
7 ~~may be paid reasonable per diem and reimbursement of reasonable expenses for attending meetings~~
8 ~~and discharging other official responsibilities as authorized by the Commission. In addition, members~~
9 ~~serving in Seats 1 through 5 may receive their full compensation as City employees, since their work~~
10 ~~for the Commission shall be considered part of their responsibilities in their capacity as City~~
11 ~~employees.~~

12 ~~—(g) Continuing Membership on Children and Families First Commission. The members of~~
13 ~~the previously established Commission seated as of the effective date of Ordinance No. 189-22 shall~~
14 ~~by operation of law remain members of the Commission. Their terms of office and term limits shall not~~
15 ~~incorporate their previous service on the Commission. The terms of office for members of the~~
16 ~~previously established Commission, as well as Seat 5, shall begin on the effective date of Ordinance~~
17 ~~No. 189-22. Seat 5 shall be vacant until a new appointment is made in accordance with subsection (a)~~
18 ~~of this Section 86.3. The terms of office for members in Seats 6, 7, 8, and 9 with previous service on the~~
19 ~~Commission shall be limited to a one-year term. At the conclusion of the transitory one-year term for~~
20 ~~members in Seats 6, 7, 8, and 9, new appointments to the Commission shall be made in accordance~~
21 ~~with subsection (a) of this Section 86.3.~~

22 ~~(bh)~~ The Department shall provide administrative support to the Commission.
23

24 **SEC. ~~86.45.28-4~~. ESTABLISHMENT OF A SAN FRANCISCO COUNTY STRATEGIC**
25 **PLAN.**

1 (a) The Commission shall establish the County Strategic Plan for the support and
2 improvement of early childhood development, including support for their families in caring for
3 children ages zero to five, within the City ~~and County of San Francisco~~. The County Strategic
4 Plan shall be consistent with and in furtherance of the purposes of the Act and any guidelines
5 adopted by the State Commission that are in effect at the time the County Strategic Plan is
6 adopted or subsequently revised. The Department may prepare the County Strategic Plan in
7 conjunction with its preparation of the Department Strategic Plan required by Section 2A.310
8 of the Administrative Code.

9 (b) The County Strategic Plan shall include, at a minimum:

10 (1) A description of the goals and objectives proposed to be attained;

11 (2) A description of the programs, services, and projects proposed to be provided,
12 sponsored, or facilitated;

13 (3) A description of how measurable outcomes of such programs, services, and
14 projects will be determined by the Commission using appropriate reliable indicators; and

15 (4) A description of how programs, services, and projects relating to early
16 childhood development and support for families with children ages zero to five within the
17 county will be integrated into a consumer-oriented and easily accessible system.

18
19 **~~SEC. 86.5. SEVERABILITY.~~**

20 ~~—If any part or provision of this ordinance or the application thereof to any person or~~
21 ~~circumstance, is held invalid, the remainder of this ordinance, including the application of such part or~~
22 ~~provision to other persons or circumstances, shall not be affected thereby and shall continue in full~~
23 ~~force and effect. To this end, provisions of this ordinance are severable.~~

24
25 Section 32. Chapter 98 of the Administrative Code is hereby amended by deleting

Section 98.2 to read as follows:

~~SEC. 98.2. STREET DESIGN REVIEW COMMITTEE.~~

~~(a) There shall be a Street Design Review Committee (“the Committee”) to advise the Mayor on the design of proposed improvements to the public right of way, and to facilitate the resolution at a high administrative level of policy conflicts and project-specific conflicts in the design and engineering phase of an individual project.~~

~~(b) The Committee shall consist of the following officials, or their designees:~~

~~— (1) The Mayor, who shall act as chair;~~

~~— (2) The Director of Public Works;~~

~~— (3) The Director of Transportation for the Municipal Transportation Agency (“the MTA”);~~

~~— (4) The Director of Planning;~~

~~— (5) The General Manager of the Public Utilities Commission;~~

~~— (6) The Director of the Department of Economic and Workforce Development;~~

~~— (7) The San Francisco Fire Chief; and,~~

~~— (8) Other agencies that are involved in a specific project considered by the Committee may participate in the review of their projects, as necessary.~~

~~(c) The Committee shall review any proposed improvement to the public right of way submitted by a Committee member, including projects that are under the jurisdiction of the MTA, where the Committee member concludes that the proposed improvement, or a department’s interpretation of or proposed modifications to the proposed improvement, may conflict with one or more of the policies referenced in subsection (d). The Committee shall provide its assessment to the Mayor, with a copy to the department proposing the improvement.~~

~~(d) In conducting its review, the Committee shall examine whether proposed improvements are consistent with the City’s Better Streets Plan, Transit First Policy, Complete Streets Policy, the~~

1 ~~Mayor's Pedestrian Strategy, the MTA Bicycle Strategy, and other relevant policy documents relating~~
2 ~~to the design of public streets, as applicable. The Committee may recommend changes to departmental~~
3 ~~standards and procedures necessary or appropriate to make those standards and procedures better~~
4 ~~conform to the City policies identified above.~~

5 ~~(e) To the extent feasible, the Committee shall review projects submitted under subsection (c) at~~
6 ~~the 30 percent and final design stages, and prior to any final board or commission approvals, for~~
7 ~~compliance with the policies referenced in subsection (d). The Committee, in its discretion, may review~~
8 ~~proposed improvements at other design stages.~~

9 ~~(f) All City departments shall cooperate with the Committee in its operations.~~

10 ~~(g) The Committee shall submit a report on its activities to the Board of Supervisors once a~~
11 ~~year. Such report shall include, at minimum, a list of projects reviewed any conflicts between~~
12 ~~competing policies identified during the review process, and how the conflicts were resolved.~~

13 ~~(h) Nothing in this Section shall be construed to limit or interfere with any power or duty~~
14 ~~conferred on any officer or department under the Charter, the Municipal Code, or State law. Nothing~~
15 ~~in this Section shall be construed to require the Municipal Transportation Agency to spend money from~~
16 ~~the Municipal Transportation Fund not budgeted for that purpose by the Agency.~~

17
18 Section 32. Chapter 107A of the Administrative Code is hereby amended by revising
19 Section 107A.2 to read as follows:

20
21 **SEC. 107A.2. REQUIRED REPORTS.**

22 (a) **Department Reports to the Mayor's Office of Housing and Community**
23 **Development.** By no later than September 1, 2025, the departments listed in this subsection
24 (a) shall submit to the Mayor's Office of Housing and Community Development reports
25 containing an assessment of relevant assets and needs in the District, recommendations on

1 programs, policies, and funding sources that could benefit the District, and other
2 recommendations that could serve the District to advance the goals of this Chapter 107A.
3 Each department shall seek ~~the input of the African American Arts and Cultural District Community~~
4 ~~Advisory Committee established in Chapter 5, Article XXX of the Administrative Code, during that~~
5 ~~committee's existence, as well as~~ the input of residents, businesses, and organizations in the
6 District, when compiling the information relevant for the reports and when deciding on
7 recommendations.

8 (1) The Historic Preservation Commission's report shall describe and evaluate
9 historic resources in the District and make recommendations regarding how the City may
10 preserve those resources.

11 (2) The Office of Economic and Workforce Development's report shall (A)
12 describe existing businesses and nonprofit organizations that contribute to the culture of the
13 District, and make recommendations regarding how the City may serve those businesses and
14 organizations; and (B) describe tourist activity in the District, and make recommendations
15 regarding how the City can sustain and increase that activity.

16 (3) The Arts Commission's report shall describe the artistic and cultural assets in
17 the District, including fine arts, performing arts, and regular cultural events like festivals, and
18 make recommendations about how the City may preserve and support those assets.

19 (4) The Department of Public Works' report shall (A) describe potential
20 improvements to public amenities and infrastructure in the District that could better reflect the
21 culture of the District; and (B) evaluate available opportunities for adding to the public
22 amenities and infrastructure that reflect and enhance the culture of the District, and make
23 recommendations for potential funding sources to support those additions.

24 (5) The Planning Department's report shall make recommendations regarding
25 potential amendments to the Planning Code that could contribute to the preservation of the

1 character of the District.

2 (6) The Human Rights Commission's report shall evaluate and describe the
3 cultural competency of City services in the District, and propose policy changes to address
4 deficits in those areas.

5 (b) **Culture, History, Housing, and Economic Sustainability Strategy Report.** By
6 no later than February 1, 2026, the Mayor's Office of Housing and Community Development
7 shall prepare and submit to the Board of Supervisors and the Mayor a Culture, History,
8 Housing, and Economic Sustainability Strategy Report ("CHHESS Report") for the District.

9 The CHHESS Report shall include a demographic and economic profile of the
10 District, including past, current, and future trends; analyze and record the tangible and
11 intangible elements of the District's cultural heritage; identify areas of concern that could
12 inhibit the preservation of the District's unique culture; and propose legislative, economic, and
13 other solutions and strategies to support the District. The CHHESS Report shall discuss or
14 incorporate the findings and recommendations of departments in the reports required by
15 subsection (a) of this Section 107A.2. In preparing the CHHESS Report, the Mayor's Office of
16 Housing and Community Development shall ~~solicit recommendations and input from the African~~
17 ~~American Arts and Cultural District Community Advisory Committee, and~~ spearhead a community
18 engagement process with residents, businesses, and workers in the District, to develop the
19 strategies and plans that will preserve and enhance the culture of the District.

20 (c) **Timeline Extensions.** The Board of Supervisors may extend any of the
21 deadlines in subsections (a) or (b) of this Section 107A.2 by resolution. ~~Prior to requesting that~~
22 ~~the Board extend a deadline, any department requesting such an extension shall notify the African~~
23 ~~American Arts and Cultural District Community Advisory Committee in writing of the reason for the~~
24 ~~requested extension.~~

25 (d) **Board of Supervisors Consideration.** Following receipt of the CHHESS Report

1 from the Mayor's Office of Housing and Community Development, the Board of Supervisors
2 may take any action that the Board deems appropriate, including, by resolution, approving the
3 report, modifying the report, rejecting the report, or requesting additional information or
4 analysis from the Mayor's Office of Housing and Community Development or any other City
5 department or agency.

6 (e) **Progress Reports.** The Mayor's Office of Housing and Community
7 Development shall provide a progress report on the strategies outlined in the CHHESS Report
8 at least once every three years following the Board of Supervisors' enactment of a resolution
9 approving or modifying the CHHESS Report.

10
11 Section 33. Chapter 121 of the Administrative Code is hereby amended by revising
12 Section 121.3 to read as follows:

13
14 **SEC. 121.3. CLOSURE OF JUVENILE HALL.**

15 By no later than December 31, 2021, the City shall close Juvenile Hall, expand
16 community-based alternatives to detention, and provide a rehabilitative, non-institutional place
17 or places of detention, in a location approved by the Presiding Judge of the Court, that will be
18 available for wards of the Court and persons alleged to come within the jurisdiction of the
19 Court. Any place of detention shall be a safe and supportive homelike environment, which
20 shall not be deemed to be, nor treated as, a penal institution, and which shall conform to all
21 applicable State and federal regulations. Prior to the closure of Juvenile Hall under this
22 Section 121.3, 1 the Department of Human Resources ("DHR") shall provide notice to unions
23 representing affected employees and conduct and conclude any necessary meet and confer
24 under state and local law; notwithstanding the deadline imposed by this Section, the City may
25 close Juvenile Hall only after DHR submits a written certification to the Clerk of the Board of

Supervisors and the Mayor that the City has satisfied applicable meet-and-confer obligations. Additionally, notwithstanding the foregoing, the City may not close Juvenile Hall until the Board of Supervisors has approved by resolution a final plan ~~following the submission of such a plan by the Close Juvenile Hall Working Group as provided in Section 5.40-6(d).~~

Section 34. The Building Inspection Code is hereby amended by revising Section 105A to read as follows:

SECTION 105A – BOARDS, COMMISSIONS, AND COMMITTEES

* * * *

~~105A.6 Structural Advisory Committee.~~

~~105A.6.1 Establishment.~~ ~~There is hereby created a three-member Structural Advisory Committee, to advise the Building Official on matters pertaining to the design and construction of buildings with special features or special design procedures. Upon request by the Building Official, the engineer of record for such a project shall demonstrate to the Structural Advisory Committee how the structural concepts, designs, details, erection methods and quality control will produce a structure that would meet the intent of Section 101A.2.~~

~~105A.6.2 Members.~~ ~~For consideration of each building with such special features, the Structural Advisory Committee shall consist of members who are knowledgeable in the structural engineering and construction issues presented by those special features. Members shall be selected from a list of qualified engineers submitted by the Structural Engineers Association of Northern California and approved by the Building Official. One member shall be selected by the Building Official, one member shall be selected by the owner, and the third member shall be selected jointly. Compensation of the Structural Advisory Committee members shall be by the owner. However, when the project for which Committee review is required is located in the Edgehill Mountain Slope~~

1 ~~Protection Area, as defined by Building Code Section 106A.4.1.2 or the Northwest Mt. Sutro Slope~~
2 ~~Protection Area as defined by Building Code Section 106A.4.1.3, (a) the Committee shall consist of a~~
3 ~~structural engineer, a geologist and a geotechnical engineer; (b) the Committee shall consult with an~~
4 ~~architect, who shall be a voting member of the Committee; (c) the selection of the Committee members~~
5 ~~shall be as follows: one member shall be selected jointly by the Building Official and the Director of~~
6 ~~Public Works, one member shall be selected solely by the Building Official and one member shall be~~
7 ~~selected by the Building Official and the owner from recommendations made by interested persons,~~
8 ~~including but not limited to residents of the neighborhood surrounding the project location; and (d) to~~
9 ~~the extent feasible, the Committee members should be selected from a list submitted by the Structural~~
10 ~~Engineers Association of Northern California.~~

11 ~~**105A.6.3 Report.** The Structural Advisory Committee shall submit to the Building Official a~~
12 ~~written report which shall include professional opinions concerning, but not limited to, the following:~~

- 13 ~~—1.—The validity and appropriateness of the structural design concepts and criteria.~~
14 ~~—2.—An evaluation of the structural design of the building or structure to determine its~~
15 ~~capability to perform satisfactorily beyond the elastic stresses stipulated by the code, with sufficient~~
16 ~~redundancy to accommodate overloads or failures of specific structural components.~~
17 ~~—3.—The constructability of proposed structural details and erection methods.~~
18 ~~—4.—The sufficiency of the proposed inspection, testing and monitoring to be provided during~~
19 ~~prior to and during construction.~~

20
21 Section 35. The Environment Code, Chapters 7 and 12, is hereby amended by
22 revising Sections 702 and 705 and by deleting Chapter 12, Sections 1200 through 1209, to
23 read as follows:

24
25 **SEC. 702. ROLES AND RESPONSIBILITIES.**

1 ~~(a) Municipal Green Building Task Force.~~

2 ~~—(1) Establishment and purpose. The Municipal Green Building Task Force (the “Task~~
3 ~~Force”) is hereby established to oversee and assist in enhancing the environmental performance of~~
4 ~~Municipal Construction Projects pursuant to this Chapter 7. The Task Force shall assist the Director~~
5 ~~in providing green building advice, assistance, outreach, and education to City Departments. The Task~~
6 ~~Force shall advise the Department of the Environment on matters of policy related to this Chapter and~~
7 ~~may review Municipal Construction Projects subject to this Chapter during their design and~~
8 ~~construction to ensure that the responsible City Departments are complying with the Chapter’s~~
9 ~~requirements. The Task Force shall hear waiver requests from City Departments and propose~~
10 ~~recommended actions to the Director (or to the Executive Director of the Port of San Francisco for~~
11 ~~projects located on property owned or managed by the Port of San Francisco). The Task Force shall~~
12 ~~facilitate interdepartmental communication and cooperation, and act as an educational forum to~~
13 ~~increase green building knowledge and share project-related successes and lessons learned.~~

14 ~~—(2) Membership. The Task Force shall consist of one member of the public appointed by~~
15 ~~the Mayor, and a representative with building design, construction, and/or finance experience from~~
16 ~~each of the following City Departments and divisions, or their successor agencies:~~

17 ~~—(A) Department of the Environment;~~

18 ~~—(B) Building Design and Construction Division within San Francisco Public Works;~~

19 ~~—(C) Design and Engineering Division within San Francisco Public Works;~~

20 ~~—(D) Landscape Architecture Division within San Francisco Public Works;~~

21 ~~—(E) San Francisco Public Works Buildings – Project Management;~~

22 ~~—(F) Bureau of Building Repair within San Francisco Public Works;~~

23 ~~—(G) Power Enterprise within San Francisco Public Utilities Commission;~~

24 ~~—(H) Water Enterprise within San Francisco Public Utilities Commission;~~

25 ~~—(I) Wastewater Enterprise within San Francisco Public Utilities Commission;~~

~~——(J) Infrastructure within San Francisco Public Utilities Commission;~~
~~——(K) Capital and Planning Division within Recreation and Park Department;~~
~~——(L) Capital Programs and Construction Division within San Francisco Municipal Transportation Agency;~~
~~——(M) Office of Resilience and Capital Planning within Office of City Administrator;~~
~~——(N) Department of Building Inspection;~~
~~——(O) Citywide Planning Division within Planning Department;~~
~~——(P) Port of San Francisco;~~
~~——(Q) San Francisco International Airport;~~
~~——(R) Facilities Division within San Francisco Public Library;~~
~~——(S) Fire Department;~~
~~——(T) Department of Public Health; and,~~
~~——(U) Real Estate Division within Office of the City Administrator.~~
~~——Membership on the Task Force is intended, to the extent applicable, to be a continuation of membership on the similar task force established in an earlier iteration of this Section 702, repealed by the ordinance in Board File No. 221223, except to the extent an appointing authority decides to make a change in membership.~~

~~——(3) Governance. The Task Force shall adopt bylaws to govern its operations.~~

~~(a**b**) Department of the Environment.~~

(1) General duties under this Chapter 7. The Department of the Environment shall:

(A) Develop goals, strategies, and criteria for optimizing the design, construction, renovation, operation, reuse, and dismantling of Municipal Construction Projects and Buildings, and make related policy recommendations to the Board of Supervisors;

(B) Develop and oversee trainings in green building practices for City staff to aid the implementation of policies adopted by the Board of Supervisors;

1 (C) ~~Chair the Task Force, and c~~Coordinate City Departments having responsibility
2 for compliance with the requirements of this Chapter;

3 (D) Provide technical oversight and assistance directly to Municipal Construction
4 Project teams or through green building technical assistance contracts; and

5 (E) Develop forms and materials necessary for compliance with this Chapter.

6 (2) Guidance, rules and regulations. After a public hearing, the Director may
7 promulgate such guidance, forms, performance procedures, rules, and regulations as may be
8 necessary or appropriate from time to time to implement the provisions of this Chapter 7. The
9 Director is authorized to call upon ~~the Task Force and~~ other City Departments as necessary and
10 appropriate to assist in developing such guidance, forms, performance procedures, rules, and
11 regulations. Such guidance, forms, performance procedures, rules, and regulations may
12 include adopting or modifying locally required measures for Municipal Construction Projects,
13 as documented in Section 704.

14 (3) Implementation costs. The Director shall determine the costs to implement the
15 provisions of this Chapter 7 and shall request that relevant City Departments provide work
16 orders to the Department to cover the costs of implementing and maintaining the programs
17 required by this Chapter.

18 (~~e~~b) City Departments.

19 (1) General Duties Under This Chapter 7. Each City Department, board, and
20 commission subject to this Chapter shall:

21 (A) Administer its Municipal Construction Projects in accordance with this
22 Chapter;

23 (B) Cooperate with the Department, and supply in writing all information
24 necessary for the Department to carry out its duties under this Chapter;

25 (C) Assist the Director in providing advice, assistance, outreach, and education

1 to other City Departments concerning municipal green building practices;

2 ~~——(D) Provide project reports and presentations to the Task Force upon request;~~

3 (ED) Attend green building related trainings offered by the Department, as
4 appropriate; and

5 (FE) Give the Department access to LEED Online and other Green Building
6 Rating System web-based platforms for each Municipal Construction Project registered for
7 certification; ~~and~~

8 ~~——(G) Designate an employee to represent the interest of, and provide the expertise of, that~~
9 ~~City Department or division on the Task Force, if listed in Section 702(a)(2).~~

11 SEC. 705. WAIVERS.

12 (a) Waivers for any requirement of this Chapter 7, except any requirement that is
13 mandated by other local or state policy, are available under the following circumstances:

14 (1) **Emergency.** When it is necessary to respond to an emergency that endangers
15 public health or safety, the Director of a City Department may grant itself a waiver from any
16 requirement of this Chapter. The City Department shall report within five business days to the
17 Director, on a form provided by the Director, and explain the emergency that prevented
18 compliance with the requirement(s) of this Chapter.

19 (2) **Cost Prohibitive.** If the sponsoring City Department of a Municipal
20 Construction Project determines that compliance with any requirement of this Chapter is cost
21 prohibitive, that City Department may request a waiver on a form provided by the Director ~~and~~
22 ~~submitted to the Task Force.~~ The ~~Task Force shall propose a recommended action to the~~ Director (or
23 the Executive Director of the Port of San Francisco for a project that is located on property
24 owned or controlled by the Port of San Francisco), ~~who~~ may grant a waiver upon a finding that
25 the Municipal Construction Project's team has:

1 (A) Ascertained the specific requirement(s) is cost prohibitive, as measured
2 against the potential economic, environmental, societal, and health benefits posed by that
3 requirement; and

4 (B) Developed a reasonable plan to maximize the sustainability strategies for
5 the Municipal Construction Project, and counterbalance the requirement that cannot be met to
6 the extent that it is practicable.

7 (3) **Alternate Compliance.** The sponsoring City Department of a Municipal
8 Construction Project may request a waiver from LEED Gold if using a Green Building Rating
9 System or standard that is determined by the ~~Task Force~~Director to be at least as stringent as
10 LEED or to be more appropriate for a specific project. Such waiver request shall document
11 justification and details for alternate compliance on a form provided by the Director ~~and~~
12 ~~submitted to the Task Force.~~ The ~~Task Force shall propose a recommended action to the~~ Director (or
13 the Executive Director of the Port of San Francisco for a project that is located on property
14 owned or controlled by the Port of San Francisco), ~~who~~ may grant a waiver upon finding that
15 the Municipal Construction Project's team has provided adequate justification.

16 (4) **Other.** If, due to specific circumstances, compliance with a requirement would
17 defeat the intent of this Chapter 7 or create an unreasonable burden on the Municipal
18 Construction Project or sponsoring City Department, that City Department may request a
19 waiver on a form provided by the Director. The ~~Task Force shall propose a recommended action to~~
20 ~~the~~ Director (or the Executive Director of the Port of San Francisco for a project that is located
21 on property owned or controlled by the Port of San Francisco), ~~who~~ may grant a waiver upon a
22 finding that the requesting City Department has:

23 (A) Documented the circumstances and burdens at issue; and

24
25 (B) Developed a reasonable plan to maximize the sustainability strategies for

1 the Municipal Construction Project, and counterbalance the requirement that cannot be met to
2 the extent that it is practicable.

3 (b) After the end of the 50% design development phase, the Director (or the
4 Executive Director of the Port of San Francisco for a project that is located on property owned
5 or controlled by the Port of San Francisco) will only accept a waiver request for consideration
6 if the project design team can demonstrate extenuating circumstances, including but not
7 limited to unforeseen site conditions or unavailability of a specified system or product.

8 (c) The Director shall respond to a waiver request within 35 days.

9 (d) The Director (or the Executive Director of the Port of San Francisco for a project
10 that is located on property owned or managed by the Port of San Francisco) may not grant a
11 waiver for the requirements of Sections 704(c)(1)(B) or 704(c)(2)(A). Granting a waiver for any
12 requirement of this Chapter 7 does not eliminate any requirement of other local or state
13 codes.

14 (e) The Director, ~~in consultation with the Task Force~~, shall report to the Commission on
15 the Environment regularly on waivers requested, granted, and denied.

16 17 **~~CHAPTER 12: URBAN FORESTRY COUNCIL~~**

18 **~~SEC. 1200. PURPOSE—URBAN FORESTRY COUNCIL.~~**

19 ~~—(a) It is the intent of the Board of Supervisors to form an Urban Forestry Council that will~~
20 ~~protect the community interest and ensure that San Francisco realizes the full range of tree benefits~~
21 ~~into the future. The Board also intends to replace any existing tree advisory bodies that the Board of~~
22 ~~Supervisors has created through legislation.~~

23 ~~—(b) The purpose of the Council is to guide the stewardship of San Francisco's trees by~~
24 ~~promoting a healthy and sustainable urban forest that benefits all San Franciscans while ensuring~~
25 ~~public health and safety.~~

1 ~~—(c) To meet this purpose, the Council shall work with all the affected stakeholders to:~~
2 ~~—(1) Develop and adopt a comprehensive urban forest plan;~~
3 ~~—(2) Educate the public on urban forestry issues;~~
4 ~~—(3) Develop and adopt tree care standards;~~
5 ~~—(4) Identify funding and staffing needs and opportunities for urban forestry programs;~~
6 ~~—(5) Report on the state of the urban forest;~~
7 ~~—(6) Help secure and encourage commitment of adequate resources for tree programs; and~~
8 ~~—(7) Facilitate coordination among agencies with tree management responsibilities.~~
9 ~~—(d) This Chapter applies the Precautionary Principle to the management of trees in San~~
10 ~~Francisco by emphasizing public participation, preservation, and expansion of the urban forest.~~

11
12 **~~SEC. 1201. SCOPE OF AUTHORITY.~~**

13 ~~—(a) The Council's scope of authority is limited to the territorial boundaries of the City and~~
14 ~~County of San Francisco.~~
15 ~~—(b) The Council shall consider issues as they relate to trees on property managed by~~
16 ~~government agencies, non-profit organizations, and private property owners.~~
17 ~~—(c) In order to effectively address the whole of the urban forest, the Council also shall~~
18 ~~consider issues as they relate to trees on private property.~~
19 ~~—(d) The Council's scope of authority is completely advisory and educational in nature. The~~
20 ~~Council will have no authority to legislate.~~

21
22 **~~SEC. 1202. COUNCIL COMPOSITION AND ADMINISTRATION.~~**

23 ~~—(a) Council members will represent the full range of urban forest stakeholders including City~~
24 ~~agencies, non-profit organizations, tree management organizations, and community members. The~~
25 ~~Council shall be composed of fifteen voting members.~~

~~(1) The Board of Supervisors shall appoint seven voting members:~~

~~——(A) One member from an educational organization involved with tree management (University of California Cooperative Extension, etc.);~~

~~——(B) Two members certified by a professional tree management organization (International Society of Arboriculture, American Society of Consulting Arborists, or American Society of Landscape Architects, etc.);~~

~~——(C) Two members of non-profit organizations involved in urban forestry or other environmentally related issues; and~~

~~——(D) Two members from the community.~~

~~(2) The Mayor shall appoint two voting members:~~

~~——(A) One member from the tree care industry; and~~

~~——(B) One member at large.~~

~~(3) The Director or General Manager of each of the following departments, or his or her designee, shall each serve as a voting member:~~

~~——(A) The Director of the Department of Public Works;~~

~~——(B) The Director of the Planning Department; and~~

~~——(C) The General Manager of the Recreation and Park Department.~~

~~(4) The Public Utilities Commission shall appoint one voting member.~~

~~(5) The Golden Gate National Recreation Area is invited to appoint one voting member. If the Golden Gate National Recreation Area does not make an appointment within 60 days after the seat is vacant, the Presidio Trust may appoint one voting member to serve that term. If the Presidio Trust does not make an appointment within 30 days after it is authorized to do so, the Mayor shall appoint an at-large member to fill the seat for the duration of that term.~~

~~(6) The Port of San Francisco shall appoint one voting member.~~

~~(b) Council members shall serve for two years. A Council member may serve successive~~

1 ~~terms if reappointed by the authority that originally appointed the Council member. Council members~~
2 ~~serve at the pleasure of the appointing authority that appoints each Council member, as specified~~
3 ~~above. The appointing authority that appoints Council members also may appoint at-large members to~~
4 ~~serve any unfilled Council positions.~~

5 ~~—(c) The Council shall meet at least six times per year.~~

6 ~~—(d) The Council shall establish its own operating procedures, which, at a minimum, shall~~
7 ~~meet the public notice, meeting, voting, agenda and other procedural requirements set forth in local~~
8 ~~law.~~

9 ~~—(e) Subcommittees shall be created to adequately address other special areas of concern on~~
10 ~~an as-needed basis.~~

11 ~~—(f) The Department of the Environment, with adequate funding to assist the Council in~~
12 ~~carrying out its mission, shall provide professional and administrative staff to the Council.~~

13 ~~—(g) All members of the Council shall serve without compensation.~~

14
15 **~~SEC. 1203. RESPONSIBILITIES.~~**

16 ~~—(a) The Council's responsibilities shall include, but not be limited to, the following:~~

17 ~~—(1) Advise the Mayor, Board of Supervisors, city departments and commissions on urban~~
18 ~~forestry concerns;~~

19 ~~—(2) Review project plans for major publicly-sponsored developments and civic~~
20 ~~improvements and changes to the public right-of-way as they may impact trees. Based on its review,~~
21 ~~the Council shall make recommendations regarding these projects to the Planning Department and~~
22 ~~other affected agencies;~~

23 ~~—(3) Establish criteria for a landmark/heritage tree program to provide for the protection of~~
24 ~~valuable trees on public and private property. The program shall propose administrative procedures~~
25 ~~and a tree removal appeal process for landmark/heritage trees;~~

- 1 ~~—(4) Adopt guidelines for protecting trees during project design and construction;~~
- 2 ~~—(5) Encourage early and continuous public participation in urban forestry projects and~~
- 3 ~~programs that includes consideration of neighborhood interests;~~
- 4 ~~—(6) Facilitate the cooperative interaction of tree-related activities among various city,~~
- 5 ~~State, and federal agencies, as well as among businesses, public utilities, non-profit organizations, and~~
- 6 ~~the public;~~
- 7 ~~—(7) Notify and involve public agencies when issues relate to trees on lands under their~~
- 8 ~~jurisdiction;~~
- 9 ~~—(8) Provide at designated Council meetings for a regular forum that follows an agenda of~~
- 10 ~~scheduled topics for public discussion of urban forestry issues;~~
- 11 ~~—(9) Assist with the formulation of legislation and policies that affect trees;~~
- 12 ~~—(10) Serve as a clearinghouse for information related to the urban forest through the~~
- 13 ~~Department of the Environment;~~
- 14 ~~—(11) Prepare the plans and reports as set forth in this legislation; and~~
- 15 ~~—(12) Assist agencies with tree management responsibilities in their efforts to incorporate~~
- 16 ~~and follow the urban forest plan guidelines, best management practices, and other Council~~
- 17 ~~recommendations and policies.~~

18

19 ~~**SEC. 1204. URBAN FOREST PLAN.**~~

- 20 ~~—(a) To assure well-guided stewardship of San Francisco's trees, the Council shall develop~~
- 21 ~~and adopt a long-term comprehensive plan that sets policy for the management of the City's public and~~
- 22 ~~private trees. This Urban Forest Plan shall be developed in consultation with affected City agencies~~
- 23 ~~and with input from interested members of the public.~~
- 24 ~~—(1) The planning process for such Plan shall include an assessment of the current condition~~
- 25 ~~of the urban forest and create a vision and goals that incorporate community values on urban forestry~~

1 ~~stewardship.~~

2 ~~—(2) The Planning process also shall include consideration of and referral to existing plans~~
3 ~~that relate to trees, including, but not limited to, plans for reforestation of parks and plans for street~~
4 ~~trees.~~

5 ~~—(3) The Plan shall include strategies and activities for achieving the envisioned urban~~
6 ~~forest. It shall include specific guidance to agencies and the public in developing education programs,~~
7 ~~establishing continuous and consistent tree care practices, identifying funding priorities and~~
8 ~~opportunities, and assuring that all needs of the urban forest are recognized and addressed.~~

9 ~~—(b) The Council shall oversee periodic updates to the Plan and evaluate the effectiveness of~~
10 ~~agencies in reaching the Plan's goals.~~

11 ~~—(c) Prior to adoption of the Plan or amendment thereto, the Council shall forward the plan~~
12 ~~and amendments to affected city agencies for review.~~

13 ~~—(d) The Council shall work with the Planning Department and the Department of the~~
14 ~~Environment to incorporate elements of the Urban Forest Plan into the City's General Plan.~~

15 ~~—(e) The Council shall work with the Recreation and Park Department and the Department of~~
16 ~~the Environment to incorporate elements of the Urban Forest Plan into the Recreation and Park~~
17 ~~Department's forestation plans.~~

18
19 **~~SEC. 1205. PUBLIC EDUCATION AND OUTREACH.~~**

20 ~~—(a) To improve management by individual property owners and those who provide tree~~
21 ~~services to property owners, the Council shall assist with education programs. The Council shall~~
22 ~~design education programs for the public and tree care professionals to inform and gain public support~~
23 ~~for urban forestry programs.~~

24 ~~—(b) The Council shall promote trees as essential infrastructure with inherent value to the City~~
25 ~~of San Francisco. As infrastructure, trees will require consideration when designing and engineering~~

1 ~~public and private development projects.~~

2 ~~—(c) The Council shall promote an understanding of San Francisco's urban forest as habitat~~
3 ~~for the wild animals that make up a significant part of San Francisco's natural heritage.~~

4 ~~—(d) The Council's outreach shall include, but not be limited to, the following:~~

5 ~~—(1) Fostering an understanding of the value of trees;~~

6 ~~—(2) Promoting public understanding of City tree programs and laws;~~

7 ~~—(3) Working with the media to bring urban forest concerns and information to the public;~~

8 ~~—(4) Facilitating presentations, programs, and other outreach to property owners and the~~
9 ~~business and corporate community; and~~

10 ~~—(5) Promoting special events such as a citywide Arbor Day.~~

11
12 **~~SEC. 1206. BEST MANAGEMENT PRACTICES.~~**

13 ~~—(a) In an effort to establish and maintain a healthy and sustainable urban forest and ensure~~
14 ~~public health and safety, the Council shall develop and adopt tree care best management practices for~~
15 ~~public and private trees. The practices for tree maintenance shall focus on the protection of trees from~~
16 ~~premature death and irreversible damage caused by improper or inadequate tree maintenance.~~

17 ~~—(b) The Council shall develop the best management practices in consultation with affected~~
18 ~~City agencies and with input from interested members of the public. The Council's evaluation of such~~
19 ~~practices shall incorporate an analysis of the projected costs for implementation of the practices. The~~
20 ~~best management practices shall include, but not be limited to, the following:~~

21 ~~—(1) Species selection;~~

22 ~~—(2) Planting practices;~~

23 ~~—(3) Young tree care;~~

24 ~~—(4) Tree pruning and maintenance; and~~

25 ~~—(5) Tree removal.~~

1 ~~—(c) The Council, with the assistance of the Board of Supervisors, shall urge and encourage~~
2 ~~City, State, and federal agencies, as well as private property owners and tree care companies working~~
3 ~~in San Francisco, to adhere to the Council’s management practices and tree care standards.~~

4
5 **~~SEC. 1207. FUNDING ASSESSMENT.~~**

6 ~~—(a) The Board of Supervisors shall make efforts to provide adequate funding for the~~
7 ~~Department of the Environment’s support of the Council.~~

8 ~~—(b) In the event funding is not allocated by the City and County of San Francisco for staffing~~
9 ~~the Council, the Council shall pursue funds for any shortfall in the necessary staffing and support~~
10 ~~activities and additional funds for any other project it deems necessary to implement this legislation.~~

11 ~~—(c) To ensure that adequate resources are available for tree management and that public~~
12 ~~funding is used wisely, the Council shall:~~

13 ~~—(1) Review urban forest program budget priorities and make recommendations about urban~~
14 ~~forest funding requirements to the Mayor, Board of Supervisors, and affected city departments and~~
15 ~~commissions;~~

16 ~~—(2) Investigate and pursue funding options for various urban forest activities;~~

17 ~~—(3) Assist agencies and organizations in securing funding for urban forest programs;~~

18 ~~—(4) Apply for and accept grants for public agency or privately sponsored urban forest~~
19 ~~programs pursuant to the procedures in the Administrative Code; and~~

20 ~~—(5) Determine whether there are opportunities to improve efficiency and eliminate possible~~
21 ~~redundancies among managing agencies through city-wide, coordination of tree operations.~~

22
23 **~~SEC. 1208. STAFFING SUPPORT AND RESPONSIBILITIES.~~**

24 ~~—(a) A coordinator from the Department of the Environment shall staff the Council. The~~
25 ~~coordinator’s responsibilities shall include, but not be limited to, the following:~~

- ~~—(1) Fundraising;~~
- ~~—(2) Developing and drafting guidelines for adoption;~~
- ~~—(3) Preparing staff and annual reports;~~
- ~~—(4) Coordinating with other agencies; and~~
- ~~—(5) Develop an annual city wide tree management budget for local governmental agencies.~~
- ~~—(b) The coordinator is essential in order to implement the intent of this legislation.~~

~~SEC. 1209. REPORTING RESPONSIBILITY.~~

~~—(a) The Council shall report to the Board of Supervisors and Mayor by September 1st of each year regarding the state of the urban forest. The report shall contain a review the quality of urban forest stewardship and an assessment of how well public agencies and other urban forest managers are implementing the Urban Forest Plan. The report shall include, but not be limited to, the following:~~

- ~~—(1) Condition of the urban forest, species composition, and other tree stand characteristics;~~
- ~~—(2) Summary of urban forest activities, such as total number of trees, number of trees removed, and number of trees planted on private lands and under the jurisdictions of public agencies and non-profit organizations.~~
- ~~—(3) Analysis of the adherence to the Urban Forest Plan;~~
- ~~—(4) Analysis of the adherence to the best management practices;~~
- ~~—(5) The Council's public education and outreach projects;~~
- ~~—(6) Notable achievements in urban forest;~~
- ~~—(7) The status of funding for urban forest programs; and~~
- ~~—(8) Proposals for tree care guidelines or changes to adopted tree care programs or plans.~~
- ~~—(b) City agencies and any non-profit organizations that accept city funding shall report to the Council regarding the trees they manage, the extent to which their management plans correspond to the Urban Forest Plan, and implementation of the best management practices. The Council shall~~

1 ~~receive the report no later than June 30 of each year. Other public entities also are urged to submit~~
2 ~~reports to the Council regarding the trees they manage.~~

3 ~~—(c) City agencies that do not adhere to the policies, guidelines, or standards outlined in the~~
4 ~~Urban Forest Plan or best management practices shall explain their reasoning at a public hearing~~
5 ~~before the Council.~~

6 ~~—(d) Within ninety (90) days of the Council's establishment, the Council shall adopt~~
7 ~~procedures to address the public hearing process specified in Subsection (c) above.~~

8
9 Section 36. The Health Code is hereby amended by revising Sections 41.1, 41.2, and
10 3809, adding new Section 41.3-1, and deleting Sections 41.3 and 1606, to read as follows. In
11 addition, Sections 41.1 through 41.3-1 as amended shall be redesignated as Sections 5.22-1
12 through 5.22-3 in Chapter 5 of the Administrative Code and shall be part of a new article in
13 Chapter 5 to be titled "ARTICLE XXII: ANIMAL ADVISORY COUNCIL."

14
15 **SEC. 41.15.22-1. COMMISSION OF ANIMAL CONTROL AND WELFARE ADVISORY**
16 **COUNCIL; MEMBERSHIP; APPOINTMENT; TERM.**

17 ~~(a) There is hereby established a Commission an Advisory Body as defined in Section 5.1-~~
18 ~~1 to be known as the Commission of Animal Control and Welfare Advisory Council of the City and~~
19 ~~County of San Francisco (hereafter called "Commission Council"), consisting of 11 members.~~
20 ~~Notwithstanding Section 5.4-4, members shall serve two-year terms and may serve up to six terms. A~~
21 ~~part of a term that exceeds one year shall count as a full term; a part of a term that is one year or less~~
22 ~~shall not. Notwithstanding the preceding sentence, the current term of any person serving on the~~
23 ~~Council on January 1, 2027 shall count as a full term if the person serves more than one year of that~~
24 ~~term. Terms completed on or before December 31, 2026 shall not count as a term for the purpose of~~
25 ~~the lifetime term limit.~~

1 **(b)** The ~~Commission of Animal Control and Welfare~~ Council shall consist of the Director of
2 the Animal Care and Control Department or ~~his or her~~ their designated representative, seven
3 members to be appointed by the Board of Supervisors, and one City Department
4 representative member appointed by each of the following: the Director of the Department of
5 Public Health or ~~his or her~~ their designated representative, the Chief of Police or ~~his or her~~ their
6 designated representative, and the General Manager of the Recreation and Park Department
7 or ~~his or her~~ their designated representative. The members appointed by the Board of
8 Supervisors shall be six members representing the general public having interest and
9 experience in animal matters ~~and one licensed veterinarian practicing in San Francisco. It is~~
10 ~~desirable but not required that one member appointed by the Board of Supervisors be a licensed~~
11 ~~veterinarian practicing in San Francisco. Each member of the Commission of Animal Control and~~
12 ~~Welfare shall be a resident of the City and County of San Francisco, except for the~~ A member who is a
13 licensed veterinarian, if any, who must and practices in San Francisco, ~~but who~~ need not be a
14 resident of San Francisco.

15 **(c)** Voting members of the ~~Commission~~ Council shall consist only of the seven
16 members appointed by the Board of Supervisors. The Director of the Animal Care and
17 Control Department, the Director of the Department of Public Health, the Chief of Police, and
18 the General Manager of the Recreation and Park Department, or their designated
19 representatives, shall report to the ~~Commission~~ Council regarding their respective Department's
20 activities, and participate in general discussions before the ~~Commission~~ Council as non-voting
21 members.

22 ~~Three of the members who are first appointed by the Board of Supervisors shall be designated~~
23 ~~to serve for terms of one year and three for two years from the date of their appointment. Thereafter,~~
24 ~~members shall be appointed as aforesaid for a term of two years, except that all of the vacancies~~
25 ~~occurring during a term shall be filled for the unexpired term. A member shall hold office until his or~~

1 ~~her successor has been appointed and has qualified. The Commission shall elect a chairman from~~
2 ~~among its appointed members.~~

3 ~~—Any member who misses three regularly scheduled meetings of the Commission during each~~
4 ~~two-year term without the express approval of the Commission given at a regularly scheduled meeting~~
5 ~~will be deemed to have resigned from the Commission.~~

6 ~~—The term of office as chairman of the Commission shall be for the calendar year or for the~~
7 ~~portion thereof remaining after each such chairman is elected. No member of the Commission shall~~
8 ~~receive compensation for serving thereon.~~

9 No two individuals on the ~~Commission~~Council shall be representatives, employees or
10 officers of the same group, association, corporation, organization, or City Department.

11
12 **SEC. ~~41.25.22-2.~~ POWERS AND DUTIES.**

13 In addition to any other powers and duties set forth in this Article, the ~~Commission~~
14 Council shall have the power and duty to:

15 (a) Hold hearings and submit recommendations regarding issues related to animals
16 ~~control and welfare~~ to the Board of Supervisors, the Mayor, and the City Administrator.

17 (b) Study and recommend requirements for the maintenance of animals in public,
18 private, and commercial care.

19 (c) Work with the Tax Collector, the Director of the Animal Care and Control
20 Department, and authorized licensing entities to ~~develop and maintain~~ recommend dog licensing
21 procedures and ~~make recommendations on~~ fees.

22
23 **SEC. ~~41.3.~~ REPORTS.**

24 ~~—The Commission shall render a written report of its activities to the Board of Supervisors~~
25 ~~quarterly. Such report shall include:~~

1 ~~—(a) Recommendations to the Board of Supervisors, the Mayor, and the Chief Administrative~~
2 ~~Officer for the development of policies and procedures which will further the objectives of animal~~
3 ~~welfare and control.~~

4 ~~—(b) Recommendations to the Board of Supervisors, the Mayor, and the Chief Administrative~~
5 ~~Officer of additional legislation deemed by the Commission Council to be necessary for animal welfare~~
6 ~~and control.~~

7 ~~—(c) Recommendations of actions to be taken by any agency, board, officer of this City and~~
8 ~~County for the purposes of furthering the objectives of animal welfare and control.~~

9
10 **SEC. 41.3-15.22-3. SUNSET.**

11 ~~Unless the Board of Supervisors by ordinance extends the term of the Council, Article XXII~~
12 ~~will expire by operation of law, and the Council shall sunset, on June 1, 2029. In that event and after~~
13 ~~that date, the City Attorney shall cause these sections to be removed from the Administrative Code.~~

14
15 **SEC. 1606. CITY AGENCY TASK FORCE.**

16 ~~(a) The Director shall convene and coordinate an interdepartmental task force that shall be~~
17 ~~comprised of representatives from the following City departments: the Department of Public Health,~~
18 ~~the Department of Public Works, the Department of Building Inspection, the Department of City~~
19 ~~Planning, the Department of Social Services, the Recreation and Park Department, the Public Library,~~
20 ~~the Public Utilities Commission (which shall include a representative from the Water Department and~~
21 ~~the Bureau of Energy Conservation), the Mayor's Office, and the office of the City Administrator. The~~
22 ~~Director shall also request the participation of the Housing Authority, Redevelopment Agency, San~~
23 ~~Francisco Unified School District, and other governmental agencies and community representatives~~
24 ~~when additional expertise, resources, or other assistance is deemed necessary by the Director.~~

25 ~~(b) The Task Force shall meet on a regular basis and exchange information regarding lead~~

1 ~~education and abatement matters and shall coordinate lead abatement activities that involve more than~~
2 ~~one department. Upon the Director's request, the task force shall provide consultation services and~~
3 ~~assistance to the Director for the purpose of facilitating coordinated implementation of the duties~~
4 ~~imposed on the Director by this ordinance.~~

5 ~~(c) The Director shall provide clerical assistance to the City Agency Task Force and to its~~
6 ~~subcommittees.~~

8 **SEC. 3809. VENTILATION STANDARDS; RULES AND REGULATIONS.**

9 (a) The Director shall issue Rules and Regulations necessary to effectuate the
10 purposes of this Article and to protect public health and safety. Any person or entity as defined
11 in Section 3805 shall comply with this Article, the Rules and Regulations, and all applicable
12 local, state, and federal laws.

13 (b) The Director shall consult with the Planning Department's Environmental Review
14 Officer at least 30 days prior to initiating any amendments or modifications to the Rules and
15 Regulations.

16 ~~—(c) The Director shall consult with the Municipal Green Building Task Force, as established~~
17 ~~in Environment Code Sec. 702, or any successor body, to coordinate and resolve any potential conflicts~~
18 ~~that may arise between the San Francisco Green Building Code and this Article 38.~~

19
20 Section 37. The Labor and Employment Code is hereby amended by revising Article
21 151, Section 151.5, subd. (e) to read as follows. In addition, Section 151.5, subd. (e) as
22 amended shall be redesignated as Section 5.10-1 in Chapter 5 of the Administrative Code,
23 and thereafter deleted from Section 151.5 of the Labor and Employment Code, and shall be
24 part of a new article in Chapter 5 to be titled "ARTICLE X: SWEATFREE PROCUREMENT
25 ADVISORY COUNCIL."

1
2 **SEC. 151.5. ADMINISTRATION AND REMEDIES.**

3 * * * *

4 ~~(e)~~**5.10-1. Advisory ~~Group~~ Council.**

5 (1) The City shall establish a Sweatfree Procurement Advisory ~~Group~~Council,
6 *which shall be an Advisory Body as defined in Section 5.1-1.* The Sweatfree Procurement Advisory
7 ~~Group~~Council shall evaluate the industries engaged in the manufacture and sale of goods to
8 determine whether contracts for any goods, in addition to apparel and garments, should be
9 targeted for enforcement, and to evaluate the implementation, administration, and
10 enforcement of ~~this Article~~ Article 16 of the Labor and Employment Code (“Article 16”). To
11 determine whether a particular good shall be targeted for enforcement, the factors that the
12 Sweatfree Procurement Advisory ~~Group~~Council shall consider shall include, but not be limited
13 to: ~~(a)~~A the amount the City has spent, and anticipates spending, for such good; ~~(b)~~B evidence
14 of ~~Sweatshop Labor~~ sweatshop labor or other conditions prohibited by ~~this~~ Article 16 in the
15 manufacturing, assemblage, or distribution of such good; and ~~(c)~~C any financial impact that
16 targeting the good for enforcement will have on the City. At the end of ~~the first full~~ each fiscal
17 year ~~of the City following the effective date of this Article, and annually thereafter~~, the Sweatfree
18 Procurement Advisory ~~Group~~Council shall submit a written report to the Director ~~of the Office of~~
19 Contract Administration (“Director”) and the Office of Labor Standards Enforcement that
20 contains any recommendations on the administration, implementation, and enforcement of ~~this~~
21 Article 16, or the application of ~~this~~ Article 16 to other goods. The report shall include the
22 supporting information upon which each recommendation is based and a report on the
23 financial impact that adoption of the recommendation will have on the City. The Director may
24 submit any recommendation to extend the applicability of ~~this~~ Article 16 to other goods to the
25 Board of Supervisors. Upon the adoption of an ordinance approving such recommendation,

1 ~~c~~Contracts for the purchase of such goods shall be subject to ~~this~~ Article 16. The Director, in
2 the Director's discretion, may adopt other recommendations of the Sweatfree Procurement
3 Advisory ~~Group~~ Council subject to the Municipal Code and the Charter.

4 (2) The Sweatfree Procurement Advisory ~~Group~~ Council shall ~~determine~~ advise the
5 Office of Contract Administration on how the City may maximize its purchase of goods produced
6 in San Francisco. ~~Within four months of its formation, the Sweatfree Procurement Advisory Group~~
7 ~~Council shall examine how the City and County may provide preferences and/or incentives to garment~~
8 ~~industry manufacturers in San Francisco that are in compliance with this Article, and explore the~~
9 ~~expansion of preferences and/or incentives to other industries. Within the four-month period, the~~
10 ~~Sweatshop Procurement Advisory Group Council shall propose legislation to immediately implement~~
11 ~~the preferences and/or incentives.~~

12 (3) The Sweatfree Procurement Advisory ~~Group~~ Council shall consist of eleven
13 members. The Mayor and the Board of Supervisors shall each appoint five members. The
14 Controller shall appoint one member. ~~Each member shall be appointed to a term of two years.~~ At
15 least one of the Board of Supervisors' appointees and one of the Mayor's appointees must
16 have significant experience representing employees in labor matters. At least one of the
17 Board of Supervisors' appointees and one of the Mayor's appointees must have significant
18 experience acquiring goods or services for a public entity. At least one of the Board of
19 Supervisors' appointees and one of the Mayor's appointees must have significant experience
20 as an advocate for human rights or the poor. The Controller's appointee shall have significant
21 experience in finance, financial auditing, or accounting. ~~All members of the Sweatfree~~
22 ~~Procurement Advisory Group shall be appointed within sixty days of the effective date of this Article.~~
23 ~~Each member shall serve at the pleasure of the appointing authority.~~ The Sweatfree Procurement
24 Advisory ~~Group~~ Council shall meet not less than once each fiscal year.

25 — ~~(4) Enactment of the ordinance in Board File No. 250192 revising and reorganizing this~~

1 ~~Article, shall not impact the existing membership of the Sweatfree Procurement Advisory Group, or the~~
2 ~~terms of said members.~~

3 (4) Unless the Board of Supervisors by ordinance extends the term of the Sweatfree
4 Procurement Advisory Council, this Section 5.23-1 will expire by operation of law, and the Sweatfree
5 Procurement Advisory Council shall sunset, on June 1, 2029. In that event and after that date, the City
6 Attorney shall cause this section to be removed from the Administrative Code.

7
8 Section 38. The Municipal Elections Code, Article VI, is hereby amended by revising
9 Sections 600, 610, and 620 to read as follows. In addition, Sections 600, 610, and 620 as
10 amended shall be redesignated as Sections 5.24-1 through 5.24-3 in Chapter 5 of the
11 Administrative Code and shall be part of a new article in Chapter 5 to be titled "ARTICLE
12 XXIV: BALLOT SIMPLIFICATION COUNCIL," and Article VI of the Municipal Elections Code
13 shall thereafter be deleted.

14
15 **SEC. ~~600~~5.24-1. ESTABLISHMENT; COMPOSITION.**

16 The Ballot Simplification ~~Committee Council~~ Committee Council (hereinafter called "Committee Council") shall
17 consist of five voting members, two of whom shall be appointed by the Mayor, ~~and three two of~~
18 whom shall be appointed by the Board of Supervisors, and one of whom shall be appointed by the
19 Superintendent of Schools of the San Francisco Unified School District. The City Attorney, or ~~his or~~
20 ~~her their~~ designated representative, shall be an ex officio member and shall have a voice but
21 no vote in ~~committee~~ Council proceedings. Each appointive member shall be a registered San
22 Francisco voter, shall possess an understanding of ballot issues and shall possess writing
23 skills and training which provide for a high capability in written communication to the general
24 public. The Mayor and the Board of Supervisors shall solicit input from nonpartisan organizations
25 that represent professional journalists or focus on free and fair elections to identify appointees. It is

1 desirable that the member appointed by the Superintendent of Schools of the San Francisco Unified
2 School District have professional experience related to reading education. The Council shall be an
3 Advisory Body as defined in Section 5.1-1, except that the Council shall have decision making authority
4 as described in this Article XXIV.

5 ~~Of the two members to be appointed by the Mayor, one shall be appointed from persons whose~~
6 ~~names have been submitted by The Northern California Newspaper Guild and one shall be an~~
7 ~~educational reading specialist recommended by the Superintendent of Schools of the San Francisco~~
8 ~~Unified School District. Two of the three members appointed by the Board of Supervisors shall be~~
9 ~~appointed from persons whose names have been submitted by the National Academy of Television Arts~~
10 ~~and Sciences, Northern California Chapter, or the Northern California Broadcasters Association. The~~
11 ~~third member appointed by the Board of Supervisors shall be appointed from persons whose names~~
12 ~~have been submitted by the League of Women Voters of San Francisco.~~

13 The term of each appointive member shall be two years ~~unless earlier removed by their~~
14 ~~respective appointing authority. In the event of such removal or in the event a vacancy otherwise~~
15 ~~occurs during the term of office of any appointive member, a successor shall be appointed for the~~
16 ~~unexpired term of the office vacated in a manner similar to that described herein for the initial~~
17 ~~members. Notwithstanding the terms and term limits for Advisory Bodies established in Section 5.1-4,~~
18 ~~there is no limit on the number of terms that any individual member of the Council may serve.~~

19 ~~The Committee Council shall elect a chair from among its appointive members. The term of~~
20 ~~office as chair shall be for the calendar year or for that portion thereof remaining after each such chair~~
21 ~~is elected. Members of the Committee Council shall serve as such without compensation.~~

23 **SEC. ~~6105.24~~-2. POWERS AND DUTIES.**

24 (a) The ~~Committee Council~~ shall have the power and duty to:

25 (1) Prepare a digest of each measure that will be voted on only in the City and

1 County of San Francisco;

2 (2) Assist the Director of Elections in preparing the additional materials set forth in
3 Article V of this Code.

4 (b) In the exercise of its powers and duties under this Article, the ~~Committee~~Council
5 shall have access to any appropriate officer, department, board or commission of the City ~~and~~
6 ~~County~~ for consultation and assistance. When preparing a digest, the ~~Committee~~Council shall
7 give consideration to the analyses prepared by departments pursuant to Section 350 of ~~this~~
8 ~~Code~~the Municipal Elections Code.

9 (c) Prior to submitting any digest measure to the Director of Elections, the ~~Committee~~
10 Council shall provide a 24-hour period to receive and act on written requests for
11 reconsideration of a digest. The ~~Committee~~Council shall consider only those requests
12 provided in writing and including the specific language in the digest that the requestor wants
13 to amend, the alternate language the requestor recommends, and the reasons for that
14 recommendation. Changes suggested by the City Attorney intended solely for clarification or
15 accuracy shall not be considered requests for reconsideration and shall not be subject to the
16 requirements of this subsection.

17 (d) Digests of measures prepared by the ~~Committee~~Council shall, no fewer than 85
18 days prior to the election to which they relate, be transmitted by ~~the said Committee~~Council to
19 the Director of Elections for printing and inclusion in the voter information pamphlet.
20

21 **SEC. ~~6205.24-3~~. MEETINGS.**

22 ~~The place, date and time of meeting of the Committee shall be prescribed by rule of the~~
23 ~~Committee; provided, however, that the Committee~~The Council shall give at least one week's
24 advance notice of any meeting, whenever possible, to the Mayor, the Board of Supervisors
25 and the official proponents, of any initiative ordinance, Charter amendment, or declaration of

1 policy, any other person who has notified the Director of Elections of ~~his or her~~ their interest in
2 the measure, and the public. ~~All meetings, except as provided by law, shall be open to the public.~~

3
4 Section 39. The Park Code is hereby amended by revising Sections 13.01 and 13.02,
5 deleting Sections 13.03 and 13.04, to read as follows. In addition, Section 13.01 as amended
6 shall be redesignated as Section 5.32-1 in Chapter 5 of the Administrative Code and shall be
7 part of a new article in Chapter 5 to be titled "ARTICLE XXXII: PARK, RECREATION AND
8 OPEN SPACE ADVISORY COUNCIL."

9
10 **SEC. 13.015.32-1. CITIZENS' ADVISORY ~~COMMITTEE~~ COUNCIL.**

11 (a) **Membership.** The Park, Recreation and Open Space Advisory ~~Committee~~
12 Council ("~~Committee-Council~~") shall be an Advisory Body as defined in Section 5.1-1 comprised of
13 13 voting members. Eleven members shall be appointed by the members of the Board of
14 Supervisors and approved by the full Board, with one member appointed by each Supervisor
15 from their supervisorial district; and each Supervisor shall also appoint from their supervisorial
16 district a specific alternate for the regular voting member, subject to approval by the full Board.
17 The alternates shall not be seated on the ~~Committee-Council~~, but if a regular voting member is
18 unavailable to attend or unable to vote as a result of recusal, then that regular voting
19 member's specific alternate shall be seated and shall act in the place of the regular voting
20 member. Alternates are expected to attend and participate in meetings of the ~~Committee~~
21 Council. The Mayor shall appoint one member of the ~~Committee-Council~~. The President of the
22 Board of Supervisors shall appoint one additional member of the ~~Committee-Council~~, subject to
23 approval by the Board of Supervisors. The ~~Committee-Council~~ members shall all be City
24 residents and shall have relevant experience with park, environmental, recreational, cultural,
25 sports, youth, disability, racial equity, or senior citizen issues. Where a voting seat that is

1 subject to appointment by a Supervisor is vacant for more than 30 days, the ~~Committee~~Council
2 shall advise the appointing Supervisor of the vacancy. If the vacancy is not filled within 30
3 days of transmission of the notice of vacancy to the appointing Supervisor, the President shall
4 appoint a member to the vacant seat, subject to approval by the Board of Supervisors, and
5 shall become the member's appointing authority for the remainder of the member's term, at
6 the end of which the authority to appoint a member to the seat shall revert back to the
7 appointing Supervisor.

8 ~~—(b) **Terms.** The Committee members shall serve at the pleasure of their appointing authority~~
9 ~~for terms of two years.~~

10 ~~—(c) **Transition Period.** Prior to September 1, 2023, the Committee shall adopt a transition~~
11 ~~roster that identifies which of the current Board-appointed members shall serve as regular voting~~
12 ~~members versus as alternates. Where there are already two members appointed by the same~~
13 ~~Supervisor, those members shall attempt to reach agreement as to which of them shall be the regular~~
14 ~~voting member and which of them shall be the alternate, before September 1, 2023, subject to approval~~
15 ~~of the Committee; but if they do not agree, then the Committee may designate their assignments by lot.~~
16 ~~The Committee's adoption of a transition roster shall not impact the authority of the Mayor or Board of~~
17 ~~Supervisors to fill vacancies or reassign which members serve as regular voting members and~~
18 ~~alternates. The term of the Presidential appointee shall begin on September 1, 2023.~~

19 ~~(bd)~~ **Duties.** The ~~Committee~~Council shall have the following duties:

20 (1) The ~~Committee~~Council shall submit written comments to the Recreation and Park
21 Department ("Department") on its proposed Strategic, Capital and Operational Plans, and all
22 updates to such plans. The ~~Committee~~Council shall submit comments on each such plan
23 within 30 days after the plan is delivered to the ~~Committee~~Council .

24 (2) The ~~Committee~~Council shall assist the Department in conducting at least two
25 public hearings on evenings or on weekends to permit the public to comment on the

1 Department's full budget and programming allocations prior to adoption by the Recreation and
2 Park Commission.

3 (3) Members of the ~~Committee~~Council appointed from supervisorial districts shall
4 serve as liaisons between the Commission and the residents, neighborhood groups, and
5 organizations dedicated to park and recreational issues in their districts. Members may also
6 serve as liaisons to the public at large and to citywide organizations that are concerned with
7 park and recreational issues, and may assist the Department to arrange meetings with
8 neighborhood groups, citywide organizations, and the public at large to discuss such issues.

9 (4) The ~~Committee~~Council shall select a representative of the ~~Committee~~Council to
10 make the ~~Committee's~~ Council's quarterly report to the Commission on all significant park and
11 recreational issues that have come to the attention of the ~~Committee~~Council or its members.

12 ~~—(5) The Committee shall hold meetings at least once a month in City Hall and shall adopt~~
13 ~~its own rules of procedure.~~

14 ~~—(6) In addition to the duties described in Charter Section 16.107 and set forth below, the~~
15 ~~Committee shall have such duties as may be fixed by the Commission or the Board of Supervisors.~~

17 SEC. 13.02. PLANNING AND ACCOUNTABILITY.

18 (a) **Strategic Plan.** ~~By December 1, 2000, with~~ With input from the ~~Committee~~Park,
19 Recreation and Open Space Advisory Council ("Council"), the Department shall prepare, for
20 Commission consideration and approval, a five-year Strategic Plan, to be updated annually,
21 that establishes or reaffirms the mission, vision, goals and objectives for the Department. The
22 Department shall consider using an independent planning consultant to assist with
23 preparation of the Strategic Plan.

24 (b) **Capital Plan.** ~~By December 1, 2000, with~~ With input from the ~~Committee~~Council, the
25 Department shall prepare, for Commission consideration and approval, a five-year Capital

1 Plan, to be updated annually, for the development, renovation, replacement and maintenance
2 of capital assets, and the acquisition of real property. In its Capital Plan the Department shall
3 propose specific properties to be acquired for open space, recreation facilities, significant
4 natural areas, and other recreational purposes and shall prioritize capital and maintenance
5 improvements and provide budgets associated with such improvements. In identifying
6 properties for acquisition under the Capital Plan the Department shall consider, among other
7 things, the following criteria, in this order:

8 (1) Acquisition of open space, facilities and other real property in neighborhoods
9 designated as "high need areas" in the "Recreation and Open Space Element" of the City's
10 General Plan;

11 (2) Acquisition of open space, facilities and other real property in neighborhoods
12 that are experiencing a significant increase in residential population and that have few open
13 space or recreational resources; and

14 (3) Acquisition of significant natural areas that are not otherwise protected from
15 degradation or development. ~~Commencing on July 1, 2000, the~~ The Department shall make a
16 monthly report to the Commission on the status of all capital projects.

17 (c) **Operational Plan.** ~~By December 1, 2000, with~~ With input from the ~~Committee~~
18 Council, the Department shall prepare, for Commission consideration and approval, a five-
19 year Operational Plan, to be updated annually, detailing proposed improvements to the
20 Department's services and responsiveness to customer needs. The annual Operational Plan
21 will serve as a tool for improving the operational efficiency of the Department and will include
22 measurable performance standards for the Department. In developing its performance
23 standards the Department shall consider, among other matters, the following issues:

24 (1) Public safety, which shall include the reduction of environmental and other
25 hazards, safe equipment operations and safe pesticide use;

(2) Detailed maintenance work plans for each facility, including preventative maintenance;

(3) Arboreal maintenance and reforestation of all parks;

(4) Facility and landscape cleanliness, including timely graffiti removal;

(5) Availability and cleanliness of restrooms; and

(6) Maintenance of park and facility signage, furniture and amenities.

* * * *

~~SEC. 13.03. CAPITAL IMPLEMENTATION PROGRAM.~~

~~(a) Preparation of the Program. Annually and prior to the submission of their fiscal year budgets, the Department of Public Works (“DPW”) and the Recreation and Park Department (“Department”) will convene a committee (“Capital Implementation Committee”) to prepare and/or revise a written, Capital Implementation Program. The Capital Implementation Committee, which will include a representative of the Open Space Advisory Committee, will determine the best method of project delivery for capital projects and the roles and responsibilities of each department and its staff. To make that determination, the Capital Implementation Committee will consider the following factors, among others:~~

~~—(1) The Department’s Strategic Plan and the scope, schedule and cost of projects included in the Department’s Capital Plan;~~

~~—(2) The staffing levels in each department, the workload of staff in each department, and the ability of that staff to ensure that long-term projects are fully constructed within five years of the budget allocation for design and construction and that all other projects are fully constructed within three years of such allocation;~~

~~—(3) The work or projects to be performed in-house by each department’s maintenance or repair staff;~~

1 ~~—(4) The availability of other resources, including, but not limited to, existing as-needed~~
2 ~~professional service or construction contracts; and~~

3 ~~—(5) Any project or group of projects that would be best delivered by contracting with~~
4 ~~consultants or contractors in accordance with City contracting requirements and policies.~~

5 ~~(b) Modifications to the Program. DPW shall consult with the Department quarterly to review~~
6 ~~the operation of the Capital Implementation Program and to recommend to the Commission any~~
7 ~~necessary modifications or adjustments to the Program.~~

8
9 **~~SEC. 13.04. DEFINITIONS.~~**

10 ~~—After review and comment by the Advisory Committee, the Commission shall adopt such~~
11 ~~definitions of word and phrases as the Commission deems necessary for the consistent implementation~~
12 ~~of these provisions.~~

13
14 Section 40. The Planning Code is hereby amended by revising Section 240 to read as
15 follows:

16
17 **SEC. 240. WATERFRONT SPECIAL USE DISTRICT.**

18 * * * *

19 (c) Waterfront Design Review Process.

20 (1) In order to best achieve the public objectives that have been established in law
21 and policy for the property under the jurisdiction of the Port Commission, a waterfront design
22 review process is hereby established to review the urban design of new development on
23 certain land under the Port Commission's jurisdiction within Waterfront Special Use Districts
24 Numbers 1, 3, and 4, consistent with applicable provisions of the Port's Waterfront Plan urban
25 design, historic preservation, and public access goals, policies, and objectives, as provided

1 below. The purpose of the waterfront design review process is to identify and integrate the
2 State, regional, and local objectives pertaining to the urban design of major, non-maritime
3 development projects and proposed uses in order to optimize the public enjoyment and
4 beneficial use of this public trust resource.

5 ~~(2) The waterfront design review process shall be conducted by the Waterfront Design~~
6 ~~Advisory Committee (“Committee”), which shall consist of five members. The Director of Planning~~
7 ~~and the Director of the Port of San Francisco shall each appoint two members who are qualified~~
8 ~~professional urban planners or architects (general, historic, or landscape) who resides or works in San~~
9 ~~Francisco, and are not employed within their agency. In addition to these members, the Director of the~~
10 ~~Port shall also appoint one member who is a historic preservation professional who meets the~~
11 ~~Secretary of the Interior’s Professional Qualifications Standard. Port of San Francisco staff shall~~
12 ~~maintain Committee records and administrative procedures reflecting the roster, qualifications, and~~
13 ~~terms for each Committee member. The Port Commission may increase the number of Committee~~
14 ~~members by adding representatives appointed by the Director of the Bay Conservation and~~
15 ~~Development Commission, if needed. The Committee shall select a chairperson from among its voting~~
16 ~~members, and shall establish rules and regulations for its own organization and procedure. The~~
17 ~~Committee may establish subcommittees to which it may assign Committee design review~~
18 ~~responsibilities. The Committee shall act by vote of a majority of those present at a meeting with a~~
19 ~~quorum of Committee members.~~

20 ~~—(3) The Committee shall review proposed projects to be developed on property of the Port~~
21 ~~of San Francisco, as set forth in Sections 240.1, 240.3, and 240.4 of this Code.~~

22 ~~—(4) The Committee shall be advisory to the Planning Department and Port of San~~
23 ~~Francisco, and shall provide its design recommendations to the Bay Conservation and Development~~
24 ~~Commission for proposed projects within its jurisdiction. The Port shall convene and provide staff~~
25 ~~assistance to the Committee and consult with the Committee on non-maritime development projects as~~

1 ~~set forth in this Code and at such other times as the Port deems appropriate.~~

2 (25) The ~~Committee~~Port shall hold a public hearing on a proposed project and
3 make design recommendations to ensure that the urban design of the proposed project is
4 consistent with applicable provisions of the Waterfront Plan's urban design, historic
5 preservation, and public access goals, policies, and objectives. ~~In addition to any other notice~~
6 ~~required by law, the Committee shall provide public notice for this hearing by electronic mail to the~~
7 ~~applicant or other person or agency initiating the action and other parties who have requested notice~~
8 ~~of such hearing on the project and submitted their contact information to the Port of San Francisco.~~

9 ~~—(6) The Committee, as an advisory board, must review and consider any final~~
10 ~~environmental documents, or draft documents if final documents are not yet available, prepared~~
11 ~~pursuant to the California Environmental Quality Act, before it makes its final recommendations.~~

12 (37) ~~The determination of the Committee on urban design issues related to the proposed~~
13 ~~project shall be final as to those design issues, except as provided below.~~ The Port Committee shall
14 transmit ~~the~~ design recommendations for proposed projects to the Planning Department ~~and~~
15 ~~Port~~, and to the Bay Conservation and Development Commission for proposed projects within
16 BCDC's jurisdiction, ~~within two weeks following the Committee action~~ for consideration by those
17 agencies prior to any action on the project.

18 (A) For a project that is permitted as a Principal Use, the Planning Commission
19 may, by majority vote within 14 days of receipt of the design recommendations ~~of the~~
20 ~~Committee~~, make a determination to review the design recommendations. If the item cannot
21 be calendared for Planning Commission consideration within that period due to a canceled
22 meeting, the Commission may consider whether to review the design recommendations at its
23 next available meeting. If the Planning Commission requests review, it shall conduct a public
24 hearing on the matter within 14 days following its determination to review the design
25 recommendations, if legally adequate environmental documents have been completed, or at

1 its first public meeting after such documents have been completed, unless the Port Director
2 agrees to a different date. At the request of the Port Director, the meeting shall be conducted
3 as a joint public hearing of the Planning Commission and the Port Commission. The Planning
4 Commission, by majority vote, may adopt, amend, or reject the design recommendations of
5 the Committee-Port, subject to the same standards and criteria ~~that govern Committee decisions~~
6 ~~as~~ provided in subsection (c)(25) above.

7 If the Port Commission accepts the design recommendations of the Committee
8 Port or of the Planning Commission, the Port Commission shall incorporate the design
9 recommendations into the Port action on the project.

10 ~~—— If the Port Commission objects to or seeks to modify the design recommendations of the~~
11 ~~Committee, the Port Commission may request Planning Commission review of the design~~
12 ~~recommendations of the Committee. The Planning Commission shall schedule a public hearing and~~
13 ~~review the design recommendations of the Committee within 20 days following receipt of the request, if~~
14 ~~legally adequate environmental documents have been completed, or at its first public meeting after~~
15 ~~such documents have been completed, unless the Port Director agrees to a different date. At the~~
16 ~~request of the Port Director, the meeting shall be conducted as a joint public hearing of the Planning~~
17 ~~Commission and the Port Commission.~~

18 If the Port Commission objects to or seeks to substantially modify design
19 recommendations that have been approved by the Planning Commission as set forth above,
20 the Port Commission may appeal the design recommendations to the Board of Supervisors
21 pursuant to the procedures set forth in Section 308.1 of this Code and in Charter Section
22 4.105 for appeals of Conditional Uses. The Board of Supervisors may disapprove the
23 decision of the Commission by a vote of not less than two-thirds of the members of the Board.

24 ~~—— (B) For a project that requires a conditional use authorization, the Director of Planning~~
25 ~~shall incorporate the design recommendations of the Committee on urban design issues related to the~~

1 ~~proposed project into the recommendation to the Planning Commission. The Director of Planning may~~
2 ~~recommend specific modifications to the Committee's design recommendations, in which case the~~
3 ~~Director's recommendation shall specify why the Committee's design recommendations should not be~~
4 ~~considered final. The Director of Planning shall schedule a public hearing before the Planning~~
5 ~~Commission within 30 days following receipt of the Committee's design recommendations, if legally~~
6 ~~adequate environmental documents have been completed, or at its first public meeting after such~~
7 ~~documents have been completed, unless the Port Director agrees to a different date.~~

8 * * * *

9
10 Section 41. The Public Works Code is hereby amended by deleting Article 4.1, Section
11 131, and Article 16, Section 803, and revising Article 5.4, Section 184.12, Article 16, Sections
12 802 and Section 810, to read as follows:

13 **~~SEC. 131. INDUSTRIAL WASTE REVIEW BOARD.~~**

14
15 ~~—(a) **Membership.** There is hereby continued an Industrial Waste Review Board which shall~~
16 ~~consist of five members who have had not less than five years of professional experience related to~~
17 ~~water pollution abatement. Members of the Board will serve on call on a per diem basis. The General~~
18 ~~Manager shall make succeeding four year appointments at the expiration of the existing appointments.~~
19 ~~The members so chosen will be the voting members of the Board. The Manager of the Bureau of Water~~
20 ~~Pollution Control, or a designated representative, shall be an ex officio member of the Board,~~
21 ~~participating in the deliberations of the Board without vote or compensation. The General Manager~~
22 ~~shall appoint a member of his or her staff to act as Secretary of the Board.~~

23 ~~—(b) **Compensation.** The voting members of the Board shall receive compensation of \$30 per~~
24 ~~hour during the time that the Board is convened.~~

25 ~~—(c) **Quorum.** Three voting members of the Board shall constitute a quorum. Any decision of~~

1 ~~the Board shall require three concurring votes.~~

2 ~~—(d) **Powers of the Board.** The Board shall hear and decide appeals from the General~~
3 ~~Manager's denial, issuance, renewal or modification of a permit pursuant to Section 125, and from the~~
4 ~~General Manager's decision on a variance pursuant to Section 128. The Board shall not have~~
5 ~~jurisdiction to hear appeals of orders issued pursuant to Sections 121 or 132. Upon hearing an appeal~~
6 ~~taken pursuant to this Section, the Board may, subject to the same limitations that are placed upon the~~
7 ~~General Manager by this Article, approve, disapprove or modify the decision appealed from, in~~
8 ~~conformity with the following requirements:~~

9 ~~—(1) In the case of a variance application, the Board shall specify in its findings, as part of a~~
10 ~~written decision, facts sufficient to establish why the application meets or does not meet, as the case~~
11 ~~may be, the requirements set forth in Section 128, and if the requirements are deemed to be met, the~~
12 ~~Board shall prescribe the details and conditions of the variance.~~

13 ~~—(2) In the case of any permit denial, issuance, modification or renewal, if the determination~~
14 ~~of the Board differs from that of the General Manager, it shall state in writing any specific error or~~
15 ~~errors in interpretation of the provisions of this Article, abuse of discretion on the part of the General~~
16 ~~Manager, or any other basis for revision. The Board shall specify in its written findings the facts relied~~
17 ~~upon in arriving at its determination.~~

18 ~~—(e) **Appeal.**~~

19 ~~—(1) **Filing an Appeal.** Appeals shall be filed with the Secretary of the Board within 15 days~~
20 ~~after receipt of the decision of the General Manager under Section 129. The Board shall not have~~
21 ~~jurisdiction to hear an appeal filed after the 15-day period has passed. The Board shall not have~~
22 ~~jurisdiction to hear an appeal of the denial, issuance, renewal, or modification of the permit if a~~
23 ~~General Manager's hearing was not requested in accordance with Section 125. A filing fee of \$350~~
24 ~~made payable to the General Manager shall accompany the filing of an appeal.~~

25 ~~—(2) **Standing.** Any person that presented evidence or testimony at a General Manager's~~

1 ~~hearing on a variance may appeal the General Manager's variance decision to the Board. Appeals of~~
2 ~~the General Manager's decision on a permit may only be filed by persons authorized pursuant to~~
3 ~~Section 125(e).~~

4 ~~—(3) **Contents of Appeal.** The appeal must specifically set forth the alleged error, abuse of~~
5 ~~discretion or any other basis for the appeal and contain relevant arguments and documentation in~~
6 ~~support of the appellant's claim.~~

7 ~~—(4) **Hearing.** The procedure and requirements for the transmittal of the record, notice of~~
8 ~~hearing, and the record in connection with any appeal under this Section shall be prescribed by the~~
9 ~~Board.~~

10 ~~—(f) **Hearing Procedure.** Hearings by the Board shall be held at the call of the Secretary of~~
11 ~~the Board and at such times as the Board may determine. Hearings shall be conducted in accordance~~
12 ~~with the following procedure:~~

13 ~~—(1) The date of the hearing shall not be less than one week nor more than four weeks after~~
14 ~~receipt of filing the appeal by the Secretary of the Board.~~

15 ~~—(2) The General Manager will present evidence and a recommendation for resolution. The~~
16 ~~Board shall hear evidence from the appellant, but appellant may present relevant information not~~
17 ~~previously submitted to the General Manager only if its failure to present such information to the~~
18 ~~General Manager was caused by events beyond its control or the Board determines that introduction of~~
19 ~~such information is essential to the fair resolution of the controversy.~~

20 ~~—(3) The Board shall make a final decision within 90 days from the date of filing the appeal,~~
21 ~~and shall communicate its decision to the General Manager, all appellants, and the discharger. No~~
22 ~~response from the Board within 90 days will constitute approval of the General Manager's final~~
23 ~~decision.~~

24 ~~—(4) The General Manager shall designate a certified court reporter as official reporter of~~
25 ~~the Board. The reporter shall attend all hearings of the Board and report all testimony, the objections~~

1 ~~made, and the ruling of the Board. The fees for the reporter for reporting all of the proceedings and~~
2 ~~testimony as outlined above shall be a legal charge against the City. The fees for transcripts of the~~
3 ~~proceedings shall be at the expense of the party requesting the transcript as prescribed by Government~~
4 ~~Code Section 69950, and the original transcript shall be filed with the Secretary at the expense of the~~
5 ~~party ordering the transcript.~~

6
7 **SEC. 184.12. FIXED PEDESTAL NEWSRACKS.**

8 * * * *

9 **(d) GUIDELINES, FEES, AND AUTHORITY OF DIRECTOR.**

10 **(1) Promulgation of Guidelines.**

11 * * * *

12 (C) The guidelines shall be adopted by way of a Department of Public Works
13 order signed by the Director ~~after giving due consideration to the recommendations of the Newsrack~~
14 ~~Advisory Committee.~~ The provisions of this section governing fixed pedestal units, access to
15 fixed pedestal units by publications, and prohibiting freestanding newsracks and unauthorized
16 fixed pedestal units in fixed pedestal zones shall not be implemented or enforced until the
17 guidelines specified in this paragraph are in effect and notice of the effective date has been
18 published in the City's official newspaper.

19 * * * *

20 ~~—(5) Newsrack Advisory Committee. The Director is hereby authorized and directed to~~
21 ~~establish a Newsrack Advisory Committee consisting of 11 members. The Newsrack Program Manager~~
22 ~~of the Department of Public Works shall be a voting member, and shall chair the Committee. The~~
23 ~~Director shall appoint to the Committee persons drawn from, or having expertise in, the newspaper,~~
24 ~~news and/or commercial periodical, and distributing industries in the City, and/or drawn from~~
25 ~~neighborhood and merchant groups, and other interested members of the public. The number of~~

~~Committee members who are representatives of publishers and/or distributors shall equal the number of Committee members who are representatives of neighborhood and/or merchant groups. The Director shall endeavor to include on the Committee representatives paid and unpaid publications and of more and less frequently published publications. The Committee shall advise the Director in the implementation and administration of this section; resolve disputes concerning the locations of fixed pedestal units, to the extent consistent with this section and the guidelines; and minimize the cost to the City of the implementation and administration of this section. No vendor or agent or employee of a vendor may serve on the Committee. Committee members shall serve at the pleasure of the Director for a term of one year, and may be reappointed to additional terms. The Committee shall hold regularly scheduled meetings, with notice posted in the City's official newspaper.~~

(56) Fees.

* * * *

(f) ESTABLISHMENT OF FIXED PEDESTAL ZONES.

* * * *

(3) Fixed Pedestal Zones.

(A) The Director is authorized to establish one or more fixed pedestal zones within the City subject to the following requirements:

* * * *

(iv) Except as this section or the guidelines provide otherwise, the Director shall establish fixed pedestal zones ~~following consultation with the Newsrack Advisory Committee~~. Each zone shall be deemed established as of the date the Director publishes notice of the zone's location in the City's official newspaper following such consultation.

* * * *

(g) LOCATIONS AND PLACEMENT OF FIXED PEDESTAL UNITS.

* * *

1 (2) **Selection of Fixed Pedestal Unit Locations.**

2 (A) Initial Units. During initial implementation in each fixed pedestal zone, the
3 locations of fixed pedestal units in that zone shall be selected, so that to the extent reasonably
4 possible and in compliance with this section and the guidelines, (i) publications that are
5 historically present at corner areas (as defined in Section 184.12(b)(10)) may receive space in
6 fixed pedestal units located in that zone as close as reasonably possible to, and no more than
7 seven feet (7') from, the curb corner, excluding space taken up by intervening street furniture;
8 (ii) publications that are historically present at midblock areas (as defined in Section
9 184.12(b)(10)) may receive space in fixed pedestal units in that zone located as close as
10 possible to the midblock locations of their former freestanding newsracks; and (iii) the number
11 of newsrack boxes at each fixed pedestal unit location equals the number of freestanding
12 newsracks historically present at each such location. Notwithstanding the foregoing sentence,
13 initial implementation, including the selection (fixed pedestal unit locations, in a fixed pedestal
14 zone may occur even if the objectives stated subsections (i), (ii), and/or (iii) of the foregoing
15 sentence cannot be wholly achieved, in which case those objectives will be achieved to the
16 extent reasonably possible consistent with this section and the guidelines. Initial fixed
17 pedestal unit locations shall be selected in accordance with the requirements of the guidelines
18 and with the following requirements:

19 * * *

20 ~~—— (iii) If at least three quarters (¾) of the publications that are historically present at a~~
21 ~~particular survey location revise their plan to address the grounds for the Director's amendment or~~
22 ~~rejection thereof within a reasonable time, and those publications and the Director cannot agree on~~
23 ~~locations for fixed pedestal units in the zone following such revisions, the locations in dispute may be~~
24 ~~resolved by the Newsrack Advisory Committee in accordance with all requirements of this section, the~~
25 ~~guidelines, and the vendor contract, if and only if the Director receives a request for such Newsrack~~

1 ~~Advisory Committee review submitted by at least three-quarters (¾) of the publications that are~~
2 ~~historically present at the survey location in dispute. The Committee's determination (or, if the~~
3 ~~Committee fails to promptly decide, the Director's most recent determination) shall constitute the~~
4 ~~City's final administrative determination. Any party may bring a court reporter to any such Committee~~
5 ~~meeting and record a transcript of the meeting.~~

6 * * * *

7 (l) **IMPLEMENTATION AND APPLICATION TO EXISTING NEWSRACKS.** The
8 Director is instructed to promptly phase in the implementation of this section ~~in consultation~~
9 ~~with the Newsrack Advisory Committee.~~ In order to accomplish this purpose, the Director is
10 authorized to establish implementation areas within fixed pedestal zones and to establish
11 dates by which all fixed pedestal units in the implementation areas shall be in compliance with
12 the requirements of this subsection, and by which all freestanding newsracks and
13 unauthorized fixed pedestal units shall be removed. The deadlines for compliance with this
14 section and the Director's guidelines shall be prominently posted in the implementation areas
15 not less than thirty (30) days prior to the date for initial implementation specified in the
16 guidelines. Publications shall have ninety (90) days from the initial date specified in the
17 guidelines to come into compliance with the provisions of this section and the guidelines
18 promulgated under this section. Deadlines for compliance with these requirements shall be
19 published in the City's official newspaper.

20 (m) **APPEALS.**

21 ~~—(1) (A) Unless otherwise provided herein or in the guidelines, any person other than a~~
22 ~~vendor who is aggrieved by and seeks review of a determination made by the Director pursuant to~~
23 ~~subsections 184.12(e) (k), inclusive of this section must file with the Director a written request for~~
24 ~~review of the Director's decision by the Newsrack Advisory Committee. Such a request must be~~
25 ~~delivered to the Director not more than ten (10) business days following the issuance of the Director's~~

1 ~~decision. The Newsrack Advisory Committee shall consider the request at its next regularly-scheduled~~
2 ~~meeting, or at a special meeting held for this purpose before the next regularly-scheduled meeting, if the~~
3 ~~next regularly-scheduled meeting is not going to be held within ten (10) business days of the Director's~~
4 ~~receipt of the request, consistent with public meeting law requirements. At the meeting, the Newsrack~~
5 ~~Advisory Committee shall vote either to affirm or dissent from the Director's decision. The Newsrack~~
6 ~~Advisory Committee's vote shall be provided to the Director within two (2) business days. The~~
7 ~~Director shall have three (3) additional business days to render a final decision affirming or reversing~~
8 ~~his or her original determination. Such decision shall explain the Director's determination, including~~
9 ~~the facts relied on in the determination, with citations to any provisions of this Section and the~~
10 ~~guidelines upon which the Director relies.~~

11 ~~——(B) Review by the Newsrack Advisory Committee pursuant to subparagraph (A) shall be~~
12 ~~optional, at the election of the person aggrieved by the Director's determination. The election of such~~
13 ~~review shall not detract from any right of judicial review that may be available under applicable law,~~
14 ~~provided that if the person aggrieved by the Director's determination elects review by the Newsrack~~
15 ~~Advisory Committee, then that person waives any claim that the City did not provide him, her or it with~~
16 ~~a prompt administrative appeal or prompt judicial review during the period the matter is under review~~
17 ~~pursuant to subparagraph (A). If the person aggrieved by the Director's determination does not elect~~
18 ~~review by the Newsrack Advisory Committee, the Director's original determination shall constitute the~~
19 ~~Director's final decision.~~

20 (12) Following a final decision of the Director ~~pursuant to subparagraph (1),~~ any
21 person other than a vendor who is aggrieved by a determination made by the Director
22 granting, denying or revoking a permit pursuant to subsection 184.12(e) may file an appeal
23 with the Board of Appeals ~~in accordance with Part III, under~~ Section 8 et seq. of the ~~San~~
24 ~~Francisco Municipal Business and Tax Regulations~~ Code. The Board of Appeals shall set the
25 hearing on the appeal not less than ~~fifteen (15)~~ days after the filing of the appeal, shall act on

1 the appeal not more than ~~thirty~~ (30) days after such filing, and shall not entertain a motion for
2 rehearing. These time limits may be extended by stipulation of the parties or order of the
3 Board on good cause shown.

4 (23) The Board of Appeals shall determine whether the action taken by the Director
5 was proper solely based on the provisions of this section and the Director's guidelines. If the
6 determination of the Board differs from that of the Director, the Board shall, in a written
7 decision, specify wherein there was error in interpretation of this section or the guidelines
8 promulgated under this section, or abuse of discretion on the part of the Director, and shall
9 specify in its findings, as part of such written decision, the facts relied upon in arriving at its
10 determination. The determination of the Board shall be final and conclusive.

11 (34) Any party to the appeal to the Board of Appeals who is aggrieved by the
12 determination of the Board may seek judicial review of the Board's final decision in the
13 Superior Court of California, County of San Francisco, by filing a petition for a writ of
14 mandamus under Sections 1085 and/or 1094.5 of the California Code of Civil Procedure, as
15 appropriate. The petition shall be heard and decided in accordance with all applicable
16 statutes and rules, including Section 1094.8 of the Code of Civil Procedure and San Francisco
17 Superior Court Uniform Local Rules of Court, Rule 8.16, revised July 1, 1999, both of which
18 provide for expedited judicial review of the denial of a permit for an activity protected by the
19 First Amendment. Pursuant to Section 1094.8(c) of the Code of Civil Procedure, the City
20 hereby designates fixed pedestal permits as eligible for expedited judicial review pursuant to
21 Section 1094.8.

22 23 **SEC. 802. DEFINITIONS.**

24 * * * *

25 ~~*"Ex officio" shall mean a current employee of any City department, or California or federal*~~

1 ~~agency whose appointment to the Urban Forestry Council has been approved by the Director of the~~
2 ~~Department of the Environment.~~

3 * * * *

4 ~~—“Urban Forestry Council” shall mean the Urban Forestry Council as established under the~~
5 ~~Environment Code Chapter 12.~~

6 * * * *

7
8 **~~SEC. 803. URBAN FORESTRY COUNCIL; ADDITIONAL POWERS AND DUTIES.~~**

9 ~~—(a) The Urban Forestry Council shall serve in an advisory capacity to the Director or his or~~
10 ~~her designee on matters relating to this Article 16 and to tree management in the City. The~~
11 ~~responsibilities of the Urban Forestry Council may include but shall not be limited to the following:~~

12 ~~—(1) Studying the problems and determining the needs of the City concerning its street tree~~
13 ~~planting and maintenance programs, and advising the Director in this regard;~~

14 ~~—(2) Preparing for the Director an annual report detailing the state of the urban forest;~~

15 ~~—(3) Recommending to the Director appropriate species of trees to be planted on City streets~~
16 ~~or other areas under the Department’s jurisdiction;~~

17 ~~—(4) Working with the Community Boards of San Francisco in developing guidelines,~~
18 ~~standards, and procedures for the mediation of conflicts between property owners over the protection~~
19 ~~of views, solar access, planting/removal of trees, and other tree-related issues;~~

20 ~~—(5) Working with the Director concerning the maintenance of an Urban Forestry~~
21 ~~Management Plan;~~

22 ~~—(6) Developing and recommending for Board of Supervisors’ adoption uniform criteria for~~
23 ~~designating “landmark” trees and uniform criteria, rules, and procedures for the removal of~~
24 ~~“landmark” trees pursuant to Section 810;~~

25 ~~—(7) Making recommendations to the Director on appeals of applications for tree removal;~~

1 —~~(8) Recommending to the Director information to be distributed to the public concerning~~
2 ~~the selection, planting, and maintenance of trees throughout the City;~~

3 —~~(9) Recommending to the Director desirable City tree programs and activities, including~~
4 ~~legislation and funding mechanisms; and,~~

5 —~~(10) Reviewing the Annual Report prepared by the Department of Public Works Bureau~~
6 ~~of Urban Forestry.~~

7 —~~(b) The Urban Forestry Council shall perform such other duties assigned to it under the~~
8 ~~Municipal Codes.~~

9
10 **SEC. 810. LANDMARK TREES.**

11 * * * *

12 **(b) Designation Process.**

13 **(1) Nominations.** A tree may be nominated for designation as a landmark tree by
14 any of the following parties: (i) the property owner whose property contains the subject tree by
15 a written request to the Department ~~Urban Forestry Council~~; (ii) the Board of Supervisors,
16 Planning Commission, or Historic Preservation Commission ~~Landmarks Preservation Advisory~~
17 ~~Board~~ by adoption of a resolution of intent to nominate a tree for landmark status; or (iii) the
18 director of any City agency or department by filing a nomination letter with the Department
19 ~~Urban Forestry Council~~. Each tree nominated for landmark tree status shall be the subject of a
20 separate individual nomination.

21 **(2) Content of Nominations.** Nominations shall be made in writing ~~to the Urban~~
22 ~~Forestry Council~~ and shall include the basis for the nomination, which may address one or
23 more of the adopted designation criteria, including the factors listed below in Section
24 810(f)(4)(A)-(E) below; the lot, assessor's block, and street address of the subject property;
25 one or more pictures of the tree; and any other information that the nominating property owner

1 or entity believes would be pertinent to the nomination.

2 (3) ~~Urban Forestry Council~~ **Hearing and Determination.** The Department ~~Urban~~
3 ~~Forestry Council~~ shall hold a public hearing on a completed nomination request, and shall
4 determine whether the tree qualifies as a landmark tree pursuant to the adopted designation
5 criteria. After the conclusion of the public hearing, the Department ~~Urban Forestry Council~~ shall
6 adopt written findings that specify the basis for its decision to approve or reject the nomination
7 and shall forward these findings to the applicant for the nomination and the affected property
8 owner. ~~If the Urban Forestry Council determines that the subject tree meets the adopted designation~~
9 ~~criteria, it shall forward said decision to the Director, as to a tree on private property, or to the subject~~
10 ~~City agency, commission or department, as to a tree on City-owned property.~~ If the Department ~~Urban~~
11 ~~Forestry Council~~ rejects the nomination, the ~~Council~~ it shall not accept a new request for the
12 subject tree for three years from the date of its decision. If the Department ~~Urban Forestry~~
13 ~~Council~~ determines that a tree qualifies as a landmark tree, its written findings on the
14 nomination, along with any recommendations of relevant City agencies, commissions or
15 departments, shall be forwarded to the Board of Supervisors for its consideration pursuant to
16 Section 810(b)(4) of this Article. If the Department ~~Urban Forestry Council~~ fails to forward said
17 findings to the Board of Supervisors within 120 days of the Department's ~~Urban Forestry~~
18 ~~Council's~~ receipt of the nomination request, the Board of Supervisors may, in its discretion,
19 schedule a public hearing on the nomination, in which event, the failure of the Department
20 ~~Urban Forestry Council~~ to forward said findings within the 120 day period shall constitute its
21 approval of the nomination.

22 (A) If the nominated tree is on private or public property, the Department ~~Council~~
23 shall provide mailed notice of the hearing to the subject property owner and all property
24 owners adjoining the subject property where the tree is located at least seven ~~(7)~~ days prior to
25 its hearing. The Department ~~Council~~, in its discretion, also may provide delivered notice of the

1 hearing to residents adjoining the subject property, posted notice, or both.

2 (B) If the subject property exceeds one ~~(1)~~ acre in size, the Department Council
3 shall provide posted notice in lieu of the mailed notice. Such notice shall be posted on at least
4 two locations on each block face(s) tangent to the subject property at least seven ~~(7)~~ days
5 prior to its hearing.

6 (C) If the Department Council either delivers or posts notice in accordance with
7 these provisions, staff assigned to this task shall sign an affidavit, accompanied with any
8 supporting material, stating when and where the notice was delivered or posted.

9 (4) **Designation.** Upon the recommendation of the Department Urban Forestry
10 Council, the Board of Supervisors, by ordinance, may designate as a "landmark tree" any tree
11 within the territorial limits of the City ~~and County of San Francisco~~ that meets the adopted
12 designation criteria, or may rescind such designations. If the Department Urban Forestry Council
13 does not issue findings in a timely manner pursuant to Subsection (b)(3), the Board of
14 Supervisors shall adopt its own findings as part of the designation of a landmark tree.

15 * * * *

16 (d) **Temporary Designation of Landmark Tree Status.**

17 (1) At the time a member of the Board of Supervisors introduces a resolution of
18 intent to initiate a nomination and submits to the Clerk of the Board of Supervisors the
19 information required for a landmark tree nomination request as set forth in Section 810(b)(2),
20 the subject tree shall be temporarily designated as a landmark tree ("temporary designation")
21 and be subject to the provisions governing landmark trees set forth herein while proceedings
22 are pending on the landmark tree designation. At the time the Planning Commission or
23 Historic Preservation Commission ~~Landmarks Preservation Advisory Board~~ adopts a resolution of
24 intent to initiate a nomination, temporary designation of the subject tree shall occur. If the
25 Director ~~of the Department~~ or the director of any other City agency, commission or department

1 initiates landmark tree designation, temporary designation shall occur when the Department
2 issues an order ~~Urban Forestry Council adopts a resolution~~ determining that the subject tree
3 qualifies for landmark tree status. In addition, the Director ~~of the Department~~ shall have the
4 authority to issue an emergency order that temporarily designates a tree on private property
5 or on any property under the jurisdiction of the Department to prevent the immediate removal
6 of a tree. Upon initiation of a nomination pursuant to this Section, the entity initiating
7 nomination shall immediately inform the Director who shall immediately cause a notice to be
8 provided to the relevant department or private property owner informing them of the special
9 permit and approval requirements pursuant to Section 810(f).

10 * * * *

11 (5) If the Board of Supervisors rejects a resolution of intent to initiate nomination of
12 a tree or the Department ~~Urban Forestry Council~~ rejects a nomination under subsection (b)(3),
13 the temporary designation shall automatically terminate.

14 (e) **Zoning Administrator.** The Zoning Administrator shall be required to identify
15 designated landmark tree(s) on proposed development or construction sites and to notify ~~the~~
16 ~~Urban Forestry Council and~~ the Department or affected City agency, commission or
17 department. The Zoning Administrator and the Department or such other City Agency,
18 commission or department with jurisdiction, shall be required to impose measures to protect
19 such landmark trees on a construction site against damage to trunk, roots, and branches in
20 accordance with Section 808(c) of this Article. Removal of such trees shall be subject to the
21 rules and procedures for removal of landmark trees provided in this Section.

22 (f) **Removal Criteria and Procedures.**

23 (1) **Removal Criteria.** The Department ~~Urban Forestry Council~~ shall develop and
24 recommend for adoption by the Board of Supervisors uniform criteria, rules, and procedures
25 governing determinations to remove landmark trees. Removal criteria shall require

1 consideration and written findings on all of the factors related to the landmark tree as set forth
2 in Section 810(~~fg~~)(4), below, and shall not authorize the removal of a landmark tree unless the
3 it constitutes a hazard tree pursuant to Section 802(~~e~~). Public notice, in accordance with the
4 requirements of Section 806(a)(2), and a hearing shall be required.

5 * * * *

6 (5) **Emergency Removal on Private Property.** In the case of manifest danger
7 and immediate necessity, as determined by the Director, the Director may remove or require
8 the responsible owner(s) to remove a landmark tree immediately. After such emergency
9 removal, the Director shall provide written notice of the necessity for such action to the Board
10 of Supervisors ~~and the Urban Forestry Council~~ and shall also provide such notice to all
11 interested San Francisco organizations and, to the extent practical, to the owners and
12 occupants of properties that are on or across from the block face where the affected tree was
13 removed. If the Department incurs any costs related to an emergency removal, said costs,
14 including labor, equipment, materials, inspection services, and administrative costs, shall be
15 an obligation owing by the responsible owner(s) to the City. Removal of a landmark tree
16 pursuant to this Subsection is not subject to Section 810(f)(4) above.

17 (6) **Emergency Removal on City-owned Property.** In the case of manifest
18 danger and immediate necessity, as determined by the director or general manager of the
19 subject agency, commission, or department, the subject agency, commission, or department
20 may remove a landmark tree within its jurisdiction immediately. After such emergency
21 removal, the subject agency, department, or commission shall provide written notice of the
22 necessity of such action to the Board of Supervisors, ~~Urban Forestry Council~~ and Department
23 ~~of Public Works~~ and shall also provide such notice to all interested San Francisco organization
24 and, to the extent practical, the owners and occupants of properties that are on or across from
25 the block face where the affected tree was removed. Removal of a landmark tree pursuant to

1 this Subsection is not subject to Section 810(f)(4) above.

2 * * * *

3
4 Section 42. The Division I of the Transportation Code is hereby amended by revising
5 Article 6, Section 6.1 to read as follows.

6
7 **SEC. 6.1. INTERDEPARTMENTAL STAFF ~~COMMITTEE~~ COUNCIL ON TRAFFIC**
8 **AND TRANSPORTATION (ISCOTT).**

9 There is hereby established a committee to be known as the Interdepartmental Staff
10 ~~Committee-Council~~ on Traffic and Transportation (ISCOTT), consisting of the department or
11 their designated representatives from the following departments and agencies: Municipal
12 Transportation Agency, Planning, Public Works, Police, Fire, Public Health, and Entertainment
13 Commission. The Director of Transportation or their designee shall serve as Chair of ISCOTT.
14 The ~~Director of Administrative Services of the City and County of San Francisco or the Director's~~
15 ~~designee~~ City Administrator or their designee shall review recycling plans submitted pursuant to
16 Section 6.5 and recommend any conditions to ISCOTT that should be imposed on any
17 applicant. In exercising its powers ISCOTT shall consult with any other City department or
18 agency that could be affected by any temporary use or occupancy of a public street. ISCOTT
19 shall have the authority to take all acts reasonably necessary for it to carry out any duties
20 imposed upon it by law. Before acting on any application for temporary use or occupancy of
21 public streets, street fair or an athletic event, ISCOTT shall conduct a public hearing at a
22 publicly noticed time and place to be determined by ISCOTT.

23
24 Section 43. The Treasure Island/Yerba Buena Island Citizen Advisory Board, which
25 was established by Board Resolution No. 89-99, is hereby eliminated.

1
2 Section 44. A chart of all Commissions and Advisory Bodies renamed herein has been
3 provided to the Clerk. In the event the Municipal Code contains any other reference to the
4 names of Commissions or Advisory Bodies that have been renamed herein, the City Attorney
5 shall direct the publisher of the Municipal Code to change such terms consistent with this
6 ordinance.

7
8 Section 45. Updating Cross References. The City Attorney shall cause all cross-
9 references in the Municipal Code to any sections and subsections in the Municipal Code that
10 this ordinance redesignates to be updated to reflect the new designation of the section or
11 subsection, and that any reference to “Code,” “Chapter” or “Article” in the former ordinances
12 shall be changed in accordance with this redesignation. Any such updates in cross-
13 references shall be purely clerical and shall not otherwise effect any substantive change.

14 For updates to cross-references made in the Municipal Code pursuant to this Section,
15 the City Attorney shall prepare one or more documents specifically showing the cross-
16 reference changes effected by this ordinance. This documentation shall be filed with the
17 Clerk of the Board of Supervisors for inclusion in the Board of Supervisors File No. _____.
18

19 Section 46. Authorization for City Attorney’s Office to Make Nonsubstantive Changes.
20 The City Attorney’s Office is authorized, but not required, to make textual changes that are
21 entirely nonsubstantive in the process of codifying this ordinance. The City Attorney shall
22 prepare one or more documents specifically showing the changes made pursuant to this
23 Section. This documentation shall be filed with the Clerk of the Board of Supervisors for
24 inclusion in the Board of Supervisors File No. _____.
25

1 Section 47. Scope of Ordinance. In enacting this ordinance, the Board of Supervisors
2 intends to amend only those words, phrases, paragraphs, subsections, sections, articles,
3 numbers, punctuation marks, charts, diagrams, or any other constituent parts of the Municipal
4 Code that are explicitly shown in this ordinance as additions, deletions, Board amendment
5 additions, and Board amendment deletions in accordance with the “Note” that appears under
6 the official title of the ordinance.

7 As described in Section 1 of this ordinance, the ordinance is enacted solely for the
8 purpose of effectuating the decisions and recommendations of the Commission Streamlining
9 Task Force. In addition, the ordinance incorporates nonsubstantive changes to reorganize
10 the Municipal Code and to modernize, correct, and update the language and format of
11 provisions concerning commissions and advisory bodies. Neither the retention nor relocation
12 of any provision is intended to alter its substance or meaning except as specifically revised
13 herein. This ordinance is not to be considered a “reenactment” of any provision of the
14 Municipal Codes, and courts should not infer a substantive legislative intent from reenacted
15 provisions, such as inferring legislative approval of past judicial or administrative
16 interpretations of those provisions.

17
18 Section 48. Effective Date. This ordinance shall become effective at 12:00 a.m. on the
19 31st day after enactment. Enactment occurs on the earlier of (1) the date the Mayor signs the
20 ordinance, (2) the date the Mayor returns the ordinance unsigned or does not sign the
21 ordinance within 10 days of receiving it, (3) the date the Board of Supervisors overrides the
22 Mayor’s veto of the ordinance, or (4) the 91st day after it is introduced unless before the
23 expiration of the 90-day period two-thirds of all members of the Board of Supervisors vote to
24 disapprove the ordinance. See Charter Section 4.100.1(e).

1 APPROVED AS TO FORM:
2 DAVID CHIU, City Attorney

3 By: /s/ Sarah Fabian
4 SARAH FABIAN
 Deputy City Attorney

6 4937-7219-6498, v. 1